

ECCLESIASTICAL
HISTORY OF ENGLAND

The Church of the Restoration

BY

JOHN STOUGHTON, D.D.

IN TWO VOLUMES—VOL. I.

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The Church of the Restoration.

BY
JOHN STOUGHTON, D.D.

IN TWO VOLUMES—VOL. I.



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ADVERTISEMENT.

The object of my former volumes upon the Ecclesiastical History of England was to state facts and to draw conclusions, without seeking to gratify any particular party, and by such a method to promote the cause of Christian truth and charity. Acknowledgments of success to some extent, expressed by public critics, and by private friends, holding very different ecclesiastical opinions, encourage me to proceed in my arduous but agreeable task; and I now venture to lay before the public another instalment of my work.

To account for its appearance so soon after its predecessor, it is but fair to my readers and myself to state, that it became the dream and desire of my life, a quarter of a century ago, to write an Ecclesiastical History of my own country; and that, ever since, my reading and my reflections have been directed very much into this channel. For many years past, I have been engaged in studying the affairs of the Church from the Commonwealth to the Revolution; and therefore, whatever may be the imperfections of these volumes, they are not, at any rate, a hasty compilation, but the result of long and laborious research.

It may be well to indicate the sources from which my materials are drawn.

The printed *Journals* of the Lords and Commons,—the *Parliamentary History of England*,—*Cardwell's Synodalia*,—*Thurloe's State Papers*,—and other similar collections, which did not exist in the days of Kennet, Collier, and Neal,—supply, together with Burnet's and Baxter's contemporary accounts, the backbone of the following narrative. Journals, diaries, and biographies of the period, with newspapers and tracts, of which extraordinarily rich collections are found in the British Museum and in Dr. Williams' Library, have helped to clothe the skeleton. But the sources of illustration, upon which I rest some slight claim to originality, are found in certain unpublished MSS. which it has been my privilege to examine and employ.

I. Amongst these the first place belongs to the *Collection of Papers in the Record Office*. Besides the assistance furnished by the published calendars of Mrs. Green, extending from 1660 to 1667, I have been favoured with the use of that lady's unpublished notes down to the close of 1669; these helps have greatly facilitated my inquiries into the history of the first decade embraced within these volumes. From that period to the Revolution, I have been left with no other clue than the Office catalogue of the books and bundles chronologically arranged; and all the documents which I could find bearing on domestic affairs—and they amount to many hundreds—I have carefully examined. Although those which relate to ecclesiastical matters are by no means so numerous as those which relate to political, commercial, and other subjects, they are of very great value to the Church historian. They may be classified as follows:—

As to the Established Church—

- i. Note-book of Sir Joseph Williamson.
- ii. Applications for preferments, and correspondence relating to them.
- iii. Private letters alluding in various ways to Church affairs.

As to Nonconformists—

- i. Informations against them, which are very numerous.
- ii. A spy-book, containing many curious particulars of suspected persons.
- iii. Correspondence containing a great number of incidental allusions to the condition of Nonconformity.

The details are generally of a minute description, and would very extensively serve the purpose of biographers and local historians; but they are not without considerable value for a purpose like mine, as my foot-notes will testify.

Amongst the new historical illustrations thus afforded, are those connected with the ecclesiastical aspects of the general election of 1661, with the rumoured plots of that and succeeding years, plots in which Nonconformists were accused of being involved,—the conduct of Nonconformists under their persecutions,—and the fabrication of letters with the view of involving Nonconformists in trouble—of which one striking example occurs in relation to William Baffin, and, as appears very probable, another referring to certain London ministers. There are also

notices of the Indulgence of 1672, and of the case of Colledge, the Protestant Joiner, as he was called. It is apparent how much the antipathies of the two religious parties of that day were augmented by political considerations; and from the documents are also obtained many interesting and amusing glimpses of private social life.

II. Next to the State Papers, I may mention a collection of fragmentary remains in the *Archives of Parliament*, connected with the passing of the Act of Uniformity,—and especially the Book of Common Prayer attached to the Act (described in my Appendix), prefixed to which is an Analysis of the alterations made in the formularies. Accurate copies of these papers have been furnished for my use by the kindness of Sir Denis Le Marchant.

III. *The well-known MS. Collections in the British Museum and at Lambeth.* They have yielded items of information I believe not published before—particularly the returns made to Episcopal inquiries as preserved in the Archiepiscopal Library.

IV. *The MSS. in the University Library of Cambridge.* I have found amongst these some papers which have been of service, especially in relation to the reign of James II.; one of them, giving an account of the opening of Parliament, I have printed in my Appendix.

V. *The Morice and other MSS. in Dr. Williams' Library.* This collection forms a quarry hitherto imperfectly worked. There are three folio volumes, entitled, *Entering Books, or Historical Register*, extending over the period between 1676-91. These I have found of great service in throwing light upon Nonconformist opinions of public events, in supplying the current rumours of the day, and in recording pieces of information relating to minor matters illustrative of those times. And here I may add, not only with regard to this and other diaries, but also with reference to letters and notes amongst the State Papers, that I have relied on them only for such purposes as are now indicated, and that I do not rest my belief of any important historical events simply upon evidence of this description.

VI. *A curious Diary*, kept at the time of the Restoration, for the loan of which some years ago I was indebted to Mrs. Green, who copied it from the original in the Middleshill Collection. I have called it the *Worcester MSS.* The diarist was Henry Townshend, Esquire, of Elmley Lovet, Worcestershire, who lies buried in the church of that parish; and the nature

of his impressions of what went on around him may be inferred from his epitaph.

VII. *A document relative to the death of Charles II.*, being one of the valuable collection of papers entrusted to the Record Commission for examination. This document solves the curious enigma which puzzled Lord Macaulay. For a copy of it I am indebted to the kindness of Sir Thomas Duffus Hardy, who takes an important part in the Commission.

VIII. *A MS. History of the Congregational Churches of Suffolk*, by the Rev. Thomas Harmer, Author of *Observations on Scripture*; *a MS. History of the Congregational Church at Yarmouth*, drawn up from the Church Book by my late friend Mr. Joseph Davey; and other old *Church Records* which I have been permitted to inspect, as will appear from the foot-notes to these volumes.

IX. *MS. Volumes and Papers in the Archives of Canterbury*. For the inspection and use of these I am indebted to the kindness and assistance of the Dean and of Canon Robertson.

X. *Subscription Book*, amongst the records of Chichester Cathedral, which has been examined by Canon Swainson, who has furnished me with the results inserted in the Appendix. To him my best thanks are due; nor can I omit to record my acknowledgments to the Dean of Chichester also, for all his kind and friendly attention.

With these various materials before me, I have entered much more fully than previous historians have done into several subjects—especially the re-establishment of the Episcopal Church by the Act of Uniformity. In our time, when the question of Establishments has been so earnestly and so practically taken up, as to work out already the greatest ecclesiastical change since 1662, surely a full account of what was accomplished in that memorable year, with its immediate results,—results far from having spent their influence,—must be reckoned amongst the most desirable portions of history. It is remarkable that no State Churchman has ever gone at large into this subject, supplying the defects of Neal, and correcting the inaccuracies of Clarendon and Burnet. Whilst I have attempted to supply the acknowledged desideratum from my own point of view, it has been my aim, in these as in former volumes, to make my readers acquainted not only with prominent transactions, but with the social and private religious life of the

period, the personal piety which existed in different communions, and the identity of that spiritual life which then deeply struck its roots, as it ever does, under varied forms of doctrinal belief, of Christian worship, and of ecclesiastical government.

I have also attempted to redeem my promise to furnish a sketch of the theological opinions entertained in England between the commencement of the Civil Wars and the fall of James II. It would have been easier and more attractive to indulge in broad generalizations on the subject, and to work out my own theological conclusions, through the medium of historical reflection and argument; but I have preferred the more useful and trustworthy, as well as the more humble and laborious method of analyzing and describing the publications of the period in connection with the authors, and thus indicating some of the extraneous influences which have wrought upon the minds of eminent thinkers. Of course I have been compelled to limit myself to those writers who are best known and most significant, and therefore the student will perhaps miss in my account some favourite or expected name. But imperfect as the review will be found, enough will appear to indicate strong resemblances between currents of opinion then and now; and in this respect, the true apprehension of the present will be materially assisted by a knowledge of the past.

As in the course of my researches I have detected in authors of the highest reputation a number of minute inaccuracies, and some important errors, I cannot hope to have escaped such evils myself, and I shall be very thankful to candid critics for kindly pointing them out.

About one half of this volume covers ground traversed by me in *Church and State two hundred years ago*, published in 1862: but it will be found, that with the exception of a few sentences here and there, the account now published is quite new. Facts before passed over are here described at length, whilst certain trivial details are omitted; my views on some points have undergone a little modification, and the entire narrative has been rearranged; but the spirit which I sought at the beginning I have endeavoured to retain throughout.

It would be ungrateful not to add, that for facilities in research, and for direct literary aid, I am indebted to many friends. Besides special obligations which I have acknowledged in the foot-notes and Appendix, I

beg to acknowledge the kindness of Mr. Thoms, Sub-Librarian to the House of Lords—Mr. Aldis Wright, Librarian of Trinity College, Cambridge—Mr. Bullen, of the British Museum—and Mr. Hunter, keeper of Dr. Williams' Library.

Nor can I omit to mention again, my fellow-workers at home, especially one whose assiduity and care in helping me to correct the press, deserve the highest praise.

Two literary friends who took much interest in this work,—the Rev. Joseph Aspland and Mr. John Bruce, F.S.A.,—are now, alas, beyond the reach of my thanks.

Should my life be spared, I hope in another volume to bring the Ecclesiastical History down to the Revolution. A history of the eighteenth century lies amongst the visions of the future.

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INTRODUCTION.

The knell of the Puritan Commonwealth was rung when Oliver Cromwell died. The causes of its dissolution may easily be discovered. Some of them had been in operation for a long time, and had prepared for the change which now took place.^[1]

Puritanism never won a majority of the English people. By some of the greatest in the nation it was espoused, and their name, example, and influence, gave it for a time a position which defied assault; but the multitude stood ranged on the opposite side. Forced to succumb, and stricken with silence, the disaffected nevertheless abated not a jot of their bitter antipathy to the party in power. Even amongst those who wore the livery of the day, who used the forms, who adopted the usages of their masters, many lacked the slightest sympathy with the system which, from self-interest or timidity, they had been induced to accept. The Puritans were not the hypocrites; the hypocrites really were people of another religion, or of no religion, who pretended to be Puritans. Besides these, there were numbers who whispered murmurs, or bit their lips in dumb impatience, as they watched for signs of change in the political firmament.

A mischievous policy had been pursued by the Puritans towards the old Church of England. Laud's execution yielded a harvest of revenge. The extirpation of Episcopacy, and the suppression of the Prayer Book, kindled an exasperation which kept alive a resentful intolerance down to the period of the Revolution. I am aware of the excuses made for Puritan despotism, and am ready to allow some palliation for wrong done under provoking circumstances, but I must continue to express indignation at the injustice committed; all the more, because of my religious sympathy with the men who thus tarnished their fame. It must, however, be confessed that had Presbyterians and Independents been ever so merciful in the hour of their might, there is no reason to suppose, from what is known of their opponents, that they would have shewn any mercy in return.

In enumerating the causes of the failure of Puritanism as a *political* institution notice should be taken of the prohibition of ancient customs.

How far the prohibition extended has been pointed out in former volumes, and I must repeat, that whilst endeavours to suppress national vice were most praiseworthy, some of the Parliamentary prohibitions at the time were, to a considerable extent, unjust and unnatural. Those who chose to celebrate Christmas, Easter, Whitsuntide, and other seasons, had a perfect right so to do; and some, though not all, of the amusements remorselessly put down, were in themselves innocent; pleasant, and even venerable in their associations; and in their tendencies productive of kindly fellowship between class and class.

Puritan rule in England came as the child of revolution—a revolution mainly accomplished by civil war. The first battle, indeed, and that which led to all the others, was fought on the floor of the House of Commons. The patriots being returned as the representatives of the most active and influential citizens, many of whom were Puritans, possessed an immense amount of political power, and, as statesmen, they turned the scale in favour of revolution; but the revolution had to make good its ground by force, and the patriots, as soldiers, had to crush resistance in the field. This was a necessity. The attitude of the King, the chivalrous spirit of the nobles who rallied round him, under the circumstances in which Parliament had placed itself, rendered an appeal to arms inevitable. The wager of battle having been accepted, the quarrel having been fought out bravely, the relative position afterwards of the victors and the vanquished could not but embitter the feelings existing on both sides. The vanquished submitted without grace to their conquerors. They hated the new political constitution. When they seemed quiet they were only biding their time, only preparing for some fresh outbreak. Memories of privation, of imprisonment, of cruel usage, of houses burnt, of fathers, sons, and brothers slain, and especially the mortification of defeat, constantly irritated the Cavalier and goaded him to revenge. The blister was kept open year after year. The wound never healed. Alienation, or resentment, on the part of the Royalist provoked new oppression on the part of the Commonwealths-man. Fresh oppression from the hands of the one produced fresh resentment in the breast of the other.

A civil war may be needful for the deliverance of a country; but the recollections of it for a long while must be a misfortune, since those recollections exhibit the new state of things to the party on the opposite side as a result of force, not as a result of reason; and the remembrance of

imposition ever involves a sense of wrong. Under this misfortune the triumphant Puritans laboured throughout the Protectorate.

After the Restoration the misfortune, in some respects, became heavier than before. The previous eighteen years had been to the Royalists years in which violence destroyed the Monarchy and the Church. They were the years of the *Great Rebellion*—so the political Revolution came to be named—and in that name, specious and plausible, although untruthful and unjust, lay much of the capital with which political leaders after the Restoration carried on their trade of oppression and wrong. The Puritans, they said, were rebels, for they had fought against the Crown: what they had done once they would do again. A valid defence was at hand, for the Puritans could show that there was nothing really inconsistent between their peaceful submission to the restored monarch, and the course which they had pursued under the Long Parliament; yet, although they could make out a case satisfactory to impartial men, over against their logic, however forcible, there stood some awkward facts of 1642 and the following years, upon which High Churchmen in the reign of Charles II. were never weary of ringing changes.

The Long Parliament had rested upon the Army; so had the constitution of the Protectorate. His Highness's rule had been fortified by his major-generals and his troops. For its good and for its evil it depended upon soldiers. A military despotism had become necessary from the confusion of the times; it alone could bring quiet to the country after political earthquakes. The regal sway had fallen into the hands of a great general, a great statesman, and a great patriot, who, because he combined these three characters, was able to work out benevolent designs for his country. So long as he held the baton, so long as he drew the sword, he could maintain his standing, but not a moment longer. He had immense difficulties to overcome. Episcopalians were almost all against him; very many Presbyterians stood aloof or offered opposition; Spiritual Republicans, Fifth Monarchy men were his torment; even Congregationalists, with whom he felt spiritual sympathy, wished for a more democratic government than he would allow; the Quakers neither loved nor feared him. Besides, he had political colleagues who, as statesmen, appeared in opposition. Also, old generals were looking after an occasion for making resistance. Vane and Haselrig, Harrison and Ludlow, disapproved of the policy of their former

friend. They disliked the new Constitution; they were for placing the keys in the hands of Parliament, not in the hands of a single person. They regarded the Protector as the Greeks had regarded a tyrant. Monarchy they detested, Democracy they would enthrone; yet they saw amongst them a sovereign, mightier than any Stuart, only called by another name. And it became a germ of weakness in the new Constitution, that it had to be defended by arguments similar to those which availed for the support of the ancient monarchy. It could be said—and truly said—that English traditions, usages, genius, spirit, and social necessities, demanded a supreme head—the rule "of a single person." But the rule of a single person was the very thing so hateful to the Republicans, although connected with the modifying checks of a Parliament. Many saw that the reasons employed in favour of Oliver Cromwell's Protectorate might be employed more consistently in favour of the restoration of Charles Stuart. This circumstance was felt by numbers who did not confess it.

Moreover, respecting domestic and foreign policy Cromwell had to meet strong opposition. Finances, and law reform, were matters of contention. The Dutch war, the French alliance, and the relations with Spain, also presented points in which he and other distinguished Commonwealths-men differed. As the political reign of Puritanism depended upon Cromwell these circumstances could not fail to undermine its strength. His statesmanship showed consummate ability; his knowledge of mankind and of individuals amounted to a species of divination; his control over those about him was irresistible; his sagacity, vigilance, promptitude, decision, and patience were unrivalled; his name was a tower of strength at home and abroad; his foreign policy was successful, and therefore, as long as he lived, the system which he had inaugurated and administered was sure to last. It did—but at his death came collapse. There remained no master-mind to rule the State, and to control the Army. The State soon showed a disposition to go one way, the Army another. Confusions ensued; and the latter fell under the command of a soldier who betrayed his trust, and employed his influence to pull down the entire fabric of Puritan power.

So far, then, as Puritanism had become a political institute it sunk under the shock of Oliver Cromwell's death. But though as an institute it crumbled away, the political spirit which it had evoked and cherished did not die. It would be a repetition of what has been said a hundred times, to insist here

upon the influence of the Puritan leaders of the Long Parliament, and the influence of the Puritan chiefs of the Commonwealth Army in preparing for the political liberties of England, guaranteed at the Revolution. A peaceful change then came as the consequence and complement of the Civil Wars. It is the destiny of nations to pass through the waters of conflict and suffering ere they can reach the shores of freedom. Our Puritan fathers then breasted the torrent, and made good their landing on the right side, where we, thanks to their bravery and endurance, have, under God, found a home. The superstructure they immediately raised was not permanent; but its strong foundation-stones were too deeply laid to be removed in a brief period of reaction; and on them we now are building new forms of political justice, order, and peace. It may take longer time and nobler labour than we imagine to complete the edifice, but our hope and trust is that Divine providence will one day bring it to perfection.

Puritanism must be considered under its *ecclesiastical* as well as its political aspect. It became political through its ecclesiastical action, and its ecclesiastical character has been damaged by its political relations. It was worked up into an elaborate Presbyterian system, framed not only for the purpose of instructing the nation in the truths of the Bible, but for the purpose also of constituting every Englishman a member of the Church, and of subjecting him to the authority and discipline of its officers. This ecclesiastical organization its advocates brought, so far as they could, into union with the civil government to be defended and enforced by the magistrate. And where Puritanism assumed a Congregational shape, and claimed the name of freedom, although, as to Church institutes, it sought, and to some degree attained liberty of operation, yet, in all cases where its ministers were parochial incumbents, they, by their identification with the national establishment, exposed themselves to the political danger which, at certain crises, threaten institutions of that description. When ecclesiastical arrangements are complicated with State affairs they must be subject to a common fortune. What endangers the one endangers the other, and the history of Puritanism offers no exception to the general rule.

Two ecclesiastical principles are seen at work in connection with the religious organizations which existed in the middle of the seventeenth century: Erastianism and Voluntaryism. Erastianism came across the path of both Presbyterians and Congregationalists. It wrought powerfully through

the ordinances and laws of the Long Parliament, in the way of checking what it justly deemed the despotic tendencies of uncontrolled authority in the exercise of discipline. The working of Erastianism is visible in the legal prevention of the full establishment of parochial assemblies and provincial synods; and in the interference of the magistrate with those Independent pastors holding benefices, who would fain have excluded from the Lord's table persons whom they deemed morally unfitted for approaching it. In curbing suspected despotism, Erastianism, as is its wont, paralyzed the hand of a salutary restraint upon the irregularities of Christian professors. It opened a door for promiscuous communion. It thwarted the designs, and enfeebled the energy of ecclesiastical Puritanism; and thus laxity of fellowship followed as a penalty for seeking State support, on the part of communities which prized the purity of Christ's Church.

Voluntaryism cannot properly be identified with Puritanism. The leading Puritans neither advocated nor countenanced that principle; such as were Episcopalians did not. The Presbyterians, and some of the Independents, as we have this moment noticed, did not. A few of the Baptists did not. Oliver Cromwell, who protected them all, did not. Whilst some Puritans thus stood apart from Voluntaries, and even opposed *them*, there were some Voluntaries who stood apart from Puritanism, and even opposed *that*. The Quakers, from the commencement of their history, protested against the union of Church and State, and were ever faithful to their convictions in this as well as in other respects; they also kept aloof from Puritanism altogether, and even condemned it severely, under several of its aspects. Many of the Independents, and more of the Baptists, previously to the Civil Wars, also disapproved strongly of that kind of union which displeased the Quakers, and contended firmly for the support of Churches by voluntary contributions; yet they entered into cordial alliance with Puritanism in other things, promoting certain of its political proceedings, and sympathizing generally with its spiritual movements and tendencies. Voluntaryism had strong affinities for the spiritual side of Puritanism, deriving from it the most vigorous impulses, contributing towards it the most devoted service; and if it did not win its way at first amongst the rich, the noble, and the learned, it laid hold upon the hearts of the humbler classes; and, by widely leavening them with its power, prepared for subsequently working upwards to that influence which is exercised by it in the present day. The history of this principle is the same throughout: as it was with the primitive Christians,

—as it was with so many of the most pious and active men of the Middle Ages,—as it has been with the Methodists,—so it was with those of whom I speak. They began their work—"in a great trial of affliction the abundance of their joy and their deep poverty abounded unto the riches of their liberality."

Voluntaryism, so far as it affected Puritanism, did not contribute to its weakness, but to its strength; yet amongst those who professed Voluntaryism, as amongst those who adopted different views, there appeared an element which proved injurious to them all. It was dis-union—it was strife.

If the Crusading knights had been of one mind, it is a question, whether, in the end, they would have retained mastery over the Mussulmen; but certainly they stood no chance whilst feuds were rife in the Camp of the Cross. The same may be said of the Puritans. It would have been hard enough, with the utmost concentration of force, to bear down opposition; but amidst their own discords it became simply impossible. Presbyterians were of different shades of opinion, and they were not without mutual jealousies. But their hatred of what they stigmatized as Sectarianism appears scarcely less than their hatred of Prelacy, or even of Romanism; in some minds abhorrence existed equally in reference to all three. The sects were not behindhand in their mutual antipathies, and were by no means gentle in their collisions. Independents, Baptists, and Quakers, to mention no others—I speak of them all generally—did anything but keep "the unity of the spirit in the bonds of peace." The apostolic warning betokened evil to Puritan Christendom in England—"If ye bite and devour one another, take heed that ye be not consumed one of another." Yet those whose eyes are open to discern the defects in principle and temper of the ecclesiastical organizations of the Long Parliament and the Commonwealth, can also see that Puritanism has bequeathed to English Christendom a precious legacy of religious freedom. That spirit has not only wrought out modern Free Churches—which, whatever may be men's opinions on ecclesiastical questions, must be admitted by everyone to be efficient powers in spreading Christianity at home and abroad, and in exerting beneficial influences of many kinds upon society at large—but that spirit has also leavened, to a large extent, other communities not based upon what is called the voluntary principle. Toleration, for which the Independents struggled under

Cromwell, won a victory in 1688—an imperfect victory it is true, but still precious; and the toleration then established opened the way for the progress now advancing along the paths of mutual religious justice.

Puritanism presents another—a *spiritual* aspect—under which it has exercised an influence more vigorous and salutary than it has done in any other way.

It laid hold on thousands, not only by simple methods of religious worship which commended themselves to the plain understanding, and the unsophisticated taste of Anglo-Saxon people,—but by its emphatic exhibition of the truths of Christianity as a redemptive system, full of the love of God to sinful men, commending itself to humble and sorrow-stricken hearts. In the Gospel of Christ, which Puritanism prominently exhibited as adapted to the wants of mankind, lay the secret of its greatest success, and the key to its noblest results. As a spiritual power it had been strong under Elizabeth and the Stuarts; but its conflicts in war, its entrance into the Court, its elevation to the throne, defaced somewhat its spiritual beauty, and impaired in a measure its spiritual force. The most favourable aspects of Puritanism are not found in the history of the Civil Wars, and of the Commonwealth. As with Christianity in general—as with Protestantism at large, so with the system now under consideration. Not in the palace of Constantine do we discover the best specimens of Gospel piety; not in the Courts of English and German sovereigns do we see the workings of the Reformed Faith to most advantage; and not at Whitehall must we watch for the fairest visions of Puritan life. Our religion, in its best forms, is no doubt essentially a genial social power, healing, constructive, conservative—such we believe it will prove itself to be in the Church of the future—but in the Church of the past, it has shown itself purest and strongest when contending against opposition, when passing through scenes of suffering, when grappling with the evils of society, and when informing and animating individual souls. Persecution has been to piety what the furnace is to the potter's clay; it has burnt in, it has brought out, its richest colours. The Huguenots appear to much greater advantage in the defeats which they endured than in the victories which they won; the peasantry in their cottages are more to be admired than the nobles in their chateaux. The history of successful battles fought, or of courageous resistance made by the French Protestants; and the story of Henry of Navarre and his Courtiers even before

his reconciliation with Rome; read not so well as does the record of men of the same class who were burnt at the stake, or who were sent to the galleys, or who were exiled from their country. So also the chief moral charm of Puritanism is found, not in the successes of statesmen and soldiers; not in Pym's debates and majorities; not in Cromwell's charges and laurels; but in the deaths of Barrow and Greenwood, and in the tortures of Leighton and Burton; and, if we may anticipate, in the ejection, the wanderings and the imprisonment of Howe, and Heywood, and Baxter. On the same principle the quiet, earnest, and exemplary lives of the middle-class Puritans did more than anything else, at the commencement of the Civil Wars to give ascendancy to their cause; and after the Restoration to recover its character, and promote its progress. Puritanism, when once more separated from the State, returned to the old and better paths of confessorship and humiliation; and thrown back upon itself and upon God, it became, as of yore, a spiritual agency of the most potent kind. The theological books it produced, the devoted characters it formed, and the pious memories it handed to posterity, have created an influence embracing within its reach both England and America. The effect of its works, examples, and traditions have never perished in Dissenting Churches and families; but beyond these circles, it has manifestly told upon the Christian world. It contributed to the great revival of religion which arose within the pale of the Establishment during the last century; and from an earlier period than that, down to the present day, its perpetuated spiritual power has been deeply felt, and gratefully acknowledged on the other side of the Atlantic.

Such was the system of Puritanism—politically, ecclesiastically, spiritually; such were some of the causes which produced changes in it at the era of the Restoration. What it was, and what it did at that period and afterwards, remains to be related. We are to consider what, in its Presbyterian, Congregational, and other forms, it became; what it endured of direct persecution and of indirect social wrong; and what it achieved in works of faith, and love, and zeal. We are to trace its social influence in the retirements of English life; its new political influence on the side of liberty; the germs of after-thought which it planted; the stones of reform and improvement which it laid. Also, and this will occupy a still wider space, we are to mark how the Episcopal Church of England rose out of her ruins, and the Establishment became once more Anglican. All this, in the minute grades of the process, together with the form of the re-edification; the

policy of its new builders; their relations and conduct towards their Nonconformist brethren; the intermingling of ecclesiastical and political events; the Church developments; the theological controversies; and the spiritual life of the period, amongst Conformists and Nonconformists—much of it, on each side, beautiful, some of it, on both sides, marred—it is my arduous task faithfully to unfold.

CHAPTER I.

Richard Cromwell succeeded his father in the government of the realm, as if his family had from of old occupied the throne. What renders this fact the more remarkable is that the new ruler had never been a public character, except so far as holding offices of honour might be considered as giving him that appearance. He had spent a quiet and almost unnoticed life, in the retirement of Hursley Park, in Hampshire—an inheritance he had acquired by marriage,—and there, in the society of neighbouring Cavaliers, he had enjoyed the sports of a country gentleman. Imbued with loyalty to the Stuarts, notwithstanding his father's position; conforming to the Established religion, without any sympathy in his father's opinions; indeed, destitute of deep religious feeling of any kind, as well as of genius, enthusiasm, and force of will, he stood ill-prepared to sustain the enormous responsibility which now fell upon his shoulders.

Instantly after Oliver's death, on the 3rd of September, the Council assembled and acknowledged Richard's title. All the chief cities and towns in the dominion were informed that the late Protector—"according to the petition and advice in his lifetime"—had declared his "noble and illustrious son to be his successor." The Mayor and Aldermen of London proceeded to Whitehall with condolences and congratulations; and the new Protector, in their presence, took the Oath of the Constitution, administered to him by Fiennes, a Lord Commissioner of the Great Seal. Manton offered prayer, and blessed His Highness, "his council, armies, and people."^[2]

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Proclamation of Richard's accession throughout the country immediately followed; and, according to a custom which had originated under the Protectorate, addresses, overflowing with adulation, poured in from various public bodies. Foreign courts, too, acknowledged the Protector's title, and honoured his father's memory. "It a sad thing to say," remarks Cosin, writing from Paris, "but here in the French Court, they wear mourning apparel for Cromwell; yea, the King of France, and all do it."^[3] Richard's chief councillors were Lord Broghill, the Royalist, who had been a faithful

servant to Oliver; Dr. Wilkins, Warden of Wadham College, Oxford, married to the late Protector's sister; and Colonel Philip Jones, one of the Protectorate Lords. The union between these councillors sufficiently indicates that no extreme ecclesiastical policy could be contemplated; and, accordingly, in the month of November, a Declaration appeared, couched in liberal terms, conceding general toleration, and promising to godly ministers "their dues and liberties, according to law."^[4]

Richard was tolerant both from disposition and policy; owing to circumstances, he sympathized more with Presbyterians than with Independents; perhaps he would not have been adverse to some kind of modified Episcopacy. Moderate people, of different parties, therefore, looked kindly upon his sway; but it soon appeared that the embers of discontent were smouldering still. Scarcely had he worn his title one month, when his brother, Henry Cromwell, wrote in an alarming tone to Lord General Fleetwood, who had married Henry's sister. "Remember," he says, "what has always befallen imposing spirits. Will not the loins of an imposing Independent or Anabaptist be as heavy as the loins of an imposing Prelate or Presbyterian? And is it a dangerous error, that dominion is founded in grace when it is held by the Church of Rome, and a sound principle when it is held by the Fifth Monarchy?" "Let it be so carried, that all the people of God, though under different forms, yea, even those whom you count *without*, may enjoy their birthright and civil liberty, and that no one party may tread upon the neck of another."^[5] Henry Cromwell feared lest certain well-known unquiet spirits, now that his sire's strong hand had crumbled into dust, should disturb the peace of the country, and, under pretence of universal freedom, throw everything into confusion. He had reasons for his fear.

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Richard called a Parliament, which met on the 27th of January, 1659. Writs were issued to "rotten boroughs;" representatives were summoned from Scotland and Ireland; means not constitutional, so it is said, were employed to secure a House of Commons favourable to the Court party. The majority consisted of Presbyterians, to whom the Protector chiefly looked for support; but old political Independents also secured their election, and Sir Henry Vane and Sir Arthur Haselrig, excluded by the old Protector, now,

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under the milder sway of the new one, took their seats in St. Stephen's Chapel.^[6] They evaded the oath of allegiance, and boldly advocated Republicanism.

Parliament opened with a sermon in Westminster Abbey, by Dr. Thomas Goodwin, the Independent, who preached from Psalm lxxxv. 10, advocating liberty of conscience, and exhorting to union and peace. To that venerable edifice, ever identified with our national history, His Highness, attended by the Privy Council, by the Officers of State, and by the Gentlemen of the Household, "passed by water in a stately new-built galley, and landed at the Parliament Stairs." Lord Cleypole, Master of the Horse, bore the Sword of State before Richard, who in the Abbey sat surrounded by his Lords, the Commons, much to their displeasure—afterwards expressed by them—being seated here and there; "*sparsim*," as a contemporary chronicle discontentedly states.^[7] The Protector concluded his opening speech in the Painted Chamber, by recommending to the care of Parliament, first, "the people of God in these nations, with their concernments;" secondly, "the good and necessary work of reformation, both in manners and in the administration of justice;" thirdly, the Protestant cause abroad, which seemed at that time to be in some danger; and lastly, the maintenance of love and duty among themselves.^[8]

After a rather ill-tempered discussion, Reynolds, Manton, Calamy, and Owen—three Presbyterians and one Independent—were appointed by the Commons, "two to preach and two to pray," on the occasion of the succeeding fast; and it is curious to find that in this instance the service took place, not at St. Margaret's Church, but within the walls of the House, to avoid, as alleged, the inconvenience of a promiscuous auditory, when "good men wanted the liberty, which it was fit they should have," to rebuke and reprove "the faults and miscarriages of their superiors." "Ill-affected persons came frequently to such exercises, not out of any zeal or devotion, but to feel the pulse of the State, and to steer their counsels and affairs accordingly."^[9] The desirableness of sometimes giving admonition and advice to bodies of men, unembarrassed by the presence of critical and alienated spectators, still felt by many, was felt then.

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The debates mainly turned upon fundamental questions of government. In them little appears relative to religion. Complaints were made of the Commissioners for trying ministers, and of the mismanagement of funds for the support of the latter. Maynard, and others, affirmed that souls were starved; that the sheep were committed to the wolf; that scandalous preachers had scandalous judges; that Welsh Churches were unsupplied except by "a few grocers, or such persons;" that "dippers and creepers" were found in the Army; that Jesuits had been in the House, &c. "See," exclaimed one speaker, "what congregations we had in '43, and what now! It is questioned whether we have a Church in England; questioned, I doubt, whether Scripture or rule of life is in England."^[10] In the Grand Committee, a Bill was ordered to be drawn for revising Acts touching the Prayer Book; and for the suppression of Quakers, Papists, Socinians, and Jews.^[11] Just before, a member named Nevile had been denounced and threatened with prosecution as an atheist and blasphemer, for saying that the reading of Cicero affected him more than the reading of the Bible.^[12]

These proceedings, together with a declaration a few weeks afterwards, which spoke of blasphemies and heresies against God, and Christ, and the Holy Spirit, and the Scriptures; of the advocates of an inward light; also of atheism, profaneness, and Sabbath-breaking,^[13]—indicate the revival of Presbyterian influence, and the renewed activity of Presbyterian zeal. On the other hand, Sir Henry Vane, who had been so earnest in supporting the Covenant, had now changed his mind on that subject, maintaining that the compact had become invalid through what he called the Scotch invasion of England, meaning by this the invasion which ended in the defeat at Worcester.^[14] In the same spirit exceptions were taken by a Committee to the harsh treatment of Fifth Monarchy men; and some of that class were referred to with respect.^[15] In these Parliamentary allusions to religious questions—the chief allusions of the kind which occurred about this time—we discern the flow of two opposite currents of feeling.

Other debates issued in important consequences. Republicans and the advocates of a mixed Government came into collision upon their particular points of difference. Sir Arthur Haselrig openly arraigned the acts of Oliver

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Cromwell, condemned the dismissal of the Long Parliament, and most irreverently compared the extinction of Monarchy and of the Upper House to the effect of the crucifying of our Saviour on the Cross. Haselrig proclaimed England to be a theocracy. "God," said he, "is the King of this Great Island." Haselrig acknowledged no power under God but that of the Parliament; the Protector he utterly ignored. Scott and Ludlow also gloried in their regicidal deeds. Vane, in a calmer strain, upheld Republicanism. On the other side the friends of the Protectorate contended for the "petition and advice" as "the Boaz and Jachin of Solomon's temple." The hand of Providence, they said, had set up the Protector, Richard. He was Protector before the House assembled; the House had owned him in that capacity, and had taken an oath of allegiance. A Royalist, amidst the expression of these opinions, exclaimed, "I am for the Constitution we lived under—for building up the ancient fabric."^[16] Thus early, certain of the senators of England showed their determination to plunge at once into the vortex of a new revolution.

Questions touching foreign affairs, the Army, and finance came under debate at the same time; the Republicans, led by Vane, deploring, in a spirit of infatuation, the late peace with Holland, and wishing that the war had been perpetuated until the Dutch had been conquered, and forced into union with this country. They contended also that the control of the military should be placed in the hands of the Parliament, not in the hands of the Protector; and they inveighed against the extravagance of the Government, declaring that the deficiency in the revenue would produce a national debt enough to sink the country in ruin. But what proved of still more serious consequence, the Republicans not only canvassed, but set aside certain acts of the late Protector. Oliver had left behind him many State prisoners, committed for political offences. They were now liberated. Major-General Overton, one of these prisoners, appeared before the House as a martyr, being escorted on his return from imprisonment—like Burton, Prynne, and others, nearly twenty years before—by "four or five hundred men on horseback, and a vast crowd bearing branches of laurel."^[17]

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Richard could not be held responsible for the arbitrary proceedings of Oliver. He had not been privy to his father's deeds; he had not entered into

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his father's purposes; he had not adopted his father's opinions; he had befriended the Royalists, and was still supposed to have sympathies with them; at the same time also his moderation and urbanity attracted towards him some of his father's companions and allies. "Though perhaps you will not believe it," wrote Broderick to Hyde, "they really are more affectionate to the present than the late Protector, whose temper so differed from theirs that it was usually averse to the deliberate caution they advised, running hazards they trembled to think of upon a sudden violent suggestion, of which they could give themselves no account, which precipices this young Prince doth prudently, as well as naturally avoid, and is thereby rendered more agreeable to those wary statesmen."^[18] Yet personal popularity did not suffice to defend him from the disaffection of Republicans, and the discontent and intrigues of Army officers. Late in the month of March, Fleetwood and Desborough reported to Richard that agitation prevailed amongst the troops; that they complained of not having received their pay; that they were angry at the conduct of Parliament towards some of their old generals; and that these circumstances afforded encouragement to the Cavalier party. The two officers proceeded to employ these facts for the purpose of enforcing the advice that His Highness should immediately summon a Council of Officers to consider the state of affairs. Such a Council was held; and, after prayer, by Dr. Owen, deliberations commenced. Desborough recommended the application to the Army of a political test, the test to be—approval of the execution of Charles I. The proposition shocked the Lords Howard and Falconbridge. Broghill suggested a different method—that every one should be turned out of the Army who would not swear allegiance to the Protectorate, a proposition supported by Whalley and Goffe. At last it was resolved to separate the command of the Army from the civil power; a resolution afterwards presented to His Highness, who forwarded it to the House of Commons. Such discussions only served to widen the breach between the House and the Army, in the end diminishing the influence of the former, and leaving it in a position of weakness, so as to compel its submission to the assumption of the latter. The resolution sent to the Protector, and by him forwarded to the Commons, tended to throw the greatest influence into the hands of the officers, and to promote Desborough's Republican views.

Petitions from the Army followed these proceedings, the soldiers saying, "Because our consciences bear us witness that we dipped our hands in

blood in that cause; and the blood of many thousands hath been shed by our immediate hands under your command in that quarrel, we are amazed to think of the account that we must render at the great and terrible day of the Lord, if by your silence the freedom of these nations should be lost, and returned into the hands of that family, which God hath so eminently appeared against in His many signal providences little less than miracles."
[\[19\]](#)

The Commons, although weak, assumed the semblance of strength, and upon the 18th of April resolved that no Council of Officers should be held without permission of the Protector and the Parliament; and that no one should have command in the Army or Navy who did not engage to leave the two Houses uninterrupted in their deliberations. The Protector, still more feeble than Parliament, proceeded to dissolve the Council; the officers asserted their authority by continuing to meet for conference.

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As it was in the father's days so it was in the son's: when argument failed violence took its place. Violence, like that which had been employed by Oliver against the Parliament, was now threatened against Richard by the Army. The officers, clutching at their old weapons, seeing how things were likely to proceed, fearing the Presbyterian ascendancy, and the destruction of their liberties, determined to put an end to the sitting of the two Houses; and told His Highness that if he did not dismiss them he might expect to be dismissed himself. Richard was no soldier, and had not, like Oliver, secured the attachment of the military, so that resistance by him to martial chiefs could avail nothing. He, therefore, allowed the Parliament to be dissolved by Commission, upon the 22nd of April. After this act had been accomplished, not without opposition from some members, the party in power summoned to the resumption of their trust, such of the Long Parliament as had continued to sit until the year 1653. They amounted in number to ninety-one; out of these forty-two obeyed the new order, and took their places on the 7th of May. Fourteen of the old Presbyterians, including Prynne, [\[20\]](#) who had sat in St. Stephen's before Pride's purge, were refused admittance.

Upon the 13th of May the heads of the Army presented a petition, in which they proposed to men whom they addressed as rulers, but who were in fact

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servants, that religious liberty should, as in the days of Oliver, continue to be conceded to all orthodox believers (Papists and Prelatists being distinctly excepted); that a godly ministry should be everywhere maintained; and that the universities and schools of learning should be countenanced and reformed.^[21] Gleams of Presbyterian influence disappeared; the broad ecclesiastical policy of Oliver again resumed the ascendant.

A new Council of State was formed, and the names of Vane and Haselrig once more prominently appeared, together with those of Whitelock and Fleetwood—the one a legal cipher, the other a military tool.

Fleetwood occupied Wallingford House, which stood on the site of the present Admiralty, the birthplace of the second Duke of Buckingham, and the residence of the infamous Countess of Essex. Here it was, from the roof of the mansion, then occupied by the Earl of Peterborough, that Archbishop Ussher had swooned at the sight of Charles' execution; and here Fleetwood, who from his connection with the Cromwells on the one side, and with the Army on the other, now possessed more power than any other person, gathered together his brother officers for conference. Fleetwood was a pious and respectable Independent,^[22] a sincere patriot, a Republican only in a qualified sense, willing to concede to a Protector large administrative authority. He was not without ambition, although he had prudence enough to curb it; yet neither by gifts of nature, force of character, or study and experience, was he a man fitted to deal with existing emergencies. He had no original genius, being born to follow, not to lead. He helped to pull down the Protectorate, and to dethrone his brother-in-law, but he had no gift for building up any better order of things. He could aid the destructive movements of Vane and Haselrig; but he had no more of the faculty of constructiveness than had they.

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John Howe, who, in the month of May, was residing at Whitehall after an absence of some months, saw and lamented the condition of affairs.

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The "army-men," he says, under pretence of zeal for the interests of religious liberty were seeking their own ends, and were for that purpose drawing to themselves "wild-headed persons of all sorts." "Such persons," he adds, "as are now at the head of affairs will blast religion, if God prevent not." "I know some leading men are not Christians. Religion is lost out of

England, farther than as it can creep into corners. Those in power, who are friends to it, will no more suspect these persons than their own selves."^[23] These are not the words of a party man; and they show that whatever might be the piety of Fleetwood, and the purity of Vane, there were persons of a different character who employed them as tools for selfish ends. In the same letter, Howe speaks in favourable terms of Richard, whom he must have known well. The disinterestedness, and even patriotism of the Protector appeared in his resignation of power. "He resolved to venture upon it himself, rather than suffer it to be taken with more hazard to the country by others," and he awakens our sympathy by his own truthful words, that "he was betrayed by those whom he most trusted." He quitted Whitehall, with trunks full of addresses, which contained, as he humorously remarked, "the lives and fortunes of all the good people of England." More at home in the hunting-field than in the cabinet—he, after residing abroad for a time, spent the rest of his days in his native land as a country gentleman; and died at Cheshunt, July the 12th, 1712, saying to his daughter, "Live in love; I am going to the God of love."^[24] He lies buried in Hursley Church, where he regularly worshipped during his residence in the parish. Within the same walls, by a coincidence which will be often noticed in future days, there now repose the remains of a holy man and a great poet, whose sympathies never seem to have reached the fallen Protector during a ministry, in that place, of thirty years.^[25]

The power of the Cromwell family came to an end upon the dissolution of Richard's Parliament, except that Fleetwood was acknowledged by the Army as Lieutenant-general. Lord Falconbridge, and also the Lords Broghill and Howard retired into the country; and, as the Protectorate had vanished, they prepared to welcome the restoration of Monarchy.

Leaving Whitehall we return to Wallingford House. Fleetwood, being an Independent, civil affairs being entangled with such as were ecclesiastical, and the interests of religion being so completely involved in the political changes of the day—a fact which justifies so much being said about them in an Ecclesiastical History—he and Desborough, who sympathized with him, invited to their councils Dr. Owen, the Independent, and Dr. Manton, the Presbyterian. A story is told of the former, to the effect, that, at Wallingford House, he had prayed for the downfall of Richard, so as

to be heard by Manton, who stood outside the door. It is further stated that Owen had gathered a Church there; and that in one of its assemblies a determination had been formed to compel Richard to dissolve his Parliament.^[26] The Independent Divine denied that he had anything to do with the setting up, or the pulling down of Richard; and it has been also denied that he gathered a Church in Wallingford House. Whatever might be the extent of Owen's political interference at that crisis, and whether or not he gathered a Church there, certainly at the time one existed upon the spot. The Records of the Congregational Church at Yarmouth indicate that a religious society assembled at Fleetwood's residence, and carried on correspondence with other similar bodies.^[27] These records shed light upon a critical and dubious juncture in our history.

A meeting was held at Norwich, and another in London, respecting which Dr. Owen wrote to Mr. Bridge. The resolutions at which the Yarmouth Church arrived, as they were probably drawn up by the eminent minister, who presided over that community, may be regarded as expressing the opinions of a wider circle than the provincial society which adopted them.

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First—"We judge a Parliament to be the expedient for the preservation of the peace of these nations; and withal we do desire that all due care be taken that the Parliament be such as may preserve the interest of Christ and His people in these nations." Secondly—"As touching the magistrate's power in matters of faith and worship we have declared our judgment in our late Confession^[28] (by the Savoy Conference); and though we greatly prize our Christian liberties, yet we profess our utter dislike and abhorrence of a universal toleration as being contrary to the mind of God in His word." Thirdly—"We judge that the taking away of tithes for maintenance of ministers until as full a maintenance be equally secured, and as legally settled, tend very much to the destruction of the ministry and the preaching of the Gospel in these nations." Fourthly—"It is our desire that countenance be not given, nor trust reposed in the hands of Quakers, they being persons of such principles as are destructive to the Gospel, and inconsistent with the peace of civil societies."^[29]

Into a miserable state must England have drifted when a congregation of Independents, no doubt

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containing many worthy people, but certainly not fitted to act as a Council of State, came to be consulted upon the most important public questions, and to give their opinion after this fashion.

What the opinions of Dr. Owen were upon two of the points mooted in these resolutions we learn from a short paper which he wrote at this time, and which is preserved in his collected works. There are three questions, and he gives three answers. The first two relate to the power of the supreme magistrate touching religion and the worship of God. Notwithstanding the haste with which the replies were furnished, they must be considered as expressing the writer's mature judgment, for the interrogatories embody the most pressing questions of the times. To the first query, whether the supreme magistrate in a Commonwealth professing the religion of Christ, may exert his legislative and executive power for furthering the profession of the faith and worship, and whether he ought to coerce or restrain such principles and practices as were contrary to them, Owen replied distinctly in the affirmative. He supported his affirmation by arguments drawn from the law and the light of nature; from the government of nations; from God's revealed institutions; from the examples of God's magistrates; "from the promises of Gospel times;" "from the equity of Gospel rules;" from the confession of all Protestant Churches; and particularly from the Savoy declaration. Owen was asked, secondly, whether the supreme magistrate might "by laws and penalties compel any one who holds the Head Christ Jesus to subscribe to that confession of faith, and attend to that way of worship which he esteems incumbent on him to promote and further." Restricting attention to those described as "holding the Head," the Independent Divine remarks, that though it cannot be proved that the magistrate is divinely authorized to take away the lives of men for their disbelief, "yet it doth not seem to be the duty of any, professing obedience to Jesus Christ, to make any stated legal unalterable provision for their immunity who renounce Him." He decides also that opinions of public scandal ought to be restrained, and not suffered to be divulged, either by open speech or by the press. Subsequently, after premising (to use his own words) that "the measure of doctrinal holding the Head, consists in some few clear fundamental propositions," and that men are apt to run to extremes, he finally concludes upon giving a negative answer to their second question. As to the third, "whether it be convenient that the present way of the maintenance of ministers or preachers of the Gospel be removed

and taken away, or changed into some other provision;" Owen vindicates the claim of the ministry to temporal support, and places the payment of tithes upon a Divine basis. He declares that to take away "the public maintenance" would be "a contempt of the care and faithfulness of God towards His Church, and, in plain terms, downright robbery."^[30]

A Church book of the period has thus afforded an insight into certain political relations sustained by Independents in the year 1659. A celebrated historian may next be quoted, in reference to alleged proceedings of a very different nature on the part of Baptists. Clarendon relates a strange story of overtures made to Charles before the death of Cromwell by persons of that denomination. He gives a copy of an address to His Majesty, as Charles is styled, signed by ten such persons, in which address occur violent lamentations over the troubles of the times. Attached to it are proposals "in order to an happy, speedy, and well-grounded peace." The document contains a prayer, that no anti-Christian Hierarchy, Episcopal, Presbyterian, or otherwise, should be created, and that every one should be left at liberty to worship God in such a way and manner as might appear to them to be agreeable to the mind and will of Christ.^[31]

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BAPTISTS.

According to Clarendon—the only authority upon which we have to depend in reference to the subject—a curious letter accompanied the address and the proposals; in which letter the correspondent alludes to a "worthy gentleman" by whose hands it was conveyed, and who being acquainted with the circumstances, would fully explain the case and answer objections. He refers to the subscribers as "young proselytes" to the Royal cause, as needing to be driven "*lento pede*," as being neither of great families or great estates, but as capable of being more serviceable to His Majesty than some whose names would "swell much bigger than theirs."^[32]

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There is no sufficient reason for pronouncing the story an invention, or the documents forgeries; at any rate it appears as if Clarendon believed in them; yet on the other hand, there is not the slightest evidence that any of the leaders of the Baptist body ever concurred in any such movement—the names appended to the address are unknown—and no reference to the affair, that I am aware of, was ever made after the Restoration, either by

Baptists or any other party. On the whole it is not unlikely that some few people, calling themselves Baptists, disliking Oliver Cromwell and the Protectorate, and differing from those ministers of their denomination who held parish livings, might have engaged in a correspondence with a view to the restoration of Monarchy under certain conditions—especially that of unfettered toleration. No practical result followed these reported overtures. [\[33\]](#)

The Presbyterians had, for the most part, after the death of Charles I., preserved a sentiment of loyalty towards the House of Stuart; and now that Richard had fallen, they were eager for the restoration of Monarchy in the person of the exiled prince. Presbyterian clergymen animated and controlled this new movement, of which the extensive ramifications spread themselves abroad in secrecy and caution. Only in Cheshire did any military demonstration occur. There, in the month of August, under Sir George Booth, a popular Presbyterian of the county, numbers of persons appeared in arms; yet, although the object evidently was to place Prince Charles on the throne of his fathers, the leaders professed nothing more than a desire to secure the assembling of a free Parliament. The Presbyterians rejected the aid of the Roman Catholics, and but warily accepted the advances of a Presbyterian knight, Sir Thomas Middleton, because he was known to be a Royalist. [\[34\]](#)

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PRESBYTERIANS.

The rising proved unfortunate. After being hopefully prosecuted a little while, it then appeared that the Republicans under Lambert were too strong for these Northern insurgents. The former scoured the country. Their shots in some places disturbed the Presbyterian communicants at the Lord's Supper; their advances in the neighbourhood of Manchester filled that town with alarm. Houses were emptied of their valuables by the people who were anxious to hide them from the enemy. [\[35\]](#) Booth was obliged to flee; and to provide against detection he assumed a female disguise, and rode on a pillion, but his awkwardness in alighting from his horse betrayed him; and Middleton, after a brief resistance within the walls of Chirk Castle, capitulated to the foe.

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Fleetwood now seemed the chief man in England; and to him certain Republicans, who had been desired, or as they interpreted it, commanded to

retire from the Council of Officers, turned as to their last hope, asking him in a "humble representation" full of religious sentiment, "to remove the present force upon the Parliament, that it might sit in safety without interruption."^[36] Other persons of more consequence, including Haselrig, followed up the appeal in a rather different strain, but with the same object, and charged Fleetwood with destroying Parliamentary authority, after the example of his father-in-law.^[37] Sir Ashley Cooper subsequently wrote to him in like manner, protesting against "red-coats and muskets" as a "*non obstante*" to national laws and public privileges.^[38]

Amidst the confusion of the period hope dawned upon the persecuted Episcopalians.

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EPISCOPALIANS.

Whether or not influenced by the death of Cromwell, and the foresight of coming changes favourable to his own Church, Henry Thorndike, the able Episcopalian scholar and divine, published in 1659 what he called *An Epilogue to the Tragedy of the Church of England*; a book which, an admiring critic says, proved to be in spirit a prologue to the renewed life of a Church more vigorous than ever! The aim of the work is to promote the welfare of the Episcopal Church of England, not by any compromise, but by endeavouring to persuade all to unite together on her behalf. Looking at the claims of the Romish Church to immediate inspiration (placed no matter where), and to the equally groundless and more arrogant claims of the fanatics—as Thorndike terms them—to individual inspiration, he urges that each party should be brought to admit themselves limited to the sense of Scripture as expounded by the primitive laws and faith of the Church. Thus, he says, the ground of their errors is cut away. With this imaginary solution of the difficulty, which begs the question, this calculation upon what is impossible, and this triumphant assurance of a conclusion based on premises, which neither Papist nor Puritan would admit—the high, but honest Churchman, shows how much he sympathized with the one and how little with the other.

He expressly avows his approval of prayers for the dead, of the invocation of the Spirit on the elements of the Eucharist, and of the practice of penance; whilst he contends for Episcopacy in the Anglican sense, and wishes to see Presbyters restored to their ancient position of a council to be

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consulted by the bishop. Thorndike's notion was, in prospect of its restoration, to reform his own Church, by bringing it back to what he considered primitive usage. Those who most condemn some of the views which he advocated will be constrained, on reading his life and works, to acknowledge the guileless simplicity of his character, as apparent in this very publication at such a crisis. He says himself—"That I should publish the result of my thoughts to the world may seem to fall under the historian's censure. '*Frustra autem niti, neque aliud se fatigando, nisi odium quærere, extremæ dementiæ est.*'" He adds, "If I be like a man with an arrow in his thigh, or like a woman ready to bring forth,—that is, as Ecclesiasticus saith, like a fool that cannot hold what is in his heart—I am in this, I hope, no fool of Solomon's, but with St. Paul, 'a fool for Christ's sake.'" ^[39]

This straightforward course annoyed those who were seeking to restore the Church in a different way. "Pray tell me what melancholy hath possessed poor Mr. Thorndike? And what do our friends think of his book? And is it possible that he would publish it, without ever imparting it, or communicating with them?" Such questions were asked by Sir Edward Hyde, who wondered that Thorndike should publish his "doubts to the world in a time when he might reasonably believe the worst use would be made, and the greatest scandal proceed from them." ^[40] Hyde's own method of proceeding at this juncture appears in his correspondence with Dr. Barwick. He did not trouble himself, like Thorndike, with theological questions, or attempt any reformation of the Church which he wished to restore; but he threw himself heartily into efforts for the preservation of the Episcopal order. For the Bishops were dying out, only a few survived; in a short time all would be dead, and then how would the ministerial succession be perpetuated? By repairing to Rome, or by admitting the validity of Presbyterian ordination? As Hyde pondered these queries he rebuked the friends of the Church for their apathy—"The King hath done all that is in his power to do, and if my Lords the Bishops will not do the rest, what can become of the Church? The conspiracies to destroy it are very evident; and, if there can be no combination to preserve it, it must expire. I do assure you, the names of all the Bishops who are alive and their several ages are as well known at Rome as in England; and both the Papist and the Presbyterian value themselves very much upon computing in how few years the Church

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of England must expire."^[41] While the Prelates generally came in for his censure, Wren, Bishop of Ely, and Duppa, Bishop of Salisbury, were exceptionally noticed as active and earnest—the most lukewarm being Brownrigg, Bishop of Exeter, and Skinner, Bishop of Oxford.^[42] It was easier, however, for Hyde, on the Continent, to write zealously on this subject than for the Bishops in England, under inimical rulers, and with the fear of penalties before them, to do anything effective for the consecration of successors. Difficulties were felt, both in the wandering Court of Charles and in the troubled homes of ejected Episcopalians. There were no Deans and Chapters to receive the *congé d'élire*, and to act upon it. Canonical and constitutional law interposed obstacles in the way of consecration. Bramhall thought, that as the King had an absolute power of nomination for Ireland, the best way would be for surviving Bishops to consecrate persons Royally nominated to Irish sees, and then translate them to England. The Bishop of Ely objected to this as practically approving what he considered a defect in the Church of the sister island; and he would rather, he said, see Ireland conformed to England, than England to Ireland. His own plan, in which Dr. Cosin concurred, was much the same as one which Barwick proposed—*i.e.*, that the King should grant a Commission to the Bishops of each province, to elect and consecrate fit persons for vacant sees, and ratify and confirm the process afterwards.^[43] To this Hyde agreed, and wrote for the form of such a Commission as the Bishops might judge proper. No further steps appear to have been taken in that direction.

Hyde counselled as much privacy as possible in measures for the preservation of the Episcopal order; and in all affairs relating to the Church he recommended the utmost prudence and moderation: at a later period, when Monk was preparing for Charles' return, Hyde complained of the "unskilful passion and distemper" of some Divines. The King, he added, was really troubled, and "extremely apprehensive of inconvenience and mischief to the Church and himself." Still later, he advised that endeavours should be made to win over those who had reputation, and desired to merit well of the Church—and that there should be no compliance "with the pride and passion of those who propose extravagant things."^[44]

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As correspondence passed between Hyde and Barwick many Episcopalians in England gave themselves to fasting and prayer. Evelyn

writes in his diary on the 21st of October: "A private fast was kept by the Church of England Protestants in town, to beg of God the removal of His judgments, with devout prayers for His mercy to our calamitous Church." Other entries appear, of the same kind. The ruling politicians in England, out of all sympathy with the exiles, were, nevertheless, promoting their interests by divisions at home.^[45]

Money-matters, out of which broods of quarrels are always being hatched, caused what remained of the Long Parliament to be very unpopular; and the upshot is seen in the dissolution by General Lambert, on the 13th of October, of that attenuated but vivacious body, whose continued, or renewed existence, through an age of revolutions, presents such a singular phenomenon.

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CHAPTER II.

After Lambert's imitation of Oliver Cromwell, in dissolving the House of Commons, England might be said to be without any Government at all. In contrast with our conscious security twenty years ago, and our reliance upon the stability of the Constitution at a moment when political changes were sweeping over Europe, as rapidly as the shadows of the clouds chase each other over the corn-fields, our fathers, in the latter part of the year 1659, felt they had no political constitution whatever in existence, except as it might be preserved in lawyers' books, and in people's memories. The Republicans were at sixes and sevens. Some were for a select Senate, and a Parliamentary representation; some for an Assembly chosen by the people, and for Councils of State chosen by that Assembly; some for a couple of Councils, both chosen by the popular voice; and some for a scheme which seemed like a revival of the Lacedæmonian Ephori.^[46] Amidst distractions of opinion these speculatists were inspired by personal animosities; and, being mutually jealous, they constantly misapprehended each other's motives. It was a strange time, and as sad as it was strange—when, at the Rota Club, which met at the Turk's Head, in New Palace Yard, where Harrington and his friends were wont to drink their glasses of water—it had become a *practical* question, under what sort of Government they were to live the following year?

London was a Babel of ecclesiastical no less than of political theories. Presbyterians contended that the Solemn League and Covenant alone could heal the nation's wounds. Fifth Monarchy men could see no hope but in the second coming of Christ. Some contended for toleration to a limited extent, with a national religion exercised according to Parliamentary law—the legal and ancient provision for a national ministry being augmented, so as to secure to each clergyman £100 per annum. Others contended for "the way of old, laid down by Christ," to bring it about again, and settle it in the world; and such teachers declared that there needed to be an utter plucking up of all that was in esteem or desire, or had been for many hundred years.^[47] In the *Modest Plea for an Equal Commonwealth*, published in 1659, it was proposed to

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abolish tithes, upon composition being made for them by landholders; the money so raised to be used for satisfying the proprietors, and paying the arrears of the Army; also for discharging public debts, and providing for the dispossessed incumbents during the remainder of their lives.^[48] Causes of discontent and disquiet, often overlooked, existed at that period. Scarcity always aggravates when it does not produce political confusion. The price of corn had singularly fluctuated during the Commonwealth: like the tide it had gradually ebbed during the first half; like the tide it had gradually flowed during the second. In 1649, the year of Charles' execution, wheat had reached eighty shillings a quarter; in 1654, the first year of Oliver's protectorate, it fell as low as twenty-six shillings—good harvests coming to bless his new administration. After that year wheat rose again, till in 1659 it attained the price of sixty-six shillings; the dearness of bread being, as we might expect, however unjustly, laid at the door of a Government arrived at the last stage of incompetency and weakness.^[49] The result of combined calamities speedily became apparent. The military were dissatisfied and divided. Troops lawlessly prowled about the country; they levied contributions in all quarters, threatening their enemies, and harassing their friends. Their swords were warrants for exaction; and when told that their conduct would lead to the return of Charles Stuart, they answered such an event could never happen so long as they continued to carry arms. Colonels and Captains lost command over their men; the latter did what was right in their own eyes, and nothing else.^[50]

It is startling to find how rapidly change succeeded change in high places. The remains of the Long Parliament, as it existed at the time of its dissolution by Oliver Cromwell, were, for want of better rulers, restored the day after Christmas-day,^[51] according to the wishes of the soldiers, not the Generals. Lenthall, after summoning such members as could be found, again arrayed himself in his Speaker's robes; again went in state to the House to reoccupy the old chair; and the soldiers, who ten weeks before had driven him from the doors of St. Stephen's, now shouted, at the top of their voices, in honour of his solemn re-entrance. Prynne, and other gentlemen excluded by Pride's purge, were once more excepted from the number summoned, and sought in vain re-admission to their vacant seats. The remnant of legislators upon assembling anew appointed a Council of State;

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but never was any form of Government so unmercifully ridiculed as was this.

Something needed to be done. The Royalists throughout all this tumult had not been asleep. They had increased the miserable confusion, and even rejoiced in the gloom, because the darker the night the nearer the dawn. Booth's rising in August had been repressed, but an enormous flood of disaffection, of which that had been a sort of Geyser outgush, continued to boil beneath the surface. Secret conferences were held; plots were laid. The deeply engrained love of Monarchy in the English mind—only painted over of late years—now that the paint was being rubbed off, became distinctly visible. The press took the utmost license. Evelyn in his *Apology for the Royal Party* denounced the Rump as a coffin which was yet less empty than the heads of certain politicians. He boldly demanded the restoration of Charles Stuart, maintaining that he might be trusted because of his innate love of justice, and his father's dying injunctions; and because there were none, however crimson-dyed their crimes, whom he would not pardon in the abundance of his clemency and mercy. The author of *A Plea for Limited Monarchy* adds the sorrows of memory to the pleasures of hope, as motives for restoring the King; for he dwells upon the decay of trade, and complains that the oil and honey promised by Oliver had been turned to bitterness and gall; and that Lambert's free quarterings had licked up the little which had been left in the people's cruse. ^[52]

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These appeals fell on willing ears. The nation was weary—weary of inefficient rulers, weary of ideal Republics. Had there been some master-spirit equal to the departed one, with a strong and well-disciplined Army at his back, the Commonwealth might even now at last have been restored to what it was two years before; but nobody like the vanished man remained, and the Army fell to pieces.

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General Monk had a large portion of it under his immediate control in the North. The Committee of Safety had, in the month of November, appointed him Commander-in-Chief of all the forces, and he now determined to employ his influence for purposes of his own. The troops under Lambert, who still cherished Republican ideas and designs, were ordered by a

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messenger of Parliament to withdraw to their respective quarters; consequently that ambitious and turbulent personage retired into privacy. The soldiers in London, tired of their commanders, had asked for the restoration of the Rump, and had placed themselves under its authority. Monk alone possessed much military power. In the month of January we find him marching up to London. On entering the gates of York two Presbyterian ministers escorted him to his lodgings; one of them, the eminent Edward Bowles, "the spring that moved all the wheels in that city," who "dealt with the General about weighty and dangerous affairs," keeping him up till midnight, and pressing him very hard to stay there, and declare for the King. "Have you made any such promise?" inquired Monk's chaplain. "No, truly, I have not; or, I have *not yet*," was the reply. After a pause the chaplain remarked, "When the famous Gustavus entered Germany, he said, 'that if his shirt knew what he intended to do, he would tear it from his back, and burn it.'" The speaker applied the story to his master, entreating him to sleep between York and London; and when he entered the walls of the Metropolis to open his eyes, and look about him.^[53] Perhaps the chaplain knew that such counsel would be agreeable to his patron; but it was quite unnecessary to talk in this fashion to one pre-eminently reticent, and as watchful with his eyes as he was cautious with his lips.

Monk, at the time, was far from being reputed a Royalist. He, with his officers, had in the month of June, 1659, expressed Republican opinions. In the following November the same person corresponding with Dr. Owen, and other representatives of the Independents in London, promised that their interests should ever be dear to his heart; and gave it as his opinion that the laws and rights for which they had been struggling through eighteen years might be "reduced to a Parliamentary Government, and the people's consenting to the laws."^[54] The General reached St. Albans on the 28th of January, when Hugh Peters preached before him a characteristic sermon, little thinking of what the chief person in the audience was about to accomplish. "As for his sermon," says one who heard it, "he managed it with some dexterity at the first (allowing the cantings of his expressions.) His text was Psalm cvii. 7. 'He led them forth by the right way, that they might go to the city where they dwelt.'^[55] With his fingers on the cushion

he measured the right way from the Red Sea through the wilderness to Canaan; told us it was not forty days' march, but God led Israel forty years through the wilderness before they came thither; yet this was still the Lord's right way, who led his people *crinkledom cum crankledom*; and he particularly descended into the lives of the patriarchs, how they journeyed up and down though there were promises of blessing and rest to them. Then he reviewed our civil wars, our intervals of peace and fresh distractions, and hopes of rest; but though the Lord's people (he said) were not yet come to the City of Habitation, He was still leading them on in the right way, how dark soever His dispensations might appear to us."^[56]

As I am writing an Ecclesiastical, and not a Political History, I leave untouched the tangled web of incidents occurring in the City in the councils of the Republicans; and in the relations of Monk to the conflicting parties, between the 6th and 11th of February. I can only state, that on the last of these days the martial chief appeared at Guildhall, and said, "What I have to tell you is this: I have this morning sent to the Parliament to issue out writs within seven days, for the filling up of their House, and when filled to sit no longer than the 6th of May, but then to give place to a full and free Parliament."^[57]

The joy which this intelligence produced in the City was unbounded, and it comes before us with the vividness of a present event in the garrulous *Diary* of Pepys. As merry peals rolled and fired from the London steeples, fourteen bonfires were kindled between St. Dunstan's and Temple Bar; and at Strand Bridge the gossip at the same time counted thirty-one of those English demonstrations of delight. The butchers, at the Maypole in the Strand, rang a peal with their knives; and on Ludgate-hill a man occupied himself with turning a spit, on which was tied a rump of beef, whilst another man basted it. At one end of the street there seemed "a whole lane of fire," so hot that people were fain to keep on the side farthest off.^[58]

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The excitement following the news in other parts seems to have been not less intense.

At Nottingham, "as almost all the rest of the island," the town "began to grow mad." Boys marched about with drums and colours, and offered insults to Republican soldiers. One night some forty of the latter class were

wounded by stones, thrown at them as they attempted to seize the obstreperous lads. Two Presbyterians were shot in the scuffle; one a zealous Royalist, master of the Magazine, at Nottingham Castle. "Upon the killing of this man," the Presbyterians "were hugely enraged, and prayed very seditiously in their pulpits, and began openly to desire the King; not for good will, neither to him, but for destruction to all the fanatics."^[59]

The rabble raved with joy. Milton mourned over the madness in strains of majestic sorrow. "And what will they at best say of us, and of the whole English name, but scoffingly, as of that foolish builder mentioned by our Saviour, who began to build a tower, and was not able to finish it? Where is this goodly tower of a Commonwealth, which the English boasted they would build to overshadow kings, and be another Rome in the West? The foundation indeed they laid gallantly; but fell into a worse confusion, not of tongues, but of factions, than those at the tower of Babel; and have left no memorial of their work behind them remaining, but in the common laughter of Europe! Which must needs redound the more to our shame, if we but look on our neighbours, the United Provinces, to us inferior in all outward advantages; who notwithstanding, in the midst of greater difficulties, courageously, wisely, constantly went through with the same work, and are settled in all the happy enjoyments of a potent and flourishing Republic to this day."^[60]

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The political importance of the Independents had declined with the humiliation of Fleetwood, and of the officers who sympathized with him. Their strength had rested on the Army, and with the dislocation of the Army came the termination of their ascendancy. On the 21st of February the surviving members of the Commons House, who had been excluded by Colonel Pride, were restored to their former seats, a measure which placed power once more in Presbyterian hands.

Monk, the author of this revolution, addressed Parliament on that same day, and gave it as his opinion that the interests of London must lie in a Commonwealth—that Government only being capable of making the country, through the Lord's blessing, the metropolis and bank of trade for all Christendom; "and as to a government in the Church," he proceeded to say, "the want whereof hath been no small cause of these nations' distractions; it

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is most manifest that if it be monarchical in the State, the Church must follow, and Prelacy must be brought in, which these nations, I know, cannot bear, and against which they have so solemnly sworn: and, indeed, moderate not rigid Presbyterian government, with a sufficient liberty for consciences truly tender, appears at present to be the most indifferent and acceptable way to the Church's settlement."^[61]

The fortunes of Presbyterianism had been changeful fortunes. It had been established by the Long Parliament; its power had waned under the predominant sway of the Army; though adopted more or less throughout the country, it had been nowhere so fully developed as in Lancashire; and it had received no special encouragement from Oliver Cromwell. After his death it received a slight impetus, only to be checked by the Republican policy of Vane and the Military. But now Presbyterianism appears reconstituted in the Church of England—re-established as the national religion; and it is of great importance to remember this fact throughout the narrative of the Restoration; for it was with Presbyterianism thus situated, rather than with Independency, or any other ecclesiastical systems, that Episcopacy came first into competition and conflict after the King's return.

It soon became plain to which ecclesiastical party most influence belonged. On the 2nd of March the Westminster Confession was readopted; a proclamation was issued for enforcing all existing laws against popish priests, Jesuits, and recusants; and a bill was introduced to provide for an authorized approval of ministers previously to their holding benefices. The Solemn League and Covenant reappeared on the wall of the House of Commons, and also was ordered to be read in every church once a year. Upon the 13th, Dr. Owen, the Independent, was removed from the Deanery of Christ Church, and Dr. Reynolds, the Presbyterian, appointed in his room.

1660.

But appearances were fallacious. The Restoration was inevitable, and with the Restoration, the Puritan Establishment, which had been the offspring of the Civil Wars, virtually expired.

CHAPTER III.

The Presbyterians were the principal instruments in Charles' restoration; and in this they acted as the exponents and instruments of the nation's will. It was not Monk who influenced the Presbyterians—the Presbyterians influenced Monk. Their leaders encouraged his bringing back the King, and conveyed to him that encouragement at a conference which they held with him in the City.^[62] The part played by the Presbyterians in this transaction is admitted by members of the Royal family; and in the correspondence of the period a curtain is lifted up, disclosing Court secrets, and illustrating the manner in which the Presbyterians at that moment were overreached. When the Queen Dowager saw Lord Aubony she remarked, "My Lord, I hear you say that the King is to go to England, and that you are glad there is such a (way) laid open for him. Do not you know that the Presbyterians are those that are to invite him?" The nobleman answered that he did not care who they were, but only wished to see His Majesty restored to his own realm. "But the conditions," rejoined the Queen, "may be such as they would have pressed upon the King his father." "Madam," replied his lordship, "a king crowned, and in his own dominions has more reason to insist upon terms than an exiled prince that hath not been accepted by them. What would any one have him do, other than receive his kingdoms by what means soever they were given him? And some better way than this occurs not, what fault is to be found with that which cannot be mended?"^[63]

Baxter informs us respecting schemes adopted by the Episcopalian Royalists, with a view to influence their Presbyterian brethren. Sir Ralph Clare, of Kidderminster, and therefore one of Baxter's parishioners had, before Booth's rising, spoken to his pastor on the subject; and he had replied by expressing fears of prelatical intolerance, and of the danger to the interests of spiritual religion in case of the restoration of the Stuarts. The Knight said, that being acquainted with Dr. Hammond, a correspondent of Dr. Morley, then attending upon His Majesty, he could assure Baxter, the utmost moderation was intended, and that "any episcopacy, how low soever, would serve the turn and be accepted." Letters from France were procured,

testifying to the character of the Royal exile. They abounded in eulogies upon his Protestantism. Monsieur Gaches, a famous preacher at Charenton, after flattering Baxter, gave "a pompous character of the King," stating that during his residence in France he never neglected the public profession of the Protestant religion, not even in those places where it seemed prejudicial to his affairs.^[64] Baxter's pages bear witness to the fears of others as well as to his own, to lull which dulcet promises were sung. Presbyterians and Episcopalians, it was softly said, were not irreconcilable; union was possible; present incumbents would not be turned out of their livings. Their ordinations would be valid.^[65] Episcopalians were resolved to forgive, to bury the remains of rancour, malice, and animosity for ever; having been taught by sufferings from the hand of God, not to cherish violent thoughts against their brother man.^[66] Some Presbyterians were pacified, expecting that subscription to the Prayer book would be no longer required. Others, at least, hoped for toleration. Some acted simply from a conviction that it was a duty to bring back the King; others regarded that event as at once ruinous but inevitable.^[67] A few could not abandon the idea of restoring Charles on *Covenant terms*; but only such as lived in a little world of their own dreamt of a thing so preposterous.^[68]

In coincidence with these circumstances the personal friends of the exiled Prince revolved in their minds the possibilities of the future, and employed themselves in framing suggestions to be laid upon the Royal table. We read in a paper without signature, dated March 28, 1660, "It is most certainly true that Presbytery is a very ill foundation to Monarchy, and therefore it must be said with great care and circumspection. You know what your father suffered by them, and yourself also in Scotland, whither when you went, though all were for it, I was absolutely against it, and gave my reasons to one, who I suppose now attends you, which experience hath proved true." And again, "'Twill be of great consequence that you mainly insist upon a toleration for all, as well Roman Catholics as others, or, at least, to take off the penal statutes against them. There is not anything you can do will be of more advantage than this, for thereby you will satisfy all here and abroad. Moreover, by doing this you will secure yourself against the Presbyterians and Sectaries, by equally poisoning them with others of contrary judgments, for you may doubt that the Presbyterians and Sectaries

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will at length fall to their first principles again, and endeavour to make you at the best but a Duke of Venice, if they see not a visible power to defend you. The like course hath many times been used by great princes, and never succeeded ill when they saw one faction rise too high to suffer a quite contrary to grow up to balance it."^[69]

Sir William Killegrew addressing Charles, upon the 8th of April, shrewdly states the difficulties of his new position: "If your Majesty do but think on the numerous clergy with their families, and on the innumerable multitudes of all those that have suffered on your side that will expect a reparation or recompence; nay, Sir, it is evident that all the people in general do look that you should bring them peace and plenty, as well as a pardon for all those who have offended. And I do fear you will find it a harder matter to satisfy those that call themselves your friends, and those who really are so than all those who have been against your Majesty." "Next, Sir, if you come to your crown as freely as you are born to it, how will you settle Church-government at first to please the old true Protestants? And how the Presbyterians, who now call you in, when all other interests have failed to do it? And how the Papists, who do hope for a toleration? How satisfy the Independents, the Congregation, and all the several sorts of violent Sectaries? Whereas if your Majesty be tied up by Articles, none of all these can blame you for not answering their expectations."^[70]

1660.

Two days before the date of this last letter, Secretary Thurloe, at Whitehall, silently watching what was going on around him, conveyed his impressions of the state of religious parties to the English minister at the Hague.

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"There are here great thoughts of heart touching the present constitution of affairs. The Sectarians with the Commonwealth's men look upon themselves as utterly lost if the King comes in, and therefore probably will leave no stone unturned to prevent it; but what they will be able to do, I see not, of themselves, unless the Presbyterian joins with them, whereto I see no disposition; yet many of them are alarmed also, and are thinking how to keep him out, and yet not mingle again with the Sectaries. Others of the Presbyterians are studying strict conditions to be put upon the King, especially touching Church-government, hoping to bind him that way; and

therein are most severe against all the King's old party, proscribing them which are already beyond sea. Not one of them is to return with him if he comes in upon their terms, and prohibiting his party here to come near him: he must also confirm all sales whatsoever."^[71]

The first decided declaration in favour of the restoration of Charles on the part of Monk, who for months had perplexed everybody, seems to have occurred on the 19th of March, when, in answer to Royal overtures for his assistance, and to Royal promises of high rewards, he said to Sir John Grenville, about to join the little Court at Breda, "I hope the King will forgive what is past, both in my words and actions, according to the contents of his gracious letter, for my heart was ever faithful to him; but I was never in a condition to do him service till this present; and you shall assure His Majesty that I am now not only ready to obey his commands, but to sacrifice my life and fortune in his service."^[72]

1660.

Thus, the man who had solemnly declared himself in favour of a Commonwealth, now suddenly, with open arms, embraced the Royal cause, as the turn of events began to brighten its fortunes; and, as he had been first an Independent, and then a Presbyterian, so now he became not only a Royalist, but an Episcopalian. Most likely Monk was all the way through a selfish schemer, trimming his sails to the wind, and ready for King or Commonwealth, as he might see it safe and advantageous. If that view of his character be not correct, then the only alternative—one which his admiring biographers adopt, and which he avowed himself—is, that he had long been promoting Royalist interests under the disguise of Republican sentiments,—a conclusion which would justify us in pronouncing him one of the most consummate hypocrites the world ever saw.^[73]

The dissolution of the Rump had been connected with a determination to call together a new Parliament to meet on the 25th of April. The preparatory elections evoked the efforts of all parties—the Presbyterians, the Episcopalians, and the "sects," as Congregationalists and other Nonconformists were termed. The last of these three parties—mostly anxious for a Republican form of government—did what they could to return representatives holding extreme democratical opinions. The second

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of them, where they dared to appear, in some cases, from a too fervent zeal, overshot the mark, and by their violence alienated the constituencies which they canvassed. The first of these parties, the Presbyterians,—who, after the dissolution of Parliament, had held the administration of affairs in their own hands, and with whom, for the time being, Monk, their betrayer in the end, was in co-operation,—used such methods as their executive powers afforded, to sway the elections in favour of their own views. The Presbyterians, including different shades of opinion, uniting with the more moderate Episcopalians and Cavaliers, succeeded in obtaining a large majority.

The persons who had been elected members of the Convention began to assemble in St. Stephen's Chapel upon the 25th of April. The Presbyterian leaders, Hollis, Pierrepont, and Lewis, secured immediately the office of Speaker for Sir Harbottle Grimston, of whose decided Presbyterianism there could be no doubt. This critical movement was accomplished in an irregular manner, before even forty members had taken their seats. The preachers appointed to address the Commons were Gauden, Calamy, and Baxter,—all three at that time Presbyterian Conformists. In the House of Peers, where only ten members at first resumed their places, the Presbyterian Earl of Manchester was chosen to preside. Two Presbyterian ministers, Reynolds and Hardy, were selected to preach to their Lordships.

1660.

Before proceeding to describe the revived loyalty displayed by the Convention, we must notice the violent manifestation of opposite feelings by a portion of the Commonwealth Army. Lambert, one of Cromwell's officers, escaped on the 9th of April from the Tower, where he had been imprisoned, and, gathering around him some of his comrades, marched into the Midland Counties, hoping successfully to raise a standard in support of Republicanism. Ludlow and Scott had before this been preparing for such a movement; and, it is said, that despondency of success alone prevented Haselrig from drawing his sword.^[74] The French Ambassador, writing on the 3rd of May to Cardinal Mazarin, thus describes the actual outbreak which followed:—^[75]

"Great alarm," he says, "has been felt about an insurrection of Sectaries in different localities; some had assembled in the neighbourhood of York, with

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the intention of taking it by surprise; and, at the distance of twenty leagues from London, Colonel Lambert had gathered together a body of cavalry, which the first accounts stated to consist of three hundred men. Orders were immediately given to send against him most of the troops which are in London; the levy of the London militia was directed to hold itself in readiness, and that of several counties, which has not been set on foot, to be placed within the hands of persons considered to be too violent Royalists, was also ordered out. At the same time, some of the most distinguished Sectaries, both in this city and in the country, were arrested, and the General was making preparations to go and attack Lambert before he could increase his forces; but news arrived, at the end of last week, that he had only two or three hundred men; and, this morning, we were informed of his defeat by a party of six hundred horse, without much bloodshed; his troops having abandoned him one after another, he was taken prisoner with a few others who have been officers in the Army, and they are on their way to London. The militia were immediately countermanded, and the universal topic of conversation now is the punishment of the offenders, whose leader was proclaimed a traitor on the day before yesterday.

"His capture seems entirely to ruin all his party, against which the people entertain so great an aversion, that, unless the old troops had mutinied, it could not have met with better fortune. Some Royalists could have wished it to hold out a little longer, in the hope that the present authorities would have been thereby compelled to hasten the return of the King upon more advantageous conditions, whereas they will now have entire liberty to act, and will, perhaps, impose harsher conditions, as they have nothing to fear from the Sectaries."

It is remarkable that the troops employed by the Council of State to crush Lambert's outbreak were led by Ingoldsby, one of Oliver Cromwell's attached officers; and, amongst those acting under him on this occasion, was the Fifth Monarchist, Colonel Okey. Republicanism, at that moment, was a house divided against itself; and very different were the subsequent fortunes of the two men just mentioned. Ingoldsby's previous support of Cromwell obtained Royal forgiveness on account of his defeating Lambert; the dark fate which befell Okey will be noticed hereafter. The rash attempt thus promptly resisted, and speedily suppressed, was, there can be no doubt, the

result of a feeling more widely diffused than the limited action of the Commonwealth soldiery, as just described, would by itself indicate. The Civil Wars had proceeded on the principle that it is justifiable to defend by arms what is deemed the cause of freedom; and, at this juncture, Charles had not yet returned, he was not, in fact, King of England; and, therefore, Republicans might naturally feel all the more satisfied in resisting his restoration, as that restoration, in their opinion, would be a revolutionary act, overthrowing the Commonwealth—a form of English government won by Parliamentary Armies, and established by the decisions of the Legislature.^[76]

When May-day had arrived—with its vernal memories and hopes stirring the hearts of Royalists all over the country—Mr. Annesley reported to the Commons a letter from the King, unopened, directed to "Our trusty and well-beloved General Monk, to be communicated to the President and Council of State, and to the Officers of the Armies under his command." He stated that Sir John Grenville, a Royal messenger, was at the door. Permitted by a vote to approach the bar, this gentleman proceeded to announce that he had been commanded by the King, his master, to deliver a letter directed to "Our trusty and well-beloved the Speaker of the House of Commons." Inclosed within the letter was a declaration, given under the King's sign-manual and privy signet, at his Court at Breda. When the messenger had withdrawn, both communications were read aloud by Sir Harbottle Grimston. They are entered in the *Journals*; so also is Monk's letter. Immediately afterwards the same messenger delivered a letter "To the Speaker of the House of Peers, and the Lords there assembled;" that letter inclosing the same declaration as had been communicated to the Commons.^[77]

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The last-named document, which soon became so famous, states that Charles had never given up the hope of recovering his rights, that he did not more desire to enjoy what was his own, than that his subjects by law might enjoy what was theirs; that he would grant a free pardon under the Great Seal to all who should lay hold of his grace and favour within forty days, save those only who should be excepted by Act of Parliament; and that he desired all notes of discord and separation should be utterly abolished. Then came the following clause:—"And, because the passion and

uncharitableness of the times have produced several opinions in religion, by which men are engaged in parties and animosities against each other, which, when they shall hereafter unite in a freedom of conversation, will be composed or better understood; we do declare a liberty to tender consciences, and that no man shall be disquieted or called in question, for differences of opinion in matter of religion which do not disturb the peace of the kingdom, and that we shall be ready to consent to such an Act of Parliament, as, upon mature deliberation, shall be offered to us for the full granting that indulgence." In conclusion, there appeared a promise to refer to Parliament all grants and purchases made by officers and soldiers who might be liable to actions at law, and to pay arrears due to the Army.

A conference took place the same afternoon between the Lords and Commons, when it was agreed that, according to the ancient and fundamental laws of the kingdom, the Government is and ought to be by King, Lords, and Commons,—a conclusion of the two Houses which formally re-established Monarchy in England.

1660.

Amidst all this haste there were not wanting some who, to use Clarendon's words, "thought that the guilt of the nation did require less precipitation than was like to be used, and that the treaty ought first to be made with the King, and conditions of security agreed on before His Majesty should be received." The Presbyterians in Parliament, he further says, were "solicitous that somewhat should be concluded in veneration of the Covenant; and, at least, that somewhat should be inserted in their answer to the discountenance of the Bishops."^[78]

Sir Matthew Hale moved, that a Committee might be appointed to consider the propositions which had been made to Charles I. at Newport, and the concessions then allowed by him, as affording materials for a constitutional compact with the Prince now about to ascend the throne. But no more attention was paid to the wise lawyer than to the zealous Presbyterians. Monk assured the House that the nation was now quiet, but he could not answer for the public tranquillity should the Restoration be delayed.^[79] At the same time, the General was quietly seeking to accelerate the execution of his plans by pressing Sharp, the agent in London of the Scotch Presbyterians, to go over to the King at Breda, "to deal that he might write a

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letter to Mr. Calamy, to be communicated to the Presbyterian ministers, showing his resolution to own the godly, sober party, and to stand for the true Protestant religion in the power of it."^[80]

Upon the 2nd of May the House resolved to send a grateful letter to His Majesty, together with a grant of £50,000 for his immediate use; and, at the same time, it was resolved to proclaim King Charles the following day, a ceremony duly performed in Palace Yard, Westminster, and at Temple Bar, London.

Sermons were delivered before the Houses, and Richard Baxter preached in St. Paul's Cathedral, before the Lord Mayor and the Corporation, one of his most spiritual and earnest discourses, entitled "Right Rejoicing:" with this discourse, the preacher says, the moderate were pleased and the fanatics were offended, whilst the diocesan party thought he did suppress their joy.

Speedily the Proclamation was repeated throughout the kingdom, and everywhere revived loyalty took a tinge from its ecclesiastical associations. In cities, where Episcopalians retained ascendancy, scarlet gowns, scaffolds covered with red cloth, volleys fired by musqueteers, and cathedral men singing anthems, appeared conspicuously in the arrangements. A diarist of that period thus describes what he witnessed:—

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"May 12th.—Mem. This day, at the city of Worcester, were placed on high four scaffolds, one at the Cross, two at the Corn-market, three at the Knole End, four at or near All-Hallow's Well. The scaffold at the Cross was encompassed with green, white, and purple colours; the two first as his own colours, being Prince, the third as King. Mr. Ashby, the Mayor, a Mercer, and all Aldermen in scarlet, the Sheriff of the City, the 24 and 48 in their liveries; each trade and free-man marching with their colours. First went 100 trained city bandmen, after their captain, Alderman Vernon. Then came the Sheriffs, Thos. Coventry, Esq., the Lord Coventry's eldest son, servants; then the two Army companies; then the several livery companies with their showmen or band; then the City Officers; then the Mace and Sword-bearers; then the Mayor, with the High Sheriff and some gentlemen; then all the 24 and 48; then part of a troop of horse of the Army. The Mayor, mounting the scaffold with the gentlemen and Aldermen, Mr. John Ashby, reading softly by degrees the Proclamation of Charles II., to be King of

England, Scotland, France, and Ireland; the Mayor himself spoke it aloud to all the people; which done, all with a shout said, 'God save the King.' Then all guns went off, and swords drawn and flourishing over their heads, drums beating and trumpets blowing, loud music playing before the Mayor and company, to every scaffold, which was done in the same manner throughout; and all finished, the Mayor and City gave wine and biscuits in the chamber liberally. Bonfires made at night throughout the City, and the King's health with wine was drank freely. Never such a concourse of people seen upon so short a notice, with high rejoicings and acclamations for the restoring of the King. God guard him from his enemies as He ever hath done most miraculously, and send him a prosperous peaceable reign, and long healthful life, for the happiness of his subjects, who is their delight."

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In places where Presbyterianism prevailed the ceremony differed. At Sherborne the Proclamation followed "solemn prayers, praises, and seasonable premonition in the Church." At Manchester, Henry Newcome went into the pulpit and prayed about half an hour. At Northampton "Mr. Ford, the minister, went with several others to a great bonfire in the Market-place, when, after a suitable exhortation, he joined them in singing the twenty-first Psalm." At Northenbury, Philip Henry preached a discourse, congratulatory and thanksgiving, from the words, "The king's heart is in the hand of the Lord" (Proverbs xxi. 1); but, many years afterwards, he dated a letter 29th of May, as a day in which the bitter was mingled with the sweet. [\[82\]](#)

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Every lover of peace will rejoice that the Restoration was a bloodless change; but the mode of deciding upon it suggests grave reflections. After a long period of strife spent in order to bring within limits the prerogatives of the Crown; after the desperate remedies which had been adopted for the cure of evils brought on by Royal aggression; after all which had been done to resist and overcome the intolerance of the High Church party,—the nation invited Charles Stuart back without any condition, and opened the way for the re-establishment of the old order of things, without any provision against the recurrence of mischief. Such a proceeding, to say the least, exposed the country to imminent hazard; and the history of the next eight and twenty years proves that the fears which were entertained by a few were but too well founded. The old Stuart disposition and habits

reappeared, the old ecclesiastical intolerance returned, and the Revolution of 1688 was found necessary to supply the defects of the Restoration of 1660.

Yet, after all, the mode of the Restoration excites less surprise than lamentation. For it is easy to understand how natural it was for the Royalist party, even the more moderate portion of it, to feel extremely anxious to accomplish the one thing which at that critical juncture seemed to them so necessary. As in private affairs, as in the exigencies of domestic and social life, people are apt precipitately to adopt a certain course, at the moment appearing indispensable—flattering themselves that afterwards, with proper care, any seriously unpleasant results may be prevented or cured, that matters can be made all right in the end: so the leaders of the English people, at that moment, felt the question to be Restoration or Ruin; and that, the grand prerequisite for renewed prosperity being secured, other desirable things could be afterwards shaped according to pleasure or circumstances. Besides, the Presbyterians clung to the Breda Declaration as a sheet anchor of hope. It was thought then, and is still so thought by some, that however theoretically desirable stipulations might have been, it was practically unwise to insist upon them at the time; that delay in negotiation with the exiled Prince tended to involve the country in fresh confusions, and exposed it to the risk of a military despotism; and that what Parliament could not then safely wait to do might be subsequently effected. After all reasonable excuses and palliations for the course adopted, that course is now seen to have been an enormous mistake. The dangers of a little delay have been assumed, not proved; there could be no probability of losing the chance of restoring Charles, had Parliament determined beforehand to bind him to terms. He would gladly have accepted the Royalty of England, with such guarantees for public liberty as were accorded by William III. And as to the Army, from which chiefly alarm arose, it does not appear how the difficulty of keeping Republican soldiers quiet for a month or so, whilst pacific men were engaged in laying foundations for the stability of their liberties, could be greater than the difficulty of keeping those same soldiers quiet between the decision for the King's return and his actual arrival. Possible evils, in the form of political intrigues, the conflict of parties, the further unsettlement of the country, and the postponement of the Restoration, might be imagined as

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the result of delay; but over against them we are justified in placing the evil which did come as the consequence of haste. And with regard to expectations resting on a future Parliament—the Parliament now sitting could not calculate upon what the character and proceedings of its successor might be. That which really prevented any conditions from being imposed on the returning Prince, was the want of a few wise heads and a few stout hearts. Who can believe that if Pym or Hampden, or even Falkland, had been members of the Convention, matters would have been managed as they were? We cannot but think that during the infinitely momentous weeks which made up that month of May, such men would have little heeded the voting of jewels to Royal messengers, and decisions respecting State beds and State coaches—things which occupied the Houses for some time—but would rather have thrown themselves heart and soul into the work of building up some safe and sure defence against the return of arbitrary government and ecclesiastical intolerance. But England was wanting in great Statesmen. There remained one wise, good man who proposed a pause for the arrangement of conditions: but another man, selfish and unprincipled, put him down. It is deplorable to think of a Parliament in which Monk silenced Hale.^[83]

Certain Presbyterian ministers—Reynolds, Calamy, Manton, and Case—accompanied a 1660. deputation from London to express the loyalty of the citizens. Pepys gives the amusing information, that, as he was posting in a coach to Scheveling, the wind being very high, he "saw two boats overset, and the gallants forced to be pulled on shore by the heels, while their trunks, portmanteaus, hats, and feathers were swimming in the sea;" the ministers that came with the Commissioners—Mr. Case amongst the rest—were "sadly dripped."^[84]

The King resided at the Hague, and to that pleasant Dutch town the reverend brethren proceeded without delay; they were graciously received. They assured Charles, that in obedience to the Covenant, they had urged upon the people the duty of restoring him; and, after thanking God for His Majesty's constancy to the Protestant religion, they declared themselves by no means inimical to moderate Episcopacy; they only desired that in religion, things held indifferent by those who used them, should not be imposed upon the consciences of others to whom they appeared unlawful.

The first interview seems to have passed off pleasantly; another audience was sought by the clergymen for closer conversation.

The Scotch were very earnest for an exclusive Presbyterian Establishment in England. They had frequent correspondence with Sharp, now in Holland, and they urged him to remember the great inconvenience which would ensue if the King used the Prayer Book upon returning to his dominions.^[85] Whether or not Sharp (then believed to be a zealous Presbyterian) influenced the London ministers, it is certain they adopted an intolerant policy. Admitted once more to the Royal presence^[86] they told His Majesty that the people were unaccustomed to the Common Prayer, and it would be much wondered at, if, as soon as he landed, he should introduce it in his own chapel. They begged, at all events, that he would not use it entirely, but only some parts of it, and permit extempore prayers by his chaplains. The King replied, reasonably enough, and with some warmth, "that whilst *they* sought liberty, *he* wished to enjoy the same himself." He professed his strong attachment to the Liturgy, and said, although he would not severely inquire about the use of it elsewhere he would certainly have it in his own chapel. Then they besought him not to have the surplice worn: upon which he declared he would not himself be restrained whilst giving so much liberty to others; a declaration proper enough had he adhered to both parts of it. Whatever the Presbyterian deputation might have said, probably it would have made little difference as to the issue; yet all must see how foolishly they committed themselves at the very commencement of their negotiations—giving Charles and his Court too much ground for meeting the charge of Episcopal intolerance by the accusation of Presbyterian bigotry.

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Upon the following Sunday, Mr. Hardy, one of the ministers, preached before the King at the Hague, when some amusing circumstances occurred.

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The place appointed for the service was the French Church, and it was arranged that the English worship should begin as soon as the French should end. Crowds came from the neighbouring towns to see the Monarch and his retinue. Precautions were adopted to prevent their admission in a way which might inconvenience the illustrious worshippers, and particular care was taken to reserve for the Court a pew "clothed with black velvet,

and covered with a canopy of the same stuff." But another contingency had not been contemplated—the difficulty of dismissing those already in the building before others were admitted. The French congregation wished to wait and witness the subsequent worship, and Dutch persons of distinction, occupying the velvet pew, would not retire. The French ministers urged them to withdraw, but there they were, and there they would remain. The people in possession outwitted the rest, and outwitted themselves too; for the church being crammed, and no more being able to enter, the King gave up the idea of going into it, and attended Divine service in a private room, with as many of the Lords as the place would accommodate. Mr. Hardy preached from Isaiah xxvi. 19, "and made so learned and so pathetic a discourse that there was not any one there which was not touched and edified therewith."^[87] After the Liturgy and sermon the King, according to a long and elaborate ceremonial, touched certain persons afflicted with "the evil."

Whilst the Presbyterians were active the Episcopalians were not idle. The Bishops despatched Mr. Barwick to Breda with a loyal address to His Majesty, and letter of thanks to Hyde, now Chancellor Clarendon. Barwick was instructed to report upon ecclesiastical affairs, and to bring back the Royal commands, particularly as to which of the Bishops should pay their duty upon their Master's landing; and whether they should present themselves in their Episcopal habits; and also as to the appointment of Court Chaplains. Since it had been customary for the Kings of England to return public thanksgivings at St. Paul's Cathedral on great occasions, Barwick inquired what was the Royal pleasure as to the place in which such service should be held, seeing the ruinous condition of the Metropolitan Church at that time? He met with a gracious reception, and on the Sunday after his arrival preached before the King.

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The Episcopalians in England very naturally were filled with joy. As early as the month of March one gave expression to it in violent language from the pulpit. The prudent Chancellor at Breda, hearing of these intemperate effusions, had written, in April, begging that the Episcopalian clergy would restrain their tempers. "And truly I hope," he added, "if faults of this kind are not committed that both the Church and the Kingdom will be better dealt with than is imagined; and I am confident those good men

will be more troubled that the Church should undergo a new suffering by their indiscretion than for all that they have suffered hitherto themselves."

[\[88\]](#)

CHAPTER IV.

Charles, on his way to England, had reason for anxious care and steady forethought. Never had an English Prince come to the throne under such circumstances. A civil war was just over—the swelling of the storm had hardly ceased; a party adverse to that which the King regarded as his own remained still in power; many were expecting at his hand favour for recent services, notwithstanding former offences; Presbyterians looked at least for comprehension within the Establishment. Independents, Baptists, Quakers, asked for toleration, and Roman Catholics, who had been friends to the beheaded father and the exiled son, thought themselves entitled to some measure of religious liberty. The Episcopal Church claimed the new Monarch as her own; her prelates and ministers were waiting to welcome him—to open in the parish churches once more the beautiful old Prayer Book, with its litanies and collects for the King and Royal family. They sought exclusive re-establishment; they would cast out all Presbyterian intruders—they would tolerate no Sectaries. Here were perplexing circumstances to be encountered. The Breda Declaration had bound Charles to be considerate in dealing with religious matters, to show respect for tender consciences. *Comprehension, toleration*—he stood pledged to promote. But how were the problems to be solved? He was a Constitutional King. He was to rule through Parliaments. Should bigotry arise and carry all before it in the Commons' House, as elsewhere, what was he to do? Should his Ministers differ from him, how then? Such possibilities gazed at by a thoughtful man might well have made him anxious, if not alarmed. Who would not sympathize with any conscientious prince under such circumstances? Charles possessed certain intellectual and social qualities which fitted him for the task he had now to perform; for he had common sense—was keen and clever, with quick insight into character, made still more so by large acquaintance with human nature,—he knew how to put unpleasant things in a pleasant way,—could command considerable powers of persuasion when he liked, and was courteous, affable, and of winning manners. But he was not thoughtful—not conscientious; he lacked the two

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things which alone could enable him to turn his abilities and experience to good account. The crown was to him a toy; the throne a chair of pleasure, at best, of pompous state. The heedless, folly-loving prince takes himself quite out of the range of our sympathies, and leaves us to condemn the breach of his plighted faith, and all the intolerance incident to his return. A useless controversy was once carried on as to whether he was really a Papist at the time of the Restoration. It is idle to dispute respecting the theological opinions of a man so utterly destitute of religious feeling and thoughtfulness. That he was *not* a Protestant at the time—meaning by the word a person attached to the Reformed faith—is plain enough from what is said by those who knew him best. Probably Buckingham, who calls him a Deist, is nearest the truth.^[89] But that he had sympathies with the Roman Catholic party, and considered their Church as the most convenient for an easy-living gentleman like himself, there can be no doubt. Had death stared him in the face just after his return, he would probably have sought refuge in confession and priestly absolution, as he did twenty-five years later. Yet he professed to be a Protestant by solemn kingly acts, and in other ways when he thought it politic. Charles was a dissembler.^[90] He had, with all his occasional rollicking frankness, an almost equal mastery over his conversation and his countenance. His face, encompassed by flowing black locks, illuminated by lustrous eyes, was said to be as little a blab as most men's: it might tell tales to a good physiognomist, but it was no prattler to people in general. If he had a wish to conceal his purpose, he could do it effectually. Lord Halifax apologized for him by saying, that if he dissembled it is to be remembered "that dissimulation is a jewel of the crown," and that "it is very hard for a man not to do sometimes too much of that which he concludeth necessary for him to practise."^[91]

Monk proceeded to Dover May the 22nd.^[92] Numbers of the nobility and gentry wished to follow him, and he arranged that they should march in companies, in differently-coloured uniforms, under certain noblemen, who were to act as captains of these loyal bands. They had not fought any of Monk's battles; they came in now to swell Monk's triumph. As the General was standing at a window in the City of Canterbury, while they marched by gaily with green scarfs and feathers, a friend observed: "You had none of these at Coldstream, General; but grasshoppers and butterflies never come abroad in frosty weather, and, at the best, never abound in Scotland."

On Friday, the 25th of May, at one o'clock, Charles landed at Dover; and, notwithstanding his levity, his heart surely must have been touched as the

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Castle guns gave him welcome; and another and far more gladdening demonstration proceeded from the ten thousands of his subjects, who lined the pebbly beach, or looked down from the old chalk cliffs, waving their broad-brimmed and feathered hats, and giving the home-bound exile right hearty cheers such as only Englishmen can give. General Monk, with all the nobility and gentry present, prostrated themselves before the Prince as he stepped ashore, with his plumed beaver in his hand; and some rushed forward to kiss the hem of his garment, whilst he gracefully raised from his knees, and embraced the soldier, who whatever might be his character in other respects, had certainly proved the star of his master's fortune. A canopy was ready for His Majesty, as he walked to the town; and the Mayor and Aldermen made obeisance as their chaplain placed in the Royal hands a gold-clasped Bible. No Bishop was present.

A State coach stood in waiting, in which the King seated himself, the Duke of York by his side, and opposite, the Duke of Gloucester; General Monk and

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the Duke of Buckingham occupying the boot. Thus they travelled two miles out of Dover, when they mounted horse, and so proceeded the rest of the way to Canterbury,—where speeches were made, and a gold tankard was presented to the King; on the following day several persons were knighted by him, and Monk, the real hero of the hour, was invested with the Order of the Garter. All went to the Cathedral on Sunday, when the Liturgy was used; and on Monday they proceeded to Rochester, where a basin and ewer, silver-gilt, were loyally given, and graciously accepted. Between four and five o'clock on Tuesday morning, they started again, "the militia forces of Kent lining the ways, and maidens strewing herbs and flowers, and the several towns hanging out white sheets." At Dartford, certain regiments of cavalry presented an address, and at Blackheath, the old Army appeared drawn up to meet the very Monarch against whom so many of them had been fighting. The vexation felt at this termination of the great change inaugurated by the Civil Wars must have touched many a Republican to the quick; and at the moment of their chagrin rapturous feelings filled many a noble Royalist, like those which inspired the *Nunc dimittas* of Sir Henry Lee, so touchingly described on the last page of Scott's *Woodstock*.

At St. George's-in-the-Field the Corporation of London waited in a tent to receive their Sovereign, where the Lord Mayor presented the City sword, and then the procession slowly moving from Southwark, passed through the City Gates, crossed the pent-up alley of London Bridge, and marched on through Cheapside, Fleet-street, and the Strand, the houses all the way adorned with tapestry;—the train bands lining the streets on one side, and the livery companies on the other. A troop of 300 men, in cloth of silver doublets, led the van; then came 1200 in velvet coats, with footmen in purple; followed by another troop in buff and silver, and rich green scarfs; then 150 in blue and silver, with six trumpeters and seven footmen in sea-green and silver; then a troop of 220, with 30 footmen in grey and silver; then other troops in like splendour. The Sheriff's men in red cloaks, to the number of fourscore, with half-pikes—and hundreds of the companies on horseback in black velvet with golden chains followed in due order. Preceded by kettle-drums and trumpets, came twelve London ministers, their Genevan gowns and bands looking "sad" amidst the glaring colours. The Life Guards followed: more trumpeters appeared in satin doublets; and next, the City Marshal, attended by footmen in French green trimmed with white and crimson. The City Waits succeeded, and next the Sheriffs and the Aldermen, with their footmen in scarlet, and with heralds. The Lord Mayor carried the Sword of State, and close by him rode Monk and the Duke of Buckingham. Then appeared the King, accompanied by his brothers York and Gloucester: the Royal eyes, black and keen, looking out with gracious smiles from a sallow face on the gathered thousands, who, with awe and delight, returned the gaze. Troops, with white flags, brought up the rear; and thus the gaudy and imposing pageant filed under the very window, where fourteen years before had stood the scaffold of Charles I. ^[93]

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As soon as Charles II. had taken his seat on the throne addresses flowed in from all quarters—from the nobility, the gentry, and the militia of counties; from the Corporations and inhabitants of towns, and from divers religious bodies. The time had not yet come for Episcopalians to address His Majesty. Presbyterianism, recognized by the Convention as the established religion, had not been dethroned from its supremacy; and it was not quite safe at present for its great rival ecclesiastical power prominently to show itself. Their silence just then is very significant. The Roman Catholics,

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many of whom had sacrificed much for the sake of the Stuart family, assured the King of their attachment; and distinctly repudiated the doctrine, that the Pope can lay any commands upon English Catholic subjects in civil and temporal matters; also the "damnable and most un-Christian position,"—these are the very words—"that kings or absolute princes, of what belief soever, who are excommunicated by the Pope may be deposed, killed, or murdered by their subjects."^[94] Presbyterian ministers expressed the warmest loyalty. "Such," they said, "of late days, have been the wonderful appearances of God towards both your Royal self and the people, that (when we feared our quarrels should be entailed and bound over to posterity) we hope they all are miraculously taken up in your Majesty's restoration to your Crown and imperial dignity. It cannot be denied, but that Providence was eminently exalted in the work of your protection for many years; but it seems to avail to the efficacy of that grace, which hath prevented you from putting forth your hands unto iniquity, and sinful compliances with the enemies of the Protestant, and in disposing of the hearts of your subjects to receive you with loyalty and affection." With this expression of loyalty is combined the utterance of hope. "We beseech you not to give Him less than He requires by way of gratitude, of which we are the more confident, when we consider your Majesty's gracious letters to both Houses of Parliament, with the enclosed Declaration, wherein we see your zeal for the Protestant religion, with a pitiful heart toward tender consciences, wherein we have assurance that the hail of your displeasure shall not fall on any who have (upon the word of Moses) betaken themselves to yourself as a sanctuary. And now, most gracious Sovereign, what remains for us to do? We are not fit to advise you, but give us leave to be your remembrancers before the Lord." They conclude with devout aspirations for His Majesty's spiritual welfare: "May you never see the handwriting on the wall that your kingdom is divided, but let this be your motto—'Not by power, not by might, but by the Spirit.' May you rejoice in this, that you have better chariots and horsemen (in the many of your subjects who are faithful, chosen, and true) than other princes can boast of. And still, may your tenderness be found, that of a nursing father towards the young and weak of the flock that cannot pace it with their elder brethren, and yet are God's anointed, nay, God's jewels, the apple of His eye, His children, they for whom Christ died, and is now an Intercessor."^[95]

There was also an address from the Independent ministers of London and Westminster, in which they referred to the Breda Declaration, indicating how greatly it sustained their hopes. They did not, they said, wish for liberty longer than they deserved it. "And it is our desire," they added, "no longer to sit under the shadow, and to taste the fruit of this your Majesty's royal favour, than we approve ourselves followers of peace with all men, seeking the peace of these kingdoms united under your Majesty's Government, and abiding in our loyalty to your royal person and submission to your laws."^[96]

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An address, sent by the ministers of Lancashire at a later period, shows their desire to wipe out the stigma of disloyalty:—

"Whereas we, or some of us, have been injuriously misrepresented to your Majesty, or some eminent persons about you, and have also been prejudiced and molested, as if we denied your Supremacy, or were disaffected to your Government (which hindered this our application to your Majesty, although prepared, and which otherwise had been much earlier, even with the first), we do, in all humility, and with great earnestness, profess before God and man, that we detest and abhor the very thoughts of such unworthy principles, behaviour, and expression, having always, according to occasion, expressed and declared the contrary."^[97]

In this address we notice a recognition of the Royal Supremacy. Not only the civil, but, in some sense, the ecclesiastical Supremacy of the Crown must, under the circumstances, have been meant. Ecclesiastical Supremacy would be claimed and exercised by the restored sovereign as a matter of course. No new Act of Parliament was passed reconferring it on the Crown, and defining the limits.^[98] Henry VIII. had been declared "*Ecclesiæ Anglicanæ et Hibernicæ Supremum Caput*." That title had been continued during the reign of Edward VI., but was repealed in the reign of Queen Mary. In the first year of Queen Elizabeth, Supremacy was restored to the Crown, the Queen being styled, not "Supreme *Head* of the Church," but "Supreme *Governor*, as well in all spiritual and ecclesiastical causes as in others." Henry's and Edward's title had never been resumed, but that of Elizabeth, having belonged to the first two monarchs of the Stuart line, descended to Charles II.^[99] Charles II., then, could not, in legal phrase, be

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"Head of the Church;" if he happened to be so designated, it would be in adulation or in ignorance. But he inherited the ecclesiastical powers possessed by Queen Elizabeth, except in relation to the High Commission Court, which had been abolished by Act of Parliament in the reign of his father. The canons—as well as Acts of Parliament unrepealed before the Civil Wars—were regarded by Churchmen as remaining in force, and the second canon required an oath to the effect that "the King's Majesty hath the same authority in causes ecclesiastical that the Godly kings had amongst the Jews, and Christian emperors of the primitive Church"—whatever might be meant by that vague appeal to ancient and obscure precedents. The Supremacy of the Crown, however, as asserted by Anglican lawyers, would be one thing; the Supremacy, as acknowledged by Puritans, especially any Nonconformist portion of them, would be quite another. The authority of the temporal ruler over the temporalities of the Church, all parties probably would be prepared to allow; those of them who approved of a State Church would not object to his being invested with ecclesiastical patronage; Presbyterians, who wished for the establishment of perfect parochial discipline by the magistrate's aid, could not consistently object to some kind of Royal Supremacy in reference to that matter; but High Church Puritans, if I may so term persons holding exalted ideas of the spiritual, as distinguished from the temporal powers, like High Church Anglicans, would entertain a reduced and modified conception of the legitimate interference of the Crown with Christ's Church; whilst Nonconformists, who embraced the voluntary principle, would (even if from loyal courtesy they conceded the title of Supreme Governor in causes ecclesiastical) extract from it almost all which constituted its signification in the eyes of others.

It should further be borne in mind, not only here, but throughout this division of our narrative, indeed onward to the passing of the Act of Uniformity,—

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that ecclesiastical affairs were in a transition state, that scarcely anything could be regarded as perfectly settled. The High Church party took it for granted, that with the return of the King came the return of the episcopal constitution, with its laws, ceremonies, and usages. They assumed that at once, without any new Parliamentary statute, the stream of affairs would flow back into the old channel—that all which had been done by the Long Parliament, without the sanction of the Crown, ought to be treated as if it

had never been done at all. The opposite party also had law on their side; for some valid Acts, affecting the Establishment, remained unrepealed—for example, the Act for divesting Bishops of their temporal powers. Under existing circumstances, much might be said on behalf of other portions of recent legislation, even where the Royal assent had not been obtained. And very few people now will deny that the clergy holding preferment during the Commonwealth had reason and common sense in their favour when they maintained—that, after nearly twenty years of change, after a revolution carried on by a *de facto* Government which had destroyed old vested rights, and created new ones—things could not be expected to resume their former position as a matter of course; that those in possession, and in possession by sanction of Government, had something to say for themselves, and that the conclusion as to the Church of the future was not foreclosed. And whatever might be said to the contrary, this aspect of the question had been, and still was, tacitly accepted as the true one by Charles and by Clarendon, in their negotiations with the Presbyterians, for they kept them in suspense for more than a year, holding out the idea of a compromise, and did not attempt to carry matters with a high hand until the Presbyterians had been reduced to a condition in which they could be easily crushed.

The counsellors by whom Charles was surrounded on his return were men of different characters, and they ought at once to be noticed, since they had more or less to do with the ecclesiastical affairs, which it is our business to study. Hyde immediately became Chief Minister. His round face and double chin, as we see them in his portrait, appear signs of good nature; but, perhaps, a skilful physiognomist would discover in his eyes and lips indications of qualities less pleasant. He was a different man from his master. Like Charles I., he was sincerely attached to the Episcopal Church of England. That unhappy Monarch, in one of his published letters, dated Oxford, March 30, 1646, assures Queen Henrietta that "Ned Hide" was fully of his mind on the subject of Episcopacy; he was almost, if not altogether (at that time), the only person in the confidence of the King who concurred with him on the point of religion.^[100] The same year, when matters were even worse, Hyde expressed himself against "buying a peace at a dearer price than was offered at Uxbridge," and encouraged the notion that it was the duty of the Royalists to submit to a kind of martyrdom. "It

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may be," he remarked, "God hath resolved we shall perish, and then it becomes us to perish with those decent and honest circumstances that our good fame may procure a better peace to those who succeed us, than we were able to procure for them, and ourselves shall be happier than any other condition could render us."^[101] Looking at the circumstances under which the letter was written, there can be no doubt of the sincerity of this confession—a sincerity confirmed in all the years of his exile under the Commonwealth, and in his active solicitude for the interests of the Church in the prospect of the Restoration. His subsequent conduct in reference to ecclesiastical affairs will appear as we proceed.

The Duke of Ormond, who had done and suffered much for the Stuarts, was, according to Burnet, a courtier of graceful manners, of lively wit, and of cheerful temper, extravagant in his expenditure, but decent in his vices; he was a firm Protestant, and always kept up the forms of religion, even amidst the indulgence of his passions.^[102] The Earl of Southampton, who had faithfully adhered to Charles I. and his son throughout their troubles, enjoyed a merited reputation for virtue, for attachment to liberal principles, and for being guiltless of promoting the arbitrary designs of the restored Monarch; he leaned towards a favourable treatment of the Presbyterians; but, after holding the Treasurer's staff he grew weary of business, perhaps from disapprobation of the Court policy, no less than from disease.^[103] Sir Edward Nicholas appears to have been a mere official perfunctorily discharging the office of Secretary; and the same may be said of Sir William Morrice. Nicholas Culpepper, who had served as Master of the Rolls to Charles I., and who showed himself to be a politician favourable to the constitutional privileges of the Crown, and no more, took little interest in ecclesiastical affairs. To these Ministers is to be added the Earl of Manchester, a man virtuous and beloved, gentle and obliging, but not marked by any strong individuality of character. On the side of Parliament in the Civil Wars he had been a main pillar of Presbyterianism under the Protectorate; yet though nominated by Oliver, one of his Lords, he had been opposed to Oliver's government. As a Presbyterian leader he had taken a prominent part in a meeting held at Northumberland House, with a view to the Restoration, after which event, upon becoming Lord Chamberlain, he "never failed being at chapel, and at all the King's devotions with all

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imaginable decency."^[104] He did not, however, abandon his old associates. Next to Manchester may be mentioned the Presbyterian Lord Hollis, a man of sincere religion, who had opposed the Independents in the Long Parliament, and had resisted Cromwell; he bore the character of a friend, rough but faithful, and of an enemy violent but just; and he now espoused with fervour the cause of Charles.^[105] Sir Anthony Ashley Cooper was a different kind of person. He had been a Royalist, and also a member of the Little Parliament; and if he could be said to be anything in reference to religion, he might be pronounced a Deist; yet he mingled with his scepticism the superstition of astrology.^[106] For his position near the King this versatile, inconstant, unprincipled, yet clever man, was indebted to his friend Monk, now created Duke of Albemarle, whose character has been already indicated in these pages.

Clarendon, Albemarle, Southampton, and Ormond were the ruling spirits immediately after the Restoration; and together with them ought to be mentioned the Earl of Bristol, who, though by having recently declared himself a Roman Catholic, he had excluded himself from the Privy Council, yet retained a place at Court; and whilst his religious policy and general character made him obnoxious to Clarendon, the very same things made him agreeable to Charles.

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Buckingham and Bennet will come upon the stage at a future period.

Soon after the Restoration, which placed these men in power, there occurred the disbanding of the old Revolutionary Army, which had throughout the Commonwealth been the main guardian of the Church as well as of the State. That Army had apparently brought back the exiled Monarch, or rather it had strengthened the hands of those who performed that deed; but in consequence of its past history, and the character of many numbered amongst the troops, it was not a prop upon which sagacious and far-sighted Royalists could place much reliance. Indeed, signs of disaffection were already visible. There were veterans who, whilst formally obeying the command of Royalist officers, in their hearts retained allegiance to Lambert, and other Republicans. Whispers about the "good old cause" might be heard in garrisons, and other military quarters; and, it is said, that

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even a revolt against Monk had begun to be planned. Charles sought to win by flattery such of the soldiers as were of unsettled mind; and his Ministers, at the same time, employed spies to find out and secure the sowers of sedition, and so to pluck the tares from amidst the wheat; but the most effectual method of preventing the apprehended mischief was to dissolve the Army altogether. That difficult and delicate business received prompt and careful attention. The Government employed members to represent to Parliament, first, the uselessness of a military force 60,000 strong in time of peace; and next, the pecuniary burden which it imposed upon the State, then encumbered in other ways with pecuniary difficulties. Consequently motions for a gradual reduction and payment of the Army were carried; and, gradually the regiments, which had seen so much service, and had passed through such a memorable history, melted away. They took home recollections of Marston Moor and Naseby, of the Dunbar fight, and of Worcester field; and to old age men told their children, and their children's children, of their marchings and their defences, especially of the officers under whom they had fought, and of Old Noll, the greatest of them all. Dispersed over the country, settled in their former homes, or choosing new localities, they spread afar the sentiments and traditions of past days; and the religious amongst them—still very numerous—the Puritan, the Presbyterian, the Independent, the Baptist, the Fifth Monarchy Millenarian, and the Spiritual Fanatic of some inexpressible shade, would be each a centre of influence in his respective circle, stimulating and promoting Nonconformity. Perhaps the Commonwealth soldiers, whilst prevented by their being disbanded from shaking the pillars of the State, were by that very measure placed in circumstances which enabled them quietly to exert an influence tending to undermine the foundations of the Church. Officers and soldiers of Cromwell's are often noticed in the informations laid against Dissenters during the next ten or fifteen years; and it is because of the religious character of that Army, and because of the numbers belonging to it, who afterwards appeared in the ranks of Dissent, that I have stepped aside for a moment to allude to an event of a military character.

Returning to our proper line of history we meet with certain ecclesiastical results in the proceedings of Parliament. For a time the Presbyterian element manifested itself in opposing Popery, and in supporting the existing Church establishment; but

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signs of change became apparent in the summer months, and Episcopalians began to recover their long lost sway over the councils of the nation. The following consequences ensued:—

I. The Commons debated the question of the Church's settlement, expressing opinions and using arguments similar to those which had been heard at the opening of the Long Parliament. Some members extolled the Thirty-nine Articles, and dwelt upon the merits of Episcopalian Government; some were opposed to Deans and Chapters, yet dealt tenderly with Bishops; some were for Prelacy as of old; some advocated moderate Episcopacy; and some indicated a lingering love for the Solemn League and Covenant; others thought mere politicians were unfitted to handle theological topics—that, as was oddly said, the judges had sent for a falconer to give opinion in a case touching a hawk—so, on the principle *quilibet in arte sua*, a synod of the Clergy ought to be called, lest honourable members "should be like little boys, who, learning to swim, go out of their reach, and are drowned." Twice it was decided that the King should "convene a select number of Divines to treat concerning that affair."
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Much was thus deferred for the present; nevertheless, an Act speedily passed, allowing present incumbents with undisputed titles to retain their livings, yet restoring to his preferment every clergyman who had been ejected under the Commonwealth, if he claimed re-induction, provided he had not been implicated in the death of Charles I., and had not discountenanced infant baptism.
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In consequence of this, many clergymen, including Presbyterians and Congregationalists, were immediately displaced, and dispersed Episcopalians came back to their former abodes.
[\[109\]](#) It is easier to imagine than to describe the excitement attending this change. Not only did sorrow fill the dismissed and joy inspire the reinstated, but congregations, in many cases, deplored the contrast between the former and the present occupant of the pulpit; whilst, also, many a squire and yeoman hailed the reappearance of the Prayer Book, and welcomed home some genial incumbent after his long and weary exile. Unseemly contests were renewed in the House of God, such as had been witnessed at the outbreak of the Civil Wars. As a

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Presbyterian at Halifax began worship in his usual manner, the Episcopalian Vicar made his appearance at the Church door, with the Prayer Book under his arm, and marching up the aisle, clothed in his surplice, insisted upon entering the desk, after which he read the Litany and sung the Te Deum. Joyous peals of bells accompanied the return of the old clergy, and texts were selected expressive of natural feelings on the occasion. One discoursed upon the sufferings of himself and his brethren from the words, "The ploughers ploughed upon my back; they made long their furrows. The Lord is righteous; he hath cut asunder the cords of the wicked." Another, in a milder spirit, selected this verse, "He that goeth forth and weepeth bearing precious seed shall doubtless come again with rejoicing, bringing his sheaves with him." An itinerating lecturer, with an income of £50 a year, chose as a Restoration motto, "Let him take all;" which, upon his losing his appointment, gave "occasion for a shrewd taunt of the adversary."^[110] Parish registers contain curious memorials of the period. Thus one clergyman records his own story:—"Memorandum, That John Whitford, Rector of Ashen, alias Ashton, in the County of Northampton, was plundered and sequestered by a Committee of rebels, sitting at Northampton, for his loyalty to his gracious sovereign, of blessed memory, Charles I., in the year of our Lord 1645, and was restored to his said Rectory in the twelfth year of the reign of Charles II., in the year 1660."^[111]

The Liturgy was reintroduced. It had been used in the service at Canterbury Cathedral upon the occasion of the King's visit to that city, on his way to London; and earlier still in the House of Lords, two days after he had been proclaimed. It appeared in the Royal Chapel immediately after his taking possession of Whitehall; and Evelyn, on the 8th of July, records, that the Prayer Book was publicly read in "churches, whence it had been for so many years banished." In a number of parishes, however, between the Restoration and Bartholomew's day, 1662, ministers continued to carry on worship as they had done before; either following the Directory or engaging in prayer as they pleased.

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II. Parliament took up in detail a variety of business connected with the restoring of Cathedral and parochial edifices, the recovering of what had been taken away, the reinstating of things in their former condition, and the

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removing of alterations made by Nonconformists. For example: upon a report from the Lords, appointed to compose differences in the City of Exeter, it was ordered that certain churches, of which a list is given, should be repaired at the charge of the respective parishioners, and that all the bells, plate, utensils, and materials, formerly belonging to those buildings, should be delivered to the Churchwardens:—that money still unpaid for their purchase should not be paid; and that bonds for payment should be given up; and that the Chamber of Exeter should forthwith, at their own charge, take away the partition wall built in the Cathedral, and the new-built seats in the Choir, all the materials whereof were to be employed towards "the making up again the churches which were defaced."^[112]

III. Petitions came from the Universities, and the Upper House ordered the Chancellors to take care that the Colleges should be governed according to their statutes, and that persons unjustly ejected should be restored to office.^[113] Commissioners also were Royally appointed to hear and determine all questions of claim, and they were engaged through the months of August and September in restoring such as were eligible to their former position as Fellows and Heads of Houses. University honours were offered largely to such as professed attachment to Episcopacy, and a numerous creation in all faculties ensued.^[114] Oxford and Cambridge immediately witnessed great changes. Restored Episcopalians occupied the places of the ejected, and the ancient forms of worship were at once resumed. The use of the surplice in Parish Churches, by the Royal Declaration of the 25th of October, fully noticed hereafter, was left at the option of incumbents; but it was enjoined upon those who officiated in the Royal Chapel, in Cathedrals, in Collegiate Churches, or in Colleges of the Universities.^[115] Yet, we learn from a letter written by Thomas Smith, at Christ's College, Cambridge, November 2nd, 1660, that the Puritanical party were still powerful there. "In your College," says the writer, addressing Sancroft, afterwards Archbishop of Canterbury, "half the Society are for the Liturgy and half against it; so it is read one week and the Directory used another; but till the Directory be laid aside, I believe no surplices will be worn."^[116]

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During the progress of these measures, signs appeared in the House of Commons of changes in the relative position of parties which could not but

entail important consequences.

Upon the 30th of June a complaint reached Parliament—that a paper had been printed, in His Majesty's name, authorizing the uniform use of the Book of Common Prayer throughout the Realm: that a Form of Service for the 28th of June, had been published as by Royal authority: and that there had also appeared in print "a protestation of the Bishops against proceedings of Parliament in their absence."^[117] This subject the Commons referred to a Committee, to ascertain how such papers came to be printed, and by what authority. In this proceeding may be traced the impress of Presbyterian influence, attempting to preserve Presbyterian rights, and to resist the return of Episcopal authority. Presently, a Bill was produced "for the maintenance of the true Reformed Protestant religion, and for the suppression of Popery, superstition, profaneness, and other disorders and innovations in worship and ceremonies."^[118] But it soon appeared that the Episcopalian party had gained ground on the Presbyterians.

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Sharp, the Scotch agent, in a letter dated July the 7th, remarked: "Some yesterday spoke in the House for Episcopacy, and Mr. Bampfield, speaking against it, was hissed down. The English lawyers have given in papers to show that the Bishops have not been outed by law. The cloud is more dark than was apprehended. The Presbyterians are like to be ground betwixt two millstones. The Papists and fanatics are busy."^[119]

The fact is, that in the first instance, many Episcopalians had been elected members of the Convention, and that their numbers increased after the King's return as fresh elections occurred. They formed a compact body, and made a vigorous opposition to the Puritans; an opposition which, gradually increasing both in power and boldness, was found by the latter too formidable to be overcome. Consequently, the irresolute and the selfish amongst them, feeling alarmed, and seeing which way the wind blew, began to sail on a new tack, and to follow those who were making towards a safe harbour. Many members became, in a few months, as staunch in the maintenance of the Episcopal Church as they had ever been in the cause of the Presbyterian Covenant.

ECCLESIASTICAL
PROCEEDINGS IN
PARLIAMENT.

When the ecclesiastical business of the Session had been transacted, the King, in the month of September, after giving his assent to various Bills, made a speech to the two Houses, followed by another of great length from the lips of Clarendon, the Lord Chancellor, who on that, as well as on other occasions, showed a talent for sermonizing which would not have disgraced a Bishop.

A large proportion of what had been Church property existed in a very unsatisfactory state. It had been disposed of by the Long Parliament or the Commonwealth Government in the form of rewards for service and of sales for money. Was it now to revert at once to its previous uses? If so, should not some compensation be made to the present possessors or occupiers?

Ecclesiastical claimants argued, that such property had been illegally secularized, and that those who had received it had taken it with all the risks of a bad title. In justice to the Convention it should be remarked, that it passed a resolution favourable to the rights of those who had purchased Church lands on the faith of the Parliament,^[120] and, in justice to Charles II., that he issued a Commission in November, 1660, to inquire into the history of such transactions. This Commission was authorized to compose differences between the Bishops and the purchasers of estates, the direction being, that Archbishops, Bishops, and other ecclesiastical persons were to accept such reasonable conditions as should be tendered to them by the Commissioners on behalf of such purchasers; and that they would do no act to the prejudice of any purchasers, by granting new or concurrent leases whereby their existing interest or position might be injured, while the same was under deliberation, and until His Majesty's pleasure should be further known.^[121] In accordance with the spirit of this Commission the King dealt leniently with those who had become possessed of Crown property; and this circumstance, which was creditable to him, caused the course adopted by the authorities of the Church to appear the more reprehensible. The Resolution passed by the Convention came to nothing, upon the dissolution of that Assembly; and the holders of Church lands, unprotected by Parliament, and left to the mercy of clerical claimants, experienced severe treatment.^[122] Old incumbents, writhing under the remembrance of wrong, and seeking compensation for their losses, refused compensation to their enemies, and made the best bargain they could for themselves.

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It is convenient in this connection to allude to a change in certain privileges which indirectly affected, to some extent, the revenues of the Church.

ECCLESIASTICAL
PROCEEDINGS IN
PARLIAMENT.

Amongst feudal rights were those of tenures by Knight's-service, including the benefits of marriages, reliefs, and wardships. Though the profits derived from the Court of Wards were casual, they amounted sometimes to a considerable sum, but these and other contingent revenues were, by a Parliamentary arrangement, withdrawn from the Sovereign, and in lieu of the income thus forfeited, one moiety of the excise became settled on the Crown. The Act affected the revenues of the Church, and of this circumstance a remarkable illustration is afforded by a paper in the Record Office, in which the Bishop of Durham complains of a loss of £2,000 through the abolition of these courts. [\[123\]](#)

In connection with this reference to Episcopal revenues, it may be stated that at the Restoration nine Bishops of the old ecclesiastical *régime* were

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still alive. These were—Juxon, Bishop of London; Wren, of Ely; Piers, of Bath and Wells; Skinner, of Oxford; Roberts, of Bangor; Warner, of Rochester; King, of Chichester; Duppa, of Salisbury; and Frewen, of Lichfield and Coventry. They considered themselves, and, by their own Church they were regarded, as having a title to resume the episcopates from which they had been ejected. But whilst things remained in a transition state they seem to have acted with caution. Without a repeal of the Act of Charles I., which disqualified them for sitting in the House of Lords, they could not resume their seats. Nor until the purchasers of their episcopal estates were dispossessed, could they recover their property; nor, for a while, could they obtain possession of their palaces, or enter upon the possession of their sees. Those who were boldest in maintaining the theory, that the Episcopal Church at the Restoration resumed its rights and prerogatives, could not at once reduce that theory to practice.

It may be added that new Bishops were appointed to vacant sees; some account of their consecration, their history, and character, will be given hereafter.

Throughout the latter half of the year 1660 and onwards, applications by Episcopalian clergymen to be restored to their benefices, or to be favoured with

PREFERMENTS.

higher preferment, were as numerous as they were urgent. They occur amongst the *State Papers* of that period, in all sorts of connections; and one volume of them alone—assigned in the Calendar to the month of August, 1660—contains no less than 143 documents of this description. One clergyman beseeches the King to recommend him to the Dean and Chapter of York, as Vicar-General of the diocese during a vacancy, the petitioner having suffered by resisting both the Covenant and the Engagement. A second begs the Deanery of Lichfield, he having lost a valuable living given him at Oxford by the late King as a reward for his loyalty. A third applies for the Archdeaconry of Hereford. A fourth prefers his claim to the Archdeaconry of Chester, on the ground of having been deprived and plundered for constancy in maintaining the doctrine and discipline of the Church.

There are many petitions for prebends, one from a clergyman who appears to have been a wit, for he begs the reversion of the next stall in Worcester Cathedral; only excepting that connected with the Margaret Professorship of Divinity—saying, that "though not likely to receive benefit thereby on account of his age, yet having long waited, as the cripple at the pool of Bethesda, it will comfort him to think that he dies cousin-german to some preferment." Another pleads, with some humour, that having sacrificed liberty to duty, he must now forfeit it in another way, even for debt, unless aided by His Majesty's generosity.^[124] To most of these forms of application there are annexed certificates from various persons, particularly Dr. Sheldon, who seems to have taken a great deal of trouble to promote the interests of his clerical brethren. The hopes and fears which at other times agitate two or three candidates are, at a general election, multiplied by hundreds all over the kingdom; so at the Restoration,—what commonly is a flutter amongst a few aspirants after ecclesiastical promotion, was then the experience of multitudes at the same moment; and perhaps there never were before or since, within the same compass of time, so many clergymen on the tip-toe of expectation, doomed of course, in many cases, to utter disappointment.

CHAPTER V.

Soon after the King's return the Earl of Manchester employed his influence, as Lord Chamberlain, in the appointment of ten or twelve Presbyterian chaplains at Court; of these only four—Reynolds, Calamy, Spurstow, and Baxter—ever had the honour of ministering before His Majesty.^[125] Baxter states that there was no profit connected with the distinction; and that not "a man of them all ever received, or expected a penny for the salary of their places." But if the office brought no pay to himself, he was anxious it should bring profit to the Church; and, therefore, he employed the influence, which his chaplaincy gave him, to promote such measures as he thought conducive to the advancement of religion. He suggested to the Earl, and to Lord Broghill, a conference, for what he called "agreement," or "coalition;"^[126] and as Calamy, Reynolds, and Ash, concurred in his views, he procured an arrangement in the month of June for himself, and his brethren in office, to meet their Royal master, with Clarendon, the Earl of St. Albans, and other noble persons, at the house of the Lord Chamberlain.

MEETINGS OF
PRESBYTERIANS.

When they met, Baxter, with characteristic ardour and pathos, delivered a long address, probably such as Charles had never listened to before, although he had heard much plain speaking on the other side the Tweed. The Puritan Divine besought His Majesty's aid in favour of union, urging, that it would be a blessed work to promote holiness and concord; and, "whereas there were differences between them and their brethren about some ceremonies or discipline of the Church," he "craved His Majesty's favour for the ending of those differences, it being easy for him to interpose, that so the people might not be deprived of their faithful pastors, nor [have] ignorant, scandalous, unworthy ones obtruded on them." Baxter also expressed a hope that the King would never suffer himself to undo the good which Cromwell, or any other, had done, because they were usurpers that did it, "but that he would rather outgo them in doing good." Then, with exquisite simplicity, the speaker went on to say that common people judged of governors by their conduct; and took him to be the best who did the most

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good, and him to be the worst who did the most harm. He hoped that the freedom of his expressions might be pardoned, as they were "extracted by the present necessity;" and he further declared that he was pleading for no one party in particular, but for the interests of religion at large. In concluding his address he urged the great advantage which union would prove to His Majesty, to the people, and to the Bishops; and showed how easily that blessing might be secured, by insisting only upon necessary things, by providing for the exercise of Church discipline, and by not casting out faithful ministers, "nor obtruding unworthy men on the people."

[\[127\]](#) The whole speech was pitched in a key of earnestness beyond the sympathy of him to whom it was addressed; there was in it, nevertheless, a charm to which the easy-tempered Charles might not be insensible, and with his usual politeness, he professed himself gratified by any approach being made towards agreement. He, at the same time, remarked that there ought to be abatements on both sides, and a meeting midway; adding, that he had resolved to see the thing brought to pass, indeed, that he would himself draw the parties together. Upon listening to this Royal pledge, Mr. Ash, one of the chaplains, was so affected that he burst into tears.

Baxter and his associates were requested to draw up proposals for consideration at a future conference, to which they consented, with the understanding, that for the present they could only speak for themselves, and not as representatives of others. They also craved, that if concessions were granted on one side, concessions should be granted on the other. To this Charles agreed.

PRESBYTERIAN
PROPOSALS.

Meetings were accordingly held immediately afterwards at Sion College—meetings prolonged from day to day. By general invitation both city and country ministers attended, including Dr. Worth, afterwards made an Irish Bishop, and Mr. Fulwood, subsequently appointed Archdeacon of Totness.

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Difficulties arose of a nature necessarily accompanying all debates; for, as Baxter says, that which seemed the most convenient expression to one, seemed inconvenient to another, and those who agreed as to matter had much ado in agreeing as to words. The latter might be true to some extent, but in all probability the discussions at Sion College resembled others elsewhere, in which men have agreed as to words, in order to cover some

very important difference as to things. At last the brethren resolved to make the following proposals:—

That their flocks should have liberty of worship; that they should have godly pastors; that no persons should be admitted to the Lord's table except upon a credible profession of faith; and that care should be taken to secure the sanctification of the Lord's Day. For "matters in difference, viz., Church government, Liturgy, and ceremonies"—they professed not to dislike Episcopacy, or the true ancient primitive presidency, as it was balanced and managed, with a due commixture of Presbyters; yet they omitted not to state what they conceived to be amiss in the Episcopal government, as practised before the year 1640—specifying the too great extent of the Bishop's diocese, their employment of officials instead of personal oversight, the absorption by prelates of the functions of ordination and government, and the exercise of arbitrary power in spiritual rule. They proposed, as a remedy, Ussher's scheme of suffragan Bishops and diocesan synods, the associations not to "be so large as to make the discipline impossible;" and they requested that no oaths of obedience to Bishops should be necessary for ordination; and that Bishops should not exercise authority at their pleasure, but only according to such rules and canons as should be established by Act of Parliament. They were satisfied concerning the lawfulness of a Liturgy, but they objected to the Prayer Book, as having in it many things justly offensive and needing amendment.

It may be stated here, that all these proposals took the form of a direct address to His Majesty; and in reference to ceremonies, the memorialists heartily acknowledged His Majesty "to be *Custos utriusque tabulæ*, and to be supreme governor over all persons, and in all things and causes as well ecclesiastical as civil." After this they besought him to consider, as a Christian magistrate, whether he felt not obliged, by the apostle's rule, touching things indifferent, to act so as not to occasion an offence to weak brethren. They therefore prayed that kneeling at the sacrament, and such holydays as are of human institution, might not be imposed; and that the use of the surplice, the cross in baptism, and bowing at the name of Jesus, might be abolished.^[129] Objections to these practices had become traditional. They had been urged throughout the reign of Queen Elizabeth—they were specified in the Millenary Petition presented to King James. It should be

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added, that neither in this paper, nor in any of the conferences which followed, did the ministers plead for the establishment of Presbyterianism. "I leave it here on record," says Baxter, "to the notice of posterity, that to the best of my knowledge, the Presbyterian cause was never spoken for, nor were they ever heard to petition for it at all." All they sought was a reduced Episcopacy.^[130]

When Baxter and his friends attended the next meeting with the King, expecting to find the Episcopalians prepared with some concessions, he "saw not a man of them, nor any papers from them of that nature." Still Charles showed himself gracious, promising, after all, to bring the Bishops together, and get them to yield something; at the same time expressing gratification with the Presbyterians' address, especially with their expressed willingness to adopt a Liturgy.^[131] Instead of the desired conference being granted, a written answer came from the prelates, to the chaplains.^[132] In this answer we find that the prelates begin by turning to their own advantage the concessions of the Presbyterians. The Presbyterians agreed with the Episcopalians in doctrine. Why should they be so scrupulous about minor matters? Such is the tone of the paper, and it is the habitual Episcopalian temper throughout, even in its least unfriendly moods. Professing a willingness to reform what had been objectionable in time past, or what might be inconvenient for the future, the Bishops defended the constitution and usages of their own Church before the Wars, and treated "Ussher's Reduction," so called, as inconsistent with other discourses of the learned prelate. After extolling the Liturgy, they remarked—"nor are ministers denied the use and exercise of their gifts in praying before and after sermon, although such praying be but the continuance of a custom of no great antiquity." Had this sentence meant, that scope should be given for free, as well as for liturgical, worship—that clergymen should be allowed to pray at Church *extempore*, as well as *read* prayers, the concession would have been most important; subsequent events, however, show that such was not the meaning, and also that the following passage, which might be construed as granting much, signified little, or nothing—"If anything in the established Liturgy shall be made appear to be justly offensive to sober persons, we are not at all unwilling that the same should be changed." With regard to ceremonies, they now seemed to concede what they afterwards

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ANSWER.

refused to allow. "How far forth, in regard of tender consciences, a liberty may be thought fit to be indulged to any, His Majesty, according to his great wisdom and goodness, is best able to judge."

The Presbyterians were not slow in offering a defence of their own proposals, and a remonstrance against the replies. Some of Baxter's companions were for giving up further attempts in despair; but he, although not sanguine, determined to persevere, for reasons which deserve to be remembered. After calling to mind that Christians were commanded, if possible, to live peaceably with all men;—that failure in the negotiations going on was not inevitable;—and that no political apprehensions need be entertained respecting Nonconformists, because even if they were far more numerous than they really were, yet they abhorred "all thoughts of sedition and rebellion,"—he ended the vindication of his policy in the following noble words:—"I looked to the end of all these actions, and the chief things that moved me, next the pleasing of God and conscience is, that when we are all silenced and persecuted—and the history of these things shall be delivered to posterity—it will be a just blot upon us if we suffer as refusing to sue for peace; and it will be our just vindication, when it shall appear that we humbly petitioned for and earnestly pursued after peace, and came as near them for the obtaining it as Scripture and reason will allow us to do, and were ready to do anything for peace except to sin and damn our souls." [133] "Let God be judge between you and me," had been Oliver's words when he dismissed his last intractable Parliament, thus appealing to Heaven and posterity. To the same tribunal Baxter was prepared to remit his own controversy with his Anglican brethren.

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It looked at first as if the Presbyterians had really made some impression on their opponents; at least Clarendon was willing, that just then, they should think so. On the 4th of September he sent them the draft of a Royal Declaration of Indulgence. It did not satisfy Baxter; and he, therefore, wrote an elaborate reply, which was altered at the suggestion of some of his friends. [134] The reply took the shape of a petition to the King; yet it was such an immoderately long dissertation that the idea of Charles reading it through is perfectly amusing. No man except a guileless one could have written the paper, but the paper betrayed an utter want of tact and judgment.

THE CONTROVERSY.

An opportunity had arisen in the history of the Church of England for healing a wound which had been bleeding ever since the Reformation. A moment

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had arrived, calling upon the two great parties, into which that Church had been so long divided, to look at their differences in the light of wisdom and charity. But the history of mankind presents so many misimproved conjunctions of circumstances, that students of the past become familiar with lost opportunities, and are almost hardened against the sorrow which they inspire in the bosoms of more benevolent but less experienced persons. It is useless to speculate upon the probable issue, at the period under review, if the settlement of affairs had been approached in another kind of spirit. It is more practical to endeavour to understand how things really stood; and it will enable the reader to follow the controversy better, if we here pause for a moment to look distinctly at deep differences which lay around narrow discussions, and to show what were some of the salient points which presented themselves in relation to the larger question. The Presbyterians, with great confidence, carried their cause before the tribunal of Scripture, and showed from their own point of view, that for their fundamental doctrine of the official equality of all Christian ministers they had on their side the law of the New Testament; for they maintained that on its pages the terms Bishop and Presbyter are interchangeably used, and that no traces of a clerical hierarchy are to be found in the inspired records. Turning to Church history, from the third century to the seventeenth, they easily gathered proofs and illustrations of the growth of ecclesiastical usurpation; of the change of primitive Episcopacy into an elaborate system of spiritual despotism; of the rise of Archbishops and Patriarchs; of the pride, the power, the ambition, and the wealth of prelates; of the tyranny they exercised over civil society; of the corruptions of all kinds which gathered round the perverted institute; and of the tendency from bad to worse, which exists in all cases where men are not careful to preserve the simplicity of Christ. The state of England in the time of Archbishop Laud was a subject upon which they were able to dwell with great force. They showed the cruel oppression endured by holy men, at the hands of prelates, who sought to revive in this country the ceremonies renounced, and the doctrines condemned at the Reformation; and they insisted upon the obvious fact that the Church was then in danger of becoming thoroughly Romanized, under the pernicious culture of superstitious teachers. The Revolution

accomplished by the Long Parliament, the Presbyterians were prepared to defend as a political and ecclesiastical necessity, arising out of previous corruptions; whilst they pointed, with satisfaction and thankfulness, to the progress of spiritual religion under the Commonwealth, in spite of sectarianism, and the other evils of the times,—all of which they condemned, and deplored quite as much as any of the Episcopalian clergy could do. Ecclesiastical discipline in the parishes of England—for attempting which they had been so much blamed—the Presbyterians could show, rested on a principle conceded by Prelatists; and though it failed to produce all the fruits which its administrators could wish, yet it had turned many a town and village from a wilderness into a garden of the Lord. And when they contended against the Prelacy of former days, and protested against its restoration they distinctly stated, as we have seen, that they had no objection to a modified Episcopacy, to the rule of a Bishop, with his co-Presbyters, over dioceses of such dimensions as would admit of careful oversight and efficient rule; nor did they condemn all liturgies—not even the Book of Common Prayer, if certain things in the formularies and the rubric, which they and their Puritan fathers had complained of as superstitious, were now altered. The Presbyterian party, moreover, professed the most affectionate loyalty to the Crown, and the warmest attachment to the English Constitution; and in support of that profession could point to valuable services rendered by them at the Restoration. Lastly, they were in possession of incumbencies, to which they had been introduced according to the law of the land, some of them before the late troubles began. They had been educated at the Universities, had been many of them episcopally ordained, had led quiet lives in their respective parishes, had preached the Gospel for many long years, and had gathered round them large and affectionate congregations. Hence they urged, that for them now to suffer expulsion, to be turned adrift on the wide world without subsistence, to be silenced, and to have an end put to their spiritual influence, would be, in the sight of the world, of the Church, and of God, a burning shame.

The Episcopalians also, looking at the matter on the other side, had something to say. They prized the past History of the Church, and esteemed it of great importance to stand in the relation of successors to the Christian teachers of antiquity. Their theory was that the Church of England had not been

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established in the reign of Elizabeth or Henry, but had then been only reformed; that it constituted part of the *Catholic* Church, of which Rome had unjustly usurped the name, without possessing the attribute. Their formularies they traced back through mediæval times. For their doctrines they claimed the support of early Councils and Fathers. They pointed to the great antiquity of their orders, to the diocesan Bishops of the second century, and of every century since; and were prepared to argue, that the early prevalence of the distinction between Bishops and Presbyters is a presumptive proof of its having been sanctioned by apostolic authority. As to the evils flowing from Prelacy, the advocates of it would maintain that the abuse of a system is one thing, and the system itself another; that, although in the Middle Ages, in the Church of Rome, Prelacy had been made the instrument of immense mischief, this fact had nothing to do with the present controversy, the subject in dispute being not Popish Episcopalianism, but the Episcopalianism of the Reformed Church of England—the Episcopalianism of Ridley and Parker. Such Prelacy, the Bishops and their friends could irresistibly maintain to have been part and parcel of the law of England since the Reformation down to the Civil Wars; and, at the same time, they could point to the recognition of the rights of Spiritual Peers in the Constitution of this country from the early Saxon period—the legal or constitutional argument being the great bulwark of the Episcopalian cause, when treated as a social or political question. The ecclesiastical changes accomplished by the Long Parliament, were, in the eyes of Royalist and Anglican Churchmen, perfectly unconstitutional, illegal, and nugatory—for, in the accomplishment of them, one House had virtually done everything, the remnant of the Lords being mere ciphers; and the King, so far from having sanctioned the overthrow of the ancient Church, had protested against it, even unto death. With the Restoration, it was said again and again, came back the old Constitution of King, Lords, and Commons; and with that Constitution the Reformed Episcopacy and Prayer Book of England. The gravest and most forcible of all the allegations which the men now claiming their former position could bring against their opponents was, that they, in their turn, had been as exclusive as it was possible for any class to be. The Presbyterians, in the day of their power, had shown no consideration whatever for their Episcopalian neighbours. They had ruled with a high hand, and those who differed from them had experienced no mercy. They had proscribed the Prayer Book, and had

vilified it in all kinds of ways—that very Prayer Book which now, with certain alterations, they would not decline to use. They had persecuted some of the very persons to whose candour and generosity they now appealed; also, they had been Commissioners for casting out scandalous ministers, and had assisted to expel some, from whom now, they were asking the privilege of continued ministration, with its emoluments, as an act of strict justice, or, at least, of reasonable favour. Besides, the Anglicans charged the Puritans with narrow-mindedness, with sticking at trifles, with making mountains of mole-hills, with cherishing scruples about points which involved no principle—in short, with being under the influence of prejudice and obstinacy. And then, beyond all other things which separated Episcopalians from their brethren, was a certain element of feeling in some—not in Sheldon, but in Cosin and Thorndike, and Heylyn,—which gave a mystical tinge to their views of matter in relation to mind, and which was the soul of their distinctive sacramental theology.^[135]

Such were the religious, theological, and ecclesiastical differences between the two parties, to which must be added strong political antagonism for the last twenty years. That antagonism has been described in my former volumes. It will reappear in these.

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Thus the two parties looked upon the question in dispute from their own point of view, influenced by past circumstances and by personal prejudices, after the manner of most controversialists.

Both are chargeable with faults of reasoning, and faults of temper. Each made too much of little things: one in enforcing them for the sake of order, the other in objecting to them as sins against God. The strong despised the weak. The weak condemned the strong. Neither mastered the lessons of St. Paul.^[136] Yet the two were by no means equally blameable. More of Christian consideration and charity is discernible on the Puritan than on the other side, although even the Puritans had not attained to the exercise of that rare sympathy by which one man penetrates into the soul of another, making him as it were a second self,—by which process alone can a man subdue prejudice and win his brother over to that which he believes to be the truth.

It is necessary also to bear in mind this circumstance, that both parties were advocates for a national establishment of religion. Each party fixed its thoughts upon one society in which substantial uniformity of government and worship should be maintained—one society engrossing patronage and absorbing emoluments. It requires some effort for persons familiar only with modern phases of thought, thoroughly to enter into the ideas of the seventeenth century, and accurately to apprehend and estimate the views which were then current. Ecclesiastical controversy has undergone an immense change since that day; and could those who met together, as about to be described, now rise from the dead, it would be difficult for them to comprehend the position into which the Church questions of our age seem to be drifting.^[137]

THE CONTROVERSY.

Remembering all this we proceed with our history.

There was a house in the Strand known as Worcester House. It had belonged to the Bishops of Carlisle; it had been bestowed on the Bedford family; it had been transferred to the author of the *Century of Inventions*, whose family title of Marquis of Worcester, gave it its name; and it had been fitted up by the Long Parliament for the reception of the Scotch Commissioners. By a turn in the wheel of fortune, which, at the Restoration, brought about so many changes, this residence had come once more into the possession of the Marquis, and he had lent it to Lord Chancellor Clarendon, as a residence, without requiring "one penny rent." The mansion, over which had fallen such varying shadows—and which had been designed to accommodate the deputation in 1643 from the Presbyterians of Scotland—now appeared as the scene of important negotiations between the Court and the Presbyterians of England.

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WORCESTER HOUSE
DECLARATION.

Clarendon proposed a meeting of the two parties upon the 22nd of October. It was a time of great excitement in London, for the execution of the regicides—which will be noticed hereafter—had only just taken place; and, through the fortitude with which some of them had suffered, a reaction of feeling had arisen, and people had become disgusted with such bloody spectacles. His Majesty was present in the Chancellor's mansion, with the Dukes of Albemarle and Ormond, the Earls of Manchester and Anglesea, Lord Holles, and the Bishops of London, Worcester, Salisbury, Durham,

Exeter,^[138] and Lichfield and Coventry. Presently were ushered into the apartment—fitted up in the style of the seventeenth century, with costly furniture and superb decorations, for Clarendon lived like a prince—the following Presbyterian Divines—Reynolds, Spurstow, Wallis, Manton, Ash, and Baxter. Their Puritan habits contrasted obviously with the costume of the Courtiers and the Bishops, and would be eyed, we imagine, rather oddly by the pages as they announced their entrance. No disputing was to be allowed; the Lord Chancellor was simply to read over his revised Declaration, and as he advanced, the two parties were simply to declare their approbation or their disapproval. The particulars of the interview are too long for insertion; but we may observe, that after many comments upon Clarendon's paper, and after much conversation respecting the subjects of Episcopal power, and of reordination, the Chancellor drew out of his pocket another paper, observing, that the King had been asked by Independents and Anabaptists to grant toleration. He therefore proposed to insert in the document which had been read, a clause to the effect, that persons not members of the endowed Church should be permitted to meet for religious worship, provided they did not disturb the public peace. A pause followed. "The Presbyterians all perceived," says Baxter, "that it would secure the liberty of the Papists." Dr. Wallis whispered to him to be silent, and to leave the Bishops to give an answer. But the eager disputant could not hold his tongue. "I only said this," he reports, "that this reverend brother, Dr. Gunning, even now speaking against sects, had named the Papists and the Socinians. For our parts, we desired not favour to ourselves alone, and rigorous severity we desired against none! As we humbly thanked His Majesty for his indulgence to ourselves, so we distinguish the tolerable parties from the intolerable. For the former, we humbly crave just lenity and favour; but, for the latter, such as the two sorts named before by that reverend brother, for our parts we cannot make their toleration our request. To which His Majesty said, that there were laws enough against the Papists; and I replied, that we understood the question to be, whether those laws should be executed on them, or not. And so His Majesty brake up the meeting of that day."^[139]

No doubt Charles looked as grave and as gracious as possible whilst he talked at Worcester House with Baxter and his brethren; and, although His Majesty

alarmed his auditors by a reference to laws against Papists, he took care not to betray the utter hollowness of his professed zeal for Protestantism. So far as he had any sincere desire to grant an indulgence, it was not on behalf of Protestants, but on behalf of other persons whom Protestants most disliked. Puritans were to him troublesome people, whom he had to keep quiet as long as he could; and, in the meantime, he seems to have wished to use them as tools for producing the liberty which the Papists craved.

Baxter went home dejected; two or three days afterwards, however, as he was walking in the City, amidst the din of carts and coaches, and the confusion of London cries, he heard a boy bawling

WORCESTER HOUSE
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at the top of his voice, that he had on sale copies of the King's new Declaration. He bought one of the sheets, and stepped into a shop to peruse the contents. The King, he found, commended in the highest terms the Church of England; and also acknowledged the moderation of the Presbyterians; he then proceeded to enumerate a series of concessions, which he had not the least doubt that the present Bishops would think "just and reasonable," and "very cheerfully conform themselves thereunto:"—That none should be presented to Bishoprics but men of learning, virtue, and piety; that suffragans should be appointed in the larger Dioceses; that the censures of the Church should not be inflicted without the advice and assistance of Presbyters, who should aid Bishops, Chancellors, and Archdeacons, in their respective offices; and that Confirmation should be rightly and solemnly performed:—that no Bishop should exercise any arbitrary power; that the Liturgy should be revised; but, that until the revision was effected, the unexceptionable portion of it should be used; that no existing ceremonies in the Church should be at once formally abolished; but, to gratify the private consciences of those who were grieved with the use of some of them, they should be dispensed with for the present; the final decision being left to a national Synod, to be duly called after a little time, when mutual conversation between persons of different persuasions should have mollified those distempers, abated those sharpnesses, and extinguished those jealousies which made men unfit for such consultation. The sign of the cross in baptism, bowing at the name of Jesus, the use of the surplice, and the oath of canonical obedience, were things not to be enforced, but to be left to individual opinion and choice. The King concluded, by renewing his Declaration from Breda, for the liberty of tender consciences, and by

expressing hopes for the unity of the Church, the prosperity of religion, and the peace and happiness of the nation.^[140] This Declaration went a long way towards meeting the views of moderate Presbyterians, and seemed at first to supply a basis on which a scheme of comprehension might have been reared. It is expressed in a tone utterly different from that adopted by the Bishops. It might well lead some Presbyterians to believe that the hour of union had come. Baxter found that suggestions made by himself and his friends, at the Worcester House Conference, had been adopted in the Declaration; and, on the whole, he felt pleased with the document. On the day that it appeared, he received from the Lord Chancellor an offer of a Bishopric. He replied, that if this offer had come before his seeing the Declaration, he should have declined it at once; now, however, he said, "I take myself, for the Churches' sake, exceedingly beholden to his Lordship for those moderations; and my desire to promote the happiness of the Church, which that moderation tendeth to, doth make me resolve to take that course which tendeth most thereto; but whether to take a Bishopric be the way I was in doubt, and desired some farther time of consideration; but if His Lordship would procure us the settlement of the matter of that Declaration, by passing it into a law, I promised him to take that way in which I might most serve the public peace." Soon afterwards Baxter made up his mind to decline the proffered honour, partly on personal, partly on ecclesiastical grounds.^[141] He tells us, indeed, that he disapproved of the "Old Diocesan frame," and feared that, as a Bishop, he might have work to do contrary to his conscience; but he also particularly expresses the feeling that the Episcopal office would draw him aside from those works of theological authorship, for which he believed he had a special fitness, and a divine mission.

Reynolds, at the same time, was offered the Bishopric of Norwich, and accepted it. For this he was then reproached, and has often since been severely blamed. Yet Baxter persuaded him to take this step, advising him to declare, that he did so upon the terms of the Royal Declaration, and that he would resign if these terms were withdrawn. Reynolds read to his friend a paper which he had prepared for His Majesty's hands, stating that he believed a Bishop was only a chief Presbyter, and ought not to ordain or govern but with the assistance of his co-Presbyters,—such being the

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doctrine according to which he was prepared to take his seat on the Bench. Whether he actually did present such a paper, Baxter could not tell. ^[142]

The ecclesiastical weather had suddenly changed. The clouds were breaking. The sun began to shine. Conciliation had become the order of the day.

1660.

Calamy was offered the Bishopric, and Bates the Deanery of Lichfield; Manton the Deanery of Rochester, and Bowles that of York. Other preferments were left vacant for awhile, professedly with the hope that they might be accepted by Presbyterians. The see of Carlisle was intended for Dr. Gilpin,^[143] and a fortnight after the Declaration had been issued, Diplomas were conferred at Cambridge, by Royal mandate, on Bates, Jacomb, and Wilde.^[144]

To reciprocate these friendly approaches, some Presbyterians, but not those who had met at Worcester House, prepared an address to His Majesty. ^[145]

They craved leave to profess, that though all things in the frame of government were not exactly to their minds, yet His Majesty's moderation had so great an influence upon them, that they had determined to use their utmost endeavour to heal the breaches, and to promote the peace and union of the Church. They begged of His Majesty, that *reordination* and the *surplice* in Colleges might not be imposed, and they hoped God would incline his heart to gratify their desires.^[146] The Address was presented on the 16th of November by Samuel Clarke, of St. Bennett Fink. This fair weather was of short continuance. The sun was soon concealed again. The clouds returned after the rain. Suspicions respecting the sincerity of the Declaration increased; from the beginning, some had been dissatisfied with it. The treatment it finally received from the Commons, under the exercise of Court influence, shows the real character of the whole affair; we must therefore enter the House, and watch its proceedings.

Nothing could exceed the gratitude expressed by the Speaker of the House of Commons, in the name of the members, for His Majesty's Declaration.^[147]

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Yet, three days before he did so, it had been significantly proposed that the Book of Common Prayer should be used in the daily worship of the House, little objection being made to this proposal. The prevalent opinion appeared

to be in favour of a form, and "the Speaker excused the minister from any more service, till the form was ordered."^[148]

A Bill, founded upon the Declaration, followed upon the 28th of November. The arguments adduced in its favour were to the effect—that without a Bill the Declaration would be ineffective; that it was fitting to alter many things in the Liturgy; that the present business was of the highest concernment to the glory of God and the peace of the nation; that the ceremonies of the Church were not of such importance as to justify another war; that some indulgence ought to be granted to those who "ventured their lives for the good of all;" and that the passing of the measure would not vex the Bishops at all, because they were with the King at the framing of the Declaration. Prynne thought that it would be astonishing if, after thanking the King for issuing the document, the House rejected the Bill, which had been founded upon it. But many, who approved of the Declaration, spoke against the Bill. They said it was contrary to precedent to turn a Royal Edict into an Act of Parliament; that it was not the King's desire; and that it would dissatisfy the Roman Catholics. Secretary Morrice is reported to have spoken ambiguously, and to have concluded his speech by advising that the Bill should be laid aside: 183 voted against it, and 157 for it.^[149]

The Declaration, it must be acknowledged, was so obviously a temporary expedient, and of so provisional a nature, that there seemed room to oppose a Bill like this, framed "for making the King's Majesty's Declaration touching ecclesiastical affairs effectual." Preparatory steps needed to be taken before a complete Church for the future could be established. Yet, if the leaders of the House had been sincerely bent upon a conciliatory policy, they might easily have contrived some measure for that purpose.

1660.

The course pursued by the Commons may be explained. Out of doors a strong feeling was making itself heard in favour of such Episcopalianism as existed in the days of Elizabeth. At the moment of the King's return much talk of moderation had been heard from politic men in the Church. Even Sheldon then spoke of charity when preaching before the King in the month of June:^[150] but now the tone of the principal clergy altered, and before the end of the year a specimen of the change occurs in a

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consecration sermon, in which it is declared that "the work of the Bishops was not so much to convert infidels as to confute heretics and schismatics."

[151] In addition to the growing strength and boldness of the Episcopalians, there was another cause for the defeat of the Bill. Clarendon states that, in the summer, when the Grand Committee entered upon the settlement of the question of religion, "*the King desired no more than that they should do nothing, being sure that in a little time he should himself do the work best;*"

[152] he wished to have the matter under his own control; and Secretary Nicholas, writing to Sir Henry Bennet, informed him that Parliament would meet with better hope of success because the King had "removed the main bone of division, by *taking into his own hand the great point of Church Government.*" [153]

It is plain that Charles felt an aversion to any Act of Parliament whatever upon the subject; it is also plain that the Commons were in some way induced to act accordingly. "When the Parliament," says the noble historian, "came together again after their adjournment they gave the King public thanks for his Declaration, and never proceeded further in the matter of religion; of which the King was very glad; only some of the leaders brought a Bill into the House 'for the making that Declaration a law,' which was suitable to their other acts of ingenuity, to keep the Church for ever under the same indulgence, and without any settlement; which, being quickly perceived, there was no further progress in it." [154]

Who were the instruments commonly employed to influence the House, so as to bring it into unison with Royal designs, the same authority explains, when he says, that from the Restoration, he and Lord Southampton, by desire of the King, "had every day conference with some select persons of the House of Commons, and with these they consulted in what method to proceed in disposing the House, sometimes to propose, sometimes to consent, to what should be most necessary for the public, and by them to assign parts to other men whom they found disposed and willing to concur in what was to be desired." [155]

There is then no room for believing otherwise than that the Chancellor, in agreement with the King, did what he could to influence members to vote against the Bill for turning the Royal Declaration into law. Consistently with this inference we find Secretary Morrice speaking against it; and Secretary Nicholas informing Sir Henry de Vic that the Bill for passing the King's late Declaration had "happily been thrown out." [156] The circumstance, at that juncture, of the elevation to the Bench of Matthew

Hale, who had acted on the Committee for framing the Bill, tallies with other proceedings; and the whole shows that the policy of the Court was to get rid of the Bill, and with it the obligations incurred by the Declaration. For, it cannot be said, that the question before the House was a mere question of form, and that opposing the Bill did not necessarily imply opposition to the scheme which it embodied; since all the promises held out in the Declaration were set at nought by the subsequent proceedings of the King and his Minister.

Charles, there can be no doubt, simply wished to keep the Presbyterians quiet as long as possible, to get a few of their leaders into the Episcopal Church, and to employ others, to whom he held out hopes of toleration, as tools for securing liberty to the Papists.^[157] Clarendon, I believe, sincerely desired, as a staunch Episcopalian, to restore the Establishment upon its old basis—nor do I see any reason to question, that he also sincerely desired to bring Baxter and others within its pale. With the purpose of winning Presbyterians over to Episcopacy he was willing to make a few concessions. But, of any genuine wish to base the Church upon the principles laid down in the Declaration, there is no proof; and such a wish is inconsistent with his known attachment to Prelacy. He had, it is true, ever since the return of Royalty became probable, shown great moderation in his behaviour to the Puritan party; but this circumstance is quite consistent with the idea of his simply proposing to bring them over to Episcopalianism. Looking at the opinions of the prelates already expressed, and afterwards maintained at the Savoy, is it possible that the Declaration could have been designed as a *bonâ fide* basis of a Church settlement? The conclusion is inevitable, that Clarendon aimed at accomplishing his object by such a method as statesmen deem to be justifiable diplomacy.^[158] After the fate of the Declaration in Parliament, the aspect of affairs changed in reference to Presbyterians. Hopes once raised were dashed to the ground. The overtures of the Court were seen to be hollow, and the preferments offered were declined. Reynolds, nevertheless, retained the Bishopric of Norwich.

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CHAPTER VI.

The treatment of the men who had been foremost in what the Royalists called the Great Rebellion, affords a further and a critical instance of the temper of Parliament. At first, and for some little time afterwards, the majority supported a large measure of oblivion. Not more than seven persons were excepted from the Act of Indemnity. But the number speedily increased to twenty-nine.^[159] Afterwards it was proposed that all who sat on the trial of Charles I., and had not surrendered according to a late Proclamation, were to be excluded from the Act of Oblivion,—a point carried without any division. The Lords made the Bill more stringent. They determined to exclude all who had signed the death-warrant, or were sitting in the court when sentence was pronounced, whether they had submitted since the Restoration or not; to these the Lords added the names of Hacker, Vane, Lambert, Haselrig, and Axtell. Yet they struck out a clause, reserving Lenthall and others for future punishment. The Commons had been slow with the Act of Indemnity, notwithstanding the salvation of many of their old friends was involved in it. The Lords were slower still, and both had to be spurred on by Royal messages. When the Bill, in its increased severity, came down from the Lords, the Commons resisted the sweeping amendment which excluded all the members of the High Court of Justice from the general amnesty. They pleaded that such an exclusion would violate the promise from Breda, and the terms of the recent Proclamation. Repeated conferences took place between the Houses, and it is visible that the spirit of resistance to the vindictiveness of the Lords gradually gave way, and that the violent Royalists were gaining ground amongst them. The Commons entered into a compromise. Most of the judges were excepted; others were reserved for lesser penalties. About twenty persons, besides those who had pronounced sentence in the High Court of Justice, were incapacitated for any civil or military office.^[160]

THE REGICIDES.

The regicides being excluded from the Act of Oblivion, some of them were tried at the Old Bailey, in the month of October, 1660. Amongst those who then stood at the bar were four persons who have appeared, more or

less conspicuously, in connection with the Ecclesiastical History of the Civil Wars and the Commonwealth.

Major-General Harrison, the famous Republican, who, in the Little Parliament had opposed the tithe system, who had plunged deeply into the study of prophecy, had been for some time expecting the reign of the saints, and had been involved in the revolutionary schemes of the Fifth Monarchy men, was arraigned for having sat upon the trial of his "late Sovereign Lord King Charles I., of ever blessed memory," and for having signed and sealed the warrant for his execution.^[161] He was found guilty, and condemned to die. With his political fanaticism there blended other feelings; and the propriety of his demeanour in prison was such, that the woman, who cleaned his cell, and kindled his fire, declared she could not conceive how he deserved to be there, for he was a man "full of God—there was nothing but God in his mouth—and his discourse and frame of heart would melt the hardest of their hearts."^[162] He died expressing transports of religious joy.

1660.

Hugh Peters, the military Divine, who had beat up for recruits at country market crosses, and carried messages of victory from the Army to the Commons, was now condemned for stirring up the soldiery to demand the Monarch's execution, and for giving publicity to the Proclamation for the High Court of Justice. As he was going to execution, he replied to a person—who abused him as a regicide—"Friend, you do not well to trample upon a dying man, you are greatly mistaken. I had nothing to do with the death of the King."

THE REGICIDES.

Peters, although coarse, vulgar, and violent, has been painted in darker colours than he deserves. It is certain that he approved of the execution of the King; but whether his complicity in the deed was legally proved is another question. That he was one of the masked headsman on the 30th of January, 1649, is an idle tale; and of the charges against his moral character no adequate proof has ever been adduced. Without any respect for his memory I wish to do him justice. He has been commonly represented by Royalists as an unprincipled and cruel villain, steeped in vice, and laden with crime. The facts of his history do not support that indictment; they

rather show him to have been a sincere, misguided, and unhappy enthusiast.
[163]

Isaac Pennington—who presented to the Long Parliament in 1640 the famous "Root and Branch" Petition of the London citizens—was at this time also charged with compassing the Monarch's death. The Lord Chief Baron alluded to him in merciful terms, and although found guilty, his life was spared through the intercession of influential friends. He died a prisoner in the Tower, December the 17th, 1661. His son Isaac had embraced Quakerism; and a daughter of his wife, by a former husband, became the wife of William Penn.

By the side of Isaac Pennington stood another prisoner with whom we are already acquainted—1660. Henry Marten.^[164] Of his Revolutionary opinions, and of his active part in the Whitehall tragedy, there could be no question—perhaps he had as much to do with it as any one; yet after he had been convicted, he threw himself upon the mercy of Parliament. In the petition which he presented he observed, with the careless wit which no misfortune could subdue, that he had surrendered himself upon the Restoration in consequence of the King's "Declaration of Breda," and that "since he had never obeyed any Royal proclamation before this, he hoped that he should not be hanged for taking the King's word now?"^[165] The Commons do not appear to have attempted anything in his favour; but his cause received warm advocacy when it came before the Lords. With a dash of invincible humour, the Republican pleaded, that since the honourable House of Commons, which he before so idolized, had given him up to death, the honourable House of Peers, which he had so much opposed, especially in their power of judicature, was now left as a sanctuary to which he fled for life. He had submitted himself to His Majesty's gracious Proclamation, he took hold of it, and hoped to receive pardon through it. He now submitted himself to His Majesty and to the House for mercy.^[166] Marten obtained what was denied to men more worthy; but although his life was spared, he spent twenty years in prison, and expired in Chepstow Castle, at the age of 78.^[167]

The growth of vindictive loyalty was rapid; it rose to an alarming height, and assumed a frantic mien, when, after re-assembling in November, the

Commons resolved, that the carcasses of Oliver Cromwell, Henry Ireton, John Bradshaw, and Thomas Pride, whether buried in Westminster Abbey or elsewhere, should with all expedition be taken up, drawn upon a hurdle to Tyburn, there hanged up in their coffins for a time, and afterwards buried under the gallows. ^[168]

Leaving this horrid subject, we notice that at the close of the year a consecration of new Bishops took place. Of the nine prelates remaining alive at the time, Juxon, who had been Bishop of London, was translated to Canterbury; Frewen, who had been nominated by Charles I. to the see of Lichfield and Coventry, was promoted to the Archbishopric of York; and Duppa, who had held the see of Salisbury, was transferred to the diocese of Winchester. To the Bishopric of London, vacated by the translation of Juxon, Sheldon succeeded—a reward considered due for unceasing vigilance over Episcopalian interests during the Commonwealth. Morley, who had attended Charles at the Hague, was appointed Bishop of Worcester; and Henchman, who had aided His Majesty's escape after the battle near that city, became Bishop of Salisbury. ^[169]

NEW BISHOPS.

Seven new prelates together were consecrated at Westminster on Sunday, the 2nd of December:—Cosin, the patristic scholar, who had been chaplain in the household of Queen Henrietta,—as Bishop of Durham; and Walton, the editor of the *Polyglott*,—as Bishop of Chester. Gauden also was one of the number. Though he had remained in Cromwell's Broad Church, it is said that upon all occasions he had taken worthy pains in the pulpit and by the press to rescue His Majesty and the Church of England, from all mistaken and heterodox opinions of several and different factions, as well as from the sacrilegious hands of false brethren whose scandalous conversation was consummate, in devouring Churchlands, and in impudently making sacrilege lawful.

He received for these services the Bishopric of Exeter; ^[170] and at the same time there was consecrated with him—as Bishop of Carlisle—Richard Sterne, who had suffered much from the Presbyterians, and had attended on the scaffold his friend, Archbishop Laud. Laney designated to Peterborough, Lloyd to Llandaff, and Lucy to St. David's, complete the seven.

1660.

Sancroft, then domestic chaplain to Bishop Cosin, preached the sermon, in which he defended diocesan Episcopacy from the words of St. Paul to Titus: "For this cause left I thee in Crete, that thou shouldest set in order the things that are wanting, and ordain elders in every city, as I had appointed thee." He who appointed him, said the preacher, was "not a suffragan of St. Peter," "not a disciple of Gamaliel," "not a delegate of the civil magistrate," but "an apostle of Jesus Christ." And he who was appointed was "a single person; not a consistory of Presbyters, or a bench of elders," and his office was to supply defects—to correct what might be amiss—and to exercise the power of ordination; "our most reverend Titus" being "a genuine son and successor of the apostles." The theological reader will infer at once what were the arguments under each head, and he may judge of the style and spirit of the discourse from the following passage—"And blessed be this day (let God regard it from above, and a more than common light shine upon it!) in which we see the Phoenix arising from her funeral pile, and taking wing again; our Holy Mother, the Church, standing up from the dust and ruins in which she sate so long, taking beauty again for ashes, and the garments of praise for the spirit of heaviness, remounting the Episcopal throne, bearing the keys of the kingdom of heaven with her, and armed (we hope) with the rod of discipline; her hands spread abroad, to bless and to ordain, to confirm the weak, and to reconcile the penitent; her breasts flowing with the sincere milk of the word, and girt with a golden girdle under the paps, tying up all by a meet limitation and restriction to primitive patterns, and prescripts apostolical. A sight so venerable and august, that methinks, it should at once strike love and fear into every beholder, and an awful veneration. I may confidently say it. It was never well with us, since we strayed from the due reverence we owed to Heaven and her; and it is strange we should no sooner observe it, but run a maddening after other lovers that ruined us, till God hedged in our way with thorns, that we could no longer find them, and then we said, I will go and return to my former husband, for then was it better with me than now."^[171]

Eight Bishops of the Irish Church were still living. Bramhall was translated to the primacy as Archbishop of Armagh. Nominations to vacant Sees followed; including that of Jeremy Taylor to the diocese of Down and Conner, upon Henry Lesley being translated to Meath; but his consecration was delayed until the 27th of January, 1661, when ten new Bishops, and

NEW BISHOPS.

two old ones promoted to the Archiepiscopate, were solemnly set apart in Saint Patrick's Cathedral, Dublin. The consecration of so many at one time has been pronounced, "an event probably without a parallel in the Church."

[172]

We have crossed, almost unconsciously, from England to Ireland. Between lies the Isle of Man; and this reminds us of what was going on there, a short time before the remarkable consecration at Dublin. In the autumn of 1660, Commissioners were engaged in reducing to order ecclesiastical affairs. They summoned the clergy before them to exhibit their letters of orders and of presentation; they enforced the use of the Prayer Book, and of catechizing, the keeping also of feasts and fast days, including the 30th of January, the day of King Charles' martyrdom, and the 15th of October, the day of Earl James' martyrdom. The observance of Lent was afterwards enjoined, with the customary penalties and with provision for dispensations. Parish discipline was established according to canon law; and, without any ejection or any opposition, the portion of the Church existing in that island submitted at once to Episcopalian rule. [173]

1660.

Returning to England, we remark that since certain old laws were deemed by Churchmen as still in force, notwithstanding the legislature of the last twenty years, they constituted an arsenal of weapons, with which magistrates and others could, if they were disposed, grievously disturb their Puritan neighbours. The *Canon law* prohibited dissent from the Church under pain of excommunication. The same penalty was threatened against all who affirmed that ministers not subscribing to the form of worship in the Communion Book, might "truly take unto them the name of another Church not established by law," or that religious assemblies other than such as by the law of the land were allowed, might rightly challenge the name of true Churches, or that it was lawful for any sort of ministers or lay persons, to join together to make ecclesiastical rules or constitutions without the King's authority. No minister, without license of the Bishop, could presume to hold meetings for sermons. As all conventicles were hurtful to the state of the Church, no ministers or other persons were to assemble in any private house or elsewhere for ecclesiastical purposes, under pain of excommunication.

PERSECUTION.

[174] As to *Statute law*, the 1 Eliz. c. 2, required all persons to resort to

Church every Sunday and every day ordained a holiday. The penalty of disobedience was a shilling fine, with Church censure for every offence. The 23 Eliz. c. 1, made the fine twenty pounds a month, and the offender who persevered for twelve months had to be bound to good behaviour with two sureties in two hundred pounds, until he conformed. To keep a schoolmaster who did not attend Church, incurred a monthly fine of ten pounds. The 29 Eliz. c. 6, empowered the Queen, by process out of the Exchequer, to seize the goods and two parts of the real property of offenders, upon default of paying their fines. The 35 Eliz. c. 1, made the frequenting of conventicles punishable by imprisonment. Those who after conviction would not submit were to abjure the realm. Refusal to abjure was felony, without benefit of clergy.^[175]

These laws, however, do not suggest a full idea of all the inconvenience and suffering to which Nonconformists, before the Civil War, had been exposed. That we may understand fully the circumstances in which they were placed, we must add the activity of spiritual courts, the jurisdiction of the High Commission, and the indefinite powers of the Crown. Nor do these laws, statute and canon, exhibit all the forces of oppression which continued to exist after the Restoration, and before the passing of the Act of Uniformity—forces which could be brought into play at any moment, and in any situation. Spiritual courts, it is true, had not yet been re-established; the High Commission no longer existed. The power of the Crown had received a check; but in addition to laws prohibitory of religious gatherings outside the Establishment, there stood the law of Royal Supremacy, which could not be taken by Papists, and was objected to by some Protestant Dissenters. The statute, which had sent More and Fisher to the block, brought sorrow upon a large number of unknown persons, who, on a different principle from that adopted by those sufferers, objected strongly to Royal Supremacy over causes ecclesiastical as well as civil. Their resistance and their trouble, together with the perplexity of magistrates respecting them, are illustrated in the following extract of a letter written from Bristol, in the autumn of 1660:—"Be pleased to take notice that no Quaker, or rarely any Anabaptist, will take these oaths; so that the said oaths are refused by many hundreds of their judgment, being persons of very dangerous principles, and great enemies in this city to His Majesty's royal person, government, and restoration—and some of them [are] petitioners to

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bring his martyred Majesty, of blessed memory, to his trial,—and will undoubtedly fly out again and kick up the heel against his sovereign authority, should it be in their power, therefore [they] are not worthy His Majesty's protection, refusing to swear loyalty to him. Besides, their said refusal, if suspended or connived at, will cause a general discontent and repining in, by those His Majesty's loyal subjects who have already taken, or are to take the said oaths; for 'tis already the language of many of them, and these not a few, 'Why should any oaths be imposed on or required of us? and the Quakers, Anabaptists, and others, His Majesty's enemies, be gratified with a suspension thereof.' And 'tis the answer of others, 'If the Quakers, Anabaptists, and others of dangerous practices and principles do, or are enforced to, take the said oaths, then will we. In the interim, we want the same liberty which is to them afforded.'" The writer next asks instructions to guide him in his perplexity. "Sir," he continues, "these, I had almost said, monsters of men with us are, yea more numerous than in all the West of England; and here they all centre and have their meetings, at all seasons till 9 of the clock at night, and later;—sometimes about 1,000 or 1,200 at a time,—to the great affrightening of this city as to what will be consequent thereof if not restrained, or should a suspension of the said oaths be to them given."^[176]

Many persons had to suffer severely. In Wales the fire was first kindled, and burnt most fiercely. Before the King landed at Dover the Episcopalians in the Principality busied themselves in persecuting Quakers. Several Nonconformists were imprisoned at Caermarthen, and the gaol at Montgomery was so filled with them that the gaoler had to pack them into garrets. Pitiful stories, with some exaggerations perhaps, are told of sufferers in the May and June of 1660, who were dragged out of their beds to prison, or like stray cattle driven into parish pounds, or led in chains to the Quarter Sessions.^[177] If violence with so wide a sweep did not rage on our side the border, the confessors for conscience' sake in England were nevertheless numerous enough. In that transitional state of things all sorts of irregular proceedings took place. Even Philip Henry could not preach in quiet, but was presented in the month of September, at the Flint assizes, for not reading the Common Prayer. John Howe also fell into trouble for what he had said in the pulpit; and it is not generally remembered that long

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before the Uniformity, the Conventicle, and the Five Mile Acts were passed, John Bunyan was cast into Bedford gaol.^[178] In England, as well as in Wales, many Quakers and Anabaptists suffered a loathsome imprisonment. If, in London, Nonconformity was strong, in the provinces it was rapidly becoming otherwise. Bishops were busy; Episcopalian Rectors were being restored, and Loyal Corporations were getting more and more noisy in their demonstrations of zeal for Church and Crown. Grey-headed squires, and nobles in Cavalier plumes and doublets, with their courtly dames in rustling silks, and with their children in bright-coloured sashes, and attended by servants clothed in gay liveries, sat with joy before the crackling yule log that merry Christmas; and when the boar's head and the roast beef had been despatched, they related stories of their virtuous and devout King,^[179] and told their sons and daughters of the gay doings and merry games of their own young days. The mistletoe hanging in the hall corresponded with the holly suspended in the Church; and the service, which members of these merry parties had heard that Christmas morning for the first time, as they sat in the old family pew, sustained worthy association with the pleasant festivities of the afternoon and evening. Puritanism had been to them a religion of restraint, and now the return of Bishops and Prayer Books brought freedom and joy. Of course there were sentiments of a far higher order cherished at that season, but the existence of much of the humbler feeling now described may be taken for granted.

Other ceremonies besides those immediately connected with Christmas time appeared that winter. Newspaper letters from Exeter, dated the 29th of December, 1660, announced the joyful welcome of Dr. Gauden, the new Bishop of the diocese, who had been met by most of the gentry, to the number of one hundred and twenty, and escorted by the High Sheriff, with nearly five times as many horse; the Mayor and Aldermen in scarlet and fur, waiting on His Lordship, amidst the ringing of bells. A week later, Londoners saw, in the public prints, a glowing account of a public Episcopalian christening at Dover—a most significant service in a town where Anabaptists were numerous. So great a concourse, it is reported, had seldom been seen, the Mayor being obliged to make way that the children might reach the font, which had not been used for nearly twenty years, and

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had now, by the care and prudence of the Churchwardens, been set up for this solemnity.

The reaction against the Puritanism of the Commonwealth, visible in so many ways, received a fresh impulse from the insurrection of Venner and his associates. This fanatical wine-cooper had been before laying plots: in the month of April, 1657, he and his confederates, after conferring at a Meeting House in Swan Alley, had assembled on Mile End Green, when Cromwell sent a troop of horse, and seized him, with twenty other ringleaders. The cause of Fifth Monarchism, during the season of confusion consequent upon the resignation of the Protector Richard, reappeared, and made itself heard through its irrepressibly loquacious advocates, Rogers and Feake. The revival of their tenets, in connection with a renewal of pure Republicanism under Sir Henry Vane and his party, was of short duration; and there is nothing noticeable, in connection with this form of religious sentiment, until Venner's second outbreak.

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Instead of narrating that incident in words of my own, I shall simply use a letter, written respecting it in the midst of the excitement. The circumstances mentioned at the close, although below the dignity of history, are too amusing to be omitted.

The writer is Sir John Finch; he directs his letter to Lord Conway:—"My dearest and best Lord,—As for news, my last acquainted you with the Duchess of York's coming to Court. I forgot to tell you that the child was christened Charles, and created Duke of Cambridge, and that His Majesty in person and the Duke of Albemarle were godfathers, and my Lady of Ormond personated the Queen for godmother. Our great news here is, that since His Majesty's departure to Portsmouth there have been two great alarms. Upon Sunday night about fifty Fifth Monarchy men, at ten o'clock, came to Mr. Johnson, a bookseller at the north gate of St. Paul's, and there demanded the keys of the Church, which he either not having, or refusing, they broke open the door, and, setting their sentries, examined the passengers who they were for, and one with a lantern replying that he was for King Charles, they answered that they were for King Jesus, and shot him through the head, where he lay as a spectacle all the next day. This gave the alarm to the mainguard at the Exchange, who sent four files of

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musketeers to reduce them. But the Fifth Monarchy men made them run, which so terrified the City, that the Lord Mayor in person came with his troop to reduce them. Before he arrived they drew off, and at Aldersgate forced the constable to open the gate, and so marched through Whitecross Street, where they killed another constable, and so went into the woods near Highgate, where being almost famished, on Wednesday morning, about five of the clock, fell again into the City, and, with a mad courage, fell upon the guard and beat them, which put the City into such confusion, that the King's Life and all the City regiments advanced against them. These forty men beat the Life Guard and a whole regiment for half an hour's time. They refused all quarter; but at length, Venner, their captain, a wine-cooper, after he had received three shots, was taken, and nine more, and twenty slain. Six got into a house, and refusing quarter, and with their blunderbusses defending themselves, were slain. The Duke and the Duke of Albemarle, with 700 horse, fell into the City; but all was over before they came. This, my Lord, is strange, that all that are alive, being maimed, not one person will confess anything concerning their accomplices, crying that they will not betray the servants of the Lord Jesus to the kings of the earth. Ludlow Major is committed close to the Tower for saying he would kill the King. These things have produced their effects: that no man shall have any arms that are not registered; that no man shall live in the City that takes not the Oath of Allegiance; that no person of any sect shall, out of his own house, exercise religious duties, nor admit any into his house under penalty of arrest, which troubles the Quakers and Anabaptists, who profess they knew not of this last business. And, besides all this, His Majesty is resolved to raise a new Army, and the general is not known; but I believe it will be the Duke of Albemarle, rather than the Duke of York or Prince Rupert, in regard he hath the office by patent, and in regard of his eminent services. The Duke took it very unkind of my Lord Chamberlain that upon information of Prince Rupert's attendants, his Lordship, in the Duke's absence, searched his cellar for gunpowder, it being under the King's seat at the Cockpit, and the Duke with his own hands so cudgelled the informer that he hath almost maimed him; and Prince Rupert assured the Duke that he so resented it, that he was not content to put away his servant, but offered to fight any person that set the design on foot. However, the business is not made up, though my Lord Chamberlain told the Duke he had done over hastily. The Princess Henrietta is sick of the measles on

shipboard; but out of danger of wind. Dr. Frasier hath let her blood; I hope with better success than the rest of the royal blood have had."[\[180\]](#)

It may be mentioned, that this insurrection had been hatched at the same place as the former one; and the conspirators are said to have marched first to Rogers' old quarters at St. Thomas the Apostle, to join nine of the party, and thence to Whitecross Street. It came as the expiring flash of a fanatical creed, which had blended itself with Puritanism, greatly to the detriment of the latter; and, dying out rather slowly, it left behind the quiet element of Millenarianism, which, at the present day, we find largely infused into the tenets of a considerable class of Christians.

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Venner's explosion occurred on the 6th of January; but it is remarkable, that four days before that date, an order was issued from Council, forbidding the meetings of Anabaptists, Quakers, and other sectaries, in large numbers, and at unusual times, and restricting their assembling to their own parishes. Rumours of plots are alleged as reasons for the decision thus adopted upon the 2nd of January; but that decision plainly shows, that ere the insane enthusiasts of Coleman Street had fired a shot, whatever liberty had been conceded at Worcester House was now to suffer great abridgment. Venner's insurrection could not be the cause of curtailing the liberty of the subject at that moment, though it proved a plausible argument for the Proclamation which followed. The Proclamation appeared four days after the riot; yet the terms of the document agree so closely with those employed in the records of Council, as to indicate that, with the exception of a reference to the disturbance of the peace by bloodshed and murder, and some mention of Fifth Monarchy men, little or no alteration could have been made in the phraseology. All meetings, except those held in parochial churches and chapels, or in private houses by the inhabitants, were declared seditious, and were peremptorily forbidden.[\[181\]](#)

Against Venner's insurrection the Independents protested; disowning "the principles of a Fifth Monarchy, or the personal reign of King Jesus on earth, as dishonourable to him and prejudicial to His Church," and abhorring "the propagating this or any other opinion by force or blood."[\[182\]](#) The Baptists declared their obedience to Government, and expressed a hope

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that they might enjoy what had been granted by His Majesty's Declaration, and be protected, like other subjects, from injury and violence.^[183] The Quakers also expressed their loyalty; praying that their meetings might not be broken up, and that their imprisoned members might be set at liberty. But these addresses neither blunted the edge of Royal displeasure, nor removed the public suspicion that many Nonconformists sympathized with the Fifth Monarchists. Peaceable subjects, therefore, suffered insult and interruption. Horns were blown at the doors of their houses, and stones were thrown at them whilst they were at prayer; also, magistrates enforced the Oath of Allegiance, which many Nonconformists, on different grounds, declined to take.^[184]

Amongst other methods of annoyance was that of opening suspected letters—a practice of which numerous illustrations will presently appear. "I wrote a letter at this time," says Richard Baxter, "to my mother-in-law, containing nothing but our usual matter. Even encouragements to her in her age and weakness, fetched from the nearness of her rest, together with the report of the news, and some sharp and vehement words against the rebels. By the means of Sir John Packington, or his soldiers, the post was searched, and my letter intercepted, opened, and revised, and by Sir John sent up to London to the Bishop and the Lord Chancellor, so that it was a wonder, that having read it, they were not ashamed to send it up; but joyful would they have been, could they but have found a word in it which could possibly have been distorted to an evil sense, that malice might have had its prey. I went to the Lord Chancellor and complained of this usage, and that I had not the common liberty of a subject, to converse by letters with my own family. He disowned it, and blamed men's rashness, but excused it from the distempers of the times; and he and the Bishops confessed they had seen the letter, and there was nothing in it but what was good and pious. And two days after came the Lord Windsor, Lord-Lieutenant of the County, and Governor of Jamaica, with Sir Charles Littleton, the King's cupbearer, to bring me my letter again to my lodgings; and the Lord Windsor told me, the Lord Chancellor appointed him to do it. After some expression of my sense of the abuse, I thanked him for his great civility and favour. *But I saw how far that sort of men were to be trusted.*"^[185]

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CHAPTER VII.

The time had arrived for calling a new Parliament, since the Convention lacked certain constitutional attributes: and it seemed a further reason for summoning another House of Commons, that the Presbyterians in the Convention, notwithstanding secessions from their ranks, were still too numerous, and too troublesome, to be well managed by the Court.

Writs were issued upon the 9th of March, 1661; and, in ten days, the whole country was found uproariously busy in the election of Knights and Burgesses. The City of London took the lead; and, as so much new and curious information on the subject is afforded by letters in the State Paper Office, I shall largely make use of them in the present chapter. It was known that the new Parliament would have important ecclesiastical questions to settle, and therefore a great deal of religious feeling became mixed up with the political sentiments of the electors.

The Guildhall of the City of London, though magnificently restored very recently, carries back our thoughts to distant days, but it has rarely, if ever, contained within its walls a throng so densely packed, or been filled with shouts so dissonant, as on the 19th of March, 1661.

In confused ways, the Lord Mayor and some of the Aldermen were proposed as candidates:—1661. Recorder Wylde, Sir John Robinson, Sir Richard Ford, Sir Thomas Bloworth, Sir Nicholas Crisp, and Alderman Adams, stood on the Royalist side; on the popular side, appeared Alderman Thompson and Alderman Love—"godly men, and of good parts, Congregationalists,"—Captain Jones, a Presbyterian, and Alderman Foulke, "not much noted for religion, but a countenancer of good ministers, one who was present at the act for abolishing Kingly Government," and "deeply engaged in Bishops' lands." Recorder Wylde, and Sir John Robinson, with Sir Richard Brown, and William Vincent, had been City Members of the Convention Parliament; but the citizens disliked them, because they were not sufficiently advanced in political sentiments, and also because they had not opposed the abolition of Purveyance, and the Court of Wards, the

imposition of the Excise, and the levying of Poll Money. The tide just then ran strongly in favour of ultra-dissent. The candidates of the Royalist party, except Ford, had scarcely a word spoken in their favour. The Recorder's name, Wylde, awakened rude shouts, amidst which might be heard a feeble pun: "We have been too WILD already." Episcopacy stood at a discount, and the old Hall echoed with cries of "No Bishops—no Bishops." Ten thousand citizens in livery—no doubt an exaggeration—were computed to be present; but the multitude, whatever the exact number, seemed of one mind. A shrewd courtier in one corner whispered to an elector, that he hoped what was going on there would be a warning to the Bishops. The calling of nicknames, and the outpouring of ridicule, were shared, in nearly equal portions, by the two parties. The Royalists pelted their opponents with scurrilous abuse, yet they seemed to have nothing worse to say of Alderman Thompson than "that he was a rare pedlar; so fond of smoking, that his breath would poison a whole Committee." Jones was also reproached for smoking; but the Captain was admitted by an opponent to be an honest man, if amongst such a party there could be one.^[186] No applause equalled that which his name called forth; and when the opposite party would have had him omitted, "the Court never left off crying, 'A Jones! a Jones!' till it was otherwise resolved." Only a few hands were held up for the Recorder and his friends. The election was all but unanimous, and no poll was demanded by the candidates defeated at the hustings.

Some Nonconforming ministers are noticed as interesting themselves in this election, though "others, like Demas," wounded "their consciences by complying somewhat." In an election squib, called *A Dialogue between the two Giants in Guildhall*,—one Congregational pastor is said "to bring a hundred, another of the holders forth sixty, to the destruction of the beast." And as Gog and Magog are represented discussing the matter, one of them—referring to the union of Presbyterians and Independents in the election—observes, "I thought these two, like two buckets, could not possibly be weighed up together." "Yes," says his brother giant, "there is an engine called Necessity, made with the screws of Interest, that doth it *secundum artem*." Of course such publications are worth nothing as witnesses to political facts, but they vividly bring to light the political contest; and as they repeat the rumours they also reveal the hatred which influenced the contending factions. Certain persons are mentioned as taking part in the

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City strife in other ways than by heading mobs. "Mr. Carill, and other eminent ministers, held a fast, and prayed heartily, and God has heard them," writes an Independent to a friend in Norwich; but Zachary Crofton is most frequently mentioned as a champion on the side of the anti-episcopalian party. "A subtle, witty man," "bitter against the Bishops," and "a great vexation to them." He "prosecuted his argument last Lord's Day, and there were more people than could get into the Church." "Thank God," says one, "that Mr. Crofton is still at liberty; he preaches that Bishops are a human institution, and lead to the Papacy." "Little Crofton," says another, "preaches against Bishop Gauden every Sunday night, with an infinite auditory, itching, and applause." Others, like Crofton, won popularity by political harangues. "All who oppose Prelacy," observes a correspondent, who evidently opposed it himself, and no doubt went to hear the men, whom he so admiringly mentions, "are mightily followed as Dr. Seaman and others." "Mr. Graffen had two thousand in the streets, who could not get into the Tantling Meeting House, to hear him bang the Bishops, which theme he doth most exquisitely handle." Crofton is often referred to in these letters. He was prosecuted for writing inflammatory books with comical titles, and being imprisoned in the Tower when the election was over, and before the Coronation took place, he petitioned His Majesty for release, that he might enjoy the approaching festival in liberty, as well as with loyalty. This bustling Divine, like many others, pleaded the sufferings he had endured for his attachment to Monarchy; and attempted to excuse certain inconsiderate expressions employed by him on matters beyond his sphere, on the ground that they were not written with an evil intention.

The citizens, talking over the great folk-mote of the morning, retired to their wainscoted parlours in the evening, and putting pen to paper, wrote to their friends in the country. Some deplored the election of the fanatics. Some jubilantly proclaimed the Liberal triumph. What they said, however, mattered little. The letters never reached their destination.^[187] They were pilfered at the post office. In vain people in the country waited for the arrival of the post-boy in those windy March days; in vain the Londoners expected answers to their epistles. Those time-stained, yellowish-looking sheets, of all shapes and sizes, and of varied and often puzzling caligraphy, are still safe in the Public Record Office.

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The object of the interception was to find out if there were anything treasonable in the correspondence; or to prevent Liberal citizens from influencing country constituences. Whether, if the letters had been delivered, they would have altered the results of the general election, may be doubted. At all events, the elections were in favour of the Royalists.^[188] Government influence was employed. Corporations returning members had been purged of disaffected elements;^[189] and no doubt manifold tricks were played. Nor can we believe they were confined to one side. But, independently of unconstitutional interference, there were causes which will account for the success of the Cavaliers. Many old Presbyterian and Independent politicians had become ineligible through political offences. The zeal of the nobility and of the Episcopalian clergy told powerfully in favour of old Royalists. Great in many boroughs and counties was the popularity of candidates who had fought at Edgehill, at Marston Moor, or at Naseby, under the banner of Charles I.

Of the members returned there were four men who in the Long Parliament had appeared as leaders. John Maynard, who was a manager in the trial of Laud—who had taken the Covenant, and had been a member of the Westminster Assembly—represented Beralston;^[190] but he had now become so noted for his loyalty, that, in consideration of it, as well as his legal eminence, Charles II. made him a serjeant, and conferred upon him knighthood, in the month of November, 1660. Several notices of speeches delivered by Maynard may be found in the *Parliamentary History*; but, except as an opponent of Popery, he does not appear to have taken any important part in ecclesiastical questions. John Glynne, who, when Recorder of London, had advocated Presbyterianism, now sat for Caernarvonshire; and, like his friend Maynard, enjoyed the honour of serjeantship, and was knighted for his loyalty at the Restoration. There remains no indication of his having taken any part in the debates of the House, from which he was removed by death in 1667.^[191] William Prynne—who had suffered so much as a Puritan, had written so much as a Presbyterian, and had spoken so much as a Royalist—now took his place on the benches of St. Stephen's as a member for Bath; but no mention is made of his ever speaking, except once, when he uttered a few words relative to the impeachment of Lord Clarendon.^[192] Sir Harbottle Grimston—another

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well-known Presbyterian, who also was Speaker of the Convention—again appeared as a member of the House of Commons, representing the town of Colchester. But in his case, as in the others, Presbyterianism now was absorbed in the return of loyalty; and no words, that we can find, fell from his lips touching Church subjects, excepting a few against Roman Catholicism.^[193] These men, after all their zeal in former days, said little or nothing in Parliament on behalf of religious liberty after the Restoration. Besides these four, may be mentioned Colonel Birch, a Lancashire Presbyterian, who having in the Long Parliament and in Cromwell's Parliaments represented Leominster, was in 1661, returned for the borough of Penryn. This gentleman frequently spoke on the side of civil and spiritual freedom. Hugh Boscawen, who had been member for Cornwall and Truro, under the Protectorate, now sat for Tregony, but scarcely ever opened his lips. The same may be remarked of Griffith Bodurda, member for Beaumaris.

Presbyterianism or Independency in particular could not be said to be represented in the new House of Commons; and Puritanism in general could scarcely be regarded as finding full and decided expression within those walls, where twenty years before it had been so triumphant.

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Parliament assembled on the 8th of May.^[194] The Upper House presented more of its ancient appearance than recently it had done; for although the Bishops were not yet restored, more than a hundred Peers took their seats—a striking contrast to the opening of the Convention, when only five Earls, one Viscount, and four Barons mustered in the Chamber. His Majesty, crowned and wearing his regal robes, ascended the throne, attended on each side by Officers of State, including a few who had favoured Presbyterianism. The Commons took their places below the bar.

The King kept silence on Church matters, unless he may have referred to the Breda Declaration, when saying that he valued himself much upon keeping his word, and upon making good whatever he had promised to his subjects. The Lord Chancellor, after an allusion to the constitution and disorders of the State—its stomach and appetite, its humour and fevers—indignantly inquired, "What good Christian can think without horror of these ministers of the Gospel, who by their function should be the messengers of peace, and are in their practice the only trumpets of war, and

incendiaries towards rebellion?" Such preaching he pronounced to be a sin against the Holy Ghost.

Sir Edward Turner, a thorough Royalist, was elected Speaker; and, when presented to the King, he delivered one of those tiresome speeches which were so characteristic of the age.^[195]

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The House ordered that the Communion of the Lord's Supper should, on Sunday, the 26th of January, be celebrated at St. Margaret's Church, according to the Liturgy of the Church of England; and that no one who did not partake of this sacrament should be allowed to enter the House.^[196]

We must now leave the transactions of Parliament for awhile, that we may attend to the proceedings of two ecclesiastical bodies, contemporaneously engaged in discussing affairs over which Parliament exercised supreme control.

The Worcester House Declaration had spoken of a revision of the Liturgy. The King said, he found some exceptions made against several things therein

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—and would appoint an equal number of learned Divines of both persuasions, to review the same; and to make such alterations as should be thought necessary. In formal agreement with this promise, a Royal Commission was issued. Twelve Bishops, with nine coadjutors, were chosen to represent the Episcopalians, and twelve leading Divines, also with nine coadjutors, were chosen to represent the Presbyterians.^[197] The Chancellor arranged that Dr. Reynolds—already consecrated Bishop of Norwich, he having accepted that see, with the idea that the Declaration would be carried out, but who, inconsistent as it may seem, still bore the name of a Presbyterian,—and Calamy, who remained a Presbyterian in reality, should nominate the Commissioners on their side of the question. Baxter expressed a wish to have his name omitted; for he found he had made himself unacceptable to the opposite party, but he observes, he could not prevail unless he had "peremptorily refused it"—words which do not indicate any earnestness in declining office. Indeed it is impossible to conceive that Baxter could have endured to hear of such a debate as was now at hand, without taking a leading part in it himself. Moreover, he had so far recognized Episcopal authority, as to seek from Sheldon a license

publicly to preach, and as a condition of obtaining it, he gave a written promise not to speak against the doctrines of the Church or the ceremonies established by law, a circumstance which certainly showed his disposition to concede as much as possible.^[198]

The Royal Commission bore date the 25th of March.^[199] It gave the Commissioners authority to review the Book of Common Prayer—to compare it with the most ancient Liturgies—to take into consideration all things which it contained—to consult respecting the exceptions against it—and by agreement to make such necessary alterations as should afford satisfaction to tender consciences, and restore to the Church unity and peace; the instrument appointed "the Master's lodgings in the Savoy" as the place of meeting.

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Sheldon having borne off from all competitors the appointment to the Mastership of that Hospital,^[200] it was under his roof that the approaching Ecclesiastical Debates were to take place; perhaps convenience sought by the Master as well as convenience afforded by the hall in the palace, might influence the selection; and it becomes a curious coincidence that the scene of these debates—professedly for the purpose of effecting union between Conformists and Nonconformists—should be a building under the control of a High Churchman, and yet one which had witnessed the consultations of Independents; for they had drawn up a Confession of Faith and Order within those very walls about eighteen months before. That meeting had borne some resemblance to the Westminster Assembly, since the Confession adopted by it, though never an authoritative standard, remained long in honour amongst Congregationalists; but the Conference which now took place was not intended to settle points of faith, nor did it issue in any practical conclusion whatever.^[201]

The Commissioners were summoned to meet upon the 15th of April; but before that day arrived, arrangements were made for another kind of Ecclesiastical Assembly, the contemporary existence of which is often overlooked, although it be of the utmost importance for the understanding of the one, that we should carefully consider the contemporary existence of the other.

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Hesitancy, if not a deeper feeling, appears in reference to a regular Convocation of the clergy at that time. If the Breda and Worcester House Declarations had meant what they said, an assembly gathered on the principle of former Convocations could not with the least propriety be held at this juncture: however, now that the old constitution of national government had resumed its place, some High Churchmen inferred, and earnestly contended, that ancient ecclesiastical as well as civil arrangements had become virtually re-established; and therefore, that Convocation ought to be summoned at the opening of Parliament. But to summon Convocation would be to nullify the Conference.

Dr. Peter Heylyn—the admiring biographer of Archbishop Laud—was aware of the difficulty, at this crisis, of convoking the clergy after the ancient manner; and at the beginning of the month of March, 1661, he referred to it as raising sad thoughts in the hearts of those who wished for the peace and happiness of the English Sion.^[202] The matter came before the Council Board at Whitehall, on the 10th of April; and it was then ordered, that the Lord Chancellor should direct the Clerk of the Crown to draw up the writs for Convocation in the usual form. This occurred more than a fortnight after the date of the Commission, and five days before the Commissioners were to meet. Clarendon remarks that at the time when the King "issued out his writs for convening the Parliament, he had likewise sent summons to the Bishops, for the meeting of the clergy in Convocation, which is the legal synod in England; *against the coming together whereof the Liturgy would be finished, which His Majesty intended to send thither to be examined, debated, and confirmed.* And then he hoped to provide, with the assistance of the Parliament, such a settlement in religion, as would prevent any disorder in the State upon those pretences."^[203]

Not to dwell upon this instance of carelessness respecting dates—inasmuch as the writ for calling a Parliament is dated the 9th of March, and the summons for a Convocation the 11th of April—it is worth asking, what is meant by the Liturgy being finished against the coming together of Convocation? It could not mean that in the Conference the Liturgy was to be finished; for that would be contradicted by the whole policy of the Bishops. Surely it must mean that the King and his Minister intended that the Liturgy should be finished by the Bishops themselves, as it will

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afterwards appear, it really was by Cosin and others before Convocation met, without any regard to the transactions of the Conference; and if such was the case, the issue of the Conference is seen to have been determined at the commencement.

When the 15th of April arrived, the Commissioners came together—and the Presbyterians must have been as much vexed as the Anglicans would be pleased, not only with the treatment of the business of the Worcester House Declaration in the House of Commons, but with the prospect of Convocation meeting for business at the same time as they themselves were engaged in the appointed Conference. The Commissioners met upon unequal terms. All London was astir with the approaching Convocation; and the Officers of the Crown and of the Herald's College had just been busy in examining claims and searching precedents relative to the solemnity.

In the order of procession, and the details of the ceremonial, the Bishops who now assembled found, together with other Bishops, places of distinction and functions of importance assigned to them. Sheldon, Bishop of London, was to officiate, in part, in the room of the Archbishop of Canterbury, Dr. Juxon, the latter being now old and full of years, and incapable of performing the whole duty pertaining to his office on the occasion. Cosin, Bishop of Durham, was to support the King on one side beneath the canopy borne by the Barons of the Cinque Ports, and to assist His Majesty in certain portions of the ceremony. Warner, Bishop of Rochester, was to deliver the prelates' petition to the King, praying him to preserve to them all canonical privileges. King, Bishop of Chichester, was to read the Epistle before the Holy Communion. Morley, Bishop of Worcester, was to preach the sermon. Gauden, Bishop of Exeter, was to carry the *patena*. These Bishops, with the rest of their brethren, besides discharging high offices in particular, were generally to swell the grandeur of the procession, and, in doing homage, to kiss the King on the left cheek before any Marquis or Duke was allowed the privilege. Besides—Earle, Dean of Westminster, was to assist at the anointing, to put the coif, with the *colobium sindonis*, or surplice, upon the Royal person. Heylyn was to carry the sceptre with the cross; while other Doctors of Divinity were to bear the

sceptre with the dove, the orb with the cross, King Edward's staff, the chalice, the spoon, and the ampulla. ^[204]

The ceremony of the Coronation, according to immemorial usage, was to be an Episcopalian ceremony. Of course no part could be assigned to Presbyterians, unless—as in the case of the Bishop of Norwich—Presbyterianism clothed itself in the robes of Prelacy. Presbyterians, *as such*, had been appointed Chaplains and preached before the King; but, *as such*, they were passed by in the gorgeous ceremonies of Westminster. This fact is very significant, and it bore immediately upon the nature, and on the probable issues of the Conference. It has often been said, that the Presbyterians were in the saddle at the time of the Restoration; it is as plain that the Episcopalians were in the saddle at the time of the Coronation and the Conference. A meeting at the Savoy, between Divines of the two schools, to consult respecting a revision of the Prayer Book, in the spring of 1660, would have been a perfectly different affair from such a meeting in the spring of 1661. Something at least like equal terms might at the former date have been secured, although Presbyters were then beginning to give way to Priests; but it is plain that at the later date the men of Geneva stood no chance with those of Canterbury. Episcopacy and the Liturgy were in possession. Presbyterianism had no chance of displacing or even modifying either. According to the terms of the Commission, all the members stood on an equality, but their positions in point of fact differed exceedingly.

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Nor must it be imagined that the hopelessness of the scheme arose entirely from the fact of political and social superiority on one side: it sprung also from causes at work on the other side. Without repeating what has been already said, I would remark that a gulf had yawned between them ever since the opening of the Civil Wars. They had been placed in strong mutual antagonism by the revolutionary ecclesiastical changes effected by the Long Parliament. Besides this, the doctrinal differences between the Anglicans and the Puritans so sharply defined, and so resolutely maintained, still kept them wide asunder. Moreover, their opposite modes of expressing devotion, the love of litanies with their responses, and of collects with their brevity, on the one hand, and the love of prayers vocally offered by the minister, and running into great length, on the other, served effectually to strengthen and

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to heighten the dividing barrier. The results which ensued fulfilled this reasonable anticipation of failure.

What in those days remained of the old Savoy Palace,—one of the three most sumptuous edifices^[205] erected by the most penurious of monarchs—presented externally a fine architectural appearance on the river side; within there existed a very spacious hall, with a ceiling of timber curiously wrought, "having knobs in due places hanging down, and images of angels holding before their breasts coats of arms." Under the shadow of that roof, and within walls of stone and brick, "three foot broad at least,"^[206] representative men of two ecclesiastical systems, some of them after twenty years of strife, met face to face on formal terms of truce. Two of the Divines, Calamy, the Presbyterian, and Hacket, the Episcopalian, had, in 1641, under the presidency of Archbishop Williams, taken part in a similar conference; several, on different sides now, had in early days, in the Universities and elsewhere, been friendly or civil towards each other; but memories of the Deanery of Westminster augured little of hope for the Savoy Palace, and the influence of former private intercourse stood little chance of overcoming the party spirit evoked on this new occasion.

Before we notice any of the papers exchanged, or any of the words spoken, it is proper to look at the more notable men who appeared at this meeting.

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There was Sheldon himself—a chief adviser, yet taking little share in the *vivâ voce* discussions, a man as full of worldly policy, as he was agreeable and pleasant in his manners. There was Morley, a leader next to Sheldon, and a prominent debater, genial and witty, but extremely passionate and full of obstinacy. There was Cosin, bringing with him a high reputation for learning and devoutness, blended with strong Anglo-Catholic feeling, which had, however, been somewhat checked of late.^[207] There was Gauden, who had conformed to the state of things under the Commonwealth, and was still inclined to moderation, yet aiming to bring all within the ranks of revived Episcopalianism. There was Gunning, an unequalled textuary, a pre-eminent controversialist in an age of controversy, a public disputant of singular fame in an age of disputation, fervent in spirit, eager in speech, zealous for Arminianism and ritualistic worship, and vehement in his advocacy of "high imposing principles."^[208] And there was Pearson, the most gifted, perhaps, on the Episcopalian side—enriched with large and

varied stores of divinity, and distinguished by that closeness of thought, and that judicious selection of proofs which secure eminence to the advocate, and success at the bar.^[209] There was also Reynolds, a Presbyterian Bishop—by his position marked out to take a leading part in the Conference, and to be a healing mediator, using his influence to soften the temper of his more prelatial brethren; but he brought to the work a feeble character, and had lost rather than gained moral weight by the acceptance of a mitre.

The Presbyterians were led by Baxter—an acute metaphysician, a keen debater, subtle and fertile in mind, in character honest, and open as the day—possessing at all times in abundance the silvern gift of speech—rarely, if ever, showing the golden gift of silence. He lacked that sobriety of judgment, that patience under contradiction, that employment of means for attainable results, and that common-sense acquaintance with men and things, which are essential to success in all deliberations. Calamy does not appear as a speaker in the Conference, but he played an active part in Committees. Proofs of his general eminence are afforded by his preaching before Parliament when the King was voted home, by his being one of the deputation sent to wait on His Majesty, and by the offer made to him of a Bishopric. Proofs of his fitness to occupy a place in the Commission are supplied by his reputation for learning, for prudence, for dignity, and for courtier-like bearing. Moreover, as in early life, he had been moderate in his views, and had, therefore, been chosen as one of the Committee in 1641, under the presidency of Williams, so at the Restoration he wished for a comprehensive ecclesiastical scheme, and would have accepted the preferment offered him, had the Worcester Declaration become constitutional law. Bates, a Presbyterian, renowned for candour, is particularly commended by Baxter for solidity, judiciousness, and pertinence in debate, but he lacked the vehemence of the pastor of Kidderminster. Jacomb, Newcomen, and Clarke were active in Committee.

Jacomb is described as a man of superior education, of a staid mind, of temperate passions, moderate in his counsels, and in the management of affairs, not vehement and confident, not imposing and overbearing, but receptive of advice, and yielding to reason. Newcomen, like Calamy, belonged to the five Divines who wrote *Smectymnuus*, a circumstance of no

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favourable omen in the estimation of opponents. Clarke, pious, charitable, laborious, and fond of biography, is still well-known for his *Martyrology* and for his *Lives*.^[210]

Frewen, Archbishop of York, opened the proceedings by apologizing for his ignorance of the business, and by stating that he should leave all in the hands of the Bishop of London. That prelate proposed at once that the Presbyterians should reduce their objections to writing, to which they replied that the meeting was intended to be a conference, and that free debate would best prepare for an ultimate agreement. The Bishop adhered to his first proposal, and Baxter falling in with it, prevailed on his brethren to do the same.

According to the terms of the Commission, they met together to "advise" and to "consult," and the professed character and object of the Commission implied that there was to be friendly conference and mutual concession. But the Bishops manifested no disposition to concede anything; they assumed the port and bearing of persons who were in the ascendant, and who had to do with troublesome people, asking disagreeable favours. They had made up their minds not to speak freely,—and as men of business, and as stern conservators bent upon keeping up the ancient restrictions of their Church, the course which they pursued could be plausibly defended. Perhaps it would have mattered little in the end if Baxter's colleagues had persevered in their objections; yet his falling at once into the trap, and his so eagerly adopting the method of written communications, especially of the kind which he contemplated, showed how little he had of the wisdom of the serpent. The Bishops required the Presbyterian exceptions and additions to the Prayer Book to be presented at once; but Baxter succeeded so far as to obtain permission for bringing in exceptions at one time, and additions at another; and it was arranged that his brethren should prepare the former, and that he should prepare the latter. The two parties separated, the Presbyters to prepare for the future Conference, the Prelates for the Coronation. The Coronation was very magnificent.

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Clarendon informs us:—"The King went early in the morning to the Tower of London, in his coach, most of the Lords being there before; and about ten of the clock they set forward towards Whitehall, ranged in that order as the

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Heralds had appointed; those of the Long Robe, the King's Council-at-law, the Masters of the Chancery and Judges going first; and so the Lords in their order, very splendidly habited, on rich footcloths; the number of their footmen being limited, to the Dukes ten, to the Earls eight, and to the Viscounts six, and the Barons four, all richly clad, as their other servants were. The whole show was the most glorious in the order and expense that had been ever seen in England; they who rode first being in Fleet Street when the King issued out of the Tower, as was known by the discharge of the ordnance; and it was near three of the clock in the afternoon when the King alighted at Whitehall. The next morning the King rode in the same state in his robes, and with his crown on his head, and all the Lords in their robes, to Westminster Hall, where all the ensigns for the Coronation were delivered to those who were appointed to carry them, the Earl of Northumberland being made High Constable, and the Earl of Suffolk Earl Marshal for the day; and then all the Lords in their order, and the King himself walked on foot upon blue cloth from Westminster Hall to the Abbey Church, where, after a sermon preached by Dr. Morley (then Bishop of Worcester), in Henry VII.'s Chapel, the King was sworn, crowned, and anointed by Dr. Juxon, Archbishop of Canterbury, with all the solemnity that in those cases had been used. All which being done, the King returned in the same manner on foot to Westminster Hall, which was adorned with rich hangings and statues; and there the King dined, and the Lords on either side, at tables provided for them; and all other ceremonies were performed with great order and magnificence."^[211]

In the beginning of May the elections occurred for members of Convocation. The two theories already noticed, regarding the Church of England at that juncture, came into collision in these elections. The Presbyterians maintained that the existing establishment was the Church of England, that they were legally members of that Establishment, that they held their maintenances by a claim as valid as that of any of their brethren. The new Act of Uniformity had not yet been passed, and, therefore, there was no flaw in their title to be considered part of the English clergy. But the High Church party fell back upon their favourite idea that the Church of England was the Episcopal Church. Then, as always, they could plead laws, as good arguments when in their favour; then, as always, they set aside laws when against them. Even allowing that the Church of England might be

exclusively an Episcopal Church *de jure*, it was not so at that time, *de lege*, or *de facto*. But the Episcopalian party managed to get the power into their hands, and to exercise it. Presbyterians accordingly were pronounced unfit to be elected, and Episcopalians were returned.

There were Presbyterians who disapproved of the constitution of Convocation; Baxter, Bates, and Jacomb distinctly said,—not only many hundreds of their ministerial brethren were displaced or removed before the meeting of the Convocation and others denied their votes, because they were not ordained by Diocesans; but there were others who disapproved of the way in which Convocation was constituted, and, therefore, would not meddle in the choice of its members; whether such persons would feel themselves bound by its determination it was impossible to predict. ^[212]

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Upon the 2nd of May the election of London members for the Lower House of Convocation took place in Christ Church. The metropolitan ministers, who were not yet ejected, proved a majority against the diocesan party, and when Baxter expressed his intention of being present, they sent to their busy friend not to come, and also begged Calamy to absent himself; the object being to secure the election of these two Presbyters, who were accordingly chosen by a majority of three. The Bishop of London, however, as Baxter remarks, "having the power of choosing two out of four, or four out of six, that are chosen by the ministers in a certain circuit, did give us the great use of being both left out, and so we were excused, and the City of London had no clerk in the Convocation."^[213] Sheldon naturally preferred men of his own way of thinking, and selected out of the names presented to him, those of Dr. Haywood and Mr. Thorndike; the latter eminent Divine being removed as far as possible from all sympathy with Puritans. Hence arose the result that the Presbyterian portion of the City clergy at the time holding parish livings, and being therefore, in fact, members of the Establishment, had no one to represent them in Convocation; and the passing over by Sheldon of the two Presbyterian Divines, although not at all surprising under the circumstances, should be borne in mind, in connection with the meeting held at the Savoy only two days afterwards. The circumstance would not be forgotten on either side, but would be regarded by the two

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parties with very different feelings, when Sheldon at his lodgings met those who were discarded candidates.

Upon the 4th of May the exceptions were presented. The principal persons employed in drawing them up were Calamy, Newcomen, Bates, Clarke, Wallis, and Jacomb, and—which will surprise many readers—Dr. Reynolds; so that the Bishop of Norwich must be regarded as sharing in the responsibility of preparing these Presbyterian objections to the Prayer Book.^[214] Baxter, though not at first assisting in this division of labour, afterwards helped in the work. His objections were more minute than his brethren approved, but he wished them to understand he did not, like some, charge the Common Prayer with idolatry or false worship, he only took its faults to be "disorder and defectiveness;" this, he thought, was the mind of all the Presbyterian Commissioners except one. They pleaded in their paper that as the first Reformers composed the Liturgy with a view to win over Papists, the Liturgy ought now to be revised so as to gain upon the judgments and affections of all substantial Protestants. They suggested that repetitions, responses, and an alternate reading of psalms and hymns, which "cause a confused murmur in the congregation," should be omitted; that the Litany, a great part of which was uttered only by the people, should be formed into one prayer, to be offered by the minister, who according to Scripture is the mouth of the people to God—a very remarkable objection, it may be noticed by the way, coming as it did from men who professed to hold unpriestly views of worship. They further requested that neither Lent nor saints' days should be any longer observed; that free prayer should be allowed; that it should be permissible for the minister to omit part of the Liturgy as occasion might require; that King James' translation should alone be used at Church; that only the Old and New Testament might be read in the daily lessons; that no part of the Communion Service should take place at the communion table, except at the administration of the Lord's Supper; that the word "minister" should be employed instead of "priest," and the "Lord's Day" instead of "Sunday;" that the version of the psalter should be amended; that obsolete words should be altered into others generally received; and that phrases presuming the congregation to be regenerated and in a state of grace should be revised. These Commissioners further said, that the Liturgy was defective in praise and thanksgiving; that the confession and catechism were imperfect; and that the surplice, the signing

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of the cross, and kneeling at the Lord's Supper, were unwarrantable. The objectors took special exception to certain expressions in the daily service, and to the rubrics. But their objections related mainly to the forms for the ordinance of baptism; the celebration of matrimony; the visitation of the sick; and the burial of the dead.^[215]

Parallels may be noticed between the exceptions taken on this occasion, and those taken in William's Committee of 1641.^[216]

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The Presbyterians requested that instead of the words in the prayer before baptism, "May receive remission of sins by spiritual regeneration," the form might run thus: "May be regenerated and receive the remission of sins." In reference to the words afterwards, "That it hath pleased Thee to regenerate this infant by Thy Holy Spirit," it is remarkable, that the objection is couched in cautious terms. "We cannot in faith say that every child that is baptized is 'regenerated by God's Holy Spirit,' at least, it is a disputable point, and therefore we desire it may be otherwise expressed." Confirmation is not condemned, but it is urged, that for children to repeat *memoriter* the Apostles' Creed, the Lord's Prayer, and the Ten Commandments, and to answer some questions of the catechism, is not a sufficient preparation for the rite; and that it ought, according to His Majesty's declaration, to be "solemnly performed by the information, and with the consent of the minister of the place." In relation to the words "who hast vouchsafed to regenerate these Thy servants by water and the Holy Ghost, and hast given unto them the forgiveness of all their sins," the objectors remark, "This supposeth that all the children who are brought to be confirmed have the Spirit of Christ and the forgiveness of all their sins; whereas a great number of children at that age, having committed many sins since their baptism, do show no evidence of serious repentance, or of any special saving grace; and therefore this confirmation (if administered to such) would be a perilous and gross abuse."^[217] It should be added, that the Presbyterians disapproved of confirmation being made necessary for preparing communicants. With regard to the solemnization of matrimony, they objected to the use of the ring, and of the word "worship," and to the rubric which enjoins receiving the communion; and with respect to the visitation of the sick, the same persons wished that a form of absolution might be omitted at the minister's option, or that if used, it might be framed

on a declarative and conditional form. The exceptions taken to the burial service were the same as those which have been current ever since.

On the 8th of May, four days after the Presbyterians had put in their exceptions, Convocation met for the first time since the year 1640;^[218] the Northern Synod assembling at York, the Southern at London.

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Sheldon, Bishop of London, with other Bishops of the province of Canterbury, together with Deans, Archdeacons, and Priests, also the Dean of the Arches, with his Advocates and Proctors, repaired to the house of Dr. Barwick, a physician, in St. Paul's Churchyard. In that house, during the Civil Wars, he had entertained his brother John, afterwards Dean of St. Paul's, and allowed him the use of an oratory—some Gothic chamber, perhaps, with quaint oriel, destroyed in the London fire. Arrayed in their vestments, the Bishops and clergy entered in procession through the "little south gate," into the ancient Gothic edifice, for the restoring of which a deep and wide-spread zeal had begun to show itself—the Cathedral being, it is said, "a princely ornament of the Royal city," where was a confluence of foreign princes' ambassadors, the structure being "injured by the iniquity of the late times," and its repair being necessary to prevent the dishonour of its neglect falling upon the whole city.^[219]

There, the Dean, Residentiaries, and the rest of the Canons, were waiting to receive the procession with due ceremony, and to conduct its members into the choir. It was a jubilant hour for the Episcopal Church of England, for it betokened a resurrection after years of death-like silence, imprisonment, and humiliation; and no doubt, in many a bosom, sentiments of deepest gratitude and adoration, mingled with feelings of excusable pride, as the choir fervently sang the Te Deum in English; and Dr. Thomas Pearce preached a sermon in Latin from Acts xv. 28, "For it seemed good to the Holy Ghost, and to us, to lay upon you no greater burden than these necessary things." The sermon ended, and an anthem sung, Sheldon, the Bishop of London, who acted as President, in consequence of the advanced age and infirmities of Juxon, with the rest of the clergy, went into a Chapter House provided for the occasion, "the goodly old house being, by the impiety of Oliver Cromwell's Horse Guards, rendered unfit for use." The King's Writ and the Archbishop's Commission to the Bishop were formally

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presented and read; after which the latter, "in excellent Latin," addressed the Lower House, bidding them go and choose their Prolocutor.

On the Thursday following, May the 16th, Dr. John Pearson, Archdeacon of Surrey, presented Dr. Henry Ferne, Dean of Ely, as the Prolocutor chosen by the Lower House; and "three elegant Latin speeches were made: one by the presenter, another by the Prolocutor, and a third by His Lordship the Bishop of London, in approbation of their election."^[220] This ceremony took place in Henry VII.'s Chapel, Westminster—whither, from St. Paul's Cathedral, Convocation had adjourned, as to the place of meeting used by the representatives of the clergy before the Civil Wars—and that Chapel, many of those who now ascended the stone steps at the back of the Abbey choir, would consider to have suffered almost as much desecration from the Presbyterian Assembly of Divines, as other parts of the sacred edifice had done from the depredations of the soldiery.

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Convocation sat, probably, "in one of the inferior chapels."^[221] No one like Robert Baillie—who so minutely describes the Westminster Assembly—has bequeathed us a picture of this Episcopalian Synod twenty years afterwards; but anybody who has witnessed the meetings of the Lower House—the Deans in their scarlet robes as Doctors, and other dignitaries in academic costumes, with square caps in their hands, can picture what a contrast, in these respects, the clergy convened in 1661, in a side Chapel of the Abbey, must have presented to the ministers, who assembled in 1643, within the Jerusalem Chamber. Nor can we find any report of the Debate, like that preserved in the *Diary* of Lightfoot; but there can be no doubt that the usual characteristics of ecclesiastical councils and conferences might be found on this occasion; that there was much of learning, of eloquence, and of hair-splitting; that some speeches were logical, and others very illogical; that the debates were sometimes wearisome, and sometimes lively; and that, occasionally, irregularities of discussion called for the interference of the Prolocutor.^[222]

An early act of Convocation, indeed, one on the very day of meeting, was to deliberate respecting forms of prayer for the two anniversaries so intimately connected with the Royal family—the anniversary of Charles

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II.'s birth, and return; and the anniversary of his father's death. The Bishop of Ely, one of a Committee appointed for the purpose, presented the first of these to the Upper House on the 18th, and the form was confirmed and issued by the King in Council on the 22nd.^[223] On the 18th also, the Bishop of London recommended that a form should be prepared for the baptism of adults,—it being alleged that many people, owing to the diffusion of Anabaptist opinions, had not been baptized in their childhood. That duty was entrusted, like the other, to four Bishops and eight clergymen, and the result appeared and received approval on the 31st. A Committee of Prelates and Presbyters undertook to frame the service for Charles' martyrdom. It is a curious fact, that there were two offices for the 30th of January, drawn up in the year 1661, in one of which, referring to Charles and other martyrs, there occurred the words, "That we may be made worthy to receive benefit by their prayers, which they, in communion with the Church Catholic, offer up unto Thee for that part of it here militant." Such a recognition of the intercession of saints in Heaven, indicating a strong Romanist tendency, has been made a ground of reproach by Nonconformist opponents; on the other hand, Episcopalians have denied the existence of the words in any collect prepared for the occasion. The contradiction is just, so far as the form adopted by Convocation is concerned; but there was an earlier one, laid aside on account of its containing the clause in question.^[224] The form in the Prayer Book of 1662 differed from both the forms which made their appearance in 1661.

Upon the 31st of May, Dr. Pory introduced a prayer for the Parliament, which was not an entirely new composition, inasmuch as one including the expression, "our religious and gracious King," had been inserted in the Prayer Book in the reign of Charles I.^[225] It appeared, for the first time, in its present shape for use, at a general fast, held on the 12th of June, 1661, special mention of it being made on the title page; from which form of service it was transferred to the Book of Common Prayer. For the same fast a general form, suited for such an occasion, was ordered on the 7th of June, to be prepared by a Committee; also, a supplication for fair weather was recommended for consideration. Upon the 18th of June, the King issued his letters patent, authorizing Convocation to make canons and constitutions; in which letters occur a formula, to the effect that the clergy had always

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promised, "*in verbo sacerdotii*," that they would never promulge, or execute any new ordinances without legal license:^[226] accordingly the Acts of Convocation, on the following day, notice the receiving of this Royal license, and record the appointment of certain Bishops and Presbyters as a Committee for considering the business to which it relates,—the Committee being appointed to meet at the Savoy Palace.^[227] Upon the 17th of July the Bishop of Salisbury presented a draft of canons which he had prepared, and which were again referred to him for further consideration. On the 19th and 22nd the canons still occupied the attention of the Upper House. On the 27th a benevolence was voted to His Majesty; on the 31st Convocation adjourned.^[228]

Thus far, we have ventured to place the contemporary proceedings of the Savoy Conference, and those of Convocation, in parallel lines; there is an advantage in doing so. We see how additions to the Prayer Book, made at the very time when the Commissioners were engaged in discussions upon its existing contents, would appear vexatious to the Puritans: we also clearly notice the peculiar position of Reynolds, who appeared at the Savoy as a Presbyterian, and in Convocation as a Prelate—in the one character apparently objecting to the Prayer Book, in the other, adding to it new forms; and we discover that the Houses of Convocation refrained, whilst the Commission lasted, from doing more than supplying certain additional prayers, deferring the business of revision until the Conference had broken up.

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We have seen the Presbyterians at the Conference putting in their exceptions; we now turn to the answers of the Bishops. They were written in an discourteous, uncharitable, and captious spirit, not indicating the slightest disposition to conciliate, but foreclosing the possibility of removing any Presbyterian objection: for they said, the alteration asked would be a virtual confession that the Liturgy is an intolerable burden to tender consciences, a direct cause of schism, a superstitious usage—it would justify past Nonconformity, and condemn the conduct of Conformists. The document presents an angry defence of the Church formulas; and, whilst there is much in the reasoning which commends itself to admirers of the Liturgy, the temper betrayed is of a kind which assuredly most of those admirers will condemn.^[229]

The discussion upon baptism alone needs particular attention. It is affirmed that the form in the Prayer Book is "most proper; for baptism is our spiritual regeneration." That answer indicates that the Episcopalians in the Conference took the words in the Prayer Book to express the doctrine of baptismal regeneration. "Seeing," say they, "that God's sacraments have their effects where the receiver doth not '*ponere obicem*' put any bar against them (which children cannot do), we may say in faith, of every child that is baptized, that it is regenerated by God's Holy Spirit; and the denial of it tends to Anabaptism, and the contempt of this holy sacrament as nothing worthy, nor material, whether it be administered to children or no."^[230]

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It had been arranged, that whilst the rest of the Presbyterian brethren employed themselves in drawing up *exceptions* against the Book of Common Prayer, Baxter should prepare *additions*. In one fortnight he accomplished his task, and presented his Reformed Liturgy. A Reformed Liturgy, differing from that of the Church of England, had, in the sixteenth century, been published in Holland; but it amounts to no more than a compilation from Calvin's Genevan Service Book. Baxter determined that his should be original; and, accordingly, setting to work with his Bible and his Concordance, he drew up a new collection of devotional offices. They include orders of service for the Lord's Day, and for the celebration of the sacraments of the Lord's Supper and Baptism; a discourse upon catechizing, preparatory to the communion; a form to be used in marriage; directions for the visitation of the sick, and the burial of the dead; prayers and thanksgiving for extraordinary occasions, and for particular persons; and a discourse on pastoral discipline, with forms of public confession, absolution, and exclusion from the fellowship of the Church. He also prepared an Appendix, containing a larger litany or general prayer, and a long ascription of praise for our redemption.^[231]

The author tells us that he compared what he did with the Assembly's Directory, the Book of Common Prayer, and Hammond L'Estrange; but he seems to have borrowed little or nothing from these sources, beyond introducing or allowing the use of the creeds—sometimes the use of the Athanasian Creed—the Te Deum, and the psalms in order for the day. The modes of expression employed by Baxter are not founded upon the study of former

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liturgies, and are remarkably unlike those of the Anglican and the ancient Communions. They are carefully drawn from the Bible, and the margin of the new service book is studded with innumerable references to Scripture texts. No one who reads the work, especially considering the short time in which it was executed, but must acknowledge it to be a very extraordinary performance; and even Dr. Johnson said of the office for the communion, "that it was one of the first compositions of the ritual kind he had ever seen."^[232] The comprehension and fervour of all the prayers must excite admiration; but many of them labour under the Puritan disadvantage of being too long, and they are frequently at variance with that kind of religious taste which appreciates the character and tone of the litanies and the collects of the Church of England.

Baxter candidly admits, that he made "an entire Liturgy, but might not call it so," because the Commissioners required only "additions to, or alterations of, the Book of Common Prayer."^[233] How a completely new Liturgy could come under the latter denomination I cannot understand. As he omitted all reference to the Book of Common Prayer, his new Directory bore on the face of it the intention of superseding, or of rivalling that venerable manual of devotion; and wherever the former might have been adopted, it would virtually have put the latter aside. Still, as his petition shows, he was willing that it should be left for ministers to decide which Liturgy they would adopt; and, it may be concluded, that he would not have objected to a blending of the two, however incongruous such a thing may appear to many.

This famous Presbyterian polemic, at the same time that he presented his reformed formularies, presented with them a petition to the Bishops, begging them to yield to such terms of peace and concord as they themselves confessed to be lawful. "For though," as he argued, "we are equals in the King's Commission, yet we are commanded by the Holy Ghost, if it be possible, and as much as in us lieth, to live peaceably with all men;—and if we were denied, it would satisfy our consciences, and justify us before all the world;"^[234]—two points which that honest theologian ever kept in mind. He craved consent to read the document; some objected, but, ultimately, the reading of it was allowed. It consisted chiefly of an appeal to Christian feeling, founded upon a variety of considerations, especially upon

the wrong which would be done to the Puritan brethren, and the mischief inflicted on the Church of England if their scruples were disregarded. ^[235]

The contrast between the pacific, conciliatory, and reasonable strain of the petition, and the hard and repulsive tone of the prelates' answers to the exceptions, is very striking.

A rejoinder to the Bishops' answers, touching the exceptions made to the Liturgy, followed, on the part of the ministers. A preface to it was drawn up by Calamy. The rejoinder itself, composed by Baxter, forming, indeed, a book of 148 pages, and taking up the Episcopal document, paragraph by paragraph, with a great deal of close reasoning and scholastic subtilty, is too extensive in its range, and too minute in its details, to admit of any satisfactory synopsis of its contents being presented on these pages. But a sharp reference, at the close, to the concessions offered by the Bishops must be noticed. After thanking them, Baxter adds, in the name of his brethren, "we must say in the conclusion, that, if these be all the abatements and amendments you will admit, you sell your innocency and the Church's peace for nothing." ^[236]

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Time wore away, and nothing resulted from these long papers. At last came a session for *vivâ voce* debate. The Puritans wished the Bishops to talk freely, but their Lordships maintained a prudent reticence, and even Reynolds could not persuade his Episcopalian brethren by "friendly conference to go over the particulars excepted against;" they resolutely insisted that they had nothing to do until the necessity for alteration should be proved,—proved that necessity already was, in the estimation of Puritans, proved it could not be in the estimation of Anglicans.

All hope of a *pacifying* conference being abandoned, the Presbyterian Divines agreed to a debate; many hours were spent in fixing its order.

The Bishops, according to their policy throughout, maintained that it belonged to those who were accusers to begin; they were simply on the defence. No effect was produced by the Presbyterians' rejoinder:—"We are the defendants against your impositions; you command us to do certain things under pain of excommunication, imprisonment, and silence. We defend ourselves against this cruelty, by asking you to show authority for

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this." At last it was settled, that there should be a formal dispute, to be conducted by three persons on each side. Strangers were allowed to be present, and the room was full of auditors,—young Tillotson, the eminent preacher and Archbishop of later days, being amongst them. The debate turned upon vague abstractions, and upon subtle theological distinctions, occasionally interrupted by outbursts of temper and uncivil personalities. As might be expected, the Hall of the Savoy Palace became an arena for logical gladiatorship, and the object of the meeting a strife for victory.

At one time it seemed as if light were breaking through the clouds. Bishop Cosin, who on the occasion now referred to, occupied the chair, laid before the meeting a paper, which, he said, a worthy person had offered unto his superiors. It put,

I. The question, "Whether there be anything in the Doctrine, or Discipline, or the Common Prayer, or Ceremonies, contrary to the Word of God?"

II. It asked, if nothing in the Book was unscriptural, what the Presbyterians desired in point of expediency?

III. It then suggested that such desires should be submitted to "the consideration and judgment of the Convocation, who are the proper and authentic representatives of the Ministry."[\[237\]](#)

Baxter drew up an answer, in which he maintained the principal part of these proposals "to be rational, regular, and Christianlike." After going over much of the old ground, and referring to the Convocation in no unfriendly spirit, he says: "We are resolved faithfully to teach the people, that the division of the Church is worse than inexpedient:" and, "We conclude with the repetition of our more earnest request, that these wise and moderate proposals may be prosecuted, and all things be abated us, which we have proved or shall prove to be contrary to the Word of God."[\[238\]](#)

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To talk in this way seemed hopeful; but hope in this instance was a delusion. Each party suspected the other. Mutual confidence did not exist. Baxter, although he wrote as he did, really looked at the seemingly friendly proposals, as "a cunning snare."

The paper warfare recommenced—the disputants on each side, "writing extempore," withdrawing into another room for that purpose.^[239]

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The first subject discussed was the "imposition of kneeling," to which Baxter, although he took the gesture itself as lawful, objected, because he thought antiquity was against the custom, and because "the penalty is so immediate and great, to put all that kneel not, from the communion." With this discussion was connected another, as to whether there is anything sinful in the Liturgy.^[240] The following specimen in relation to the last question may give some idea of the scholastic forms which were employed. The Episcopal opponents maintained, "That command which commandeth only an act, in itself lawful, is not sinful." The Presbyterian respondents denied this, contending that some unlawful circumstance might hang in the command, or that the penalty might be overcharged. The proposition, after revision, was put thus: "That command which commandeth an act, in itself lawful, and no other act whereby any unjust penalty is enjoined, nor any circumstance whence directly, or *per accidens* any sin is consequent, which the commander ought to provide against, is not sinful." The respondents denied again, on the ground, that "the first act commanded may be *per accidens* unlawful, and be commanded by an unjust penalty, though no other act or circumstance be such." The Bishops amended their proposition at last, making their logical network so fine that even Baxter, subtle as he might be, could scarcely wriggle through the meshes. "That command which commandeth an act, in itself lawful, and no other act whereby any unjust penalty is enjoined, nor any circumstance whence directly, or *per accidens*, any sin is consequent, which the commander ought to provide against, hath in it all things requisite to the lawfulness of a command, and particularly cannot be guilty of commanding an act *per accidens* unlawful, nor of commanding an act under an unjust penalty."^[241] Thomas Aquinas was not more acute, more ingenious, or more wearisome. Morley, many years afterwards, urged that denying such a proposition as the last, was not only false and frivolous, but "destructive of all authority," and struck the Church out of all power to make canons for order and discipline.^[242] To those who admit that the Church may, within limits, decree rites and ceremonies—and Baxter in his arguments did not deny this—Morley's reasoning is forcible. The manner in which Baxter met the position of his opponents was by no means

satisfactory, and his warmest admirers must acknowledge that his mode of conducting this part of the controversy was no less injudicious than honest.

In drawing to a close our account of the Conference, it is important to mention that the Bill of Uniformity, hereafter to be described, actually passed the House of Commons on the 9th of July, about a fortnight before the Conference broke up. The proceedings of a Royal Commission to review the Prayer Book, and make alterations for the satisfaction of tender consciences were, by this premature act, really treated with mockery—a circumstance which could not but exceedingly offend and annoy the Puritan members, and especially serve to embitter the language of Baxter as the end of the fruitless sittings approached. [\[243\]](#)

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The last two meetings are particularly described: The Doctors on the Episcopalian side, Baxter says, crowded in—not more than two or three were present on the other side. Sanderson, Bishop of Lincoln, occupied the chair—"a very worthy man, but for that great peevishness, which injuries, partiality, temperance, and age had caused in him." A paper by Gunning came under discussion. He denied a statement made by Baxter, Bates, and Jacomb. The latter, on oath, confirmed what Baxter said; but the Chairman pronounced that Gunning had the best of it. He further charged Baxter with being contentious. Baxter told him that it was strange, a man should be prevented from replying to his antagonist. Gunning advanced citations in proof of his point; upon which Cosin called upon all the Bishops and Doctors on his side, at that moment a large majority, to give their votes. They all cried "Aye!" Those who are familiar with modern committees, and with what occurs when both parties lose their tempers, and the stronger carries the point, can understand how the Savoy Conference terminated. "We were all agreed," says Baxter, "on the ends for the Church's welfare, unity, and peace, and His Majesty's happiness and contentment; but after all our debates, were disagreed of the means, and this was the end of that Assembly and Commission." [\[244\]](#)

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Thus ended the last of the three great Conferences between Anglicans and Puritans; the two previous ones being held, respectively, at Hampton Court before King James, and in the Jerusalem Chamber under Dean Williams. It reminds us of another Conference, the last between Romanists

and Reformers, carried on in Westminster Abbey in the month of March, 1559. Like the Romanist Bishops on that occasion, the Anglican Bishops on this, protested, with some reason, that it was not for them to prove the Church's doctrine to be true; they professed the old established faith of Christendom; if it was attacked, they were ready to answer objections. But unlike the Popish, the Anglican prelates were now in the ascendant, and had their opponents at their feet. The Puritans, on the other hand, resembled, as to relative position, the Romanists, of whom it is remarked, they "were but actors in a play, of which the finale was already arranged."^[245]

It is amusing to read Baxter's account of his brother Commissioners. Some, he says, rarely attended, and when they did, said very little. Morley was often there, a chief speaker, with fluent words, and much earnestness, vehemently going on, and bearing down replies by his interruptions. Cosin was constant in attendance, talking much, with little logic, though with abundant learning in canons, councils, and patristic lore. Henchman was the most grave and comely of the Bishops, and expressed himself calmly and slowly, with some reticence. Gauden was almost always present, and though he had a bitter pen, he was moderate in speech, "and if all had been of his mind," says our reporter, "we had been reconciled." Reynolds spoke much the first day, to bring his Episcopal brethren to moderation; a "solid, honest man, but through mildness and excess of timorous reverence to great men, altogether unfit to contend with them." Dr. Pearson was a true logician, disputing "accurately, soberly, and calmly"—"breeding in us a great respect for him, and a persuasion that if he had been independent he would have been for peace." Dr. Gunning mixed passionate invectives with some of his argumentations, though understanding well what belonged to a disputant, but "so vehement for his high imposing principles, and so over zealous for Arminianism and formality and Church pomp."^[246] Sterne, Bishop of Carlisle, "looked so honestly and gravely and soberly," that it seemed, such a face could not have deceived. Baxter's judgment of physiognomy here, however, proved to be at fault, for when the prelate once broke silence, it was to exclaim,—as Baxter used the word, "nation:"—"he will not say kingdom lest he should own a king."^[247] While Baxter thus spoke of his opponents, they thus spoke of him: "At this Conference in the Savoy, that reverend and great man, Bishop Morley, tells us, the generality

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of the nonconforming Divines showed themselves unwilling to enter upon dispute, and seemed to like much better another way tending to an amicable and fair compliance, which was frustrated by a certain person's furious eagerness to engage in a disputation, meaning Mr. Baxter."^[248] "There was a great submission paid to him by the whole party. So he persuaded them, that from the words of the Commission they were bound to offer every thing that they thought might conduce to the good or peace of the Church, without considering what was like to be obtained, or what effect their demanding so much might have, in irritating the minds of those who were then the superior body in strength and number."^[249]

After the debates were over, the Presbyterians waited on the Lord Chancellor, to advise with him as to the account to be given of their doings to the King. At first His Lordship received Baxter "merrily," and comparing his spare figure and his thin face with the rotunder form and plumper cheeks of one of his companions, said, "If you were as fat as Dr. Manton, we should all do well." To which Baxter—fixing his dark eyes on Clarendon, replied—"If His Lordship could teach me the art of growing fat, he should find me not unwilling to learn by any good means."^[250] Becoming serious, the Chancellor charged the Divine with being severe, strict, and melancholy, making things to be sin which were not so. The latter simply rejoined, that he had spoken nothing but what he thought, and nothing but what he had given reasons for thinking.

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He afterwards drew up a paper in the form of a petition, supplying an account of the Conference; and it was arranged that Reynolds, Bates, and Manton should present the document. Baxter accompanied them at their own request. Manton delivered the paper into the Royal hands; Reynolds added a few words; and, of course, Baxter could not be silent. He made, as he represents, "a short speech," in which he informed His Majesty how far they had agreed with the Bishops, "and wherein the difference did not lie, as in the points of loyalty, obedience, and Church order." The King put the commonplace question suggested in all such disputes, "But who shall be judge?" Baxter seized the opportunity to say that "Judgment is either *public* or *private*—*private* judgment called *discretionis*, which is but the use of my reason to conduct my actions, belongeth to every private rational man;

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public judgment is ecclesiastical or civil, and belongeth accordingly to the ecclesiastical governors (or pastors), and the civil, and not to any private man." If Charles II. had been like his grandfather, James, a scholastic discussion had been inevitable; but the gay grandson, perhaps without heeding what the words meant, passed over Baxter's remark in silence. The Puritan historian winds up all with the curt remark, "And this was the end of these affairs."^[251]

Much sorrow and trouble sprung out of the Conference.^[252] The Episcopalian Royalists treated their opponents as a vanquished party, and retorted on their old persecutors by calling them seditious and disaffected. Young clergymen hoped they were on the road to preferment if they reviled and calumniated Presbyterians; and Baxter especially became a butt for malignant marksmen. Even his prayers were heard with suspicion, and so, as he said, it was a mercy when he was silenced. Yet his own account of the Conference produced a favourable impression in quarters where he and his friends had been misapprehended. The Independents, in the first instance, had been annoyed that the Presbyterians had not consulted them; some of the latter Divines, too, had been zealous of their more influential brethren, and both parties had joined in saying that the Puritan Commissioners were too forward in meeting the Bishops, and too ready to make concessions; and that Baxter, although unimpeachable as to his motives, had been too eager for concord, and too ready for compromise. But now the printed papers turned the tide; the Independents admitted that the Presbyterian Commissioners had been faithful to their principles.^[253]

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The Independents took no part in the Conference at Worcester House or in that at the Savoy. They were not consulted by Presbyterians—an instance of neglect which some of the Independents resented—but it is plain, from a consideration of the principles of the latter party during the Civil Wars and Commonwealth, that they could not, consistently with those principles, harmoniously unite in any scheme for comprehension. Their methods of Church discipline, felt to be most important for securing the purity of their Churches, rendered it impossible that their ecclesiastical institutions should work in harmony with an Establishment. Why the Independents were overlooked by the Government at that period, is obvious. At the Restoration

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they were thrown into the background. Their previous political influence had sprung from their connection with the Army, from the favour of Republican officers, and from the religious sympathies of Oliver Cromwell. That influence terminated on the eve of the King's return; and it is easy, without suspecting their loyalty, to understand how they would, at such a crisis, lose social position as well as political influence.^[254] Their prosperity under the Protectorate necessarily entailed their adversity at the Restoration. Moreover, although to the Presbyterians there remained friends at Court in the Earl of Manchester and other noblemen, the Independents enjoyed no aristocratic patrons. The Fleetwoods, Desboroughs, and Berrys, so far from being able to assist their fellow-religionists, had enough to do to take care of themselves. The Presbyterians, as we have seen, had still, in London, clergymen of high standing and great activity, but the Independents could not make any boast of that kind. Dr. Owen, who of them all, perhaps, possessed the greatest influence, lived in retirement at Stadham. John Howe, never a party man, and thoroughly averse to the occupations of public life, quietly pursued his pastoral duties at Torrington. Dr. Goodwin, it is true, had removed to the metropolis on his ejection from Oxford, but he now spent his time in seclusion; and Caryl, another distinguished member of the Congregational body, and a City pastor, preferred commenting on the Book of Job, to any entanglement in political affairs. Philip Nye was, probably, the most active of the denomination, but he had no power to serve the cause, forasmuch, as at the time of the Restoration he had narrowly escaped the fate of Hugh Peters.^[255] The Independents, as a party, were not in a position just then to render it a matter of importance that the Government should conciliate them; nor did they manifest any desire to secure for their system the temporal benefits of State endowment. Their retirement from the stage of public affairs brought them no disadvantage. Providence had appointed for them a moral discipline, of which the fruit was to appear in after years. They had embraced principles eminently conducive to the freedom and spirituality of Christ's Church, and they were destined to take an important part in the development of English Christianity through the diffusion of those principles. Their disconnection with the Establishment harmonized with that destiny. The Baptists, like the Independents, and for similar reasons, were unrepresented in the Commission; so indeed, also, if we except Reynolds, were the moderate Episcopalians, who although not prepared to go so far as their High Church

brethren in the matter of conformity, were ready to advance in that direction much beyond the limits marked out by the Presbyterians; but looking at the temper on the other side, there is no reason to suppose that the presence and counsels of such men would have altered the results of the discussions.

Having described the Savoy Conference, and the contemporary meetings of Convocation, there remain to be noticed the proceedings of that higher assembly, with which both the others were coeval.

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CHAPTER VIII.

The Solemn League and Covenant had been displaced a year, and the New Parliament now resolved to brand it with fresh indignities.^[256] Accordingly it was, by the common hangman, burnt at Westminster, in Cheapside, and before the Exchange. The executioner "did his work perfectly well; for having kindled his fire, he tore the document into very many pieces, and first burned the preface; and then cast each parcel solemnly into the fire, lifting up his hands and eyes, not leaving the least shred, but burnt it root and branch."^[257]

Similar spectacles were enacted elsewhere; and at Bury St. Edmunds, upon the anniversary of the Restoration—amidst floral decorations, and the adornment of houses with tapestry and pictures, after service at church, Hugh Peters was gibbeted in effigy, with the Solemn League grasped in his hand, and the Directory tucked under his arm. In Southampton, after the firing of culverins, and the marching of scarlet-robed Aldermen, there followed the burning of the Covenant, "in a stately frame, taken from the chancel of an Anabaptist Church."^[258]

As a further indication of the temper of the Commons at the moment, it may be stated, that the Speaker rebuked the Mayor of Northampton—summoned to the bar of the House for irreverent carriage in the church, and at the communion table—and that a Bill was read three times for preventing the mischiefs and dangers, which might arise from certain persons called Quakers, and others, "refusing to take lawful oaths."^[259]

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Ere the House had been sitting two months, Bills were introduced of such a character as to prove, that, from the beginning of the Session, measures had been framed for bringing back the Church to the standard of former days, without making any concessions to Nonconformists. The Bills now about to be described, did not appear one after another, as expedients adopted for public safety in consequence of plots, real or suspected; but they constituted parts of one coherent and comprehensive method for re-

establishing Episcopacy and crushing Dissent. They must be traced out distinctly.

I. A Bill for restoring the prelates to the Upper House was introduced to the Commons by "a gentleman of a Presbyterian family," and it met with little opposition. The ancient constitution of the Upper House could be successfully pleaded in its favour, but it involved the principle of a State Establishment of religion; and would, if discussed by voluntaries on the one hand, and by the advocates of a nationally-established Church on the other, raise the whole question as to the Christian legitimacy and the social justice of such an arrangement. It involved, also, the recognition of Prelacy as the most expedient, if not the most scriptural form of ecclesiastical government, and would thus present a momentous subject of controversy to Presbyterians. But few, if any, decided voluntaries could then be found in the House of Commons; the number of Presbyterians also was small, and their influence manifestly on the decline.

Upon the Bill reaching the Lords, some obstruction of a very different kind from that which, under other circumstances, might have been expected from the parties just named, arose from the Roman Catholic Earl of Bristol. He obtained an interview with the King and told him "that if this Bill should speedily pass, it would absolutely deprive the Catholics of all those graces and indulgence which he intended to them; for that the Bishops, when they should sit in the House, whatever their own opinions or inclinations were, would find themselves obliged, that they might preserve their reputation with the people, to contradict and oppose whatsoever should look like favour or connivance towards the Catholics: and therefore, if His Majesty continued his former gracious inclination towards the Roman Catholics, he must put some stop (even for the Bishops' own sakes) to the passing that Bill, till the other should be more advanced, which he supposed might shortly be done."^[260] Charles listened, and desired the Earl to inform his friends in the House, that he "would be well pleased, that there should not be overmuch haste in the presenting that Bill for his Royal assent." Its progress was accordingly retarded in Committee, until the Chancellor decided the Monarch, who—veering from point to point, as influence brought to bear on him by his Courtiers varied, although, no doubt, he was in his heart more disposed to follow Bristol than Clarendon—at last

consented that the Bill might be despatched. It passed at the end of the Session; and when the Parliament was adjourned at the end of July, and the Speaker in his robes, at the summons of the Black Rod, knelt before the enthroned Sovereign, the measure was the subject of emphatic reference in a speech filled with quaint conceits.^[261]

II. Next, in the course of proceedings, bearing upon religion, came the Bill for the well-governing of Corporations. It was early read, speedily committed, and largely discussed; and within a month of its being introduced, it passed the Lower House. The Lords amended it, and, according to the complaint of the Commons, changed "the whole body of the Bill." First read on the 19th of June, it did not receive the Royal assent until the 20th of December.^[262] The Act required that all members of Corporations should, besides taking the Oath of Supremacy, swear that it is not lawful, under any pretence, to bear arms against the King, and that the Solemn League and Covenant was illegal. It also declared every one ineligible for a municipal office, who had not, within one year, received the Lord's Supper, according to the rites of the Church of England.

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III. The House, on the 25th of June, appointed a Committee to report, how far the coercive power of Ecclesiastical Courts had been taken away, and to prepare a Bill for their restoration. The Bill provided that, although the High Commission had been abolished, Archbishops, Bishops, and other persons exercising ecclesiastical jurisdiction, should have their power restored as before, two provisions being subjoined—one forbidding the use of the *ex officio* oath, and another preserving the Royal Supremacy from abridgment. This Bill involved the further re-establishment of Episcopalianism. It does not appear that any debate was raised on that ground. The Bill passed, as if a matter of course; and together with the Bill, reinstating the Bishops, received the Royal assent before the end of July.^[263] Thus within a few weeks, three measures were introduced, and two of them were carried, tending to repress Dissent and consolidate the Episcopalian Church. The fourth measure, which was central in point of importance, remains to be considered. Its origin and progress must be patiently followed.

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IV. Whilst many of the Episcopalian party assumed the existence of a legal obligation to use the Common Prayer, some Nonconformists adopted this curious line of argument: "That the Common Prayer Book, 5th and 6th of Edward VI., with some alterations made 1st of Elizabeth, was so established we know, but what that book was, or where it is, we cannot tell; it is apparent that the books ordinarily walking up and down are not so established."^[264] It would seem as if this odd kind of objection secured some respect; for the first step towards a settlement of the question of worship is found in a resolution, by the House of Commons, that a Committee of all the members, who were of the Long Robe,^[265] should view the several laws for confirming the Liturgy of the Church of England, and make search, whether the original Book of the Liturgy, annexed to the Act passed in the fifth and sixth years of the reign of King Edward VI., was still extant; they were also "to bring in a compendious Bill to supply any defect in the former laws, and to provide for an effectual conformity to the Liturgy of the Church for the time to come."

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It cannot be ascertained how the new measure originated, but we may be sure that Government would not leave it to be dealt with by any private person. It formed part of a manifold scheme which must have had a single origin. The practice of holding Cabinet meetings—long regarded with jealousy by pedantic Constitutionalists—had commenced in the reign of Charles I. That businesslike and hard-working Monarch had, from time to time, drawn around him a few select members of his Privy Council, whom he assembled in his *Cabinet*, as it was called; and it appears that sometimes they had been obliged to register his absolute decrees, rather than by their advice to control his headstrong career. Charles II., idle and dissolute—in that respect the opposite of his father—held meetings of the same description, not that he might guide the helm, but often that he might sit on the quarter-deck, and laugh and joke with the officers, whilst they managed the ship very much as they pleased. The proposal of a new Law of Uniformity probably was made and discussed at one of these private conferences; and it also seems probable, that the proposal emanated from Lord Clarendon, who was, to all intents, Prime Minister.

In connection with the appointment of the Committee, the House recommended that the

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preparation of the Bill should be entrusted to the care of Serjeant Keeling. He had been engaged as Junior Counsel for the Crown on the trial of the Regicides, in 1660; and for his activity and zeal on that occasion, had attained to the distinction of the coif. He was subsequently entrusted with the prosecution of Hacker, Colonel of the Guard at the execution of Charles I. After the new Bill of Uniformity had passed, he conducted the prosecution of Sir Henry Vane, in 1662; and on each of these occasions approved himself to the ruling party, and especially to Clarendon, as a useful instrument. Created a puisne Judge in 1663, he subsequently rose to a Chief Justiceship, over the head of Sir Matthew Hale; and whilst on the bench manifested his devotedness to the Church, by fining a jury one hundred marks each, for acquitting a few poor people, who assembled on Sunday with Bibles without Prayer-books. He was a violent man, and had the character of being more fit to charge Roundheads under Prince Rupert, than to charge juries from the bench of justice.^[266] When, at length, his arbitrary proceedings and a contemptuous allusion which he made to Magna Charta, brought him under the notice of Parliament, he escaped its condemnation, only by an act of obsequious submission.

The Bill prepared by this lawyer came before the Commons on the 29th of June, and was read a first time. The second reading followed on the 3rd of July. No account is preserved of the debate. History is as silent respecting what ensued within the walls of St. Stephen's after Keeling had expounded his measure, as it is silent relative to any discussion of the principle and details of the other Bills previously introduced for the re-institution of the Episcopalian Church. The Serjeant, perhaps, would deem it unnecessary to enter into a lengthened argument in favour of imposing some one form of religious worship upon the nation, since the desirableness of such uniformity was a forgone conclusion with almost all the members of the House. But would he not defend his proposal against the objections of Presbyterians? Would not they have something to advance during the proceedings? The wish to know what was said on either side seems altogether in vain.

Upon the second reading, the printed Prayer Book of Queen Elizabeth, not that of Edward, in 1552, was attached to the Bill, and a Committee was named to meet in the Star Chamber. They were directed, if the original book of

Edward before specified, could not be found, to report upon the printed one of Elizabeth. No reference to the original book of Edward appears in the subsequent proceedings.^[267] On the day when the Bill was committed, Serjeant Keeling, with Sir John Maynard, and another member, were ordered to prepare a measure for "calling in all seditious and schismatical books and pamphlets;" and the names of the members who had not taken the Lord's Supper were reported. The House with one hand thus exercised Church discipline, whilst with the other hand it was making Church law. Upon the 8th of July, Sir Edmond Peirce reported that several amendments had been agreed to; and upon the 9th, the "Bill for the Uniformity of Public Prayers and Administration of Sacraments" was read a third time and passed; and instead of a Prayer Book, printed in the reign of Elizabeth, another printed in the reign of King James (1604) "was, at the Clerk's table, annexed to the said Bill; part of the two prayers inserted therein, before the Reading Psalms, being first taken out, and the other part thereof obliterated."^[268] This copy of the Prayer Book appears to have been attached to the Bill chiefly for the sake of form, as the Book had not yet been examined and revised by Convocation. That important business was not performed until the close of the year; and in the final stage of proceedings, before the Act of Uniformity passed, this scarcely altered volume was superseded by the revised one, which was fastened to the Bill as passed, and which will be described in the Appendix to this History.

Thus everything connected with the proceedings showed the utmost despatch; and upon Wednesday the 10th of July "the Bill for establishing the Book of Common Prayer was brought up to the Lords by a very great number of members of the House of Commons, to testify their great desire for the settlement of the Church of England."^[269]

The Bill as it left the Commons differed materially from the Act as it ultimately passed. Those differences will appear in the sequel.

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Although the Bill reached the Upper House on the 10th of July, it did not come under discussion there for more than five months. This may be accounted for. Curious as it may seem, the Bill for Uniformity had passed the Commons before it had been decided what the Uniformity should be. New prayers were composed by Convocation before it broke up in July; but

the revision of the Prayer Book by Convocation did not commence until the month of November, four months after the Bill had been sent up from the Commons. The Bill could not be completely carried before the revision was settled; and the Convocation did not accomplish that task until the end of the year. Another cause of delay is seen in the fact, that the Bishops were not restored to their seats until the 20th of November; and it was important, if not constitutionally essential, for them to take part in the decision of a question like this.

At the time when the new Bill reached the Lords, they were engaged upon a report concerning the penal laws against Papists. Hoping to share in any relief which might be extended to the last-named religionists, certain Anabaptists and "good Christians," as they called themselves, had presented a petition upon the 5th of July, and were on the 12th permitted to plead on their own behalf. The Lords finished the report on the penal laws against Catholics upon the 16th of the month; and a Committee was then appointed to prepare a Bill to repeal certain statutes concerning Jesuits, also the clause in the Act of the 35th of Queen Elizabeth c. i., respecting Nonconformists, together with the writ *de Hæretico Comburendo*. The reasons of the alterations were to be set forth, and proper remedies were to be devised for preserving the Protestant religion from any inconveniences incident upon the repeal of these ancient enactments. Such proceedings, at first sight, appear as so much progress towards religious liberty; but there is ground for believing that the reference to the statute against Nonconformists, only served to cover some relief designed for the Papists. Whatever the real intention might be, the whole business soon dropped, and no further allusion to it is found in the Journals; nor during the remainder of the year 1661 is any further mention made of the Bill of Uniformity.

In those days the transmission of intelligence to the provinces could not be otherwise than slow, and when it had reached its destination it often proved inaccurate. The broad-wheeled coach, or the horse laden with saddle-bags, could only, with measured pace, convey the London citizen to the house of a country friend. The news which he related at the supper-table, or which he conveyed in some quaintly-written epistle, would then be stale indeed, according to the judgment of such as are familiar with telegrams. The cumbrous stage-waggon, more heavily laden, would be slower still in its

movements, and by the time it reached the rural inn, the newspapers it carried would be far advanced in age. Altogether the *Mercuries* were tardy in their flight, and the *Public Intelligencers* were addicted to garbling reports, and falsifying stories. What had been done in the Session would, therefore, not be known in distant counties until some time afterwards; and then, probably, in some instances, reports would be circulated through a town or a village in erroneous form.

Tidings of the new Bill, in confused fashion, struggled down to Worthenbury, seven miles from Wrexham, where lived the eminently pious Philip Henry. Just before the Bill passed its last stage in the Lower House, he received news from London of speedy severity intended against Nonconformists. In daily doubt of what was to happen, he, on the 7th of July recorded, that "In despite of enemies the Lord hath granted the liberty of one Sabbath more." Next day he received a letter from Dr. Bridgeman (the restored Rector), informing him that if he did not speedily conform, he, Dr. Bridgeman, could no longer protect him. Henry wrote a "dilatory answer," to the Episcopalian clergyman, hoping that time might bring some deliverance. The old Incumbent acted kindly, and showed no sympathy with the ruling powers. On the 24th, news of the progress of the Bill reached the Flintshire rectory, and shaped itself into a report, that the Bill had passed both Houses, and now only waited His Majesty's assent. "Lord, his heart is in Thy hand," ejaculated the devout Puritan; "if it be Thy will, turn it; if otherwise, fit Thy people to suffer, and cut short the work in righteousness." [\[270\]](#)

STATE OF FEELING.

Means were not wanting for the annoyance of Nonconformist ministers by those who wished to restore the surplice and the Liturgy; and on Sunday, the 25th of August, 1661, just a year before the legal enforcement of Uniformity, Oliver Heywood had the Prayer Book publicly presented to him in his Church, with a demand that he would use it in the devotions of the day. It was laid on the pulpit cushion. He quietly took it down, and placed it on the reading-desk, and then went on with the service in the accustomed Presbyterian fashion, being "wonderfully assisted," as he remarks, "that day, in praying and preaching."

It is difficult, even amidst the strongest excitement of the nineteenth century, to conceive of

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the bitter feelings which existed in the middle of the seventeenth. Our abuse is courtesy, compared with the abuse which prevailed then. Fierce diatribes were uttered from parish pulpits by restored Incumbents against Roundheads, Anabaptists, and Quakers. They were denounced as rebels who had narrowly escaped the gallows. "Many of you," said Dr. Reeve, in the Abbey Church of Waltham, "have gotten a pardon for all your exorbitances, but death will seal no act of indemnity. Ye have escaped the halter of many of your fellow miscreants, but death hath set up her gibbet for you."^[271] The press also was plied for reducing intractable parishes into a state of submission. Swarms of pamphlets and broadsides were issued—some reprints, some originals—with a view to support the Church by argument, or by satire, or by ridicule.^[272] Marvellous stories also were manufactured about the devil having appeared to fanatics, who, late at night, were on their way to Conventicles; and sharp, severe, and unjust things were also said on the other side.^[273]

CHAPTER IX.

Parliament, which had been adjourned in July, reassembled in November. Charles, on the 20th of that month, attired in crimson velvet, the crown on his head, the sceptre in his hand, sat upon the throne of his fathers, attended by a good number of Earls and Barons, occupying their benches. It was a proud day for the Church of England; for then, the first time after a lapse of twenty years, the Spiritual Fathers, in their scarlet robes, as Peers of the realm, filled their ancient seats; and His Majesty, it seems, came to the House partly in honour of their re-instatement. "My Lords and Gentlemen of the House of Commons," he remarked; "I know the visit I make you this day is not necessary—is not of course—yet, if there were no more in it, it would not be strange that I come to see what you and I have so long desired to see, the Lords, Spiritual and Temporal, and the Commons of England met together."

The greater part of the speech from the Throne related to the crying debts which every day he heard; but before the King ended he said: "Those [things] which concern matters of religion, I confess to you, are too hard for me, and therefore I do commend them to your care and deliberation which can best provide for them."^[274] He was no polemic like his grandfather; but he had himself, in the autumn of 1660, undertaken to manage the Church question; a year's experience, however, had taught him a little wisdom, and no wonder that the subject which had been more than Charles V. could manage in Germany, had proved much too hard for Charles II. in England.

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The Lord Chancellor delivered a message to the House of Peers on the 19th of December, to the effect that, besides the apprehensions and fears then generally prevalent, His Majesty had received alarming letters from several parts of the kingdom; and also that from intercepted letters, it appeared there were many discontented persons troubling the nation's peace; in consequence of which he sought the assistance of Parliament.^[275] The contents of some of these letters we know. The object of informers, and of the people who rifled the post, was to make it appear that

Nonconformists were disaffected, that Dissent was treason; and that measures ought to be adopted for the utter extinction of the growing evil. Yet the accusers, in many cases, were forced to acknowledge, that the accused were quiet when let alone. The letters prove that the nation felt dissatisfied,^[276] that multitudes murmured against the Government, that Republican officers were unsettled, and that some were watching for a good opportunity to take up arms. A few fanatics entertained rebellious designs; but that Presbyterians, Independents, Baptists, or Quakers, either generally or in large numbers, were covering political plots under a veil of religious worship—the point sought to be established—is an unfounded surmise, indeed a pure invention.

An example of the method employed to criminate innocent persons may be adduced, and it will furnish an illustration of some of the evidence to which Clarendon alluded.

PRETENDED PLOTS.

William Kiffin was a rich London merchant, and a famous Baptist preacher. Whilst held in honour by his fellow-citizens for commercial integrity, and by his fellow-religionists for fervent zeal, he was the object of relentless persecution to the party now in the ascendant, and his steps were tracked by informers with lynx-eyed vigilance, and wolfish ferocity. When other methods had failed to bring him within the reach of the law, one of the most abominable schemes which cunning and malignity ever contrived, was adopted with a view to compass his ruin.

A letter was posted at Taunton bearing the signature of Colonel Basset of that town, and directed to one Nathaniel Crabb, Silk-thrower, in London, "residing at his house in Gravel Lane." The letter is preserved in the State Paper Office. It is written in a spirit of fanaticism, expressing a desire for the destruction of the sons and daughters of Belial, and declaring that there were thousands of "dear saints" who were ready to "lay down their lives to do the work of God." "We do desire you," it is said, "to be careful to get into your hands powder and arms; as many as you can between this and Easter, and we will do what we can to perfect the work." The name of Kiffin is introduced, together with the names of Jesse and Griffin, as conspirators in the design. At first sight the letter appears genuine. Nothing is indicated to the contrary in the *Calendar of State Papers*. When I read it at first, it startled me; yet this letter is a fabrication. An autobiography,

written by Kiffin, is at hand to expose the fraud. He was summoned before the Council. The letter was read to him. He replied that he knew nothing of the matters to which it referred; and afterwards, before the Chief Justice, by whom he was examined, he proceeded to show, from certain anachronisms in the document, that it must be a forgery. His Lordship expressed his satisfaction with Kiffin's defence, assuring him that the author of the letter, if discovered, should be punished.^[277]

A Committee of Lords and Commons having been appointed to report respecting plots, Mr. Waller, on the re-assembling of Parliament, after the Christmas recess, stated that not less than 160 of the old Army officers were suspected of being implicated in treasonable schemes. Some of the regicides, he alleged, were being entertained in France, Holland, and Germany; arms were being bought by them to accomplish these designs; many pretended Quakers were riding about at night to the terror of peaceable subjects, and seditious preachers were plying their mischievous trade.^[278] This report, in some parts obviously absurd, was followed by no confirmatory evidence, although further information was promised.

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The day after the re-assembling of Parliament, in the month of November, the Houses of Convocation resumed their deliberations. To facilitate the despatch of business in reference to the Prayer Book, the Convocation of the province of York agreed to unite with the Convocation of the province of Canterbury, by means of proxies, binding themselves to submit to the decisions thus obtained.^[279] So earnest was the Northern Archbishop, that he wrote to the Prolocutor of his Lower House to send up proxies by the next post, and told the Registrar of his diocese, "if we have not all from you by the end of next week we are lost."^[280] Several clergymen came from the North to town, to act on behalf of their brethren. The two provinces thus co-operating, the business of revising the Prayer Book rapidly proceeded. Upon the 10th of October, the King had written to the Archbishop of Canterbury, directing His Grace, with the other Bishops and clergy, to discharge that duty;^[281] and, probably, before Convocation met in November, the Bishops had begun to prepare for the task, although there were differences of opinion amongst them; for, whilst some pressed for

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alterations such as might "silence scruples and satisfy claims," others were for adopting the Prayer Book as it stood.

Before describing the alterations which were now made, it is proper to give, at least, a slight sketch of the history of the volume. The Middle Ages had no

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Act of Uniformity. There were several rituals, called *Uses*, of York, Hereford, Exeter, Lincoln, and other dioceses. These Uses, which did not materially differ from each other, gave place after the eleventh century, especially in the South of England, to that of Sarum; Osmund, Bishop of Salisbury, having about the year 1085, bestowed great pains upon the revision of the ecclesiastical offices in his Church. The Missal and Breviary contained in Osmund's revision of the English mediæval formularies, constitute the basis and, indeed, the substance of the Book of Common Prayer.^[282] The first reformed Liturgy for the use of the Protestant Church in England was set forth under Edward VI., in the year 1549. A second, which showed a further advance on the side of the Reformation, appeared in 1552. A primer, or book of private prayer, containing the catechism, with collects and other forms of secret devotions, was published in 1553. Elizabeth's Book of Common Prayer belongs to the year 1559; and afterwards, at different times, came particular forms of devotion, prepared for particular seasons and circumstances. The Prayer Book of 1559 underwent some alterations at the commencement of the reign of James I., after the Hampton Court Conference, but they were very slight, and were simply called *Explanations*. The Book prepared in the reign of Elizabeth, thus altered, was that which the Convocation of 1661–2 had to revise.

Perhaps I shall best succeed in giving with brevity some idea of the origin of the Common Prayer, and other offices of the Church of England, if

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I take the Morning Service, the Communion, and the Order for performing Baptism, as they were found in the Book used before the revision under Charles II., and point out, in a general way, the sources from which those forms were derived.

Morning prayer is in the main drawn from the Matins, Lauds, and Prime of the Sarum Breviary. That which may be called the introduction—extending from the opening sentence to the end of the Absolution—was a new feature in the Prayer Book of 1552. The materials of it may be found in

mediaeval Lent services, the old Office for the Visitation of the Sick, and certain portions of a homily by Pope Leo. Some have supposed that some hints for this introduction were gathered from the reformed Strasburg Liturgy, published by Pollanus (or Pullain).^[283] The idea embodied was that of substituting public confession, awakened by the reading of Holy Scripture, for private confession made to a priest; and, on the same principle, the using of a public form of absolution for a secret one. The object was to make that congregational and common which had previously been individual or monastic.

The second portion or main substance of the Morning Service, from the Lord's Prayer to the three collects, is derived obviously from different sources.

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The Versicles are taken from the Sarum Use, and other old offices. The version of the Psalter is that of Cranmer's Bible, 1539. The Lessons were substituted for the numerous, but brief Scripture sections of the Breviary, the Apocrypha being occasionally used. The Te Deum is an old canticle of Gallic origin;^[284] the Benedicite is the Song of the Three Children, a Greek addition to the third chapter of Daniel; the Apostles' Creed is taken from the Anglo-Saxon office of Prime; and, as to the other creeds, we may add, that the Nicene was sung at Mass, after the Gallican Use; the Athanasian was sung in the Matin offices.^[285]

The Litany may be regarded as a distinct service. It is a very old form of devotion, differing somewhat in different countries. The Invocation of Saints was removed by the Reformers; and in the compilation of its numerous sentences, along with the Sarum ritual, the *Consultation* of Hermann, the reforming Archbishop of Cologne (1543), was extensively employed.^[286] The collects and short prayers come from various sources; many of them from the *Sacramentary* of Gregory, and some from that of Gelasius; others were drawn from ancient models, but much altered; several were new. The few Occasional Prayers in the books of 1552 and 1559 were, like those added in the revision of 1661–2, new compositions arising out of existing circumstances.

The Communion Service, or Liturgy proper, was derived from the Missal, expurgated of course. The second Prayer Book of Edward, in that respect, was

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a decided improvement on the first. It omits even an implied *oblation of the consecrated elements*, and simply expresses the *oblation of the worshippers*—the difference of oblation being one grand difference between the Romish and Protestant Eucharist. The second Book also omits the commemoration of "the most blessed Virgin Mary," with the Patriarchs, Prophets, Apostles, and Martyrs, contained in the first. Other alterations were made of a decidedly Protestant character in the time of Edward. The Prayer Book of 1559 indicates certain retrograde changes. The omission of the thoroughly Protestant declaration respecting the Lord's Supper in the Book of 1552, is very significant. It may be added, however, that Bishops Grindal and Horn, when writing to Bullinger and Gaultier, assured them that the declaration "continued to be most diligently declared, published and impressed upon the people."^[287]

The Baptismal Service was founded upon formularies, priestly and pontifical, in the Sarum offices. Certain idle ceremonies were omitted, but the order of making catechumens, the blessing of the font, and the form of baptizing, as constituted in the mediæval Church, were adopted by the Reformers. There are also in the service plain traces of the influence of Bucer and Melancthon, through Hermann's *Consultation*. The first prayer was originally composed by Luther. The thanksgiving after the rite is a much stronger expression of the doctrine of baptismal regeneration, than the ancient Gallic form of words from which it seems to be derived.^[288]

These imperfect notices show how carefully the Reformers retained what they considered most precious in the ancient records of Christian devotion; how reverently they looked on words which had been vehicles for ages, of the service of song and the offering of prayer. This conservative element—connected with a prudential policy lest offence should be given to semi-Protestants, when it could by any means be avoided—appears to many an admirer of the Liturgy in the present day to have been a snare, betraying the compilers into the retention of some things which marred the beauty of their work, and really caused it to narrow "the Communion of Saints" in the kingdom of England. Others think far otherwise. For my own part I would say that as the sources whence the Book was compiled are so numerous and so ancient, belonging to Christendom in the remotest times—as there is in it so little that is really original, so little that belongs to the Reformed

Episcopal Church in England, any more than to other Churches constrained by conscience to separate from Rome—the bulk of what the Book contains, including all that is most beautiful and noble, like hymns which, by whomsoever written, are sung in Churches of every name, ought to be regarded as the rightful inheritance of any who believe in the essential unity of Christ's Catholic Church, and can sympathize in the devotions of a Chrysostom, a Hilary, and an Ambrose.

Such was the Book which Convocation had now to examine and revise, in connection with necessities which had been felt ever since the Reformation, and which had greatly increased during the seventeenth century.

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The Upper House appointed on the 21st of November, a Committee consisting of the Bishops of Durham, Ely, Oxford, Rochester, Sarum, Worcester, Lincoln, and Gloucester, most of whom had been Commissioners at the Savoy, to meet in the palace of the Bishop of Ely in Hatton Garden, at five o'clock in the afternoon of every day, except Sunday, until their work was finished. But when they had taken their walk as the evening drew in, they really found little to do. Their work had been anticipated; materials were ready to hand, The Prayer Book had been carefully studied and revised for a long time, by eminent Anglicans. MS. notes existed of great value, made or collected by Bishop Overall, Bishop Andrewes, and Bishop Cosin.^[289] Those by the last, as we shall see, were largely used.

That the Bishops when they met had much of what they needed provided for them may be concluded from the fact that, on the 23rd of November, only the second day after the appointment of the Committee, a portion of the corrected copy was delivered to the Prolocutor of the Lower House.^[290] Previous labours had almost superseded a discharge of the duties laid upon the newly-appointed Committee.^[291] From day to day progress was made, until, within a month, the work was completed.

Forms of prayer which had been adopted by Convocation in the summer, were now inserted in the volume. So also were the General Thanksgiving, drawn up by Dr. Reynolds, and the Prayer for all sorts and conditions of men, composed by Dr. Gunning.^[292] New collects were introduced, with

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occasional prayers in the visitation of the sick.^[293] About 600 alterations were made in the body of the volume. Some of these were in accordance with suggestions made by the Puritans at the Savoy Conference, but they did not amount to important concessions. Others of them were adapted to render the Prayer Book more distasteful to that party than before. The word *Priest* was substituted for the word *Minister* in the Absolution; instead of *Bishops, Pastors, and Ministers*, were introduced *Bishops, Priests, and Deacons*; and the words *rebellion and schism* were added to the petition against *sedition*; but many of the alterations are unconnected with any theological or ecclesiastical controversy. There is a volume amongst the Tension MSS., Lambeth, which contains *The Differences of the Old Common Prayer Book and the New*, being a copy of the edition, printed in 1663, with the variations written upon the margins and upon the paper interleaved; at the beginning, are the words, "This is the publique Liturgy revised and rectified. A^o 1662." The notes which had been collected or composed by Cosin seem to have been largely used throughout the revision.^[294]

The Bishops came to an unanimous vote in favour of a form of prayer before and after sermon; thus cutting off all liberty to introduce extempore devotion, and extinguishing one of the last hopes of the Puritan party: but this design was afterwards dropped "upon prudential reasons."^[295] Pell,^[296] assisted by Sancroft, revised the Calendar, and with the Calendar was connected the arrangement of daily lessons. Should the Apocrypha be read as before in the Church Service? The Puritans deemed it a profanation to read uninspired and, in some respects, superstitious books, as if they formed part of Holy Scripture. A severe battle seems to have been fought on this vital question. One can imagine how feelings would be excited to the highest pitch, how the question would be canvassed in different circles, how people would watch for tidings of the debate, how the History of Susanna and the Elders would be like a standard wrestled for in the tug of war; and very probable is Andrew Marvell's story of a jolly doctor, coming out with a face full of joy, shouting "We have carried it for Bel and the Dragon!"^[297]

We learn that during the later Sessions of the Convocation, Herbert Thorndike "constantly attended and had a hand more than ordinary in the

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business"—a piece of information which rests upon the authority of Sancroft. Both Sancroft and his friend were in favour of such alterations as have been sometimes called *Laudian*, and they were anxious (especially the latter of these Divines) to proceed further in that direction. Thorndike, there is reason to believe, regarded as imperfections the omission of all intercession for departed souls, and of the prayer for the descent of the Holy Spirit upon the elements used at the communion.^[298] Perhaps some others sympathized with these eminent persons in this respect, but they found their tendencies checked by the decided Protestantism of the larger portion of the clergy, and by a regard to expediency in some who had no decided convictions on the subject.

Upon the 19th of December—a day on which complaints were made to the House of Lords to the effect that many disaffected persons, both on political and ecclesiastical grounds, existed in the realm—the Upper House committed the preparing of a form of subscription to Cosin and Henchman, Bishops of Durham and Salisbury, who, in the discharge of this duty, were to receive assistance from Drs. Chaworth and Burrett. This small Committee met the same afternoon, when they came to an agreement respecting the mode of expressing approval of the revised formularies of the Church of England.^[299]

Convocation has been charged with indecent haste in the management of this whole business. I do not wonder at such a charge, since a similar accusation had been brought against the Presbyterians at the Savoy, especially in reference to Baxter's Prayer Book: and so far as the *adoption* of alterations, proposed to the Houses by individuals or committees, is concerned, there is ground for the complaint. Six hundred alterations could never have been properly considered by two large bodies of men in the short time actually devoted to them; and looking at the matter as one so much affecting their own consciences, and the consciences of all clergymen in future time, we must regard so hasty a decision on the part of Convocation as unjustifiable. But, as it regards *preparing* the alterations, I see no ground on which to charge with want of care the persons who performed that duty.^[300]

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There does not appear to have been any discussion in Convocation touching the Thirty-nine Articles. No alterations in them were proposed by the Anglican party, although the Articles have always been considered as presenting the more thoroughly Protestant or *Evangelical* side of the Church formularies.

The two Houses of Convocation adopted and subscribed the Book of Common Prayer on the 20th of December. As the Act of Uniformity had not then been passed, as this subscription was intended to prepare for it, and as no Act of Parliament existed at the time requiring subscription, it may be instructive and useful to notice the grounds on which this subscription took place.

This fact is curious that, although the practice of subscribing to a creed began so early as the Council of Nicæa, neither the clergy of the Roman Catholic Church, nor the clergy of the Greek Church have ever been required, or are now required, by any of their laws, so to express their belief as to doctrine and their resolution as to practice. The enforcement of subscription upon Protestant ministers commenced soon after the Reformation; and, in some cases, the extent of belief which it was intended to cover seems wide indeed; for in the Duchy of Brunswick, Duke Julius required from clergymen, from professors, and from magistrates, "a subscription to all and everything contained in the Confession of Augsburg, in the apology for the Confession, in the Smalcaldic Articles, in all the works of Luther, and in all the works of Chemnitz."^[301] The Articles of the Church of England were not subscribed generally until the twelfth year of the reign of Queen Elizabeth, when subscription was ordered for the special purpose of checking the admission of Papists into the English Church, and also the admission of those who had taken orders in the foreign Reformed Churches. The assent required was confined to those Articles "which only concern the Confession of the true Christian faith and the doctrine of the Sacraments."^[302] The Earl of Leicester introduced to the University of Oxford, in 1581, subscription to the Articles, without any precise form of words to be required from all undergraduates upon matriculation, and from all who took degrees. The extending of the act of subscription to the entire Liturgy was a step not taken until 1603, when, by the canons of Convocation of that year, this form of assent came to be required of all the clergy. Hence it appears to

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have been in compliance with a canon law enacted by their predecessors, and not in compliance with any statute law, that the members of Convocation, in the year 1661, signed the declaration of assent and consent to the contents of the Prayer Book.^[303]

After the Revision had been completed, a copy of the Bill then pending in Parliament was read and examined in the Upper House of Convocation upon the 29th of January. Upon the 18th of February, Dr. Barwick was chosen Prolocutor in the room of Dr. Ferne, promoted to the see of Chester. The Bishops deputed their brethren of St. Asaph, Carlisle, and Chester, on the 5th of March, with the concurrence of the Lower House, to revise alterations in the Book during its progress through Parliament—a resolution which seems to have had a prospective reference to alterations anticipated as possible, but which do not appear to have been ever attempted; for it is known, as will be hereafter seen, that none were made by the Commons, and it may be inferred that none were made by the Lords.^[304] Upon the 8th of March Convocation directed Sancroft, afterwards Archbishop of Canterbury, to superintend the printing of the Book; and Mr. Scattergood and Mr. Dillingham to correct the proofs. Upon the 22nd of the same month the subject of a special form for the consecration of churches came under discussion.^[305]

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Convocation accomplished no alterations in the canons, though it took up the subject repeatedly; nor did it determine anything with regard to Church discipline. The whole of this question had remained in an unsettled state ever since the Reformation. In the reign of Henry VIII. (1534), a Commission had been appointed by statute to revise the ecclesiastical laws; and enactments respecting them nearly up to the time of the death of that monarch were repealed. In the reign of Edward VI. (1551), a renewed Commission for the same purpose was statutably instituted; and the labours of the Commissioners issued in the well-known book, entitled *Reformatio legum Ecclesiasticarum*, a code strongly imbued with the intolerance of the age.^[306] But it never received the Royal sanction; it never became legally binding. Another abortive attempt was made in Convocation (1603), when James I. occupied the throne; and canons were passed declaring the doctrine of passive obedience, and denouncing a series of opposite opinions.^[307]

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Happily for the credit of the Church and the peace of the realm, this, like the previous scheme of ecclesiastical law, failed to obtain constitutional sanction. The last endeavour at making canons (1640) hastened the crisis of the Civil Wars. There was little then to encourage Convocation to proceed with the business of Church discipline, and, therefore, notwithstanding the earnestness of Thorndike in promoting it, the subject was allowed to drop. [\[308\]](#)

The month of December, which saw the revisionary labours of Convocation completed, also witnessed within the walls of Westminster Abbey two remarkable solemnities connected with the revival of Episcopacy. Upon the 12th of December, Sharp, Archbishop of St. Andrew's, Fairfull, Archbishop of Glasgow, Leighton, Bishop of Dunblaine, and Hamilton, Bishop of Galloway, were consecrated by the Bishops of London and Worcester; [\[309\]](#) and upon the 20th, the day when the Prayer Book was being subscribed by the members of the two Houses of Convocation, the Bishop of Hereford, brother to the Duke of Albemarle, was buried,—a silver mitre, with his Episcopal robes, being borne by the Herald before the hearse, which was followed by the Duke, by several noblemen, and by all the Bishops. [\[310\]](#)

BISHOPS.

The Bishops, this year, had other business besides that of Convocation to occupy time, and to create anxiety. Prior to the passing of the Act of Uniformity, their dioceses could not but be in a state of confusion. Many clergymen who were disaffected to the restored system and its Episcopal administrators, retained incumbencies, and gave considerable trouble to the ecclesiastical superiors. It was as if, after the suppression of a long-continued and successful mutiny, and the re-instatement of old officers in command, a number of soldiers in the ranks, or of sailors on board ship, should still remain opposed to the colonel or the captain. [\[311\]](#)

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CHAPTER X.

As there had been only an adjournment, and not a prorogation in the summer of 1661, the Bill of Uniformity, carried by the Commons before that period, remained eligible for consideration from the Lords in the following January. They read the Bill a first time, on the 14th, the Spiritual Peers before that date having taken their seats, and the revision of the Prayer Book by Convocation having also been completed. The Bill was read a second time, and referred upon the 17th of January to a Select Committee. Upon the 13th of February, this Committee requested to know whether they should proceed with the old Prayer Book sent up to them by the Commons, or wait for the copy revised by Convocation. That copy had been handed to the King for examination—a thing not suited to his taste—but whether teased to the performance of a task, or taking the whole matter on trust, it is certain, that before the end of the month of February, he formally sanctioned the alterations.^[312]

The volume having been, by the two Archbishops presented to the Lords, the Earl of Northumberland proposed that the old Prayer Book should be adopted, in connection with Queen Elizabeth's Act of Uniformity—a proposition which, however feasible at an earlier period, came now too late.

The slow progress made by the Lords had dissatisfied the Lower House, and complaints from that quarter had reached the Royal ears; hence, when the King gave audience to the Commons at Whitehall, on the 3rd of March, respecting his revenues, he, having before that time sent the revised Prayer Book to the Peers, could boldly speak as follows: "I hear you are very zealous for the Church, and very solicitous, and even jealous, that there is not expedition enough used in that affair; I thank you for it, since, I presume, it proceeds from a good root of piety and devotion; but I must tell you I have the worst luck in the world, if, after all the reproaches of being a Papist, whilst I was abroad, I am suspected of being a Presbyterian now I am come home."^[313] This strange kind of talk was followed by a declaration of zeal for the interests of the Church of England. The Duke of

Buckingham, the Earl of Pembroke, Lord Wharton, and other Peers, were added to the Committee of the Upper House for considering the contents of the Bill.^[314]

The secrets of that Committee have not been disclosed. It is remarkable that it included a decided Nonconformist in Lord Wharton, one still favourable to Nonconformity in the Earl of Manchester, and two Bishops who had been Presbyterians—Gauden, the Bishop of Exeter,^[315] and Reynolds, Bishop of Norwich,—to say nothing of the Duke of Albemarle, who had been identified both with Independents and with Presbyterians. These persons formed but a small minority in a Committee which consisted altogether of above thirty members; and they formed but a feeble minority compared with such powerful men as Sheldon, Bishop of London, Cosin, Bishop of Durham, Morley, then Bishop of Worcester, and Sanderson, Bishop of Lincoln. Was the opposition of the small minority violently overborne? or did the small minority tamely submit? Wharton was the only man likely to make much resistance.

The Earl of Bridgwater reported on the 13th of March, "divers amendments and alterations," stating that they related to the Book recommended by the King, and not to the Book brought up from the House of Commons. The alterations in the Book were read before reading the amendments to the Bill.

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Two days after the report had been delivered, the business was completed; the Peers had caught the spirit of Convocation, and, by their haste now, had made up for lost time. Clarendon took occasion to thank the Bishops for their revision of the Book in Convocation, and requested them to thank their clerical brethren of the Lower House. The preamble to the Bill received approval upon the 17th of March, when the Minister just mentioned communicated a message from His Majesty, and read a proviso which he wished to be inserted. The House, evidently startled at the wish, requested him to read the proviso a second time. This being done, the matter stood over for consideration until the following day. The Journals are silent as to the nature of this proviso; but a despatch by De Wiquefort, the Dutch Minister, explains the matter. Amongst the gossip which he details to his Court—how in a chest belonging to Henry Marten, was found a memoir by the French Ambassador, full of the praises of the Commonwealth; how

the Irish Catholics were getting into trouble because they had been negotiating with Rome to the King's prejudice; how they were forbidden to present any request; how their agent was not allowed to appear at Court; and how the Chancellor had a strong party formed against him;—the writer communicates an important fact, which solves the enigma left by the Journals. The Chancellor, says De Wiquefort, informed the Lords that the King wanted a power to be inserted in the Act of Uniformity, enabling him to relieve clergymen from an obligation to wear the surplice and to make the sign of the cross.^[316] From this information it appears that Charles, even at this early period, aimed at a dispensing power, a power which, before the close of the year, he eagerly endeavoured to grasp. The Lords, however, were jealous of the interference of the Crown in sending such a message as had been delivered by Clarendon; and they questioned whether a resolution ought not to be entered on the Journals in reference to it, fearing lest their privileges might be endangered by their going so far as even to take such a subject into consideration. The 19th of March found the Bill recommitted, including the Royal proviso and the several amendments.

The amendments consisted of certain additions to the preamble—of the connection with the Prayer Book of the Psalms of David, as they were to be said or sung in churches; of the form of ordaining and consecrating Bishops, Priests, and Deacons;—of the substitution of the feast of St. Bartholomew for Michaelmas, as the time when the Act should come in force;—of the insertion of a new form, according to that adopted by Convocation, declaring "unfeigned assent and consent" not only as originally prepared to the use of the Book, but to all and everything it contained and prescribed; and of an additional form, repudiating the Solemn League and Covenant. Both these forms required subscription. A further amendment rendered it necessary, that every minister of the Church of England should be episcopally ordained, and that licenses from Bishops should be secured by all who undertook the office of Lecturers.^[317]

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Some of the amendments occasioned little or no debate, a circumstance which surprises us when we consider the Puritan tendencies of certain Lords. The points which chiefly occupied attention were—first, the requirement of Episcopal ordination as a *sine quâ non*; and, secondly, the imposition of the

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form which repudiated the Covenant. The debates on these questions, so far as they can be recovered, will now be given.

I. It was argued by some who retained Puritan sympathies, that the first of these requirements was not in accordance with what had "been the opinion of the Church of England,—and that it would lay a great reproach upon all other Protestant Churches, who had no Bishops; as if they had no ministers, and, consequently, were no Churches:—for, that it was well known, the Church of England did not allow reordination, as the ancient Church never admitted it; insomuch, as if any priest of the Church of Rome renounces the communion thereof, his ordination is not questioned, but he is as capable of any preferment in this Church, as if he had been ordained in it. And, therefore, the not admitting the ministers of other Protestant Churches, to have the same privilege, can proceed from no other ground than that they looked not upon them as ministers, having no ordination; which is a judgment the Church of England had not ever owned, and that it would be very imprudent to do it now."

This argument called forth replies from other members—most likely from some of the Bishops—to the following effect:—"That the Church of England judged none but her own children, nor did not determine that other Protestant Churches were without ordination. It is a thing without their cognizance; and most of the learned men of those Churches had made necessity the chief pillar to support that ordination of theirs. That necessity cannot be pleaded here, where ordination is given according to the unquestionable practice of the Church of Christ; if they who pretend foreign ordination are His Majesty's subjects, they have no excuse of necessity, for they might in all times have received Episcopal ordination; and so they did upon the matter renounce their own Church; if they are strangers, and pretend to preferment in this Church, they ought to conform, and to be subject to the laws of the kingdom, which concern only those who desire to live under the protection [thereof.] For the argument of reordination, there is no such thing required. Rebaptization is not allowed in or by any Church; yet in all Churches where it is doubted, as it may be often with very good reason, whether the person hath been baptized or no, or if it hath been baptized by a midwife or lay person; without determining the validity or invalidity of such baptism, there is an hypothetical form—"If thou hast not

been already baptized, I do baptize,' &c. So, in this case of ordination, the form may be the same—'If thou hast not been already ordained, then I do ordain,' &c. If his former ordination were good, this is void; if the other was invalid or defective, he hath reason to be glad that it be thus supplied."^[318] Such a mode of silencing the scruples of ministers on whom the ceremonies of reordination was imposed, came extensively into fashion after the passing of the Act.

II. When the House resumed their discussions,^[319] the point in consideration was "the clause of ministers declaring against the Covenant."^[320] A form of abjuring both the doctrine of resistance, and the obligations of the Covenant, had been required by the Corporation Act. Upon comparing the words in that Act with the words in the Bill of Uniformity, it will be found that the latter are the same as the former, with the addition of two short clauses,—first, "that I will conform to the Liturgy of the Church of England, as it is now by law established;" and, secondly, that the Covenant entailed no obligation "to endeavour any change or alteration of government in Church or State." As this form of renouncing the Covenant was only of temporary use, and was to be abolished in twenty years, it ceased afterwards to receive much attention; but, at first, it constituted a chief point of interest both to the upholders and opponents of the Bill, even beyond the importance attached to the form of subscription and declaration respecting the Prayer Book. Many of the Peers, who had taken the Covenant, were not so much concerned that the clergy should be obliged to make this declaration, as that, when such a clause should be passed and sanctioned, it might be inserted in other Acts relating to the functions of other offices, so that, in a short time, what was now only required of the clergy might be required of themselves.^[321]

The Puritan Peers warmly opposed the clause as unnecessary, and as widening the breach instead of closing up the wounds which had been made. Many men would believe or fear that this clause might prove a breach of the Act of Indemnity, which had not only provided against indictments and suits at law and penalties, but against reproaches for what was past. As for conformity to the Liturgy, it was provided for fully in the former subscription prescribed by the Bill. The Covenant contained many good

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things, as defending the King's person, and maintaining the Protestant religion: and to say that it entailed no obligation would neither be for the service of the King, or the interest of the Church; especially since it was well known, it had wrought upon the conscience of many in the late revolution. At any rate, it was now dead; all were absolved from taking it. If it had at any time produced any good, that was an excuse for its irregularity: it could do no mischief for the future; and therefore it was time to bury it in oblivion. ^[322]

The Court party, Clarendon says, made themselves very merry with the allegation, that the King's safety and the interest of the Church were provided for by the Covenant, since it had been entered into, in order to fight the King and destroy the Church. It contradicted itself; and, if it were not so, the obligation to loyalty was better provided for by some other oaths. The Bill was no breach of the Act of Indemnity, the new Declaration was absolutely necessary, for the safety of the King's person, and the peace of the kingdom; the Covenant was still the idol to which the Presbyterians sacrificed: and there must always be a jealousy of those who had taken it, until they had declared that it did not bind them. The clergy, of all men, ought to be glad of the opportunity which was offered, to vindicate their loyalty and obedience. ^[323]

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The Bill being now in its last stage, the Lords appointed certain of their number to draw up a clause empowering the King to make such provision for any of the deprived clergy as he should see fit. ^[324] As this clause—like the proviso respecting the cross in baptism—opened the door for Royal interference—so, probably, like that, it originated in a Royal suggestion. At all events, these two amendments in contrast with others which increased the severity of the Bill, indicated the existence of kindness towards tender consciences, and impoverished clergymen,—a disposition which Charles entertained, and in which certain Lords, including some not puritanically inclined, concurred with him.

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When the Bill had reached a third reading, the amendments were referred to the Commons for their consideration. The Commons vigorously

set themselves to work; the Committee sitting until eight at night—a late hour in those days—and meeting early the next morning.^[325]

No debate arose upon the alterations made in the Prayer Book by the Houses of Convocation. The House of Commons, indeed, appointed a Committee to compare the Book of Common Prayer sent down from the Lords with the Book sent up by themselves; but the alterations were adopted at once; or, rather, the Book as a whole was adopted. It is remarkable, however, to find how then, as almost always, the members showed themselves jealous of their privileges; for, upon a question being put, whether the contents of the revised Book should come under debate, and the question being negatived,^[326] lest it should be thought that the State in this matter submitted to the Church, and allowed the right of Convocation to control Parliamentary proceedings, another question, *i.e.*, "that the amendments made by the Convocation, and sent down by the Lords to this House, *might* by the order of this House, have been debated," received an affirmative answer, without a single dissentient voice.

Whilst jealous of any interference with their own privileges, the Commons had no regard for the interests or feelings of the Puritan clergy; since they accepted the harsh amendments of the Peers, and added others of their own, so as to render the Bill more intolerable than it had been before. This circumstance has commonly been overlooked, and therefore requires particular attention.

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The Lords had introduced a reference to "the tenderness of some men's consciences;" the Commons struck out the words.^[327]

When the Lords' substitution of "Bartholomew" for "Michael the Archangel," a substitution which aggravated the severity of the measure, came to the vote, there were 87 for the Angel's day, and 96 for the Saint's.^[328] The amendments and alterations respecting ordination, subscription, and the Covenant, all of which had been conceived in the same spirit of severity, were adopted without division.

At the same time the Commons extended the operation of the measure so as to bring within the meshes of their net not only the clergy, but all who

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held offices in the Universities, and every kind of teacher down to the village schoolmaster, and the tutor in a private family. All such persons, as well as Deans, Canons, and Prebendaries, who had been mentioned in the original Bill, were obliged, through the amendments of the Commons, to subscribe the declaration of non-resistance; to conform to the Liturgy of the Church of England, as now by law established; to deny that any obligation had been incurred by taking the Covenant; and to repudiate that oath as altogether unlawful. The addition of a penalty of three months' imprisonment to meet the case of those men who had no livings to lose, affords another instance of the harsh spirit of the Lower House. Likewise these legislators drew within the reach of the Bill, the case of those who held benefices without cures—for the reason that the House did not "think fit to leave sinecures to Nonconformists," nor permit a Nonconformist to hold a Curate's or a Lecturer's place.^[329] An attempt being made in a different direction to confine preferment to those who should receive Episcopal ordination "according to the form of the Church of England,"—a restriction which would have excluded such as were in Romish orders,—the attempt met with a different fate. It entirely failed.^[330] The Lords' tolerant proviso for dispensing with the cross and surplice was by the Commons negatived at once;^[331] and after an adjourned debate upon the allowance of a fifth part of the income to ejected Incumbents, the considerate amendment of the Peers was thrown out by a majority of seven.^[332]

When all this had been done, a message reached the Upper House, on the 30th of April, to request a Conference with the Commons relative to the amendments; but owing to the dilatoriness of the Peers the Conference did not take place before the 7th of May, when Serjeant Charlton defended the Bill in the shape in which the Commons had left it.^[333] In an elaborate oration he pointed out, and defended each of their amendments, dwelling upon the extension of the Act to schoolmasters, as necessary for the proper education of the young, the neglect of which amongst the gentry and nobility had been, he said, the root of numerous mischiefs in the Long Parliament. "It was an oversight," he added, "in the usurped powers that they took no care in this particular, whereby many young persons were well seasoned in their judgments as to the King. This made the Commons take care that schoolmasters, as well as ministers should subscribe, and rather

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more." The penalty of three months' imprisonment, this gentleman ingeniously urged, was designed to meet the case of those who had no livings to lose: it was imprisonment in default of paying a fine: whilst the proviso introduced by the Lords, to dispense with cross and surplice, he contended was a thing altogether without precedent, which would establish schism, and yet not satisfy those for whose relief it was intended. The King's engagement at Breda to respect "tender consciences" had been noticed by the Lords in support of their amendment; and now, with the commonplace sophistries always at hand for the use of intolerance, the manager laughed at the idea of calling schismatical consciences "tender." "A tender conscience denoted," according to his definition, "an impression from without received from another, and that upon which another strikes;" what the definition exactly means I am at a loss to comprehend. The Serjeant was clearer, and more plausible, although equally sophistical in his legal reasoning, to the effect that the Breda Declaration had two limitations: first, its validity depended upon the sanction of Parliament; and, secondly, the bestowment of liberty must consist with the kingdom's peace. As to the allowance of fifths to the ejected ministers, he argued that it would be repugnant to the idea of uniformity; that, "joined with the pity of their party" it "would amount to more than the value of the whole living;" that it would be a reflection on the Act; that it would impoverish Incumbents; and that it would encourage Dissent. This argument was no less heartless than contrary to the precedent, which, under similar circumstances, had been furnished by the Long Parliament. Charlton further suggested that the Lords should recommend Convocation, to direct "such decent gestures," to be used during the time of Divine service, as was fit. It may be stated that the Lords, on the 8th of May, recommended to the Bishops and the House of Convocation, to prepare some canon or rule for the purpose; and that the matter was accordingly brought before Convocation on the 10th and 12th of May, when the 18th of the canons of James I., relating to the subject, underwent emendation.^[334] Charlton concluded by saying, that he found one mistake in the rubric of baptism, which he conceived was made by a copyist, the word *persons* being written instead of the word *children*.^[335] The amendments and alterations reported to the Lords were all agreed to, and the clerical error in the Bill pointed out by Charlton, was formally rectified at the Clerks' table by the Bishops of Durham, St. Asaph, and Carlisle, under authority from Convocation.^[336]

The MS. volume, copied from the printed Book of Common Prayer, of the edition of 1636, and altered according to the decisions of Convocation, was with the printed Book attached to the Act.^[337]

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CHAPTER XI.

The Bill received the Royal assent upon the 19th of May. Perhaps the reader will not be wearied with an account of the ceremony, and of the speeches delivered at the time.

His Majesty occupied the throne in Royal magnificence. The Lord Chancellor took his place on the woolsack. On the right side, below the throne, sat the Archbishop of York, the Bishop of Durham, the Bishop of Bath and Wells, and other prelates, including Reynolds of Norwich, who could scarcely, with comfort, have witnessed the proceedings of that day. Neither Sheldon nor Morley was present. On the left side, at the upper end of the Chamber, were the Lord Treasurer, the Lord Privy Seal, and three Dukes—Buckingham, Richmond, and Albemarle. The Marquis of Winchester sat by Albemarle's side, and below came twenty-six Earls, one Viscount, and thirty-six Barons. The Commons appeared at the bar, with the Speaker of the House, who delivered a highly rhetorical speech.

The King, after giving his assent, delivered a curious homily upon the extravagant habits of the people, without saying one word about the Act of Uniformity—after which Clarendon pronounced a long oration, in the course of which he observed, "the execution of these sharp laws depends upon the wisdom of the most discerning, generous, and merciful Prince, who, having had more experience of the nature and humour of mankind than any Prince living, can best distinguish between the tenderness of conscience and the pride of conscience, between the real effects of conscience and the wicked pretences to conscience—a Prince of so excellent a nature and tender a conscience himself, that he hath the highest compassion for all errors of that kind, and will never suffer the weak to undergo the punishment ordained for the wicked."^[338]

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This was an extraordinary speech to an English Parliament. It can bear no construction but that of being a plea for a dispensing power. The Houses having framed a law, Clarendon would have it left to the Royal wisdom to temper its administration, and to distinguish between the *tenderness* and the

pride of conscience,—as if the power of discerning spirits were a gift to kings. What, in the lips of any English senator would be inconsistent, appears doubly so in the present instance, for Clarendon afterwards opposed the exercise of the power which he now claimed on his master's behalf.

It is necessary here to pause, and inquire what change this famous Act made in the Establishment of England. The insisting upon Episcopal ordination, in every case, as essential to the conducting of public service, and to the preaching of the Gospel, certainly cut off the English Church, more completely than before, from fellowship with other reformed Churches;^[339] and, in consequence of another provision for a certain period, the pastoral office became dependent on the taking of a political oath, to which some, approving of her doctrine and of her discipline, might conscientiously object. The Church also stood pledged to the maintenance of civil despotism. Under pretence of reprobating the course pursued under the Commonwealth, a dogma was imposed upon the ministers of religion, which, if believed, would effectually prevent any resistance to the designs of an arbitrary monarch, even if he should lend himself to the overthrow of the Church itself. Besides, persons might be found not unfriendly to moderate Episcopacy, who, nevertheless felt it wrong to use respecting the League and Covenant the terms which this Act prescribed.

The Act of Uniformity added the requirement of "unfeigned assent and consent" to everything contained in the Prayer Book. By such alterations the Church of England became increasingly exclusive and Erastian in its principles, and less Protestant and liberal in its spirit.

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In carrying a great measure, responsibility must be divided. It rarely happens that a number of persons combining together to effect any change are influenced by the same views; and in this instance of united action different degrees of responsibility, and different kinds of motives, are discoverable, when we look a little below the surface.

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I. Convocation must be held responsible for the changes made in the Prayer Book, its revision being exclusively the work of that assembly; but, at the same time, it should be remembered, that assembly formed only a small body, and represented but in part the sentiments of the clergy. Many

of the members felt a strong zeal for order and union; the feeling assumed different aspects in different instances. Some in the Upper House, as Cosin, Sanderson, Hacket, Ward, Morley; some in the Lower, especially Thorndike, sympathized in the sentiments of Cyprian, as expressed in his *Liber de Unitate Ecclesiæ*, confounding unity with uniformity, and allegiance to Christ with submission to Bishops. They, like him, might suppose that in their zeal for Episcopal order, they were working out an answer to our Lord's intercessory prayer. Such a conception of ecclesiastical oneness had been, by the Nicene and Mediæval Churches, handed down to the Church of the English Reformation; and it must be admitted, that desires for uniformity by means of Episcopal order, were in many cases so interlinked with submission to Christ, as, even in the estimation of those who differ from Anglo-Catholics, to have their errors, in a measure, redeemed by the devoutness of their affections. Desires for uniformity, however, as they wrought in some, both of the superior and inferior clergy, at the period of the Restoration, had nothing whatever of nobleness in them.

The Bishops shared in the responsibility of the Upper House of Parliament, as well as in the responsibility of the Upper House of Convocation. Sheldon,—to whom must be attributed much influence over the latter, and also much over the former, so far as the Bishops were concerned; and who also, from his prominent position and great activity at the Restoration, could not fail to share in Clarendon's counsels, respecting the Bill,—was not a man of religious zeal, but a man of worldly principles; and it is not uncharitable to regard others on the Bench, and in the Lower House, as closely resembling him in this respect. Reynolds belonged to a class which, when a crisis arrives, will always bend to the force of stronger minds, and be carried along by the current of authority.

Between the Bishops at the Restoration and the Bishops at the Reformation, a considerable difference appears. The theology of the Anglican prelates at the Restoration was not imbued with those elements of thought, which the early Reformers held in common with Puritan Divines; hence, in part, arose the dislike which the Fathers of the re-established Church cherished towards Nonconformists. Sheldon, as will appear when we fully examine his character, differed from the ecclesiastical leaders in Queen Elizabeth's time, such as Parker and Jewel,^[340] who had strong religious

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affections, and were earnestly bent upon building up Protestantism in England as the great bulwark of her prosperity; moreover, the Caroline restorers and revisers of the Prayer Book were utterly deficient in comprehensive policy. The Elizabethan Divines did avoid, as much as possible, giving offence to such of the old Roman Catholic party, just dispossessed of power, as felt at all disposed to join them; but the ecclesiastical leaders of Charles' day, threw every obstacle they could in the path of those Nonconformists who showed any disposition to adopt a modified system of Episcopacy.^[341]

II. In the House of Commons there existed a mad Royalist party, influenced by strong personal resentment, who identified the Church with the Throne, who could not forget what they had suffered under the Commonwealth, and who especially had a keen recollection of estates sequestered, and of fines imposed. They were bent upon punishing their foes, and therefore made the Act as rigid as possible. Its severest provisions are to be ascribed not to any clerical body, nor to the Lords, nor to the Prelates, but to the Commons. The Commons were more intolerant and fierce than any of the Bishops, than any of the clergy. "Every man, according to his passion, thought of adding somewhat" to the Bill which "might make it more grievous to somebody whom he did not love."^[342] Liberal amendments in the Upper House were resisted in the Lower; and to the unjust and ungenerous provisions added by the Lords, were others more unjust and ungenerous added by the Commons. The Commons, in comparison with the Lords, appear to have been what the young men, whom Rehoboam consulted and followed, were in comparison with the old men, who stood before Solomon his father; and the scourge of whips became a scourge of scorpions.^[343] Bad as was the Bill from the first, it was worse in the end than in the beginning.

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III. Clarendon ought to bear a large share of responsibility. His attachment to an Episcopalian establishment has been repeatedly noticed. He regarded it as the bulwark of Protestantism, the main stay of the nation's weal. Burnet reckons him more a friend of the Bishops than of the Church; certainly he showed anxiety to please them, and their good opinion and support were of importance to him in many ways. What induced him to court the Bishops would, in a still stronger degree, induce him to gratify the

Commons. Consequently, supposing that his better nature, or his wiser judgment, inclined him—which is probable—towards a more moderate course, other considerations induced him to adopt the severe line of policy which had been chalked out by some, and filled up by others.^[344] Clarendon, as leader of the Upper House, does not appear to have used his influence for the purpose of removing from the Bill any of the most rigorous parts of it; to their abatement perhaps he might contribute, although this does not appear. The liberal amendments proposed by certain Peers seem to have been abandoned without a struggle; and for this surrender surely Clarendon is mainly answerable.

IV. Another party concurred in the Act from entirely different motives. The Roman Catholics had been on the increase since the Restoration. Somerset House, the residence of the Queen Mother, was the place of resort for the leaders of the party. There, and at the mansion of the Earl of Bristol, they consulted upon the interests of their own Church. Of course, they had no idea of seeking comprehension in the Establishment: their policy was to procure toleration; with that for the present they would be satisfied, whatever might be their ulterior aims. Nothing promised so much advantage to them as the passing of a stringent measure, which would cast out of the English Church as many Protestants as possible. Whilst they were aware of the terror which they inspired in the minds of Nonconformists, they hoped that fellowship in suffering might soften antipathy, and dispose their enemies, for their own sakes, to advocate some general indulgence: they considered that the fact, of a large number of Protestants suffering from persecuting laws, would at least strengthen the argument in its favour. It was, I apprehend, on this principle, that the Duke of York and the Catholic Peers united in supporting all the provisions for uniformity.

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At the head of this Roman Catholic party the King himself is to be placed. When he had reluctantly made up his mind to consent to the measure, it was in accordance with the circuitous policy I have now pointed out. Besides, he was fond of a dispensing power, liking Royal Declarations better than Acts of Parliament; almost any statute would be tolerable to him, if it gave him the prospect of affording relief to his subjects in the form of sovereign concession. Clarendon, who subsequently opposed the exercise

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of this power, now virtually recognized it, as a prerogative of the King, in the speech just quoted, and plainly pointed to the Royal intention of employing that assumed prerogative for mitigating the severities of the present statute.

Policy and passion were stamped upon the face of the measure. It would be the bitterest of all satires to say that the men principally concerned in it were influenced by religious conviction—that conscientiously and in the sight of God, they performed an act which, though they saw it to be rigorous, they felt to be righteous. Amidst keenly excited feelings on the side of an exclusive policy, perhaps there was no impulse of greater force than the very common one of party feeling.

When we recollect that it was not to the clergy then expressing itself in Convocation, or in any other way, but to Parliament, that the Church of England owed the clauses which required the repudiation of the Covenant, and of the doctrine of non-resistance—clauses which so galled the Puritans—the Act, to a large extent, appears, not so much an ecclesiastical measure, as a work executed by a political faction, bent upon crushing opponents, under pretence of their being unpatriotic and disloyal. Of the bad spirit in which Parliament framed and passed this act there remains not the shadow of a doubt; and it is impossible that any one acquainted with the circumstance, however he may admire the Church so re-established at the Restoration, can think of the mode of its re-establishment without shame and sorrow.

It is very remarkable that the Act omitted to provide for uniformity in certain important particulars; and it has failed to produce the uniformity intended in others.^[345] Nothing was done in relation to psalmody; forms of prayer and praise in prose were rigidly set down, but forms of prayer and praise in verse were left to be composed or adopted at the pleasure of any one, subject only to the doubtful authority of the Bishop or Ordinary. The formularies of the Prayer Book relating to baptism have long received from Episcopalians contradictory interpretations; and, of late years, liberty in this respect has been legally conceded, as not inconsistent with the Act of Uniformity. The obscurity of the rubric on the subject of ornaments renders a decision of the controversy by ecclesiastical lawyers a difficult matter, and consequently places Bishops in perplexity as to what is

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the law, and how they are to proceed. We are struck with the *unequal pressure* of the Act. It made clerical practice in some respects very strict, and in others very lax: whilst, as to prominent points then in dispute between Episcopalians and Presbyterians, the law is precise; as to other points, far from unimportant, the same law, through intention or neglect, opened, or left open, a wide field for difference and for controversy.

The experience of a hundred years was thrown away upon the authors of the measure. The first Act of Uniformity under Elizabeth had proved a failure

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—the subsequent history of her reign had shown, that this contrivance to repress the spirit of religious liberty, produced no more effect than did the green withs which bound Samson. The troubles of James' reign, the overthrow of Laud's policy, together with his sufferings and death, illustrated the mischievous consequences of confounding unity with uniformity, and of seeking the first by means of the second. Grindal and other prelates had been sick at heart, through fruitless endeavours made to secure spiritual obedience by physical force. Lord Bacon had pointed out the difference between unity and uniformity, and had reproved the persecutor, by saying, that the silencing of ministers was a punishment that lighteth upon the people, as well as upon the party;^[346] others of humbler name had still more clearly explained, and still more directly enforced, the lessons of toleration. But all in vain; the teaching of a whole century had been wasted on the contrivers and supporters of the second Act of Uniformity.

The Act did not merely eject all Incumbents who scrupled to comply with its requirement, but it silenced throughout the land all the preachers of Christianity who were not Conformists.

All Nonconformist ministers were prohibited from officiating in the pulpits of the Episcopalian Church established by law; few other places of worship were in existence, and the operation of the Act, especially by citing and recognizing the Act of Uniformity under Elizabeth, would be to prevent Nonconformists from preaching anywhere.

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Two classes then were affected: Incumbents, whom the Act ejected; and ministers, not Incumbents, whom it silenced. Plausible arguments might be

adduced for the uniformity of an establishment; strong reasons might be urged against a coalition of Episcopacy with Presbyterianism. The government of Bishops, and the use of a Liturgy, being adopted in the Church, it may be said that it is only consistent, that there should be the maintenance of order in the ministry, and of regularity in the worship. But the Act went much further, and proceeded upon the theory of one ecclesiastical incorporation of the entire State, without recognizing outside the existence of any religion whatever. To Nonconformists there was an utter denial of any spiritual rights. For them there was to be neither comprehension nor toleration. The germs of the Conventicle and Five Mile Acts were in the bosom of the Uniformity Bill.

CHAPTER XII.

More victims in the month of April were sacrificed upon the altar of revenge. Colonel John Okey, a distinguished officer in the Commonwealth Army, who had adopted Republican and Millenarian views; Miles Corbet, a member of the Long Parliament, and Recorder of Yarmouth, who had been connected with the Church under the pastoral care of William Bridge, in that town; and Colonel John Barkstead, who had been knighted by Cromwell, and had been appointed to a seat in his House of Lords—all three, after a brief trial, and a merciless sentence, for the part they had taken in the High Court of Justice, were executed at Tyburn.

A noble victim perished two months afterwards. It has been with Sir Henry Vane as with Oliver Cromwell: having disliked each other in life, they have shared a common fate in the judgment of posterity: for, after years of odium, the names of both are raised to honour. Vane's Republicanism rendered him impracticable, and his mysticism, although undeserving the reproaches of Baxter and Burnet, threw a haze over his speculations, which makes them somewhat unintelligible; but the piety and genius of his *Meditations*, and the purity and virtue of his life, render him an object of reverence and love.

He was tried for compassing the death of the King; yet, whatever he might be in other respects, he was no regicide. The evidence on his trial only proved that he had held office under the Commonwealth, that he had been a member of the Council of State in 1651, and had belonged to the Committee of Safety in 1659. To make the condemnation and sentence of Vane the more unrighteous, the King, after solemnly promising to spare the life of the Republican, had written to Clarendon, saying—Vane "is too dangerous a man to let live, if we can honestly put him out of the way."

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The spirit of the prisoner appears in a letter which he wrote to his wife. "This dark night, and black shade," he observes, "which God hath drawn over His work in the midst of us, may be, for aught we know, the ground colour to some beautiful piece that He is now exposing to the light." His

execution was an ovation. From the crowded tops and windows of the houses, people expressed their deep sympathy, crying aloud, "The Lord go with you, the great God of heaven and earth appear in you and for you;"—signs of popular feeling which sustained the sufferer, who gratefully acknowledged them, "putting off his hat and bowing." When asked how he did, he answered, "Never better in all my life;" and on the scaffold his noble bearing so affected the spectators that they could scarcely believe "the gentleman in the black suit and cloak, with a scarlet silk waistcoat (the victorious colour) showing itself at the breast, was the prisoner." Frequent interruptions from the sound of drums drowned his voice, which, as Burnet says, was "a new and very indecent practice." The officers, as they put their hands in his pockets, searching for papers, exasperated the populace, whilst Vane's calmness led a Royalist present to say, "he died like a prince." Before receiving the last stroke, he exclaimed, "I bless the Lord, who hath accounted me worthy to suffer for His name. Blessed be the Lord, that I have kept a conscience void of offence to this day. I bless the Lord I have not deserted the righteous cause for which I suffer."—"Father, glorify Thy servant in the sight of men, that he may glorify Thee in the discharge of his duty to Thee and to his country." One blow did the work. "It was generally thought," remarks Burnet, "the Government had lost more than it had gained by his death." Pepys declares the people counted his constancy "a miracle;" adding, "The King lost more by that man's death than he will get again for a good while."^[347]

Thus fell one of the triumvirate described in a former volume—thus fell the noblest mystic of the age, next to George Fox—thus was devoted to death in the Temple of Expediency, one who had never bowed at the shrine of that heathen goddess, but had always fervently worshipped in the Temple of Christian Virtue. Whatever his enemies might do with his body, they could not prevent his pure soul from entering that adjacent Temple of Honour, on the walls of which his name is inscribed for evermore.

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Some of the regicides escaped with their lives. Well known is the story of Edmund Ludlow—how he fled at the Restoration, and went to Geneva, and settled at Vevay; how he came back to England at the period of the Revolution, and set sail for Ireland to assist William III. at the siege of Londonderry, and was compelled to return because that prince would not

allow in his fleet, the presence of one who had been implicated in his grandfather's execution.^[348] But history tells of another regicide, less known to fame—whose fortunes were less happy, and more wonderful. Edward Whalley figured amongst Cromwell's Major-Generals, and was so considerable a person that Richard Baxter dedicated to him a controversial work, entitled *The Apology*, in which he says, "Think not that your greatest trials are all over. Prosperity hath its peculiar temptations, by which it hath foiled many that stood unshaken in the storms of adversity. The tempter, who hath had you on the waves, will now assault you in the calm, and hath his last game to play on the mountain till nature cause you to descend. Stand this charge, and you win the day."^[349]

The Divine little apprehended the fate awaiting the soldier. A few days before Charles' return, Whalley, with his son-in-law, Major-General Gough, —who had stood together by Oliver Cromwell's death-bed,—sailed for America. Landing at Boston, they were protected by the Governor, until scented out by the Royalists of Barbadoes, they were forced to renew their flight. Settled at Newhaven, the minister of the place, named Davenport, pleaded for their security in a sermon from the ingeniously selected words: "Let mine outcasts dwell with thee,—be thou a covert to them from the face of the spoiler."^[350] Rewards were offered for the fugitives, and this minister was threatened for his advocacy on their behalf, but he continued to harbour them in his neighbourhood, where they abode in a cave on the top of a rock, to which was given the name of *Providence*. This kind of life they spent for two or three years, when they removed to Hadley, and there, under the protection of another minister, spent sixteen years more of alarm, privation, and sorrow. The people in these parts were at war with the famous Indian Chief, Philip of Pokanoket, who with his tribe one day surrounded the little town at an hour when the inhabitants were engaged in public worship. Although the people always carried arms, even at church, on this occasion the sudden assault filled them with fear, and, for once unmanned, they would have probably fallen into the hands of their foes, had not a strange person, in peculiar attire, and of commanding presence, put himself at their head, skilfully marshalling the little band, with the words and authority of a general. It was as when the Romans fought under the leadership of the twin brethren; and the unknown visitant and deliverer proved to be no other than

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Gough, who had learned the arts of war under Oliver Cromwell. He survived his father-in-law Whalley, who died in the year of the English Revolution.^[351]

The revised edition of the Prayer Book was not ready until the 6th of August. Then appeared an advertisement announcing that books in folio were provided for all churches and chapels; the price of each being six shillings, ready bound. Printed copies, examined and corrected, were certified under the Great Seal, and the Deans and Chapters of cathedral and collegiate churches were required to obtain one of these books annexed to a copy of the Act, before the 25th of December. A similar copy was to be delivered to the Courts at Westminster, to be placed amongst the Records in the Tower of London.^[352]

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In those days, when editions were not thrown off in thousands by a steam press, and there was no book post to convey parcels in one night to the Land's End, it was slow work to multiply and circulate copies. Some clergymen, therefore, could not get sight of the alterations before St. Bartholomew's Day.

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It showed indecent haste to date the time for decision so early as the 24th of August; or it showed indecent delay, not to issue the Book until within three weeks before. It has been asserted that few parishes received it till a fortnight after the period prescribed, and Burnet says that he was informed by some of the Bishops, that many clergymen subscribed before they had seen the volume.^[353] One, in the diocese of Lincoln, pleaded as a proof of the injustice of his being silenced, that he had never had an opportunity of reading what he was required to adopt; and he adds, that this was the case with many more. A clergyman, named Steel, in his farewell sermon, at Hanmer, in Flintshire, declared "he was silenced and turned out, for not declaring his unfeigned assent and consent to a Book which he never saw or could see."^[354] Certainly the Book ought to have been in every rectory and vicarage a month or two previously to the day of ejection; yet, it must be acknowledged, too much was made of the difficulty at the time, and too much has been made of it since; for the fifth clause of the Act distinctly provides for lawful impediments "to be allowed and approved of by the

Ordinary of the place."^[355] Upon this clause we have a practical commentary in a paper issued by the Bishop of Peterborough, expressly providing for such cases.^[356]

The Bishop very properly treated as a lawful impediment, inability to examine the Book: and in the following year, as we shall see, an Act passed for the relief of such persons as were disabled from declaring conformity. Wherever and whenever a prelate felt so disposed, he could make allowance for such inability; nevertheless, the fact remains, that it rested entirely with him to determine what was a *lawful impediment*, and to allow or not, the force of scruples, according to his own personal pleasure; if the Diocesan chose to decide against the Incumbent, the patron might at once present another person to the living.

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Richard Baxter made up his mind to leave the Establishment within a week of the time when the Act of Uniformity received the Royal assent. He preached on the 25th of May, and then gave as reasons for his early silence, that he considered the Act at once put an end to the liberty of his lecturing in parish churches, and that he wished his brethren to understand he had fully made up his mind not to conform. He thought if he "stayed to the last day," some might be led to suppose he meant to submit, and so might be drawn into an imitation of his supposed example.

Baxter's course in this respect was peculiar. The Presbyterians generally remained in the Church, as long as they could, although they had quite made up their minds as to what they should do when the decisive feast of St. Bartholomew arrived. Philip Henry spent days of prayer for Divine direction, and sought advice from friends at Oxford and Chester. He objected to be ordained, and could not, after being a Presbyterian for years, declare himself moved by the Holy Ghost to take upon himself the office of Deacon. The difficulty in his case was increased by the demand of Hall, Bishop of Chester, that the Presbyterians whom he ordained should explicitly repudiate their previous orders.^[357] Henry could not give his assent and consent to things in the Prayer Book which to him were not true. He felt the force of the exceptions taken at the Savoy Conference, and did not believe in the power of any company of men to impose a yoke of

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ceremonial law upon the necks of their brethren. He disapproved of kneeling at the Lord's table as a practice unwarranted by Scripture; unsuited to the celebration of a supper; "grossly abused even to idolatry;" the imposition of which was a violation of Christian liberty. He objected particularly to kneeling at the rails, as smelling "rank of Popish superstition:" the indiscriminate Communion of the Episcopalian Church he could not reconcile with his notions of discipline; and, though he had never taken the Covenant, he would not condemn those who had done so. He approved of Archbishop Ussher's scheme of Episcopacy; and "thought it lawful to join in the Common Prayer in public assemblies, and practised accordingly, and endeavoured to satisfy others concerning it."^[358] It is curious to learn that he believed his views of spiritual religion formed the basis of his objections to conformity: and that when Dr. Busby, to whom as his friend, he owed his deep evangelic convictions, said once, "Prythee child, what made thee a Nonconformist?" Henry replied to his much-loved schoolmaster, "Truly, sir, you made me one; for you taught me those things that hindered me from conforming."^[359]

In the mind of Philip Henry there existed a strong disposition to conform, and the case was the same with Joseph Alleine, and others. Many, who had been episcopally ordained, were prepared to do everything required, except one thing—giving an unfeigned assent and consent to all the contents of the Prayer Book.^[360]

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John Howe felt more difficulties than one; he had not received Episcopal orders, but had been ordained at Winwick, in Lancashire, by the laying on of the hands of the Presbytery; on which account, he used to say, that few had so primitive an ordination as himself. After the Act had passed, Dr. Wilkins expressed his surprise that *a man of Howe's latitude* should have stood out; to which he replied, that he would gladly have remained in the Establishment, but his *latitude* was the very thing that made him and kept him a Nonconformist. He said also, "that he could not by any means be fond of a Church, that in reality had no discipline at all, and that he thought that a very considerable objection against the Establishment." In these respects his difficulties were similar to those of Philip Henry. On another occasion, when asked by Seth Ward, then Bishop of Exeter, "Pray, sir, what hurt is there in being *twice* ordained?" he replied, "Hurt, my lord,—it hurts

my understanding; the thought is shocking; it is an absurdity, since nothing can have two beginnings."^[361]

We can enter into the struggles which agitated the clergy during the three months before St. Bartholomew's Day. As the corn ripened, and the country Rector sat with his wife in their little parlour,—as they looked out of the latticed window on the children chasing the butterflies in the garden, or picking up daisies on the glebe,—there came the alternative—"we *must* conform, or leave all this next August;" and, as that necessity stared the Incumbent in the face, it would require, in some cases, a woman's quieter fortitude to reinforce a man's louder resolve.^[362] Nor can it be denied, that means of usefulness to some had brighter attractions than home comforts; and that it proved the hardest wrench of all to break the bond between the Christian shepherd and his flock. These men had hearts as well as heads; but in the conflict the victory came from their judgments, not their affections. I remember visiting Scotland more than a quarter of a century ago, just on the eve of the great disruption, and spending an evening at a pleasant manse inhabited by an able minister and his accomplished wife, both of whom were pondering the question of "going out," or "remaining in;" and never can I forget the look of anguish with which they alluded to the impending crisis. The memory of that visit brings vividly to mind many an English parsonage in the year 1662.

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It required much effort in the minds of Puritan clergymen to brace themselves up to meet what was at hand. One prepared for the crisis by preaching to his congregation four successive Sundays from words to the Hebrews: "Ye took joyfully the spoiling of your goods, knowing in yourselves that ye have in heaven a better and an enduring substance." Another, who had a wife and ten children—"eleven strong arguments," so he said, for conformity—remarked, that his family must live on the 6th of Matthew, "Take no thought for your life, what ye shall eat, or what ye shall drink; nor yet for your body, what ye shall put on." A third, when asked what he would do with his family, replied, "Should I have as many children as that hen has chickens," pointing to one with a numerous brood, "I should not question but God would provide for them all."^[363]

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Several of the ministers conferred or corresponded with each other. A few came to London to know the opinions of their brethren. Letters passed to and fro as fast as the post could carry them; and sheets full of arguments, questions, replies, and rejoinders, were conveyed from place to place. Stories respecting the treatment of Presbyterian Chaplains, the conduct of the Bishops at the Savoy, the debates in Convocation, and the speeches in Parliament, Sheldon's management, and Clarendon's policy, would be freely told, not always with perfect accuracy. Ministers conversed with Presbyterian Peers, and other patrons; and, it is said, that one of the former being asked by one of the latter whether he would conform, answered, "That such things were required and enjoined as he could not swallow," and he was "necessitated to march off, and sound a retreat;" whereupon His Lordship added, with a sigh, "I wish it had been otherwise; but they were resolved either to reproach you, or undo you."^[364] With conference and correspondence there existed no organized confederation; each took his own ground, and pursued his own course. Many a village Vicar stood alone, and his conduct proceeded from individual conscientiousness. The ejected had nothing to strengthen and animate them, like the understanding which preceded the disruption in Scotland—nothing like the popular applause that welcomed it—nothing like the *éclat* of the public procession from the House of Assembly in the City of Edinburgh; no ovation soothed the cast-out. The feast of St. Bartholomew became a fast; as in the Valley of Megiddon, so in Puritan England, "The land mourned, every family apart."

As August approached, reports of disaffection increased in gravity. In July, an idea was current that Cromwell's soldiers were waiting to learn what the Presbyterians would do, being themselves ready to rekindle the flames of revolution. From various parts of the country came news of refractory trained bands, of gunsmiths preparing arms, and of ministers talking treason. Rumour declared there was to be a general rising in a few weeks. At all events, within two years of the Restoration, the joy of seeing a crowned head once more, had given way. People began, not only to ask what advantage had accrued from the King's return, but they also began to institute comparisons between the Long Parliament and that which was now sitting. De Wiquefort, the Dutch Minister, in a despatch dated the 14th of May, informed his Government, that the chimney tax could not be levied

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without much trouble, and that Parliament, *which had been the idol of the nation, was now sinking in popular respect.* [\[365\]](#)

Several sources of discontent can be pointed out. The licentiousness and extravagance of the Court were passing all bounds; even such of the Cavaliers as combined with their hatred of Puritan precision, some regard for outward decency, were shocked at the stories of the mad revelries and shameless debauchery of Whitehall; many individuals had been beggared in the Royal service, and now they saw themselves totally neglected by the Prince in whose cause they had sacrificed their property and shed their blood. To replenish an empty exchequer, the Government effected the sale of Dunkirk—a town which had been won by the valour of Cromwell. It wounded the national honour, and roused popular indignation, to see the keys of that fortress put into the hands of Louis XIV. for a sum of money; and also to see Tangier, a useless possession, part of the dowry of Queen Catherine, carefully preserved at a large cost. To add to the trouble, Popery was said to be on the increase, especially through proceedings at Somerset House, where the Queen Mother Henrietta kept her Court, gathered round her the English Roman Catholics, and encouraged the intrigues of Jesuits and priests.

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Charles and his Council did not learn the whole truth, they only caught glimpses of some wild phantasmagoria, with the great Gorgon-head of insurrection in the midst of all; and, therefore, instead of striving to see what could be done to re-establish confidence, he and his Ministers set to work to demolish fortifications at Northampton, at Gloucester, and at other places, and to issue instructions to Lieutenants of Counties to take precautions against rebellion. [\[366\]](#)

Numbers of political papers and tracts appeared expressing uneasiness. Much authority cannot be attached to such a random writer as Roger L'Estrange; but when he states that not so few as 200,000 copies of seditious works had been printed "since the blessed return of his sacred Majesty," and that to these were to be added new editions of old ones to the amount of millions more, [\[367\]](#) we are justified in believing that the printers were kept very busy by people of the kind so

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much detested by this pamphleteer, nor do I doubt that, as he says, the publications "were contrived and penned with accurate care and cunning to catch all humours." On the other side, the Church and State party did not sit with folded hands—Roger's own fiery pen being unceasingly employed in the laudation of King, Church, and Bishops, and in vilifying Roundheads, Republicans, and all Sectaries. Some authors mingled in the *mêlée* after a very equivocal fashion, drawing "a parallel betwixt the ancient and the modern fanatics," so as to place in company with Anabaptists, Quakers, and Independents, not only the Lollards, but even Hugh Latimer—thus striking a blow at Nonconformity through the side of the Reformation.^[368] Much more effective than abuse and satire, were papers, printed ready for Bartholomew's Day, giving "a brief martyrology and catalogue of the learned, grave, religious, and painful ministers of the City of London, who were deprived, imprisoned, and plundered, during the Commonwealth." The persecution of the Episcopalians afforded a strong point against the Nonconformists, especially before it could be met by a long list of ejected Nonconformists. Names of Episcopalians said to have been reviled, and forced to resign, and "compelled to fly"—"violated, assaulted, abused in the streets," and imprisoned in "the Compter, Ely House, Newgate, and the ships"—furnished so many arguments for severe measures against those who were charged with these indefensible persecutions.

CHAPTER XIII.

No Sunday in England ever exactly resembled that which fell on the 17th of August, 1662—one week before the feast of St. Bartholomew. There have been "mourning, lamentation, and woe," in particular parish churches when death, persecution, or some other cause has broken pastoral ties, and severed from loving congregations, their spiritual guides; but for many hundreds of ministers on the same day to be uttering farewells is an unparalleled circumstance. In after years, Puritan fathers and mothers related to their children the story of assembled crowds; of aisles, standing-places, and stairs, filled to suffocation; of people clinging to open windows like swarms of bees; of overflowing throngs in churchyards and streets; of deep silence or stifled sobs, as the flock gazed on the shepherd—"sorrowing most of all that they should see his face no more."

Pepys—who liked to see and hear everything which was going on—walked to old St. Dunstan's Church, at seven o'clock in the morning, but found the doors unopened. He took a turn in the Temple Gardens until eight, when, on coming back to the church, he saw people crowding in at a side door, and found the edifice half-filled, ere the principal entrance had been opened. Dr. Bates, minister of the church, took for his text—"Now the God of peace, that brought again from the dead our Lord Jesus, that great Shepherd of the sheep, through the blood of the everlasting covenant, make you perfect." "He making a very good sermon," reports the Secretary, "and very little reflections in it to anything of the times." After dinner, the gossip went to St. Dunstan's again, to hear a second sermon from the same preacher upon the same text. Arriving at the church, about one o'clock, he found it thronged, and had to stand during the whole of the service. Not until the close of this second homily, did the preacher make any distinct allusion to his ejection, and then it was in terms the most concise and temperate. "I know you expect I should say something as to my nonconformity. I shall only say thus much—it is neither fancy, faction, nor humour, that makes me not to comply, but merely for fear of offending God. And if after the best means used for my illumination, as prayer to God,

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discourse, study, I am not able to be satisfied concerning the lawfulness of what is required; if it be my unhappiness to be in error, surely men will have no reason to be angry with me in this world, and I hope God will pardon me in the next."^[369]

Dr. Jacomb occupied his pulpit in St. Martin's, Ludgate. It would seem, from his remarks, that he did not expect it to be the last pastoral discourse he would deliver; but I am unable to say whether the hope he had of preaching to his parishioners again, arose from an idea that the law would be mitigated. "Let me," he said, "require this of you, to pass a charitable interpretation upon our laying down the exercise of our ministry." "I censure none that differ from me, as though they displease God: but yet, as to myself, should I do thus and thus, I should certainly violate the peace of my own conscience, and offend God, which I must not do, no, not to secure my ministry; though that either is, or ought to be dearer to me than my very life; and how dear it is, God only knoweth."^[370]

In the Cambridge University Library^[371] is the copy of *A Prayer of a Nonconformist before his Sermon, which was preached to an eminent Congregation, August, 1662*. The prayer is long, and consists chiefly of confession of sin and of supplication for spiritual blessings; the only passages which seem to refer to existing circumstances are the two following:—"It is the Spirit that makes ordinances efficacious—although Thou art pleased to tye us to them, when we may purely enjoy them, yet Thou dost not tye Thyself to them." "Bring our hearts to our estates, if not our estates to our hearts. It is the happiness of the saints in heaven to have their estates brought to their hearts; but the happiness of the saints on earth to have their hearts brought to their estates."

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The Fire of London swept away so many of the old City churches that we are unable to picture the localities where the City ministers preached, what they called, their own funeral sermons; but it is otherwise in the provinces. Everyone who has entered the Vale of Taunton, and tarried in the town from which it takes its name, must have lingered under the shadow of the noble Church of St. Mary, and longer still within its spacious nave, sometime since restored with exquisite taste. In 1662 the town had just had its walls

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razed, as a punishment for what the inhabitants did in the Civil Wars—the bones of their townsman Blake had been dug out of his grave in Westminster Abbey; old Puritan members of the Corporation had been displaced for new ones of Cavalier sympathies; and now, with bitter recollections, the nonconforming parishioners entered the Church on the 17th of August, to listen for the last time to their minister, George Newton—"a noted gospeller," and remarkable for his missionary zeal. "As to the particular Divine providence," he said, "now ending our ministry among you, whatever happeneth on this account, let it be your exercise to cry out for the Holy Spirit of Christ, and He will grant you a greater support than you may expect from any man whatever.... The withdrawing of this present ministry may be to cause you to pray for this Holy Spirit, day and night; and Christ promiseth that the Father will give it to them that ask it.... If I cannot serve God one way, let me not be discouraged, but be more earnest in another."^[372]

The quiet little town of Beer Regis, in Dorsetshire, retains its ancient church, with its square tower and pinnacles, dedicated to St. John the Baptist. The living, in conjunction with that of Charmouth, formed the golden prebend of Salisbury Cathedral. How much of the income of the stall belonged to the Incumbent under the Commonwealth I do not know, but the Incumbency must have been of a description strongly to tempt Philip Lamb, who then held it, to comply with the Act of Uniformity, had he been a worldly-minded man.^[373] But his farewell teaching proves him to have been above the reach of such temptations. Like other discourses at the same time, his was full of spiritual instruction and earnest appeal; the following allusion being made to the event of the day:—"For now I must tell you, that perhaps you may not see my face, or hear my voice anymore in this place; yet not out of any peevish humour, or disaffection to the present authority of the kingdom (I call God and man to witness this day), it being my own practice and counsel to you all, *to fear God and honour the King*;—but rather a real dissatisfaction in some particulars imposed, to which (notwithstanding all endeavours to that purpose) my conscience cannot yet be espoused."^[374]

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The week between the 17th and 24th of August proved an eventful one. Charles had been married in the previous May to Catherine of Braganza; a

match which—though formally approved by the Privy Council and by Parliament, because of her dowry, and of the possession of Tangier, on the coast of Africa, and of Bombay, in the East Indies, and of a free trade with Portugal and its colonies—was, because of the religion of the bride, hateful to the English people, in proportion as they hated Popery. The day before her reception, the King issued a Proclamation, addressed to the Lord Mayor and Sheriffs of London. He laid "hold of this occasion of public joy, on the first coming of the Queen to the Royal Palace of Westminster, to order the release of Quakers and others, in gaol, in London and Middlesex, for being present at unlawful assemblies, who yet profess all obedience and allegiance; provided they are not indicted for refusing the Oath of Allegiance, nor have been ringleaders nor preachers at their assemblies, hoping thereby to reduce them to a better conformity."^[375]

The Quakers, George Fox and Richard Hubberthorn, had just before addressed the King as "Friend," and sent His Majesty a list of "three thousand one hundred and seventy-three persons" who had suffered for conscience' sake. "There have been also imprisoned in thy name," add these plain-spoken memorialists, "three thousand sixty and eight." "Now this we would have of thee, to set them at liberty that lie in prison, in the names of the Commonwealth, and of the two Protectors, and them that lie in thy own name, for speaking the truth."^[376] How far this appeal influenced Charles in his act of grace now performed I cannot say; nor does it appear how clemency towards a despised sect tended to gratify the country at large; which on such an occasion he might naturally wish to do. Perhaps, being fond of exercising a dispensing power, this proceeding might afford some gratification to himself; and as to the selection of objects, he had a liking for Quakers, on account of what he regarded their harmlessness and oddity. He had no fear of their arming themselves against his throne; and to quiz their dress and their speech, seemed to his frivolous taste, a piece of real fun.

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On Saturday, the 23rd of August, Catherine reached Whitehall; and the citizens of London, ever prompt in their loyalty on such occasions, gave "a large demonstration of their duty and affection to the King's and Queen's Majesty on the River Thames." The Mercers, the Drapers, the Merchant Taylors, and the Goldsmiths, appeared in stately barges, their pageantry and that of the Lord Mayor outpeering the rest of the brilliant regatta. Music

floated from bands on deck, and thundering peals roared from pieces of ordnance on shore. Their Majesties came in an antique-shaped, open vessel, covered with a cupola-like canopy of cloth of gold, supported by Corinthian pillars, wreathed with festoons and garlands of flowers,—the pageant exceeding—as John Evelyn remarked, who was sailing near—all the *Venetian Bucentoras*, in which, on Ascension Day, the Doge was wont to wed, with a golden ring, the fair Adriatic. The spectacle on the water-highway presented a contrast to the experiences in many parsonages throughout broad England; and it is remarkable, that just then certain persons were engaged in solemnities more in accordance with Nonconformist depression.

Edward Calamy that very Saturday preached a sermon at St. Austin's Church, in London, for Father Ash (the old man who shed tears of joy over Charles' early promises), from the words "The righteous perisheth, and no man layeth it to heart; and merciful men are taken away, none considering that the righteous is taken away from the evil to come,"—words befitting the interment of a Puritan patriarch on Bartholomew's eve. Discoursing on his text, the preacher reminded his audience how Methuselah died, a year before the flood; Austin died a little before Hippo was taken; and Luther died just as the wars in Germany were about to begin. He might have added, that Blaise Pascal, who died the preceding Tuesday, August 19th, had been removed just as the agony of the crisis came, in the history of the Port Royalists. [\[377\]](#)

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By a further coincidence, the same day on which Ash was buried in London, Edward Bowles, the distinguished Nonconformist, breathed his last in the City of York. He had just been elected Vicar of Leeds—but his Nonconformity would have disqualified him from entering on the benefice, had not his Master called him to a better preferment and a nobler ministry.

When St. Bartholomew's Day arrived, the Nonconformist clergy who had not before taken leave of their flocks, uttered their farewells. Thomas Lye, Rector of Allhallows, London—whose catechetical lectures had made him very popular with the youthful members of Puritan families—preached twice from the words—"Therefore my brethren, dearly beloved and longed for, my joy and crown, so stand fast in the Lord, my dearly beloved." Lye

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mentioned in his morning address, that he had been ejected on the 24th of August, 1651, because he would not swear against the King. Now, on the 24th of August, 1662, he was ejected for a very different reason. But he did not repine. "By way of exhortation," said the preacher, "I remember good Jacob when he was come into Egypt, ready to die, calls his children together, and before he dies, he blesseth his children.—O beloved, I have a few blessings for you, and, for God's sake, take them as if they dropt from my lips when dying.—Whatever others think, I am utterly against all irregular ways; I have (I bless the Lord) never had a hand in any change of Government in all my life; I am for prayers, tears, quietness, submission, and meekness, and let God do His work, and that will be best done when He doth it."^[378]

Another instance of a second ejection occurred the same day under different circumstances. Robert Atkins, in the month of September, 1660, had been dismissed from the choir of Exeter Cathedral—the part of the edifice appropriated to the Presbyterians—"Church music," to use his own words, "jostling out the constant preaching of the Word; the minister being obliged to give place to the chorister; and hundreds, yea thousands, to seek where to hear a sermon on the Lord's Day, rather than singing service should be omitted, or not kept up in its ancient splendour and glory." Driven at the Restoration from East Peter's, he found refuge in the parish church of St. John—an instance which shows that nonconforming clergymen might lose one living and gain another, between the King's return and the execution of the Act. From St. John's, he was ejected in August, and then he preached a sermon in which, rising above all such narrowness as prompted the depreciation of cathedral music, he caught ennobling inspirations, and employed only words of loyalty and love. "Let him never be accounted a sound Christian that doth not both fear God and honour the King. I beg that you would not interpret our Nonconformity to be an act of unpeaceableness and disloyalty. We will do anything for His Majesty but sin. We will hazard anything for him but our souls. We hope we could die for him, only we dare not be damned for him. We make no question, however we may be accounted of here, we shall be found loyal and obedient subjects at our appearance before God's tribunal."^[379]

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Another day they had to quit the parsonage.^[380]
No poet that I am aware of, has made the
Bartholomew Exodus a theme for his muse, but the
well-known lines in Goldsmith's "Deserted Village" may be accommodated
to the incident.

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"Good heaven! what sorrows gloom'd that parting day,
That call'd them from their native walks away,
When the poor exiles, every pleasure past,
Hung round the bowers, and fondly look'd their last.
With loudest plaints the mother spoke her woes,
And blest the cot where every pleasure rose,
And kiss'd her thoughtless babes with many a tear,
And clasp'd them close, in sorrow doubly dear;
While her fond husband strove to lend relief,
In all the silent manliness of grief."

Some persons can allow no excuse for Puritans who conformed. Because Nonconformity under the circumstances appears to these persons a plain obligation, they suppose it must have appeared equally plain to everybody entertaining evangelical views like their own. But if we exclude all Puritan Conformists from the benefit of charitable allowance, on the score of temptation; if we dismiss all thought of the medium through which, owing to circumstances, they were likely to contemplate their own case,—then we diminish our estimate of the clear-sighted judgment, the unprejudiced resolves, and the self-sacrificing heroism of those Puritans who in a crisis of extraordinary difficulty, pursued the course they did. When Nonconformists discover considerations which mitigate the censure of some who conformed, they must all the more admire those who, rising above motives which spring from self-interest, from example, from persuasion, and from prejudice, were, through a sense of duty, led to sacrifice so much which they held dear.

The ejected differed from each other in many respects: not more unlike are cedars and firs, oaks and ashes, the elm and the ivy. Some were bold and stern, of rugged nature and robust strength; others were gentle and dependent, relying on friends for counsel and example. Some were rigid and ascetic; others frank and genial. They included Presbyterians,

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Independents, Baptists, and not a few whom it would be difficult to reduce entirely under any of those denominations; also, Calvinists and Arminians, with other Divines scarcely belonging to either of those schools. As to learning, eloquence, reasoning, and imagination, the men varied; but under all their peculiarities lay a common faith—of no ordinary character, a faith of that rare kind which makes the confessor. They believed in God, in Christ, in truth, in Heaven; and in the controversy which they carried on, they regarded themselves as fighting for a Divine cause. People may think some of these ministers made too much of wearing a surplice, using the sign of the cross, and bowing at the name of Jesus; but such things were considered by them as having a significance beyond themselves. They were, by the ejected, judged to be signs of a corrupted Christianity—the banners of an adverse army—flags of which the importance did not consist in the silk, the crimson, and the gold, but in the import of the emblazoned device. What might seem trifles to others, were in their estimation the marks of a ceremonial, as opposed to a spiritual, of a legal as opposed to an evangelical Christianity. They believed that, in the defence of the Gospel, they were acting as they did. A strong evangelical faith upheld their ecclesiastical opinions, like the everlasting rocks which form the ribs and backbone of this grand old world.

The Church of England suffered no small loss when she lost such men. So far as extreme Anglo-Catholics on the one hand, and extreme

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Presbyterians on the other were concerned, union was impossible; but it should be remembered that in the conferences at Worcester House and the Savoy, nothing more was sought by the Puritans than a moderate Episcopacy; and, as already noticed, Baxter declared, that to the best of his knowledge the Presbyterian cause was never spoken for, nor were they ever heard to petition for it at all. There can be no question that there were amongst the ejected many exemplary ministers, who would have been perfectly satisfied with such concessions, as moderate Episcopalians might have conscientiously sanctioned.

The great change having been accomplished, the King commanded directions to be sent to the clergy respecting their preaching. They were forbidden to meddle with matters of State, or to discuss speculative points

in theology, but were enjoined to catechize the young, to read the canons, and to promote the observance of the Lord's Day.^{[\[381\]](#)}

CHAPTER XIV.

When the Act had taken effect, some of the Presbyterians looked for a mitigation of its severity. Those who lived in London, and were upon terms of friendship with the Earl of Manchester, and other Puritan noblemen, trusting to their influence at Court, resolved to make an effort to obtain redress. Calamy, Manton, and Bates, the leaders of this forlorn hope, prepared a petition, numerously signed by London pastors.^[382] It spoke of His Majesty's indulgence, and besought him, in his princely wisdom and compassion, to take some effectual course, whereby they might be continued in the exercise of their office.^[383] Whatever might be the effect of the petition, Clarendon admits that the King made a positive promise to do what the ministers desired.

At this time the nobility had gone down to their country-seats to enjoy the summer months; the Bishops generally were engaged in their visitations. Charles, at Hampton Court, was joking with his lords, toying with his mistresses, rambling in the green alleys, lounging in the cool saloons, watching games in the tennis-court, and feeding the ducks in the broad ponds. However unwilling to attend to business, he found that a Council must be held. The Archbishop of Canterbury and the Bishops of London and Winchester were therefore summoned, together with Chief Justice Bridgman, and the Attorney-General, the Duke of Ormond, and the Secretaries of State. The King's promise was communicated to the Council. "The Bishops were very much troubled that *those fellows* should still presume to give His Majesty so much vexation, and that they should have such access to him." As for themselves, they desired "to be excused for not conniving in any degree at the breach of the Act of Parliament, either by not presenting a clerk where themselves were patrons, or deferring to give institution upon the presentation of others; and that His Majesty's giving such a declaration or recommendation, would be the greatest wound to the Church, and to the government thereof, that it could receive."^[384]

Sheldon vehemently urged, that it was now too late to alter what had been done; the Sunday before he had ejected those who would not subscribe; the King had thus provoked them, and that now to admit them to the Church would be for him to put his head in the lion's mouth. He further urged that resolutions of Council could not justify contempt for an Act of Parliament. The argument is thoroughly constitutional, and so far Sheldon appears right; but before he completed his speech, he manifested his real spirit by contending, that if the importunity of disaffected people were a reason for humouring them, neither Church nor State would ever be free from disturbance. ^[385]

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The operation of the Act, the petition of ministers, and the discussions in Council, were soon the topic of newspapers, and the talk of the country; and great credit was given for the "care and prudence of the most worthy diocesan" of London, in filling up the numerous vacancies. It was reported, that at Northampton, "all except two or three" conformed; that at Gloucester, there was "scarcely a man" who did not subscribe; and that at Newport, an instance occurred of a building erected by Nonconformists being seized and appropriated for Episcopal worship. We find it also stated that in the City of Chester, Nonconformists preached on the 24th of August, though cautioned against it by the Bishop; and that the following Sunday they being displaced, and other ministers being appointed, the Presbyterians still came to the parish service; and that in Northumberland, there were "only three disaffected ministers, Scotchmen, who quietly left their livings, and crossed the Tweed." The High Church party believed the Act to be popular, and Nonconformity to be an insignificant affair—a mere puff of smoke, which a moment's wind would blow away. Episcopal visitations created much enthusiasm. All the gentry went out to meet the Bishop of Exeter, with one thousand horse, and foot without number, and many coaches; City music sounded from the top of Guildhall, and the Bishop drove up to the Deanery amidst volleys of shot. At Chippenham, like honours saluted the Bishop of Salisbury. ^[386] Rumours of another kind floated in other quarters. William Hook, an Independent, who had been ejected from the Savoy, informed an American correspondent, that after the Act of Uniformity, there were few communicants at the churches, "only ten, twenty, or forty, where there were

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20,000 persons more than sixteen years old; and on festival days only the parsons and three or four at their devotions."^[387] It is not to be supposed that Hook, any more than his contemporaries in newspapers, gave himself much trouble in sifting evidence, still probably there is truth in what he says. Beyond idle rumours certain facts are established. For example, St. Mary's Church, at Taunton, was closed for several weeks successively; and although we find that afterwards public services were held at rare intervals, the parish had no resident minister for the next nine months.^[388]

The law bound every clergyman to subscribe in the presence of his Archbishop or Ordinary, and it may be mentioned in illustration, that the Canons of St. George's Chapel, Windsor, subscribed before the Dean, he being the Ordinary of the place; some of them, in *majorem cautionem*, subscribed also before the Archbishop of Canterbury, yet was it with this proviso—saving the rights and privileges of this free chapel.^[389]

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Some clergymen, who ultimately subscribed, did so with hesitation. Sir Thomas Browne, in his tour through Derbyshire, met with a friend who, the day before he saw him, which was in the month of September, "had most manfully led up a train of above twenty parsons, and though they thought themselves to be great Presbyterians, yet they followed" this leader to Chesterfield, and by subscribing there "kept themselves in their livings despite of their own teeth."^[390] Some lingered awhile on neutral ground; others went back to the Establishment. A large number of cases of this kind may be found in *Calamy's Account* and *Palmer's Nonconformist Memorial*.^[391] Men of character and worth, belonging to the Puritan party, overcame their scruples by putting a general interpretation on a precise declaration, and by pondering the thought that a superior social influence for good would attend their remaining as shepherds within the Episcopalian sheep-fold.

Lightfoot, Wallis, and Horton, who had been Presbyterian Commissioners at the Savoy, became Conformists. Dr. Fogg, of Chester, joined them at the end of five years; Dr. Conant at the end of seven.

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Gurnal, the devout author of the *Christian Armour*, belongs to the same class. All such men had to pay the penalty of separating from old friends.

[392] They suffered abuse; being taunted with the use of "Episcopal eye-salve," and for bowing down to "the whore of Babylon." All sorts of stories were buzzed abroad to their discredit; it is related as a Divine judgment that a Conformist crossing a bridge on his way to the place where he meant to subscribe, was thrown from his horse and killed. The tale appears in connection with an account of a clergyman, who, after expressing himself in a sermon bitterly against the Presbyterians, dreamed that he should die at a certain time, and, in accordance with this warning, was found dead in his bed. [393] Cases also occurred in which clergymen at first conformed to the Act, and afterwards became Dissenters. [394]

Soon after the Act had been passed, the Bishops issued articles of inquiry and visitation, very much of the same comprehensive, minute, and sifting description, as those which had been issued before the Civil Wars. In these articles, distinct reference is made to the conformity required by the new law. The text of the articles for the dioceses of Bath and Wells, Chichester, Exeter, Hereford, Lincoln, Llandaff, Oxford, Peterborough, and St. David's is, with slight exception, the same as that for the diocese of Winchester, of which Morley was Bishop; and, under the third title, *Concerning Ministers*, it is asked, whether they had been legally instituted and inducted; and had, within two months after induction, on some Sunday or holyday, publicly, in the time of Divine service, read the Thirty-nine Articles and declared assent to them; also, whether in the daily Morning and Evening service, Administration of the Holy Sacraments, Celebration of Marriage, Churching of Women, Visitation of the Sick, Burial of the Dead, and pronouncing God's Commination against impenitent sinners, they used the words prescribed in the Book of Common Prayer, without any addition, omission, or alteration of the same? Also whether they wore the surplice, and such scholastical habit as was suitable to their degree, and observed holydays, fasts, embers, and the yearly perambulations in Rogation weeks? Also whether any person had preached in the parish as a lecturer, and if so, whether he had obtained a license from the Bishop, and had read the appointed prayers, and was in all respects conformable to the laws of the Church? [395]

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In some articles, the questions on these points are still more precise and stringent. Cosin, Bishop of

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Durham, asks "Do you not know, or have you not heard, that in his reading, or pretending to read, these Thirty-nine Articles, he (the minister) omitted or skipped over some one or more of them? What article was it, or what part thereof that he left unread?" The same prelate also inquires whether lecturers read prayers in a surplice.^[396] Other Bishops satisfied themselves with general questions. Griffith, Bishop of St. Asaph, and Henchman, Bishop of Salisbury, both use these words, "Doth your minister distinctly, reverently, say Divine service upon Sundays and holydays;" "doth he duly observe the orders, rites, and ceremonies prescribed in the said Book of Common Prayer?"^[397] Bishop Reynolds asks whether the minister had been freely presented, and legally instituted and inducted? whether he had publicly read the Thirty-nine Articles, and given his assent, and celebrated every office in such form, manner, and habit, as is prescribed? He inquires as to the right and due observance of the sacraments, and the notice of holydays: and, like others of his brethren, inquires respecting the observance of the 5th of November, the 30th of January, and the 29th of May.^[398]

Archdeacons also issued articles touching the manner of celebrating Divine service.^[399]

Notwithstanding all these precautions, a few ministers continued within the pale of the Establishment without conforming to the Act.

John Chandler held the living of Petto in Essex; although he had only received Presbyterian ordination, he was pronounced by his diocesan, Bishop Reynolds—thus far true to his old faith—to be as good a minister as he could make him; and notwithstanding his only partial use of liturgical worship, he was allowed to retain his incumbency. Mr. Ashurst, of Arlsey—a poor Bedfordshire vicarage—in the diocese of Lincoln, in which Laney succeeded Sanderson in 1663, continued to officiate in the parish church, reading parts of the Common Prayer, and taking for his support whatever his parishioners chose to contribute. Nicholas Billingsley, settled at Blakeney, in the parish of Awre, in the diocese of Gloucester—"lived very peaceably for awhile"—on his impropriation of £50 per annum, by the permission of Bishop Nicholson. We also find in the diocese of Chester, under the successive episcopacy of Hall, Wilkins, and Pearson, that Angier

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of Denton, continued the occupancy of the parish pulpit, and the enjoyment of parish emoluments, notwithstanding his perseverance in Presbyterian worship. Tilsley, the Presbyterian Vicar of Dean, after losing his vicarage, was, by Wilkins, permitted to resume his ministry as lecturer in his old parish, the new Vicar reading prayers. There were other instances in the same diocese of an evasion of the law. In the diocese of Gloucester, under Nicholson, Henry Stubbs was allowed the poor living of Horsley; and in the diocese of Llandaff, under Lloyd, Richard Hawes was permitted to preach without subscribing. Similar instances of irregularity occurred in different parts of the country. Some clergymen, after being ejected, were allowed to become chaplains in hospitals and prisons, and to officiate occasionally for parochial Incumbents.^[400]

It may be added, that there were clergymen in the Establishment who disapproved of what had been done. Edward Stillingfleet, however he might speak and act afterwards, expressed, at that time, liberal opinions, and acted in a manner consistent with them. He maintained that Christ's design was to ease men of their former burdens, and not to lay on more; that the unity of the Church is an unity of love and affection, and not a bare uniformity of practice or opinion; and that however desirable in a Church the latter might be, as long as there are men of different ranks and sizes in it, it is hardly attainable.^[401]

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In accordance with these sentiments, Stillingfleet sheltered at his rectory of Sutton, in Bedfordshire, one of the ejected ministers, and took a large house, which he converted into a school for another.

Laymen also deplored the severities of the measure. Hale, Boyle, and Sir Peter Pett did so; whilst Locke's earliest work, written in 1660, aimed at reconciling the Puritans to submission in things indifferent.^[402] A strong conviction existed in the minds of Episcopalians and Royalists that Nonconformity was disloyal and insurrectionary; and this conviction, then, and long afterwards, operated as a power in the Church of England, destructive of social peace and union, far beyond what is generally supposed. The rumours about plots in the earlier period of the reign of Charles II. have not much occupied the attention of historians. They are commonly dismissed as idle tales. No doubt they were such in most

instances; and not in a single instance did any actual insurrection occur. But in history, it is important to notice, not only what men have done, but what men have believed to be done. Beliefs, however absurd, have been to those who entertained them, just the same as facts, and these beliefs have actually been factors of great power: as such they claim to be noted by the historian. I have too much faith in the English spirit of the seventeenth century, in the generosity which mingled with the High Churchmanship of the best of the Cavaliers, and in the thorough conscientiousness of many of the Conformists, to believe that they could have acted towards Dissenters as they did, unless they had been hood-winked by people who persuaded them, that Dissenters were not true-hearted Englishmen, but only so many wretched rebels. It so happens that the *State Papers*, as already indicated, afford almost innumerable illustrations of the extent and operation of these prejudices, and I make no apology for employing many of these documents in subsequent pages as useful contributions to English history.

In October, 1662, Sir Edward Nicholas was succeeded by Sir Henry Bennet. Like his predecessor, he gave himself diligently to inquiries respecting suspected persons. A month before the former retired, he told Lord Rutherford that there were rumours of disturbances intended by Presbyterians and Independents, but at present all was quiet. A month afterwards he confessed to the same person, that there was no commotion in any part of the kingdom, although factious sectaries raised reports to frighten people.^[403] Frivolous letters constantly poured in upon the bewildered officials. There came notes of conversation with Edward Bagshawe,^[404] who said London was discontented; that 1,960^[405] ministers were turned out of their livings; that Dunkirk was sold; that the King only minded his mistresses; that the Queen and her cabal carried on the Government at Somerset House; that Popery was coming in; that the people would not endure these things, but would rise on the ground *that the Long Parliament was not yet dissolved because they had passed an Act against any dissolution but by themselves*. A large bundle of examinations was forwarded to Bennet, about the same time, by the Earl of Northumberland—an informer conveying them, and adding to the written secrets, *vivâ voce* revelations—the papers disclosing such frivolous circumstances as that three gentlemen and two servants, whom nobody knew, had been seen

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somewhere, and that "an ancient grey man," and "a Jersey Frenchman" were mysteriously moving from place to place. Also, there arrived a packet promising much information, which, when opened, was found to contain only religious sentences, and a number of love verses. Suspicious persons were reported, and it is amusing, amongst unknown names to find mentioned "Dr. Goodwin and Owen, who now scruple at the surplice, but used to wear velvet cassocks, and to receive from five to seven hundred a-year from their Churches."^[406] The letter-bags were robbed; people's houses were broken into, and trunks full of papers seized and carried off by constables. Spies employed by the Government were active in collecting reports, and there can be no doubt that they were quite as active in inventing them. Two informers, Peter and John Crabb, brought accounts of intended insurrections; but at the same time they made awkward revelations respecting themselves. Peter had told the Secretary of State, that he and his brother John were the Secretary's devoted servants, and wished to be employed in a certain business; that he had only received a part of the money, which he understood the Secretary had sent him; and that to cover his profession as a spy, lest City people should wonder how he lived, he put out a "bill, advertizing the cure of the rickets in children, in Red Lion Court, Bishopsgate."^[407] After reading the correspondence of these two brothers, I am not surprised to find depositions charging one of them with being a liar and a villain. The depositions are met by cross-swearing; the whole business leaving the impression that Whitehall was beset by troops of scoundrels.^[408] A result of this kind of espionage, and of the exaggerations and inventions of informers, may be found in the trial and condemnation of six men in the month of December for being concerned in an intended rising of "Fifth Monarchy men, Anabaptists, Independents, and fighting Quakers." The evidence rested chiefly upon rumours.

CHAPTER XV.

After all Clarendon's advice and all Sheldon's opposition, the King, within four months of the meeting of Council already described, returned to his favourite expedient. He published, on the 26th of December, 1662, a Declaration, in which he referred to promises from Breda, of ease and liberty to tender consciences, and also to malicious rumours to the effect, that at the time he denied a fitting liberty to other sects whose consciences would not allow them to conform to the established religion, he was indulgent to Papists, not only in exempting them from the penalties of the law, but even to such a degree as might endanger the Protestant religion. [\[409\]](#) Respecting all this he asserted, that as he had been zealous to settle the uniformity of the Church, in discipline, ceremony, and government, and would ever constantly maintain it—so as for the penalties upon those who, living peaceably, did not conform, he should make it his special care, so far as possible, without invading the freedom of Parliament, to incline their wisdom, the next sessions, to concur in the making some such Act for that purpose, as might enable him to exercise, with a more universal satisfaction, that power of dispensing, which he conceived to be inherent in him as a Sovereign. [\[410\]](#)

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When this Declaration was published, the hopes of ejected ministers began to revive. Independents took courage; Philip Nye, in spite of age and poverty, manifested some eagerness to revive public Nonconformist worship. Although personally under the ban of the law, he, with some other brethren, found admission to Whitehall, and was graciously allowed an interview with Charles. We do not exactly know what passed; but Nye received so much encouragement from His Majesty's conversation, that he told Baxter, the King had resolved to grant them liberty. The day after New Year's Day, the Independent diplomatist appeared at the house of the Presbyterian Divine to discuss the propriety of acknowledging the King's Declaration and seeking indulgence. Baxter resolved not to commit himself; nor would other Presbyterians take a share in the business; they had had

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enough of it, they said: the reasons, at the bottom of their policy, being that they dreaded a toleration which they knew would be extended so as to embrace Roman Catholics. They looked on the Declaration as a Trojan horse; but Nye, whose ideas of religious freedom perhaps had grown, so that he might be willing to concede it to Roman Catholics, and who certainly had a strong desire after unfettered action for himself and his party, thought the tactics of the Presbyterians unwise, and he considered that, through them, he and his brethren "missed of their intended liberty."
[\[411\]](#)

Further discussion followed between Baxter and the Independents. They said that they had heard from the Lord Chancellor, that liberty had been intended for them, but that the Presbyterians had opposed the measure. Old sores were re-opened, and Baxter, evidently rather nettled, records how the Independents became affected towards the Popish Earl of Bristol, thinking that the King's Declaration had been obtained by him, and that he and the Papists would contrive a general toleration. Burnet confirms what Baxter says of the Earl's influence, by informing us, that just before, there had been a meeting of Papists at that nobleman's residence, where it had been resolved to make an effort in favour of the Roman Catholics, and with such a view to help Dissenters.
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Clarendon, who had strong Protestant convictions, felt alarmed at the brightening prospects of the Romanists, and he resolved to take a leaf out of their own book—to fight them with their own weapons—and to adopt their own principle—"Divide and conquer!" Clarendon accordingly proposed that Roman Catholics should take the Oath of Allegiance, renouncing the Pope's deposing power—an oath to which some did not object, but which others would, on no account, accept. He also proposed the tolerating of secular priests, coupling with it the banishment of Jesuits and other regular orders—another scheme which he knew well would breed division. The whole of the Chancellor's policy is not explained, but it is apparent that he had set his mind upon extinguishing the hopes of the Papists.
[\[413\]](#)

Parliament assembled on the 18th of February, 1663. The King's speech indicates the unpopularity of the recent Declaration, and he found it necessary

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to assure the Houses that he did not intend to favour Popery at all, and that he would not yield to the Bishops in his zeal for uniformity; but still he said, with obvious inconsistency, if Protestant Dissenters would be peaceable and modest, he could heartily wish that he had such a power of indulgence as might not needlessly force them out of the kingdom, or give them cause to conspire against its peace. Five days afterwards, a Bill was brought into the House of Lords and read the first time, to empower His Majesty to dispense with the *Act of Uniformity*, and with other laws concerning it.^[414] This Bill came to nothing, being earnestly opposed by Lord Southampton, by the Bishops, and by Clarendon, who, in spite of a fit of the gout, delivered a speech on the adjourned debate, full of uncompromising opposition to the King's favourite measure.^[415] It is a singular example of the difference between a Chief Minister of that day and a Prime Minister of our own, that Clarendon should in the House of Lords oppose the measure which had been brought in, according to wishes expressed in the speech from the Throne; nor can his conduct respecting the Declaration fail to support against him the charge of duplicity.^[416]

Amongst the mischiefs which, Clarendon says, resulted from what he calls the unhappy debate on the Indulgence, was the prejudice and disadvantage which the Bishops experienced in consequence of their unanimous opposition. "For from that time the King never treated any of them with that respect as he had done formerly, and often spoke of them too slightly; which easily encouraged others not only to mention their persons very negligently, but their function and religion itself, as an invention to impose upon the free judgments and understandings of men. What was preached in the pulpit was commented upon and derided in the chamber, and preachers acted, and sermons vilified as laboured discourses, which the preachers made only to show their own parts and wit, without any other design than to be commended and preferred."^[417]

The subject of Indulgence agitated the whole country. It was keenly discussed in private meetings of Nonconformist ministers, at archidiaconal visitations and other clerical gatherings—and still oftener, and with not less heat, by burghers and yeomen around their firesides. Largely, too, did it enter into the contents of letters, in one of which, written by William Hook to his late colleague in New England, we discover copious references to this

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and other ecclesiastical topics. Making allowance for the writer's prejudices, we may learn something from his curious epistle. [\[418\]](#)

"There is a toleration talked of, and expected by many, since the King's Declaration, which came forth about a month or six weeks since. The Papists improve the best of their interest to move it; but as for their being tolerated, there are many of the grandees against it, who are ready enough to move a motion for toleration of the Protestant suffering party. The Bishops greatly abhor such a thing, as not being able to subsist but by rigour and persecution: for had we liberty as to the exercise of religion, they would be condemned by almost all men; and whereas few frequent the meeting-places now, they would scarce have any then. They have therefore striven to strengthen themselves by moving and writing to Parliament men, before they come up to the City, to sit again on February 18. And, as I hear, some of their letters were intercepted and made known to the King, who was offended at some passages, and their practices. Much to do there has been about this business, and what will become of it, and the issue be, we are all waiting for."

In another part of the same epistle, relating to the same subject, Hook gives a glimpse of an amusing incident:—"His Majesty sent for Mr. Calamy, Dr.

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Bates, and Dr. Manton (and some say, Mr. Baxter also), on the last of the last week, and took them into his closet, and promised to restore them to their employments and places again, as pitying that such men should lie vacant, speaking also against the Popish religion, as it is said. Before they went in with the King, some said, 'What do these Presbyterians here?' but when they came out, they said, 'Your servant, Mr. Calamy, and your servant, Dr. Manton,' &c. It was told them that a Bill for Liberty should be given in to the House; but, however it went, they should have their liberty, *i.e.*, upon subscribing (I take it) thirteen articles touching doctrine and worship, in which there is nothing (as they say) offensive to a tender conscience. There is a distinction between an act of comprehension and an act of judgment. Some are for the first, others not. The first is comprehensive as to all forms in religion (excepting Papist, &c., but I cannot well tell). The other leaves it to His Majesty to indulge whom he seeth good. On the last day of the last week, a motion was made in the Lower House for Liberty, according to the King's Declaration, which I have sent you. A disaffected spirit to Liberty

was much discovered by very many, and the business was referred to be debated upon the Wednesday following, which is this present day: what will come of it I cannot yet tell."^[419]

The subject of Indulgence was revived in the summer, and again the Presbyterians and the Independents, as before, are found in controversy on the point.^[420]

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Amidst rumours of various sorts, and as the Upper House still occupied itself upon the offensive Bill, the Lower House showed, as they had done from the beginning, the most intolerant zeal for the Established Church. When thanking the King, on the 27th of February, for his speech, they told him that an indulgence of Dissenters would establish schism by law—would be inconsistent with the wisdom and gravity of Parliament—would expose His Majesty to restless importunities—would increase the number of sectaries—would be altogether contrary to precedent—and would be far from promoting the peace of the kingdom.

This array of objections alarmed the Monarch; he immediately replied that he would take time for consideration; and on the 16th of March, he sent an answer—assuring his faithful Commons that they had misunderstood his meaning—thanking them for their thanks—and desiring them to put the kingdom in a state of defence, but not saying one word about the apple of discord.^[421]

Both Houses, on the 31st of March, 1663, presented a Petition to the King, imploring him to command all Jesuits and Popish Priests, whether English, Irish, or Scotch, to quit the realm. To him such a Petition must have been annoying, and after delaying a while, to give any distinct answer, he replied, that he felt troubled on account of the resort to England of Jesuits and Priests, that it was so much ill-use made of his lenity towards many of the Popish persuasion,—that his feelings in this respect were the natural effects of his generosity and good disposition, after having lived so many years in the dominions of Catholic Princes,—that he would now endeavour to check the evil,—that as his affection for the Protestant religion and the Church of England had never been concealed, so he was less solicitous for the settling of his revenue than for the advancement and

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improvement of the ecclesiastical establishments, and for the using of all effectual remedies for hindering the growth of Popery.^[422]

The Commons passed Bills against Papists and Nonconformists, but these Bills were not sanctioned by the Upper House.^[423]

From the passing of the Act of Uniformity down to the repeal of the clause in 1865, touching the declaration of *assent and consent*, the meaning of those words was a constant subject of controversy, some even of the Bishops construing them in a very lax and indefinite manner. The words seem to many persons precise enough; and one might have thought that no room remained for controversy respecting them, after what took place in the House of Commons at the time now under review. A Bill passed in the month of July, to relieve those who by sickness or other impediment had been disabled from subscribing the required declaration. The Lords wished to sanction the latitudinarian interpretation, and adopted as an amendment this position, that "*assent and consent*" should "be understood only as to the practice and obedience to the said Act, and not otherwise." Against this construction the Duke of York and thirteen other Lords entered their protest. The Commons indignantly rejected the amendment, as having "neither justice nor prudence in it." Such conduct aroused the anger of the Lords, who resolved to take up the subject in the following session; but they allowed it to drop, and so virtually gave way to the Lower House, and left the strict grammatical meaning as the true construction of the law.^[424]

Upon the 27th of the same month, July, the Speaker of the House of Commons alluded to a measure for the better observance of the Sabbath; the legislation of the Commonwealth on that as on all other subjects having been rendered void. He dwelt in an affected strain upon the decline of religion, and then returned to the subject of the growth of Popery, and of Sectarianism. He was commanded, he said, to desire that His Majesty would issue another proclamation for preventing profaneness, debauchery, and licentiousness, and for better securing the peace of the nation against the united counsels of Dissenters. Charles replied, that he had expected to have had Bills presented to him against distempers in religion, seditious Conventicles, and the increase of Popery; but, that not being done, if he lived, he himself meant to introduce such Bills. Meanwhile, he had charged

PAPISTS AND
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the Judges to use all endeavours to disperse the Sectaries, and to convict the Papists.^[425]

Soon after the Restoration death removed several prelates. Brian Walton died in November, 1661, in a little more than two months after his installation at Chester, when Dr. George Hall succeeded him. Nicholas Monk—whose funeral has been noticed—within one year of his promotion to Hereford, died on the 17th of December, 1661, and was succeeded by Herbert Croft. Duppa, Bishop of Winchester, died March 25th, 1662, leaving behind him a reputation for munificent charity, and, just before his departure, bestowing his Episcopal benediction upon the King, who had been his pupil, and who knelt by the side of his death-bed. Gauden, who in the beginning of 1662 had been translated from Exeter to Worcester, expired before the end of twelve months.

Sanderson, Bishop of Lincoln, died in January, 1663. When in his illness petitions were offered for his recovery, he remarked that "his friends said their prayers backward for him; and that it was not his desire to live a useless life, and, by filling up a place, keep another out of it, that might do God and His Church service." With his dying breath he exclaimed, "Thou, O God, tookest me out of my mother's womb, and hast been the powerful protector of me to this present moment of my life. Thou hast neither forsaken me now I am become grey-headed, nor suffered me to forsake Thee in the late days of temptation, and sacrifice my conscience for the preservation of my liberty or estate. It was by grace that I have stood, when others have fallen under my trials; and these mercies I now remember with joy and thankfulness, and my hope and desire is that I may die praising Thee." He had no taste for funeral parade, and expressly directed in his will, that he should be buried with as little noise, pomp, and charge as might be—no escutcheons, gloves, ribbons—no black hangings in the church, only a pulpit cloth, a hearse cloth, and a mourning gown for the preacher of the funeral sermon—who was to have five pounds for the service, upon condition, that he spoke nothing of the deceased, either good or ill, "other," Sanderson adds, "than I myself shall direct." Nor was any costly monument to be raised to his memory, "only a fair flat marble stone."^[426]

Juxon, Archbishop of Canterbury, expired at Lambeth Palace, on the 4th of June; and left behind him an honourable renown for meekness,

constancy, fortitude, and liberality. The sums which he contributed to public objects of charity and religion amounted to no less than £48,000.

PRELATES.

Archbishop Bramhall departed this life, in Dublin, on the 25th of the same month, after three fits of paralysis. To use the words of Jeremy Taylor in his funeral sermon for the Primate, "As the Apostles in the vespers of Christ's passion, so he, in the eve of his own dissolution, was heavy, not to sleep, but heavy unto death; and looked for the last warning, which seized on him in the midst of business; and though it was sudden, yet it could not be unexpected or unprovided by surprise, and therefore could be no other than that εὐθανασία, which Augustus used to wish unto himself, a civil and well-natured death, without the amazement of troublesome circumstances, or the great cracks of a falling house, or the convulsions of impatience."^[427]

Through vacancies at the time of the Restoration, and deaths and translations afterwards, within two years and a half, mitres fell to the disposal of the Crown more than twenty times.

Sheldon, as a reward for the great services which he had rendered to the High Church party during the Commonwealth; at the Restoration, and after his preferment to London, was translated to the Archiepiscopal see of Canterbury. The ceremony of his installation was performed with very great pomp.^[428]

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In spite of the severity of the law, and the activity of informers, considerable numbers in different parts of the country met for religious worship. It is very common, in the informations sent to Secretary Bennet respecting these assemblies, to find mention made of them as having a revolutionary object. There were, it is reported, daily great Conventicles near Canterbury; and on Whit-Tuesday, June 20th, three hundred persons met in the village of Waltham, in a farm cottage, described as "one Hobday's house." Others heard preaching in a cherry orchard, sitting under trees then rich with ripening fruit; upon leaving the enclosure, it is said, they had with them "fifty or sixty good horses, several portmanteaus," and certain bundles "supposed to contain arms." Liberty thus exercised, frightened intolerant people. Sectaries in the City of Chichester were charged with treating

PROSCRIBED
WORSHIP.

contemptuously the surplice and Prayer Book. Some were imprisoned, and others bound over to the Sessions. The ringleaders promised to be quiet, yet afterwards they interrupted the ministers in worship; in consequence of which, the trained bands marched out to keep guard for a fortnight, at the expiration of which period another company of the same kind was to take their place. Like precautions were adopted at Yarmouth, where two hundred Nonconformists were charged in the Commissary Court with not taking the sacrament.^[429] In the City of Norwich, the Deputy-Lieutenant hearing of a meeting in a private house, issued warrants to search for arms. The officers, upon being denied entrance, broke open the doors, and found two or three hundred persons engaged in worship, one hundred of whom were strong men. Their teacher was identified, and all were bound over to the following Sessions. Complaints were made from Lewes that the Sectaries in that town were as numerous as ever. One of the "saints" there happening to die, the clergyman of the parish heard that he was to be buried at night; so when it grew dark, he began carefully to watch, and as the corpse arrived at the churchyard, made his appearance to read the burial service. Upon seeing him, the party retired and took back the body, but they returned in two hours, and again the Incumbent was discerned in the dark, standing by the grave, when they treated him so insolently, that he had to bind several of them over to good behaviour. It was also reported that shops in the town had been kept open in contempt of Christmas Day, although the clergyman had sent orders to close the shutters. "Fair means did no good to these stubborn rascals," said the irritated informant; and his letter is but one specimen out of a great number.^[430]

Lucy Hutchinson tells a touching story, relating to the same summer months, to which the earlier of these informations belong. Mr. Palmer, a Nottingham Nonconformist minister, was apprehended, and some others with him, at his own house, by the Mayor for preaching on the Lord's Day, and was put into the town gaol for two or three months. Through a grated window he and his brethren could be seen by the people in the street. One Sunday, as the prisoners were singing a psalm, the passengers stood still by the grated window to listen, and Mr. Palmer went on to preach to the congregation outside, when the Mayor, a renegade Parliament officer, came with officers, and beat the people, and thrust some into confinement.^[431]

The ecclesiastical policy pursued at this time towards the English colonists on the other side of the Atlantic was very different from that adopted at home.

1663.

In the instructions given to the Governors of Jamaica, whilst they were enjoined to encourage orthodox ministers of religion, in order that Christianity and Anglican Protestantism might be revered and exercised, it was commanded that those colonists who were of different religious opinions should not be obstructed and hindered on such account; that they should be excused from taking the Oath of Supremacy according to the terms required in this country, and that some other mode should be devised for securing their allegiance.^[432]

In a Charter granted to the State of Carolina, dated March 24th, 1663, there is a clause of indulgence to be granted to persons who could not conform to the Liturgy, upon condition that they should declare their loyalty, and not scandalize and reproach the Church.^[433]

In the Royal Commission granted to the Governor of Virginia, he is instructed not to suffer any one to be molested in the exercise of his religion, provided he be content with a quiet and peaceable profession of it, not giving offence or scandal to the Government.^[434]

In the Charter granted to Rhode Island, July 8th, 1663, it is distinctly provided, that no person within the colony should be disquieted for differences of theological opinion.

COLONIAL POLICY.

Should any one ask, why were these people in the West so differently treated from Englishmen in His Majesty's home dominions—the answer is, that the power and the temper of the colonists were such that it would have been dangerous to the Imperial rule of Great Britain to have denied them the utmost toleration which they asked. Most of the emigrants had fled the shores of England, because of their Nonconformity, to seek a home in the New World, where they might worship God; and for defence of the refuge which they had gained at the cost of exile, they were willing to lay down their lives. It would have been at the risk, nay, with the certainty of losing those fair possessions, had the Government denied the fullest religious liberty. Nor did the political fears which blended with the religious

animosities at home exist in relation to those distant settlements. Neither could the Church be endangered, nor the Throne be shaken, nor the State be disturbed by Nonconformists thousands of miles away. It is also a fact that kindness and generosity will often flow in abundant streams towards objects at a distance, whilst the current is diverted from objects at the door.

Lastly, we should remember that Charles II. was not of an intolerant and cruel disposition; that where he could, without trouble or danger, concede religious liberty, he was ready to do so; and that Clarendon was not destitute of all good-will towards people of other opinions than his own when neither policy nor prejudice crossed his better nature.

In the month of October, after rumours of imagined outbreaks, something of the kind actually occurred in Farnley Wood, Yorkshire. What was going forward the Government knew, and enormously exaggerated reports of it were conveyed to Whitehall. The wood was narrowly watched. Twelve armed men met there. Two hundred were seen riding in an open glade, after which they moved away, four or six together, in different directions. Entrenchments were thrown up, but there was no fighting. Several of these persons were arrested, amongst whom were Major Thomas Greathead and Captain Thomas Oates, trustees of the curious little Presbyterian chapel at Morley. Oates was tried at York, when his infamous son Ralph appeared to give evidence against him, but was refused a hearing by the Judge; the Captain, however, suffered death. Greathead turned King's evidence, being promised not only his life but a great reward, if he would confess the whole danger. The Royalist spies and informers reported, that he was so necessary to the military part of the business, that nothing could be done without him, and that he was, therefore, fully trusted by the rebels. This appears in the documents, touching the affair, preserved in the State Paper Office. They are very numerous, and amidst much which is vague and confused, may be discovered some definite proofs that a plot did exist in the year 1663, with which the Farnley Wood entrenchments were connected. There seem to have been exiles in Rotterdam, who had correspondence with parties in England respecting this treasonable business, especially Dr. Richardson, who surrendered his preferment at Ripon upon the Restoration of the King, and had gone over to Holland. Among the implicated persons he mentions Ralph Rymer, father of the Editor of the *Fædera*, which Ralph,—like Oates,

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and several others,—was hanged for his share in the complicated proceedings of this extensive plot. Richardson declared that if there had been a good leader the business would have taken stronger and sooner. Their numbers were small, but their faith was strong, and they believed miracles would have attended their godly design. Several distinguished names are mentioned in the documents, such as Lords Wharton and Fairfax; but the Government did not meddle with these formidable personages.

The sort of agency set to work, first to entrap, and then to convert unwary Nonconformists, is revealed by a writer who, in the month of December, bewails the severity of Government towards men deluded and betrayed by informers; he instances a "Mr. Wakerley, a sober Yorkshire Quaker, visited by Thomas Denham, a privileged spy, who tried to persuade him to join the Northern design; he steadily refused, and even wrote to Sir Thomas Gower an account of what passed, but his letter was suppressed, and he summoned before the Duke of Buckingham as a plotter, and only discharged on his letters being searched for and found."^[435]

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INFORMERS.

Not more frequent at that time, when old English sports continued to amuse the nobility and gentry, was the flight of the hawk, freed from its jess and hood, gliding through the air and striking its quarry, than was the prowling abroad of the informer, who, freed from all restraint of justice and humanity, pursued with keenest eye, and seized with merciless vengeance, the ill-fated Sectary. This favourite English bird, indeed, is dishonoured by the comparison, for, with all the hawk's rapacity, the spy had none of its better qualities. Sprung from the dregs of the people, mean and dastardly to the last degree, and many of them spending their ill-gotten gains in gambling and debauchery, creatures of this kind were as much the objects of abhorrence to the respectable portion of the community, as they were of terror to the innocent class upon which they pounced. Destitute of the fear of God, caring not at all for religion, yet professing themselves zealous Churchmen, they spent the Lord's Day in ferreting out their fellow-citizens and disturbing them at their devotions. In coffee-houses and places of public resort, during the week, they were lying in wait to catch the unwary, or to obtain a clue to the discovery of Conventicles. Many of them perished in poverty, shame, and despair; smitten, as their victims thought, by the

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avenging hand of God. To informers belonged a low coarse villany, peculiar to themselves; but their criminality could not but be largely shared by others, and the responsibility of the system, of which they were the instruments, attached mainly to the Government which condescended to employ them. [\[436\]](#)

At this point in our history we may appropriately answer two questions which naturally arise respecting the Nonconformists—Where did they worship? and how were the ejected ministers supported? These questions lead us into the by-paths of our narrative, and entering them we cannot avoid wandering a little further than strict chronological order would allow. But, although we somewhat anticipate subsequent periods, it will not matter; we shall presently return to the highway by the gate through which we leave it, and the remembrance of what we pick up in our short ramble will enable us better to understand much which follows.

NONCONFORMIST
PLACES OF WORSHIP.

If Nonconformists would adore the Almighty as their consciences dictated, they had to do so in concealment, and to adopt ingenious devices to avoid notice, or to elude pursuit. In the old Tudor Mansion, at Compton Winyates, Warwickshire, there is a chapel in the roof with secret passages contrived for the safety of Popish recusants; and in Oxburgh Hall, in Norfolk, there is a recess within a small closet, with a trap-door concealed in the pavement. These contrivances were imitated by Protestant Nonconformists in the days of Charles II. An instance of this kind, not long since, could be shown among the ruins of the Priory of St. Bartholomew, Smithfield, consisting of subterranean ways and doors in the crypt. The Baptists of Bristol hung up a curtain, and placed their minister behind it, so that a spy coming in could not see the speaker. When a suspicious person made his appearance it was customary for the congregation to begin singing, and for the preacher to pause. At Andover, it is said, that the Dissenters met for prayer in a dark room, until a ray of morning light, struggling down the chimney, announced the hour to depart. [\[437\]](#)

In the village of Eversden, in the County of Cambridge, stands an old Manor house, moated round and approached by an ancient bridge. It is reported that a vehicle might be often seen crossing that bridge after dark, in the time of persecution, on its way to Cambridge, to bring back Francis

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Holcroft, to preach at midnight in the wood, which skirted the back of the edifice. There was once a Gospel Beech in the Wolds of Gloucestershire, a Gospel Oak near Kentish Town, and an Oak of Reformation in Kett the Tanner's Camp, near the City of Norwich, and to these may be added the Oak at Eversden,—remaining within the memory of the present generation, called the Pulpit Tree—a sort of Christian Dodona, from which the minister just named announced the Word of Life. In the woods near Hitchin, tradition reports, that John Bunyan used, after nightfall, to gather together great numbers of the neighbouring peasantry; and at Duckinfield, in Cheshire, people can still point out the place where the "proscribed ministers were met by their faithful adherents, when the pious service of prayer, praise, and exhortation had no other walls to surround it but the oaken thicket, and no other roof for its protection but the canopy of Heaven."^[438]

A few of the ejected ministers lived in comfortable circumstances. Inheriting a fortune, or acquiring property during their connection with the Establishment, they were provided against pecuniary inconvenience after the Restoration.

EJECTED MINISTERS.

John Owen must have derived from the Deanery of Christchurch something considerable, to which additions were made by the bequest of a relative, if not by the profits of his publications. He had an estate at Stadham, whither he retired on his removal from Oxford; and, after his second marriage in 1667, he was enabled to keep his carriage, and a country house at Ealing in Middlesex.^[439] John Tombes, the Antipædobaptist, married a rich widow at Salisbury, not long before the King's return, and lived in that city upon her estate, visiting the Bishop and enjoying the friendship of other dignitaries.^[440] Some of those who were compelled to renounce their incumbencies, adopted secular employments as a means of livelihood; some became physicians or lawyers, some established schools, which, however, were liable to be broken up by the Five Mile Act, and several became chaplains or tutors in private families.^[441] John Howe spent about five years in Ireland, at Antrim Castle, with its spacious and richly-timbered park, upon the banks of the charming Lough Neagh, where he administered the ordinances of religion to the family of Lord Massarene.^[442] Dr. Jacomb enjoyed the friendship of the Countess of Exeter, to whom

he had been chaplain; and, after his resignation of St. Martin's, Ludgate, he found a comfortable home in her town house, where he made it his constant care to promote domestic religion. John Flavel lived at Hudscott Hall, belonging to the family of the Rolles, near South Molton, in Devonshire. Supported by the liberality, and screened by the influence of the Lord of the domain, he there, amidst plantations, gardens, and other rural scenes, gathered together the materials of his *Husbandry Spiritualized*. There, too, he assembled around him, as best he could, sometimes at midnight, the members of his former parish flock, and interested and instructed them by ingenious illustrations adapted to their rustic habits and tastes. [\[443\]](#)

Those who steadily laboured, with more or less publicity, would receive such assistance from their hearers as was voluntarily contributed. But Richard

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Baxter, as he informs us, pursued a very independent course, and sought to imitate the Apostle Paul by not being chargeable to any. Dropping into a gossiping humour he declares, in his *Life and Times*, that for eleven years he preached for nothing; that he did not receive a groat but what he returned, unless it were between forty and fifty pounds given him at different times, partly to defray his prison charges, and an annuity of ten pounds sent by a friend. Having printed about seventy books, no one, whether Lord, Knight, or other person to whom they were dedicated, ever offered him a shilling, except the Corporation of Coventry, and Lady Rous, each of whom presented him with a piece of plate of the value of four pounds. The fifteenth copy of a work was his due from the publisher; but he gave them away to the amount of many thousands amongst his friends, who, noble or ignoble, offered him not a sixpence in return. [\[444\]](#)

Some of the ejected, reduced to extremities, were discovered under the concealments which from poverty they contrived. Mr. Grove, a man of great

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opulence, whose seat was in the neighbourhood of Birdbush, in Wiltshire, in consequence of his wife's dangerous illness, sent to the minister of the parish. The minister was riding out with the hounds, when the messenger arrived, and he replied that he would visit the gentleman when the hunt was over. Mr. Grove, having expressed his displeasure that the clergyman should follow his diversions rather than attend to his flock, one of the servants took the liberty of saying, "Our shepherd, sir, if you will send for

him, can pray very well: we have often heard him in the field." Upon this the shepherd was sent for, and Mr. Grove asking him whether he could pray, the shepherd replied, "God forbid, sir, I should live one day without prayer." Upon being desired to pray with the sick lady, he did it so pertinently, with such fluency, and with such fervour, as greatly to astonish all who listened. As they rose from their knees the gentleman observed: "Your language and manner discover you to be a very different person from what your appearance indicates. I conjure you to inform me who and what you are, and what were your views and situation in life before you came into my service." To this the shepherd rejoined, that he was one of the ministers who had been lately ejected from the Church, and that, having nothing left, he was content to adopt the honest employment of keeping sheep. "Then you shall be my shepherd," rejoined the Squire, and immediately erected a Meeting-house on his own estate, in which Mr. Ince (for that was the shepherd's name) preached and gathered a congregation of Dissenters.^[445]

Numerous anecdotes are recorded by Calamy, and others, of the remarkable manner in which certain ejected ministers amidst their privations received assistance. If we believe (and who that accepts the New Testament can doubt it?) that a special Providence watches over those who seek first the kingdom of God and His righteousness, we are prepared to discover special Divine interpositions on behalf of men distinguished by integrity, faith, devotion, and self-sacrifice.

1663.

CHAPTER XVI.

Within two years after the passing of the Act of Uniformity, the clergy exerted themselves to obtain further legislation in favour of the Church. From a petition which they presented to Parliament in the year 1664, it appears they were anxious for the enactment of severe laws against Anabaptists, who were complained of as fraudulently industrious in making proselytes. They also desired to promote the observance of the Lord's Day, by increasing the fine of twelve pence in every case of non-attendance upon Divine service. They wished the clergy to be assisted in recovering tithes, not exceeding the value of forty shillings, by less expensive means than law-suits; and they requested a more equitable method of clerical taxation than that which then existed. They further asked for an augmentation of the incomes of Vicars and Curates, and for the enforcement of the payment of Church rates.^[446]

How far this petition, which points to the alarming increase of the Anabaptists, might influence certain proceedings of the same year, it is a fact, that a law for the suppression of Nonconformity soon afterwards appeared. Charles, when proroguing Parliament in the month of July, 1663, had promised a further measure against Conventicles. The recent Act of Uniformity had rendered the Dissenting clergy liable to three months' imprisonment if they publicly preached; but it had not directly touched the case of laymen, except so far as schoolmasters were concerned. Through the application of Elizabeth's Act of Uniformity, and of other laws for repressing civil disaffection, laymen, frequenting Conventicles, became liable to penalties; but the Conventicle Act, now to be described, aimed, by a direct and decisive blow, at crushing for ever the nests of sedition. It was passed in the month of May.^[447] It recognized the Act of Elizabeth as still in force; and it provided, that no person of sixteen, or upwards, should be present at any assembly of five, or more, under colour of religion "in other manner than is allowed by the Liturgy;" and that every such offender should, for the first offence, be imprisoned for a period not exceeding three months, or pay five pounds; for the second offence, be imprisoned not

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CONVENTICLE ACT.

exceeding six months, or pay ten pounds; and, for a third offence, be transported, for seven years, to any foreign plantation (Virginia and New England only excepted); the goods of the offenders to be distrained for the charges of transportation, or his service made over as a labourer for five years. The payment of one hundred pounds would discharge from such imprisonment and transportation; and such a fine was to be appropriated for the repair of churches and highways. Escape before transportation subjected the victim to death. Power was given to prevent Conventicles being held, or, if held, to dissolve them. Any one who allowed a meeting in a house or outhouse, in woods or grounds, incurred the same penalties as the attendants. Gaolers were forbidden to allow offenders to remain at large, or to permit any person to join them. The houses of Peers were exempted from search, except by Royal warrant, or in the presence of a Lieutenant, a Deputy-Lieutenant, or two Magistrates. Quakers, for refusing to take oaths, were to suffer transportation. Noblemen, if they offended against the law, were, in the first two instances, to pay double fines—and in the third instance to be tried by their peers. ^[448]

The Bill proceeded upon the principle, already established by the Act of Uniformity, that Nonconformist clergymen were incompetent to preach; and it laid down another principle, a legitimate corollary of the former, that Nonconformist laymen were, as such, incompetent to worship. The intolerant measure would seem to have passed the two Houses with little or no discussion, as not any notice is taken in the *Parliamentary History* of speeches delivered upon the occasion; and Clarendon remarks, that, at this time, there was great order and unanimity in debates, and Parliament despatched more business of public importance and consequence than it had done before, in twice the time. ^[449]

As we examine the Act, we cannot help calling to mind the ordinance of the Long Parliament in 1646, forbidding the use of the Prayer Book "in any private place or family." Here, as in other cases, are seen the footsteps of avenging Deities; and, as is their wont, they meted out penalties exceeding the original offence. In this case, fines of five pounds and ten pounds, indeed, just equalled the pecuniary mulcts of Presbyterian law; but the *one* year's imprisonment, without bail or mainprise, threatened by the Long Parliament against a third offence, was now thrown into the shade by the enactment—

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first, of a penalty of transportation for seven years, in cases where means did not exist for paying the sum of one hundred pounds; and next, of capital punishment, in case of the convicted Conventicler being caught after making his escape.

The difference in some respects, the similarity in others, between the principles upon which the Anglican politicians proceeded in their conduct towards Puritans, and the principles upon which the Puritan politicians had proceeded in reference to Anglicans, has been little, if at all, noticed. As to the difference, the Conventicle Act regarded Conventicles simply as seditious, it punished men for religious convictions, under pretence of preventing rebellion; on the other hand the Long Parliament and Oliver Cromwell had forbidden the use of the Prayer Book, in order to break up assemblies for worship held by persons who, not without reason, were suspected of political disaffection. There was a further difference—Clarendon and his party sought to establish uniformity by the use of the Anglican Liturgy; the Presbyterians had aimed at their uniformity through a prohibition of that Liturgy, not by any enforcement, under penalties, of the Westminster Directory. The Anglican law was prescriptive; the Puritan prohibitive. But there is involved in all this a general resemblance between the two. Neither appears thoroughly straightforward; each is exceedingly intolerant; and both aim at doing one thing, under pretence of doing something else. Yet let it not be forgotten, that while there is little to choose between them in point of principle, the extent to which persecution was carried, under Charles and his brother James, immensely exceeded anything reached under the Long Parliament, or under Oliver Cromwell.

The new law was ordained to take effect after the 1st of July; but formidable difficulties in the way of its execution presented themselves as the time approached, arising from political disaffection, from the numbers of Nonconformists, and from the sympathy which their more tolerant neighbours felt with them in the sufferings which they endured.

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"The Quakers, Anabaptists, and Fifth Monarchy men," it is stated, in the month of June, "will meet more daringly after the time limited in the Act, and say they will neither pay money nor be banished. They have solicited others of different persuasions to join them in opposing the Act, and they get encouragement, though no promises. If dealt with severely, a body of

10,000 would rise, and demand fulfilment of the King's Declaration for liberty of conscience. They say, if their spirit of suffering be turned into a spirit of action, woe to those who stand in their way. Other Sectaries resolve to keep to the limits of the Act, and increase their number as they can safely. The hopes of a war with the Dutch, fermented by spies at Court, dispose the desperadoes to dangerous resolutions."^[450] This is the representation of an enemy, and cannot be trusted for accuracy in particulars; but, so far as a general determination to persevere in worship is concerned, probably the writer is perfectly correct, and the whole drift of his communication manifests the difficulty which was felt with regard to the anticipated execution of the new statute.

The Congregational Churches about Furness were reported as resolved to meet, notwithstanding the Act; and as wasting their money by rewards, and by maintaining prisoners, and other people, who absconded in order that they might not be cited to bear witness.^[451]

After the Conventicle Act came into force the number of offenders excited attention, and created difficulty. Newgate was so full that it bred an infectious malignant fever, which sent many to their long home; and the magistrates, who thought their Nonconformist neighbours "unfit to breathe their native air when living, buried them as brethren, when dead." Stress was laid upon the great number of Dissenters, both by enemies and friends. They were said to exceed "two parts of the common people;" to have connection with the nobility and gentry; and to be so numerous that His Majesty could not force them to conformity, by banishment or death, without endangering the safety of the kingdom. Nor were there wanting Churchmen, to plead for a lenient treatment of their persecuted brethren, whilst they themselves complained that rulers were winding the pin of Government so high as to threaten to crack the sinews, and that so much formalism and corruption prevailed in the Establishment as to provoke people to wish for its overthrow.^[452]

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Of the existence at this time of alarming disaffection amongst persons of Republican opinions who had served in the Army, there cannot be any doubt. Abundant indications of it are afforded in contemporary letters. How, indeed, could disaffection but exist under a Government, which, whilst

denouncing plots and plotters, was, by its own intolerance, stirring people up to rebellion? No one can be surprised that old soldiers, who had fought for liberty, felt disposed again to draw the sword, if any chance of success appeared. Where no signs of resistance were made, and very many persons, either from worldly policy, or from Christian patience resolved to be quiet, there throbbed intense indignation at the infliction of so much wrong—a temper with which it is dangerous for any Government to trifle. The suspicion that Nonconformists were engaged in plots contributed to increase a persecuting spirit. Local attacks might spring from Anglican fanaticism, from private pique, and revenge, from the vulgar insolence of mobs, and from the avarice or ambition of informers; but the assaults which proceeded immediately from headquarters, as the State Papers distinctly prove, were provoked principally by political fears.

The Conventicle Act was executed with severity. A congregation meeting at a baker's house in Maryport Street, Bristol, was visited by the Mayor and Aldermen, who demanded admission; the baker refused, when an entrance was forced by means of a crowbar, and the people and the minister escaped through a back door. They were "hunted by the Nimrods, but the Lord hid them many days." Once, somewhere in Corn Street, a guard of musketeers came to take people into custody, when, it being evening, the persecuted escaped through a cellar into Baldwin Street. At another time, when the Mayor and Aldermen again beset the house, a brother, sending his companions upstairs, contrived, by means of a great cupboard, to hide the garret door.^[453] Presbyterians at Chester, disturbed in their worship, hid themselves under beds, and locked themselves up in closets; and sixty men and women, in a village of Somersetshire, were apprehended, and, in default of paying fines, were sent to gaol.^[454]

CONVENTICLE ACT.

Whilst Nonconformists were suffering from the Conventicle Act, the King recurred to his scheme for granting indulgences; in favour of which Lord Arlington, on behalf of the Catholics, and the Lord Privy Seal, who was interested for the Presbyterians, plied an efficacious argument. They urged that, frightened by recent laws and the zeal of Parliament in the cause of the Church, Dissenters would gladly compound for liberty at a reasonable rate, by which means a good yearly revenue might be raised, and concord and

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tranquillity be established throughout the kingdom. The King caught at this reasoning: a Bill was prepared, in which Catholics as well as Protestants were included;—a schedule having been drawn up, computing what they would be willing to pay. The Bill entrusted the King with a dispensing power,—and the Royal origin of the measure becoming known to the Peers, they offered no opposition to the first reading; but afterwards, the Lord Treasurer, and many of the Bishops, sharply opposed it, and Clarendon threw the weight of his influence into the same scale. In a courtier-like speech, reported by himself, he upheld Charles' Protestantism, and cleverly insinuated that the question was not "whether the King were worthy of that trust, but whether that trust were worthy of the King,"—that it would inevitably expose him "to trouble and vexation," and "subject him to daily and hourly importunities; which must be so much the more uneasy to a nature of so great bounty and generosity,"—and that nothing was so ungrateful to him as to be obliged to refuse. Even the Duke of York expressed dissatisfaction—influenced, as is presumed, by the Lord Chancellor. Few spoke in favour of the Bill, and it was agreed that there should be no question as to its being committed—"which was the most civil way of rejecting it, and left it to be no more called for." The only results were, the mortification of His Majesty, and the augmentation of bitterness against the Roman Catholics. [\[455\]](#)

An important change had occurred in the relation of the clergy to the State at the opening of the year 1665, which we must step back to notice. In ancient times they had possessed the privilege of self-taxation, and this privilege survived the Reformation. Ecclesiastical persons continued to vote subsidies from their own body: the proportions being assessed by Ecclesiastical Commissioners. The censures of the Church fell upon those who did not pay; and if Sheriffs were remiss in executing the writ *de excommunicato capiendo*, Bishops had their own prisons in which to confine the refractory: and it may be concluded, that it came within the power of diocesans to sequester the profits of incumbencies, when the holders of them refused to meet their assessments. Parliament, in the reign of Henry VIII., had confirmed such aids; and from that time the clerical tax, after being ratified by the two Houses, could be levied in the way of distress. The whole of this system of taxation had disappeared in 1641, when ministers of religion, in common with other people, became subject to

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Parliamentary assessment. A proposition to the effect that ministers should be exempted from paying tenths and first-fruits had been entertained in an early part of the Protectorate; and it had even been suggested that they should be relieved from taxation altogether;^[456] but this excess of liberality bore no fruit, and at the Restoration the clergy fell back into their old position. After the revision of the Prayer Book had been completed, in the winter of 1661–2, Convocation did nothing but grant subsidies,—beyond discussing such matters as the composition of a school grammar, a petition from poor clergymen in the Isle of Wight, and the translation of the Prayer Book into Latin.^[457] A grant of four subsidies in the year 1663 was confirmed by Act of Parliament;^[458] but before the close of that year, the Bishops and clergy began to regard this rating of themselves as troublesome, and they found that both the Court and the Commons were discontented, unless Convocation fixed their contributions at a rate beyond all reasonable proportion. The petition of the clergy, already noticed, looked in that direction, and noticed the existing mode of Convocational taxation, as an ecclesiastical hardship. Sheldon, and other prelates, it is supposed under the influence of considerations of this kind, arranged with the Government that the ancient custom of voting subsidies should be waived, and that spiritual as well as secular persons should be included in the Money Bills of the Commons. In promoting this alteration, the Archbishop and his Episcopal helpers did not appear in the character of High Churchmen, the alteration being thoroughly opposed to the ancient canon law. And to encourage the clergy, it was proposed that two of the last four clerical subsidies should be remitted, and that a clause should be inserted in the new Act, for the saving of ancient rights. The Bill passed on the 9th of February, 1665; and, at the same time, parochial ministers acquired the privilege of voting for members of Parliament. Collier remarks,—“that the clergy were gainers by this change is more than appears.”^[459] And he is right. No doubt the change struck a fatal blow at the importance and authority of Convocation; for Convocation, like Parliament, had been valued by Sovereigns because of its holding the purse-strings of a portion of the people; and when money no longer flowed into the exchequer in the form of ecclesiastical subsidies, Convocation sunk into neglect. It would be very surprising, if it were a fact, that State Churchmen, desiring to maintain the independence of the Church, did not foresee the operation of the change, and did not attempt to prevent it: but the fact is, that Churchmen,

just after the Restoration, zealous for such independence, were neither numerous nor influential, and that the majority of those in orders were decidedly Erastian in their tendencies. The change, however, was one which, if it had not been brought about by such motives of expediency as influenced Sheldon, must have followed in the wake of advancing civilization—the anomaly of a particular class left to tax itself not being permissible in modern times: nor can it be doubted, that it is far better for the temporal interests of the clergy, as well as of the laity, that they should stand shoulder to shoulder, bearing together the burdens of their country.

Five months after this Act had passed, Archbishop Sheldon issued orders and instructions to the Bishops of his province, concerning ordinations, pluralists and their curates, lectures and lecturers, schoolmasters and instructors of youth, practisers of physic, and Nonconformist ministers. He complained of divers unworthy persons, of late crept into the ministry, to the scandal of the Church, and the dissatisfaction of good men; and to remedy these evils, Bishops were ordered to be very careful what persons they received for ordination. Inquiries were made touching pluralities, and whether pluralists kept able, orthodox, and conformable *curates* upon the benefices where they did not themselves reside. The word *curates*, it may be remarked in passing, had now changed from its ancient to its modern meaning; and having been applied generally to all pastors, it was introduced by the Archbishop as the title of distinct and subordinate officers.^[460] These orders may be divided into two parts—those which relate to the internal government of the Church; and those which relate to Nonconformists. The second part will be noticed in the next Chapter.

SHELDON'S
INQUIRIES.
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CHAPTER XVII.

This year appears as a terrible one in the annals of London.^[461] Two men in Drury Lane had sickened in the previous December. Upon inquiry, headache, fever, burning sensations, dimness of sight, and livid spots had indicated that the Plague was in the capital of England. The intelligence soon spread. The weekly bills of mortality, for the next four months, exhibited an increase of deaths. The month of May showed that the disease was extending; and in the first week of July, 1006 persons fell victims to the destroyer. Men fled in terror; vehicles of all kinds thronged the highways, filled with those whose circumstances enabled them to change their abode; but multitudes, especially of the poorer class, remained, and, being crowded together in narrow streets and alleys, they were soon marked by the Angel of Death. The mortality reported from week to week rose from hundreds to thousands, until during the month of September, the terrific number of 10,000 occurred in one week. In one night, it is said, 4,000 expired. Shop after shop, and house after house was closed. The long red cross, with the words, "Lord, have mercy upon us" inscribed upon the door, indicated what was going on within. Watchmen stood armed with halberds, to prevent communication between the inmates and their neighbours. Instead of the crowds which once lined the thoroughfares, only a few persons crept cautiously in the middle of the road, fearful of contact with each other. "The highways were unoccupied, and the travellers walked through by-ways." A coach was rarely seen, save when, with curtains drawn, it conveyed some Plague-stricken mortal to the pest-house. Wagons, laden with timber or stone, had disappeared, for men had no heart to build; and the half-finished structure sunk into premature decay. Carts, bringing provision, were not suffered within the gates; markets were held in the outskirts, where the seller would not touch the buyer's money, until it had been purified by passing through a vessel of vinegar. Similar precautions were used at the post office, which was so fumed morning and evening,—whilst "letters were aired over vinegar,"—that the people employed in it could hardly see each other; but, says the writer, who mentions that fact, "had the contagion

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been catching by letters, they had been dead long ago."^[462] Grass sprung up in the streets, and a fearful silence brooded over the wide desolation. London cries, sounds of music, the murmur of cheerful groups, and the din of business had ceased. The lonely passenger, as he walked along, shuddered at the shrieks of miserable beings tortured by disease, or at the still more awful silence. Doors and windows were left open—houses were empty—the inmates gone.

Some dropped in the streets; others had time to go to the next stall or porch, "and just sit down and die." Men, who drove the death-carts, perished on their way to the pit, or fell dead upon the corpses, which were tumbled into the place of burial. A person went home, hale and strong—at eventide there was trouble, and before the morning, he was not. As the mother nursed the babe, a purple spot appeared on her breast, and, in a short time, the helpless little one was clinging to its lifeless parent.

The real horrors of the Plague-year were augmented by imagination. Men saw in the heavens portentous forms, blazing stars, and angels with flaming swords; on the earth they discerned spectres in menacing attitudes. Some fancied themselves inspired. One of these fanatics made the streets ring with his cry, "Yet forty days, and London shall be destroyed." Another, with nothing but a girdle round his loins, and bearing a vessel of burning coals upon his head, appeared by night and by day, exclaiming, "Oh, the great and dreadful God!" There were individuals, as amidst the plague of Athens, "who spent their days in merriment and folly—who feared neither the displeasure of God, nor the laws of men—not the former, because they deemed it the same thing whether they worshipped or neglected to do so, seeing that all in common perished—not the latter, because no one expected his life would last till he received the punishment of his crimes;"^[463] but the greater part of the population looked upon the calamity in the light of a Divine judgment, and trembled, with inexpressible fear, at the signs of God's displeasure.

A Proclamation appeared in July, appointing as a fast-day the 12th of that month; and, afterwards, the first Wednesday in every succeeding month, until the Plague should cease. Collections were ordered to be made on these occasions for relief of the sufferers; and also forms of morning and evening

prayer were published by authority, together with "an exhortation fit for the time."^[464]

It is more humiliating than surprising, to find how far political and ecclesiastical considerations became mingled with the prevailing alarm.

Charles issued a Proclamation to the Lord-Lieutenants of Counties, exhorting them to be extraordinarily watchful over all persons of seditious temper; to imprison those who gave ground for suspicion, and cause others to give security for good conduct on any jealousy of a commotion.^[465] On the other hand it was affirmed, that at their meetings Nonconformists expressed a sense of the Lord's displeasure for the sins of His people, but made no reflections on the Government. Had the King heard their earnest prayers for God's mercy and favour, and their contrite confessions of sins, he would not, it was thought, regard them as unworthy of the indulgence which he seemed disposed to grant.^[466]

Henchman, Bishop of London, wrote to Lord Arlington, expressing thanks for warnings relative to the disorders which would arise, should ejected ministers be allowed to occupy the vacant pulpits. The sober clergy, he says, remained in town, implying by the statement that others had fled; and he informs His Lordship that he had refused some who offered to supply destitute churches, suspecting them to be factious, although they promised to conform. Most of his officers had deserted him and gone down into the country; but he could not learn that any Nonconformist minister had invaded the City pulpits. He was glad that many who had never attended Divine worship before, now presented themselves at church.^[467] The Bishop found it necessary to threaten with expulsion from their livings those who fled, if they did not resume their posts;^[468] and Sheldon, in the midst of the Plague, issued a circular commanding the Bishops of his province to return the names of all ejected ministers; which returns are preserved in the Lambeth Library.^[469] To his credit it should be recorded also, that in this season of visitation, he exerted himself for the temporal welfare of his fellow-creatures, though it does not appear that he manifested any great anxiety about their spiritual well-being.

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He directed frequent collections to be made on behalf of those who were perishing for want of the necessities of human life, "thousands of poor

artisans being ready to starve." He wrote for help to the Archbishop of York, and he gave judicious instructions respecting the probate of wills—the large number of deaths having led to an undue granting of administrations, to the increase of the infection and the injury of people's estates. His Grace directed that all surrogations should be revoked; that the granting of administration and probate should be suspended for fourteen days at least, and that afterwards no administration or probate should pass, until the expiration of one fortnight following the departure of the deceased; an arrangement which was judged "to be a visible means to hinder the further dispersing of the pestilence, and to do a right and justice to the interested."
[\[470\]](#)

Simon Patrick, who held the livings of Battersea and St. Paul's, Covent Garden, remained in London throughout the whole period. He studied, preached, visited the sick, and distributed alms; and upon a review of the awful season and his own peril, recorded the following words: "I had many heavenly meditations in my mind, and found the pleasure wherewith they filled the soul was far beyond all the pleasures of the flesh. Nor could I fancy anything that would last so long, nor give me such joy and delight, as those thoughts which I had of the other world, and the taste which God vouchsafed me of it."
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Vacant churches, neglected parishes, and excited multitudes presented opportunities of usefulness to some of the ejected ministers, of which, in spite of the Bishop's precautions, they were quick to avail themselves.

Thomas Vincent had been a student at Christ Church when Dr. Owen was Dean, and upon leaving the University, became chaplain to the Earl of Leicester. He succeeded Mr. Case in the living of St. Mary Magdalen, Milk Street, whence he was ejected by the Act of Uniformity. In his retirement he devoted himself to the study of the Bible, and committed to memory large portions of it, observing to his friends, that he did not know, but that they who had taken from him his pulpit, might, in time, take from him his Bible. When the Plague broke out he was residing at Islington; for some time it did not penetrate into that neighbourhood, but sympathy with sufferers, not far off, proved a stronger feeling than a regard for his own safety. Contrary to the advice of some of his friends, he devoted himself to the work of

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preaching and visiting, in districts where the pestilence prevailed; and he states, as remarkable,^[472] that pious people "died with such comfort as Christians do not ordinarily arrive unto, except when they are called forth to suffer martyrdom for the testimony of Jesus Christ." So extraordinary was his preaching, that it became a general inquiry every week, where he would be on the following Sunday—and amongst the multitudes who crowded to listen to his ministry, many persons were awakened by his searching discourses. With a total disregard of the danger of such gatherings at such a time, people crowded large edifices to suffocation. The broad aisles, as well as the pews and benches, were packed with one dense mass—anxious countenances looked up to the Divine in his black cap; the reading of the Scriptures, the prayer, and the sermon, being listened to amidst a breathless silence, only broken at intervals by half-suppressed sobs and supplications.

Other methods of usefulness were employed. In a volume of broadsheets in the British Museum may be seen "Short Instructions for the Sick, especially who, by contagion or otherwise, are deprived of the presence of a faithful pastor, by Richard Baxter, written in the Great Plague Year,"—full of characteristic appeals, intended to be pasted on the cottage-wall, as a faithful monitor to all the inmates.

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The malady in London began to decline in the latter part of September, and at the end of the year it ceased, when the City soon filled again, resuming its wonted aspect of activity and bustle, and the benefited clergy who had fled reappeared in their pulpits. The minister of St. Olave's, where Pepys attended, was the first to leave, the last to return; and the minute chronicler informs us, that when he went with his wife to church, to hear this Divine preach to his long-neglected flock, he "made but a very poor and short excuse, and a bad sermon."^[473]

The Plague, when it left London, visited, with its horrors, many other parts of England.

It is curious to find that the Corporation of Norwich gave orders to the parish clerks, not to toll for the dead, any bell, but one belonging to the parish in which the person died; because it had become a practice for the citizens in one parish to have the bells tolled for deceased friends in another

parish, so that all the church steeples were sometimes ringing out a knell for the same individual.

As in London, so in the country, the ejected clergy^[474] watched for opportunities of usefulness, but they were often thwarted in their laudable efforts. Owen Stockton, ejected at Colchester, when he saw many, "even the shepherds of the flock, hastening their flight," offered, if the magistrates "would indulge him the liberty of a public church, to stay and preach,"—"till either God should take him away by death, or cause the pestilence to cease." The magistrates had no power to set aside the law, and the privilege asked being denied, the Puritan confessor, from the study of the words in the Book of Isaiah—"Hide thyself as it were for a little moment until the indignation be overpast"—satisfied himself as to the lawfulness of removing from place to place, in time of peril, and hastened with his family to the retired village of Chattisham, in Suffolk.^[475]

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A touching story is told of a clergyman at Eyam, in Derbyshire. A box of cloth was sent from London to a tailor in the village, who, soon after he had emptied the package, fell sick, and died. The pestilence presently swept away all in his house except one. It spread from cottage to cottage, and a grave-stone remains to tell the story of seven persons of the name of Hancock, who died within eight days. As the churchyard did not suffice for the burial of the dead, graves were dug in the fields and upon the hill-side, where corpses were hastily interred. The clergyman was Mr. Mompesson, a young man of twenty-eight, whose wife, alarmed for the safety of her husband and their two children, besought him to flee, but he would not leave his flock. With heroic love, whilst seeking his safety, she exposed herself to imminent danger; and consenting to the removal of the children, resolved to abide in the parsonage, where they remained for seven months. In conjunction with the Earl of Devonshire, the patron of the living, the Incumbent arranged that all communication with neighbouring places should be cut off, that no one should go beyond a boundary marked by stones, where people came and left provisions, and where the buyer put his money in a vessel of water. Combining singular prudence with ardent zeal, Mompesson provided for the continuance of religious services, without hazarding the health of his parishioners by bringing them into a crowded church, and wisely performed Divine service in the open air. In Cucklet

Dale, by the side of a running brook, with a rock for his pulpit, with craggy hills on one side, and lofty trees on the other for the walls of his temple, he assembled his flock for worship, and was wonderfully preserved from contagion; but just as the Plague began to decline, his noble wife fell a victim to its power.^[476]

Nor let Thomas Stanley, a minister who had been ejected from the living of Eyam, be forgotten. He could not preach to the people whom he loved; but by visitation, advice, and prayer, he sought to promote their temporal and spiritual interests. Some looked with jealousy upon his efforts, and endeavoured to persuade the Earl of Devonshire to remove him from the place; but, whoever they were, the Earl was his friend, declaring it much more reasonable that the whole country should testify their thankfulness to such a spiritual benefactor.

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These are instances of activity. There were also examples of endurance. Samuel Shaw, ejected from the rectory of Long Whatton, in Leicestershire, retired to the village of Coates, near Loughborough, and there engaged in agricultural pursuits for the support of his family. His fields were ripe for the sickle, the valleys were covered with corn, and the good man shared in Nature's joy, as he looked upon his quiet homestead, "little dreaming," as he tells us, "of the Plague, which was almost a hundred miles off." Some friends from London came down to see him, and brought the infection; soon the Plague-spot appeared, and touched one after another of his household, until all were smitten, and the farm-cottage became a pest-house. The master of the dwelling shut himself up for three months, tending the sick as far as his own health permitted; for he himself suffered from the fearful malady. Two of his children died, one of his servants died, two of his friends from London died: five out of ten were thus cut off. Yet, although enfeebled by sickness, having no one besides himself to perform the rites of sepulture, he turned his garden into a grave-yard, and with his own hands buried the dead.^[477]

Driven from London by the Plague, the two Houses held their sittings in the Great Hall of Christ's Church, Oxford, where Charles I. had met his mock parliament.

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The subject of the continued existence and of the alarming increase of Nonconformity again came upon the carpet. Instead of disinterested exertions, put forth by ejected ministers in a Plague-stricken country, being rewarded by commendation, jealousy was expressed respecting the manifestations of their zeal. It was odiously represented in parliamentary circles, that Dissenters in many places, "began to preach openly, not without reflecting on the sins of the Court, and on the ill-usage that they themselves had met with."^[478] Prejudices were increased by reports to the effect, that Conventiclers in Scotland were bold and mutinous, and that they were supposed to have entered into treasonable correspondence with English Presbyterians;^[479] at the same time, perhaps, circumstances pertaining to a new conflict with Holland, in which this country was then engaged, served to intensify these mischievous feelings.

The Dutch war, though not approved of by the King or by his Chancellor, found favour at Court with a party headed by the Duke of York, and was warmly supported by Parliament; besides which, an Act was passed for attainting the English who should continue to reside in Holland, or who should engage in the Dutch service.^[480] Some of the fanatical Sectaries, it was alleged, entered that service, and were intending to take up arms against their King and their country; and, moreover, it was known that this war against the United Provinces incurred much unpopularity even with moderate Nonconformists. Influenced by such considerations, and also by reports, of which we have so many specimens, Archbishop Sheldon felt anxious to ascertain the numbers and the strength of these disaffected people—a project which he afterwards carried out, with results appearing at a later period. He not only issued orders, that Bishops should be careful what persons they received into the ministry: that in all things the canons concerning ordination should be observed: that all pluralists should be reported, with full particulars respecting their pluralities: that it should be certified to the Archbishop where lectures were set up, and who were the lecturers, and how they were "affected to the Government of His Majesty, and the doctrine and discipline of the Church of England:" but that information also should be returned respecting all schoolmasters and instructors of youth, and practisers of physic: and that the Bishops of his province should inform him what Nonconformist ministers in their dioceses

had been ejected, what was their profession in life, and how they behaved themselves in relation to the peace and quiet, as well of the Church, as of the State; and also whether any such had removed from one diocese into another.^[481]

Parliament now determined to deal another heavy blow at the obstinacy and insolence of Dissent. If there were in England people disposed to conspire against the Government, adequate means for detecting such persons existed: but, not satisfied with laws against treason, Parliament, under cover of putting an end to plots, passed a measure affecting men, against whom no reasonable suspicion whatever could be entertained.

FIVE MILE ACT.

The Five Mile Act—the measure to which we now refer—was passed in the month of October, 1665, and was entitled "An Act for restraining Nonconformists from inhabiting in corporations." It complained of persons taking upon themselves to preach to unlawful assemblies, under pretext of religion, in order to instil the poisonous principles of schism and rebellion into the hearts of His Majesty's subjects; and it imposed, more stringently than ever, the oath of non-resistance and passive obedience.

This was the form of the oath:—"I do swear that it is not lawful, upon any pretence whatsoever, to take arms against the King; and that I do abhor that traitorous position of taking arms by his authority against his person, or against those that are commissioned by him, in pursuance of such commissions; and that I will not at any time endeavour any alteration of Government, either in Church or State."

Failing to take this oath, Nonconformist ministers were forbidden after the 24th of March following, to come, except as passengers, within five miles of any corporate town or any place where, since the passing of the Act of Oblivion, they had been in the habit of officiating. A payment of forty pounds was prescribed as the penalty for offending against the Act; and those who refused the oath, and did not attend Divine service in the Established Church, incurred incapacity for exercising even the functions of a tutor. Any two county magistrates were empowered, upon oath to them of a violation of this law, to commit the transgressor to prison for six months.^[482]

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The Act of Uniformity had banished Nonconformist ministers from the parish pulpits; the Conventicle Act had broken up the congregations which these ministers had secretly gathered since St. Bartholomew's Day, 1662; and now by the Five Mile Act, these persons were forced into exile, and perhaps reduced to starvation.^[483]

A spirit of retaliation may be traced in the new enactment. When the Presbyterian visitors, in the year 1646, took possession of the University, and the students proved rebellious, a military proclamation threatened that the refractory who tarried *within five miles of the city*, should be treated as spies.^[484] And Cromwell had, by his ordinance in 1655, forbidden ejected ministers to attempt the business of education, or to officiate in their religious calling. Archbishop Sheldon, sitting from day to day in the Hall of Christ Church, as the Bill was read three times, might experience a gratified resentment as he called to mind the former *five mile* proclamation; and as he thought of his own expulsion from the Wardenship of All Souls', others might indulge in similar reminiscences and feelings.^[485] But the revenge proceeded far beyond the provocation. What was done by the Oxford visitors, and those who supported them, was done in a time of war, or immediately afterwards. What was done by the Oxford Parliament was done in a time of peace. Moreover, Cromwell, in his declaration, had prescribed no penalty for disobedience, and had promised to deal leniently with all persons who were well-disposed towards his government;^[486] but now, men were required to swear to an abstract proposition which destroyed the last defence of freedom, or to be mulcted in a large penalty, with the superadded hardship of a banishment from home.

The Bill met with a faint opposition in the Lower House; in the Upper, not only the Lords Wharton and Ashley—the first a Nonconformist, it will be remembered, the latter supposed to be inclined that way—but also the Earl of Southampton, at that time Lord Treasurer, spoke distinctly against it. The latter declared that no honest man could take such an oath—he could not do it himself, for however firm might be his attachment to the Church, as things were managed, he did not know but that he might himself discover reasons for seeking some change in its constitution.^[487] Dr. Erle, then Bishop of Salisbury, also disapproved of this assault upon liberty. The Primate Sheldon, and the Bishop of Exeter, Seth Ward, were zealous in their

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support of it; at the same time all who secretly favoured Roman Catholicism, regarded it with satisfaction;^[488] it being in harmony with their policy, to reduce the Sectaries to such a state of misery, as that they should be forced to accept toleration from His Majesty on his own terms. Nearly half the House of Commons now became so infatuated as to support another Bill, which was founded upon the opposition made by members of the House of Lords, and which was intended to impose the obnoxious oath and declaration upon the nation at large.^[489] This Bill, however, was rejected by the votes of three members, "who had the merit of saving their country from the greatest ignominy which could have befallen it, that of riveting as well as forging its own chains."^[490]

A difference of opinion arose amongst Nonconformists respecting the course to be pursued in relation to the Five Mile Act. Some were willing to take the oath in a qualified sense. Bridgeman, Chief Justice of the Court of Common Plea^[491] and other Judges explained the words in the oath, "I will not at any time *endeavour* any alteration of Government, either in Church or State," to mean an *unlawful* endeavour. With this qualification afforded by high legal authorities, some distinguished Nonconformists submitted to the statute. About twenty ministers in the City of London took the oath, including Dr. Bates; and about twelve in Devonshire, including John Howe. Bates argued, that the word *endeavour* might be construed in a qualified sense, according to the preface of the Act, its congruity with other laws, the testimony of members of Parliament,^[492] and the concurrent opinion of the Judges. When he, with others, presented himself before their Lordships, Bridgeman courteously observed, "Gentlemen, I perceive you are come to take the oath. I am glad of it. The intent of it is to distinguish between the King's good subjects, and those who are mentioned in the Act, and to prevent seditious and tumultuous endeavours to alter the Government." One of the ministers, Mr. Clarke, replied, "In this sense we take it;" upon which Lord Keeling, the same who introduced the Bill of Uniformity, said in a hasty tone, "Will you take the oath as the Parliament has appointed it?" Bates replied, "My Lord, we are come hither to attest our loyalty, and to declare, we will not seditiously endeavour to alter the Government." When the oath had been administered, Keeling proceeded with great vehemence to interpret what they had done as involving the

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renunciation of the Covenant, "that damnable oath," as he politely termed it, "which sticks between the teeth of so many." He hoped, as there was one King and one faith, so there would be one Government, and that if these ministers did not now conform, what they had just done would be considered as meant "to save a stake."^[493] The ministers retired with sadness, without noticing the insult.

A certain interpretation being admitted by the Court, there could be no charge of dishonest evasion against those who, in such a way, publicly declared their construction of the words. Yet they really substituted another declaration for that which was required by the law; and those who allowed the substitution actually set the law aside. The law was no doubt unjust; and to correct the injustice an unnatural sense was put upon its terms. But notwithstanding this kind of sophistry—so often practised even by people who are straightforward in other ways—the pledge of obedience which the Nonconformists gave, sufficed to show the intense cruelty of treating such men as if they had been rebels.^[494]

1665.

The greater number of Nonconformists regarded the subject in a different light from that in which it was viewed by Bates and Howe; and not being able, with their convictions, to acquiesce in a forced construction of the formulary, they refused to adopt it, whilst they also still resolved to preach the Gospel: thus following the example of the Apostles, who said, "Whether it be right in the sight of God to hearken unto you more than unto God, judge ye." The essence of the whole question as to the explanation of formularies, and the course which conscience dictates in cases where formularies are felt to be objectionable, was involved in the controversy raised by the Five Mile Act; and was a subject of casuistry too tempting for Richard Baxter not to touch, even if practical considerations and personal interests had not prompted him to engage in the inquiry. Several closely-printed folio pages are devoted by him to an examination of the arguments on both sides—the result of his cogitations being that he himself records a resolution, not to take the oath at all. He looked upon the whole proceeding as unrighteous; and pronounced the statute a "history," adapted to make Nonconformists appear to posterity as if they were disloyal. He was moved to draw up a defence on their behalf, but, on reading it to some of his friends, they persuaded him to throw it aside, and submit in silence. "The

wise statesmen," adds the simple-hearted theologian—and the remark involves a just satire on the way in which the world often judges—"laughed at me, for thinking that reason would be regarded by such men as we had to do with,—and would not exasperate them the more."[\[495\]](#)

Those who declined to take the oath were either subject to fine, or had to dwell in such places only as were allowed by the Act, such compulsory residence, in a number of cases, rendering necessary an expensive and inconvenient removal. Baxter and Owen, who were living in London, repaired, the one to Acton, the other to Ealing. Many in the Northern part of the country went to Manchester, Bolton, Sheffield, and Mansfield, which were called "Cities of Refuge"—inasmuch as they were, at that time, towns without corporations. Oliver Heywood left Coley, not to go so far as many did, for he only crossed the hills to Denton—"Yet it was the weariest, most tedious journey," he remarks, "I have had that way, which I have gone many hundred times, but scarce ever with so sad a heart, in so sharp a storm of weather."[\[496\]](#)

FIVE MILE ACT.

Philip Henry refused to take the oath, and his case proved one of peculiar hardship, for Broad Oak, where he lived, was but four *reputed* miles from Worthenbury, where he had preached, although upon measurement the distance turned out to be above five miles. Reputed miles were, by the authorities, counted instead of measured miles, and consequently the good man was compelled to leave his family for a time, "and to sojourn among his friends, to whom he endeavoured, wherever he came, to impart some spiritual gift."[\[497\]](#)

1665.

Several ministers in the Northern Counties escaped the penalties of the Conventicle and Five Mile Acts. This anomaly may be accounted for, in part, by remembering the scanty population in those districts, and the impossibility, under any circumstances, of maintaining such a vigilant oversight of the inhabitants as to detect all instances of disobedience. But the comparative exemption of some neighbourhoods in the North from the vigorous oppression experienced elsewhere, is also in part to be attributed to the influence of three noblemen who were Lord-Lieutenants, respectively, of the Counties of York, of Lancaster, and of Derby. The Lord-

Lieutenant of Yorkshire was no other than the notorious Duke of Buckingham, who had married Lord Fairfax's daughter. Vicious and worthless as the Duke was, he had strong opinions in favour of toleration, if for no higher reason, at least from dislike to Clarendon's policy, and perhaps, too, from the influence of family connections.^[498] This erratic Peer had engaged a Nonconformist minister as his chaplain, and when his mother-in-law, Lady Fairfax, died, he endeavoured to arrange for the funeral sermon being publicly preached by this gentleman.^[499] The Lord-Lieutenant of Lancashire was the Earl of Derby; and of him, Newcome, the Presbyterian minister of Manchester, tells several stories indicative of his liberality. The Rector of Walton, a Heywood of Heywood, on one occasion asked the Earl to put down a Conventicle at Toxteth Park. "What did the people do there?" he asked. "Preach and pray," was the answer. "If that be all," replied the Earl, "why should they be restrained; will you neither preach nor pray yourselves, nor suffer others to preach and pray?" The Lord-Lieutenant of the County of Derby was the Earl of Devonshire, and he also disliked the persecuting measures.

Where no leniency was intended, the law, in some cases, failed in its effect. This called forth the lamentation of certain zealots. "I am bound to say," remarks one of this class, "nothing was prosecuted at the last quarter sessions against the Quakers, nor the rest of that diabolical rabble—although several bills of indictment have been framed and presented at sessions against that viperous brood,—yet by reason most of the grand jury are fanatics, the bills were not found, and that they have several places of meeting will manifestly appear.... The honest souls, especially Church officers and others, are much afflicted to be reviled and affronted in the performance of their offices by the bold faction.... The fanatics abound in good horses, and seem to be ready for mischief; but if half a score such as might be named were secured in our castles, and made to give good security for their conformity to the King's Majesty and the Church, doubtless it would abate their pride, and, it may be, confound their devices."^[500]

NONENFORCEMENT
OF LAW.

One great reason assigned for the two oppressive Acts just described, was, as we have seen, the disaffection of Nonconformists; and—particularly in reference to the Five Mile Act—the allegation that they were implicated in

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certain designs of invasion contemplated by the Dutch was strongly urged. In this, as in former cases, we have no means of testing the information which abounds in the letters written at the time by the enemies of the accused. Many of the rumours are utterly incredible—as for example that it was intended to restore Richard Cromwell; that it would be easy to secure in some parts the gentry on his side; that the watchword was to be "Tumble down Dick, they will declare for a Commonwealth;" and that the Earl of Derby favoured the disaffected party. We may be confident, too, from what we know of their characters, that the principal Nonconformist ministers frowned upon all political plots. Yet no one who has perused the State Papers can deny, that at the time now under review, enough was reported at headquarters to make the Government very uncomfortable.^[501]

France just then was looking to England for elements of disturbance which might favour its designs upon our country in aid of Holland, Louis XIV. being on terms of friendship with the Dutch; and we find the Grand Monarque, in a letter to the States, proposing to give occupation to Charles at home by exciting the Presbyterians and Catholics to revolt.^[502]

DUTCH WAR.

In the summer of 1665, the Dutch, encouraged by promises of assistance from the French, had been seen cruising around our coasts, and were defeated by the English fleet; in 1666 a more important action occurred on the 5th of June, when our countrymen burnt or disabled between twenty and thirty of the ninety ships belonging to the enemy; and another occurred on the 25th of July, which ended, after three days' fighting, in the defeat of the Dutch.^[503]

It was to one of the engagements at that period that Dryden refers in his picturesque description: "The noise of the cannon from both navies reached our ears about the city, so that all men being alarmed with it and in dreadful suspense of the event, which we knew was then deciding, every one went following the sound as his fancy led him; and leaving the town almost empty, some took towards the park, some cross the river, others down it—all seeking the noise in the depth of the silence."^[504] Such imminent peril alarmed the whole country, as well as London; and when, for a time, the worst was over, apprehension remained of further attacks from the great

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naval power of Holland, and some persons of Republican sentiments were hoping that their own objects would be promoted by the war. English refugees in the United Provinces were corresponding with their friends at home; and much, it would appear, was said and done to nourish Republican hopes on English soil. A considerable amount of sympathy with the Dutch existed in the West of England; and, in consequence of this sympathy and correspondence, the Government took measures to prevent letters passing between the two countries. Aphara Behn—an eccentric and notorious poetess and novelist—was employed upon a semi-official mission to Antwerp, for the purpose of obtaining information from the English fugitives respecting any political schemes which they might have in hand. [\[505\]](#)

A great calamity now requires attention.

CHAPTER XVIII.

The Fire of London broke out on the 1st of September, in a baker's shop in Pudding Lane. It rushed down Fish Street Hill, and soon enveloped the dwellings by London Bridge and on the banks of the Thames. Fanned by the winds, the conflagration swept westward and northward. It passed in leaps from house to house, and flowed in streams from street to street. Torrents of flame coming over Cornhill met others dashing up from Walbrook and Bucklersbury. Along Cheapside, Ludgate, the Strand, the furious element advanced, curling round the edge of Smithfield, before its frightful circuit was complete. Thatched roofs, timber walls, cellars of oil, warehouses filled with inflammable material fed the tremendous pyre. Lead, iron, glass, were melted; water in cisterns was boiled, adding vapour to smoke; stones were calcined, and the ground became so hot that people walking over it burnt their shoes. The libraries of St. Paul's, and Sion College, with large collections of books and papers, were consumed; half-burnt leaves fell by Baxter's house at Acton, and were blown even as far as Windsor.^[506] Public buildings shone like palaces of fine gold or burnished brass, and glowed like coals in a furnace, heated seven times hotter than usual. Blazing fragments were swept, like flakes in a snow storm, over the City; whilst the dense conflagration underneath resembled a bow—"a bow which had God's arrow in it with a flaming point." The cloud of smoke was so great that travellers at noon-day rode six miles under its shadow. At night the moon shone from a crimson sky. Young Taswell, a Westminster boy, stood on Westminster Bridge, with his little pocket edition of *Terence* in his hand, which he could see to read plainly by the light of the burning City.^[507]

People were distracted. Everybody endeavoured to remove what he could—all sorts of things being conveyed away in carts and waggons, barges and wherries. Poor people near the bridges stayed in their houses so long that the fire touched them; and then they ran into boats, or clambered from one pair of stairs, by the waterside, to another. The pigeons were loath to leave their cots, and hovered about windows and balconies, until they scorched

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FIRE OF LONDON.

their wings, and fell. Churches were filled with furniture and articles of all kinds. Holes were dug in gardens to receive casks and bottles of wine, boxes of documents, and other treasures. The sick were carried in litters to places of safety, and multitudes encamped in the fields beyond Finsbury, in the village of Islington, and on the slopes of Highgate. Such was the eagerness to obtain the means of removing goods, that £4 a load for a carter, or 10s. a day for a porter, was counted poor pay. At the Temple, neither boat, barge, coach, nor cart, could be had for love or money; all the streets were crowded with appropriated vehicles of various kinds.

The constables of the respective parishes were required to attend at Temple Bar, Clifford's Inn Gardens, Fetter Lane, Shoe Lane, and Bow Lane, with 100 men each; at every post were stationed 130 foot soldiers, with a good officer; and three gentlemen, empowered to reward the diligent, by giving them one shilling apiece, whilst five pounds—in bread, cheese, and beer—were allowed to every party. The King and the Duke of York were bold and persevering in their endeavours to extinguish the conflagration, ordering the use of great hooks, kept in churches and chapels, for pulling down houses—the only means of stopping the fire being to cut off the fuel. The militia were called to aid these efforts and to prevent disturbance. They marched out of Hertfordshire, and other counties, with food for forty-eight hours, and with carts full of pickaxes, ropes, and buckets. These troops encamped at Kingsland, near Bishopsgate. Markets were held in Bishopsgate Street, upon Tower Hill, in Leadenhall Street, and in Smithfield. Bread and cheese were supplied to the famishing, and means were adopted to stimulate charity towards the homeless poor. Multitudes having taken refuge in the houses and fields about Islington, the King requested that strict watch might be kept in all the ways within the limits of the town and parish, and charitable and Christian reception, with lodging and entertainment, given to strangers. He further ordered, that bread should be brought both to the new and old markets; that all churches, chapels, schools, and public buildings, should be open to receive the property of such as were burnt out of house and home; and that other towns should receive sufferers who fled to them for refuge, and permit them to exercise their callings—promise being given that they should afterwards be no burthen.

Three hundred and seventy-three acres within the walls, and seventy-three acres three roods without the walls, were left covered with ruins from the Tower to the Temple, from the North-east gate of the City wall to Holborn Bridge. Besides Guildhall, and other public edifices, eighty-nine parish churches, and thirteen thousand two hundred dwellings were destroyed. The loss of property was estimated at *eleven millions* sterling.^[508]

1666.

The miseries of the fire did not end with its extinction. In addition to the losses which arose from the destruction of property—manufacturers at Coventry, for example, being greatly injured by the burning of goods which they had sent to London for sale—and to other evils of various kinds incident after such a visitation, there were certain lamentable consequences of a peculiar nature.

This visitation, as might be expected, was construed as a Divine judgment for the sins of the City; different parties of course pointing at the iniquities of their opponents as the cause of the fiery overthrow. Fanatics believed that it was the vengeance of Heaven against English barbarity in burning the Islands of Vlie and Schelling, and against national sins in general. A Quaker, near Windsor, was reported to have heard a miraculous voice saying, that "they have had the pestilence, and fire, and other calamities, and yet are not amended; but a worse plague has yet to come on them and the nation." "They clearly intimate in their letters," it was said of the same sect, "no sorrow for the late burning down so many steeple-houses (as they call them) in all the City."^[509]

Yet human agency of some kind was, of course, admitted to be at the bottom. The Republicans, the Dutch, and the French, were suspected; the opinion most prevalent being that the Papists were authors of the mischief.

FIRE OF LONDON.

This idea extensively prevailed. Probably it helped to induce the House of Commons first to present a petition to His Majesty asking for the banishment of priests and Jesuits, for the enforcement of the laws against them, and all other Roman Catholics, and for disarming everybody who refused the Oaths of Allegiance and Supremacy; and secondly, to resolve that all the members of the House should receive the Lord's Supper, under penalty of imprisonment for refusal.^[510] Certainly, upon the return of

Gunpowder Plot Day, the inculcation of the Papists kindled anew the eloquence of the clergy, and strengthened the stock argument that the "Mother of Abominations" remained unchanged. Yet the evidence adduced to establish the guilt of the accused was utterly unsatisfactory. The only person convicted was a Frenchman, and his conviction rested on his own assertion that he had fired the City—an assertion which must have proceeded from a morbid love of notoriety, or from some other unaccountable freak—for the fellow, at the gallows, just before being turned off, acknowledged that what he had said was altogether a lie. No doubt, the conclusion reached by the Government is correct,—"That, notwithstanding that many examinations have been taken, with great care, by the Lords of the Council and His Majesty's Ministers, yet nothing hath been yet found to argue it to have been other than the hand of God upon us, a great wind, and the season so very dry."^[511]

Baxter, speaking of the state of London just before the fire, observes, that in the larger parishes—for example, St. Martin's, St. Giles' Cripplegate, and Stepney—there were 60,000 inhabitants each; that in others, as in St. Giles'-in-the-Fields and St. Sepulchre's, there were about 30,000, in others about 20,000. For these parishes the churches afforded insufficient accommodation; indeed, the fourth part of the people would not have found room in them had such a proportion been disposed to attend public worship. He speaks of a sixth or a tenth, as the proportion for which space in the parochial edifices was available.^[512] The fire, by destroying so many buildings, deprived very many people of instruction and worship in the Establishment; and little was done immediately towards repairing the evil. Houses were restored, but churches were neglected. Burnet relates, that in 1669, "when the City was pretty well rebuilt, they began to take care of the churches, which had lain in ashes some years;"^[513] and Baxter, writing in the year 1675, affirms that few of the churches burnt in the fire had been re-edified.^[514]

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The Nonconformists exerted themselves in this emergency.^[515] The parish Incumbents having left London for want of incomes and of dwelling-places, the ejected ministers came forward to occupy the deserted fields of labour, and resolved, that amidst the ruins they would preach until they were imprisoned. Dr. Manton opened his rooms in Covent Garden, and

there gathered a congregation. Dr. Jacomb, for that purpose, used an apartment in the house of the Countess of Exeter. Dr. Annesley, Messrs. Vincent, Doolittle, and Franklin, and other Presbyterians, either occupied chapels, with pulpits, seats, and galleries, hastily erected, to supply the deficiency—"churches of boards," called "tabernacles,"^[516]—or large rooms fitted up in some extempore fashion for a like purpose. What had been before done covertly was now done openly; and the Independents, allowing for their numbers, were not behind the Presbyterians in activity. Owen, Goodwin, Nye, Brooke, Caryl, and Griffiths, to mention no more, publicly engaged in religious ministrations wherever they were able, at a time when the parish churches were lying in ruins.

Scarcely had the ashes grown cold when tidings came of a religious rising north of the Tweed. A Proclamation was issued at Edinburgh on the 11th of October, 1666, enforcing the laws against Papists and against Protestant Nonconformists, and requiring that masters, who were all held responsible for their families, and that landlords, who were all made accountable for their tenants, should abstain from repairing to Conventicles, and should attend the Established Church. Sir James Turner was despatched to execute the mandate, and he accomplished its execution with a severity which provoked most violent opposition.

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Declaring for liberty of conscience, and also for what was perhaps still more popular—freedom from taxation—the insurgents, although armed, and of formidable appearance, avoided collision with the soldiers, and employed tactics simply defensive. They cut down bridges, and destroyed boats to avoid pursuit, and then hastened towards the Scotch capital, hoping to receive assistance from the citizens. Disappointed in this respect, they retreated to the Pentland Hills, where they were attacked by the Royal Army, and completely routed, after leaving 500 of their comrades dead on the field. Horrid tortures were inflicted on those who were taken prisoners; sixteen of them were executed at Edinburgh, and four at Glasgow—all with their dying breath denouncing Prelacy, laying the shedding of their blood at the Bishops' doors, praying for the King, and begging the Almighty to take away the wicked from about the throne. The disgusting details are related with still more disgusting barbarity by correspondents in Scotland, who sent to London intelligence upon the subject.^[517]

The report in England of fanaticism on the one hand, and cruelty on the other, exasperated both Churchmen and Nonconformists. The former had their suspicions strengthened as to the rebellious intentions attributed to Presbyterians; and the latter were indignant at the vengeance wreaked upon men whom they believed to be sufferers for conscience' sake.

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Traces are left of contemporary gossip in letters written at the time. There is, said one, a general gaping of the Nonconformists as to the issue of the disturbances in Scotland. There are, said another, reports of a stir in Hereford, about hearth-money; and an eminent Presbyterian wrote, that thousands of Scots were up and declaring for King and Covenant, having Colonel Carr, an old Kirk-man, amongst them. Other correspondents affirmed they did not wish the Scots for guides, and then they reported "high differences among great persons murmuring, and fears of the oath."^[518] Churchmen protested that they had forewarned their sober friends of the other party, and described how the folly and insolence of Nonconformist guides would provoke the authorities to check them.^[519]

Mormonism was then unknown. There were in existence no agents of that strangely-compounded system, inviting emigrants to the Western world; but there were people wandering about England who tried to persuade the credulous and simple to repair to the Palatinate, saying that there the kingdom of Christ was to be restored, and that England, whose sins were so great, was on the edge of destruction. These apostles framed a covenant,—which they concealed from those who were not likely to subscribe it,—to renounce such powers and rulers as were contrary to Christ, and to His Government, to refuse their money, and to separate themselves entirely from all anti-Christian religions. They promised to obey God's laws, especially those relating to the Sabbath, and never to intermarry with strangers—to devote themselves wholly to the service of the Almighty, and try to find a place where they might become a distinct people. Explanations were added to the effect, that the powers renounced were persecuting powers, but that God's laws, if practised by them, were not to be renounced; that no ruler was to be allowed by them, who did not enter into communion with themselves; and that coins bearing images or superscriptions contrary to God's Word should be cast away.^[520]

FANATICS.

The Dutch, who had alarmed the Government in 1666, alarmed them again, and the whole nation besides, much more, in 1667. One division of the enemy's fleet swept up the Medway past Sheerness—the other, to divert attention, sailed up the Thames. The former burst the chain hung across the stream, fired at the batteries, reduced to ashes three first-rate men-of-war, and then returned unmolested to join the rest of their own vessels at the Nore.

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The influence produced by this unprecedented invasion is vividly reflected in the following letter:—"The merchants are undone. Our great bankers of money have shut up their shops. People are ready to tear their hair off their heads. Great importunity hath been used at Whitehall for a Parliament, and more particularly by Sir George Saville, but nothing will prevail; there is one great gownsman against it, and all the Bishops and Papists, and all those who have cozened and cheated the King. News came this day to the King, the French are come from Brest, and appear before the Isle of Wight; some at Court give out that they are friends, and not enemies. We expect the Dutch as far as Woolwich. People are fled from Greenwich and Blackwall with their families and children. We are betrayed, let it light where it will."^[521] And a few days afterwards the nation, from end to end, was agitated by the intelligence of the Dutch attack—many Dissenters idly attributing the success of the daring manœuvre to the teaching of the Government and to Popish counsels at headquarters.^[522]

An empty exchequer was the chronic disease of Charles II.'s reign, and so low did the Royal revenue sink this year that twenty-six footmen in His Majesty's establishment were forced to petition for wages, which had been due the previous Michaelmas. To meet the exigences of the moment, letters were written to the Lord Chancellor, as the head of the legal profession, to the Lord-Lieutenants of Counties, as representing the landed interest; and to the Archbishop of Canterbury, to procure loans and voluntary contributions at that "time of public danger." "We are the rather," it is observed in the letter to His Grace, "induced to believe labour herein will be successful, because you are to deal with a sort of persons endued with discretion and ingenuity, who cannot forget what tenderness we have for them, what care to protect and support them, and how much their interest and welfare is

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involved in ours; but arguments and motives of this nature we leave to your prudent management."^[523]

The damage actually done by the Dutch fleet was small; and nothing compared with the dangers threatened by the audacity of its advance. The treaty of peace, which speedily followed, relieved the nation from alarm, but it by no means wiped out the disgrace which the nation had to bear, and which its rulers had incurred.^[524]

Within three months after the booms had been broken by the Dutch in the Medway, Clarendon's term of power was at an end.

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A bad harvest is a bad thing for an English Ministry, especially for the Chief of the Cabinet. The visitations of Heaven are set down to his account, and all the weak points of his administration, all the errors of his policy, all the faults of his character, are brought out most vividly in the light of adverse circumstances. So it was, that after the Plague and the Fire of London—with which Clarendon could have had nothing to do—the eyes of the people were strangely opened to the defects of his government; and, when the English Lion was bearded by the insolence of the Hollanders, there fell upon the great statesman the anger of the whole people. To meet the evil, which he had failed to prevent, he counselled the King to dissolve Parliament, and maintain the defences of the country by forced contributions. This private advice was blown abroad, inspiring indignation in the people, and bringing discomfiture to the Prime Minister. He did not want courage, but it was now useless. What he hoped would appear to the King the firmness of an upright mind, was regarded by His Majesty as the obstinacy of a stubborn will. In vain the Duke of York pleaded in his behalf. The Chancellor was forced to resign the Great Seal on the 30th of August.^[525]

Clarendon, in the impeachment which followed in the month of November, was charged with unconstitutional acts; but, of all the seventeen heads under which the charges were arranged, not more than three, seriously affecting his character as a statesman, contained matters which could be clearly proved. The first allegation—that he had encouraged the King to raise a standing army, and to govern the country without Parliaments—

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although an exaggerated statement, had some foundation. Respecting the truth of the fourth article—that he had procured the imprisonment of divers persons contrary to law—there could be no doubt whatever. The eleventh charge, touching the sale of Dunkirk to the French for no greater amount than the worth of the ammunition and stores, was false with regard to his being content with the price, but it was true as it respects his promoting the sale. Nor did the impeachment, so far as it could be established, fix upon the Minister the guilt of high treason; but, short of that, it proved him to be a person dangerous to the country, and unfitted to continue in the office which he had filled. Virtuous and patriotic men might fairly have insisted upon the degradation of the Chancellor; but it must be confessed that virtuous and patriotic men were not the prime movers in his punishment. The intrigues of women, anything but virtuous, had most to do with it; for Clarendon had unfortunately excited the wrath of Charles' mistresses, who, by working upon the Monarch's too easy temper, had implanted in his bosom a dislike to his old friend. The object of these ladies was promoted by the assistance of Cavalier gentlemen who never forgave Clarendon for the Act of Indemnity, and who considered that he had, at the Restoration, largely neglected the personal interests of the Royalists. Three Bishops were numbered amongst the Peers who protested against the refusal of the Upper House to commit the Minister upon the charge of treason.^[526] The Catholics owed him no gratitude, for they knew his dislike to their religion—and with the nation generally, he had become unpopular for many reasons, particularly for the part which he had taken in the sale of Dunkirk. It is a little surprising, that Presbyterians, who, perhaps, had more reason than any class to complain of his administration, were not amongst his inveterate adversaries. Colonel Birch, who belonged to that religious denomination, was, indeed, one of the Tellers on the side of impeachment; but Baxter notices, as a providence of God, in reference to Clarendon, that the man who had dealt so cruelly with the Nonconformists was cast out by his own friends, "while those that he had persecuted were the most moderate in his cause, and many for him."^[527]

In writing a letter to his daughter, the Duchess of York, just after her conversion to Popery, the necessities of Clarendon's argument forced him to adopt a position, which, if he had sincerely taken it up at an earlier period,

must have diverted him from that persecuting course, which is one of the greatest blots on his history. "The common argument," he remarks, "that there is no salvation out of the Church, and that the Church of Rome is that only Church, is both irrational and untrue." "There are many Churches in which salvation may be attained, as well as in any one of them; and were many even in the apostolic time; otherwise they would not have directed their Epistles to so many several Churches, in which there were different opinions received and very different doctrines taught. There is, indeed, but one faith in which we can be saved—the steadfast belief of the birth, passion, and resurrection of our Saviour. *And every Church that receives and embraces that faith is in a state of salvation.*"^[528]

The whole history of the Chancellor must be considered, if we would form a just estimate of his character. That he was a man of great ability; that he possessed those talents and accomplishments which contribute to form distinguished statesmen; that he performed services valuable to the nation, at a very critical period of its history; that he had a sense of religion, and was heartily attached to the Episcopal Church, there can be no doubt. Those who glory in the constitution of that Church as established upon the Act of Uniformity will praise him for his wisdom; those who form a different opinion of that Church, and of its legal basis, must withhold such laudation. But, apart from all ecclesiastical questions, and also putting aside the motives by which Clarendon was influenced throughout his career, with all its lights and shadows—here are two aspects of his conduct, at least, upon which the historian must pronounce a severe censure. To say nothing of his pride and avarice—there remain, first, his persecution of the Nonconformists; and next, the dissimulation which he practised, in connection with measures professedly intended for their relief. His persecution of the Nonconformists is a fact which speaks for itself. Whatever notions he might have of what the Church should be it was a gratuitous course, and it betrayed revenge and injustice, to treat Dissenters in the manner which he did: revenge, for he crushed them as conquered foes; injustice, for he dealt with them all as disaffected subjects, whilst the loyalty of the vast majority of them was above suspicion. If his clever diplomacy did not sink into downright dissimulation in the business of the Worcester House Declaration, the circumstances of which have been so fully described—if there was not also much deceptiveness in the promises

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from Breda, and in the plan of the Savoy Conference, both of which Clarendon, as Charles' Minister, must have advised, it is hard to prove that such qualities have ever belonged to any human being. Many a Jesuit has been a martyr—and I give the Chancellor credit for such an attachment to the Episcopal Church as would have led him to suffer on its behalf, but no man could be more Jesuitical than he was in the course of policy which he adopted for its establishment. So dark a fate as covered the last days of Strafford, Laud, and Charles I., did not attend the final destiny of the great Minister of Charles II.; still, calamities overtook him after the sunshine of his prosperity—his sun set in a cloud; and thus, like his predecessors in the defence of the Church, he has secured from posterity, through sympathy with him in his misfortunes, gentler treatment than the defects of his character would otherwise have received. [\[529\]](#)

By an obvious association we are led to compare the political founder of the Church of England in the seventeenth century with his predecessor in the same capacity a hundred years before. Both Cecil, Lord Burleigh, and Hyde, Earl of Clarendon, had great difficulties in securing the stability of the civil government—in dealing with political discontent and disaffection, in defending the Throne against perils, and in providing revenues for the Crown. Both statesmen, in laying the corner stones of their ecclesiastical polity, had to build in troublous times, and each, "with one of his hands wrought in the work, and with the other hand held a weapon." Both of them, blind to the principle of religious liberty, employed persecuting laws in the service of what they deemed the best form of Christianity; and both also, together with other crooked means of ruling, employed spies, wherewith to see what was done at a distance, and agents wherewith to put in action secret and remote machinery. The contrast between the two, however, is more striking than the resemblance. If difficulties encompassed the navigation of the vessel, the helm of which rested in the hand of Clarendon, far greater difficulties of the same and other kinds—political and ecclesiastical, Popish and Puritan,—surrounded the course of Burleigh. Clarendon was not as cautious, not as timid, as Burleigh. Perhaps neither of them exhibited a lofty order of genius; but Clarendon appears inferior in originality of plan, and in consistency of method. Cecil struck out ideas in commerce too wise for the age in which he lived; and as the fruit of careful meditation in retirement, he laid down a comprehensive scheme of

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government on the accession of Elizabeth, from the fundamental principles of which he did not deviate in his long administration; but Hyde never showed himself to be more than an experimentalist, adopting expedients as circumstances arose. Cecil was more intolerant towards Papists than towards Puritans. Hyde seemed more averse to Protestant Nonconformists than to Popish recusants. Cecil had broad Protestant sympathies, which led him, as far as possible, to promote the cause of the Reformation abroad; Hyde manifested no zeal for the welfare of the Reformed Churches on the Continent. Burleigh did not enrich himself with the spoils of office,—praise which cannot be given to Clarendon. Yet justice demands the admission that Clarendon did suffer for his principles, at least the inconvenience of exile, which is more than can be said of Burleigh. Finally, success attendant upon the policy of the former lasted long enough to demonstrate the sagacity of the author; but the policy of the latter failed so early as to show, that he did not anticipate what was sure almost immediately to arise—that he did not thoroughly understand the character of his fellow-countrymen. [\[530\]](#)

The illustration of this latter point is required by the conditions of our History.

The Chancellor's object had been not merely to establish the Episcopal Church, but to crush every form of Dissent. Indeed, his notion of an establishment was that it should have an exclusive existence in the country—that Nonconformity should have no place whatever under its shadow. Yet, at the time of his fall, only five years after the Act of Uniformity was passed, and within two years of the passing of the Five Mile Act—not only did Popery continue to lurk within these dominions, not only did it make its way amongst the upper classes, but Presbyterianism recovered itself from the blows which it had received, and Independents, Baptists, and Quakers, secretly or openly, promoted the spread of their opinions. Of this fact, passages from contemporaries afford striking proofs.

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On the 4th of August, 1666, a correspondent at Chester, stated that the City swarmed with "cardinal Nonconformists," and that they were so linked into the Magistracy, by alliance, that it was very difficult to bring them to punishment;—only a few of them attended Divine service, and even they were absent during the prayers. Experience proved that these great pretenders to piety and religion, who would not conform to the Prince's

ecclesiastical power, only submitted to the civil until they could get power to refuse it.

On the 31st of August, 1667, the day after Clarendon resigned the Great Seal, a letter reached Sir Joseph Williamson complaining of "crowds of fanatics," about Bath and Frome. The gentry, as well as the ignorant and ill-affected classes, helped to beget a jealousy of Popery, and were apparently fallen back to the spirit of 1642. Even some who looked big in Court, and in Parliament, had sheltered the unlawful vessels of the malcontented and the furious within their allotments, and in their own families, more especially, since the late exigencies had arisen.

On the 10th of September the same year, another person at Bath declared that the Nonconformists grew in numbers and insolence, saying they should have liberty of conscience, and that the Government, which could not stand much longer, could do no otherwise than allow them their freedom. They had reached such a degree of insolence as to break open church doors, and to get into the buildings to vent their sedition and rebellion. The minister at Marshfield often returned from church for want of a congregation, even of two or three, whereas, at the same time, 500 met in a barn within the town. They transformed such buildings into the likeness of churches, with seats for the convenience of speaking and hearing. The writer, who was a clergyman, declared that he had taken all ways imaginable to keep his people within the bounds of sobriety and obedience, and had preached constantly twice a day to suit their humour in all things lawful, descending to the plainest and most practical speaking, and had never used a note, or so much as wrote a word. Moreover, he had treated the party with all civility and kindness, and been very pacificatory in public and in private, yet all seemed in vain, and he saw that a minister must be a martyr. [\[531\]](#)

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A contemporary author affirms that the Nonconformists everywhere spread through city and country; they made no small part of all ranks and sorts of men; by relations and commerce they were so woven into the nation's interest, that it was not easy to sever them without unravelling the whole skein. They were not excluded from the nobility, among the gentry they were not a few, yet none were of more importance than mere tradesmen, and such as lived by their own industry. To suppress them would

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beget a general insecurity, and might help to drive trade out of the country, and send it to find a home with an emulous and encroaching nation. If no greater latitude could be allowed than existed at that time, a race of Nonconformists would, in all probability, run parallel with Conformists to the end of the world. [\[532\]](#)

CHAPTER XIX.

It was a pamphleteering age; and religion as well as politics fell under discussion in numerous small publications. Some one published in the beginning of August, 1667, under the name of "A Lover of Sincerity and Peace," *A Proposition for the Safety and Happiness of the King and Kingdom, both in Church and State*, a work in which the writer advocated comprehension and toleration. In the middle of the month of October there followed a reply, from the pen of a Mr. Tomkyns, one of Archbishop Sheldon's chaplains. The same month another pamphlet appeared anonymously, under the title of *A Discourse of the Religion of England*, maintaining that Reformed Christianity, settled in its due latitude, secures the stability and advancement of the kingdom, of which the author is known to have been John Corbet, an ejected minister, who lived privately in London, after the passing of the Bartholomew Act.^[533] Corbet was answered by Dr. Perinchief, Prebendary of Westminster, whereupon Corbet replied, and Perinchief put in a rejoinder. From August to November the printers and the public seem to have been busy in producing and reading these controversial tracts.

Whether or not this circumstance arose from a knowledge of what was going on in upper circles, it is certain that, now Clarendon had gone, Sir Robert Atkins—who afterwards became one of the Justices of the Common Pleas, and ultimately Lord Chief Baron of the Exchequer,—prepared a Bill of Comprehension. This healing measure, Colonel Birch, member for Penryn, undertook to introduce in the House of Commons;^[534] and a careful account of it, written by Bishop Barlow, is preserved at Oxford in the Bodleian Library,^[535] from which document we derive our information. The Bill provided that ordained ministers—whether Episcopal or Presbyterian—who should within the next three months subscribe to all the Articles of Religion "which only concern the confession of the true Christian faith and the doctrine of the sacraments" should be capable of preaching in any church or chapel in England, of administering the sacraments according to the Book of Common Prayer, of taking upon them the cure of souls, and of enjoying

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any spiritual promotion. After prescribing that the Common Prayer, according to law, should be read before sermon, there follows a proviso, that no one should be denied the Lord's Supper, although he did not kneel in the act of receiving it; and that no minister should be compelled to wear the surplice, or use the cross in baptism. The authors of the project, in addition to clauses touching Presbyterian ordination and ceremonies, wished to have the word "consent" left out of the form of subscription,—to confine subscription to the doctrine of the Christian faith,—not to bind ministers to read the Common Prayer themselves, if they procured others to do it,—and to lay aside the Oath of Adjurament.

The session of Parliament opened upon the 10th of October and ended just before Christmas; but the Bill, although ready, was never printed, nor brought into the House. This first scheme of comprehension came to nothing; but a second scheme, which like the first failed in the end, proceeded somewhat further. Rumours of it were circulated in the month of January, and were caught up by Pepys, to whom it seemed there was a great presumption of a toleration being granted, so that the Presbyterians held up their heads: ten days later, he heard that the King approved of it, but that the Bishops were against it: and the Diarist further states, that his informant, Colonel Birch, did not doubt but that it would be carried through Parliament; only he feared some would advocate the toleration of Papists.^[536] A few days afterwards, Pepys heard that an Act was likely to pass for admitting all persuasions to hold public worship, "but in certain places; and the persons therein concerned to be listed of this or that church, which, it is thought, will do more hurt than good, and make them not own their persuasion."^[537] The proposal was made by Sir Orlando Bridgeman, the Lord Keeper, and supported by Sir Matthew Hale, the Lord Chief Baron.^[538] The Earl of Manchester favoured the plan, and Dr. Wilkins, on the Episcopal side, entered into negotiations with the Presbyterians, who were represented by Baxter, Manton, and Bates.

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Baxter gives a full account of the scheme, which account is confirmed substantially by the memoranda of Barlow, at the time Archdeacon of Oxford, and afterwards Bishop of Lincoln.^[539] The basis of the plan was the King's Declaration from Breda; and the scheme may be considered under three aspects—as proposed by the Episcopalians,—as modified by

the Presbyterians,—and as it bore relation to the Independents. I shall quote a few passages from Barlow's MS., as it is important to convey an exact idea of what was proposed.

I. In order to comprehension, the Episcopalians proposed,—1. That such persons as in the late times of disorder had been ordained only by Presbyters, should be admitted to the exercise of the ministerial function, by the imposition of the hands of the Bishop, with this or the like form of words: "Take thou (legal) authority to preach the Word of God and to administer the sacraments in any congregation of the Church of England when thou shalt be lawfully appointed thereto." 2. That clergymen and schoolmasters (after taking the Oaths of Allegiance or Supremacy) should be required to subscribe this or the like form of words: "I, A. B., do hereby profess and declare that I do approve the doctrine, worship, and government established in the Church of England, as containing all things necessary to salvation; and that I will not endeavour, by myself or any other, directly or indirectly, to bring in any doctrine contrary to that which is so established: and I do hereby promise, that I will continue in the communion of the Church of England, and will not do anything to disturb the peace thereof." 3. That kneeling at the sacrament, the use of the cross in baptism, and bowing at the name of Jesus might be left indifferent or be altogether omitted; Barlow being willing to class with these things the wearing of the surplice. 4. That in case it should be thought fit to review and alter the Liturgy and canons for the satisfaction of Dissenters, then every person admitted to preach should—upon admission—publicly and solemnly read the said Liturgy, openly declare his assent to the lawfulness of using it, and give a promise that it should be constantly read at the time and place accustomed. It also was added, that the Liturgy might be altered by using the reading Psalms in the new translations;—by appointing some other lessons out of the canonical Scriptures instead of those taken out of the Apocrypha;—by not enjoining godfathers and godmothers, when either of the parents were ready to answer for the child;—by omitting "every clause in the services connecting regeneration with baptism;"—by omitting in the Collect after imposition of hands in Confirmation this clause—"After the example of Thy holy apostles, and to certify them by this sign of Thy favour and gracious goodness towards them;" and this also in the office of matrimony—"With my body I thee worship;"—by allowing ministers some liberty in

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the visitation of the sick, to use such other prayers as they might judge expedient;—by so altering the Burial Service, as to imply nothing respecting the safety of the deceased person;—by several changes in the services with a view to abbreviation, omitting all "responsal prayers," and all repetitions, and throwing separate petitions altogether in one continuous prayer;—by not reading the Communion Service at such times as are not communion days, but only repeating the Ten Commandments;—and by altering the catechism at the question, "How many sacraments hath Christ ordained?" so that the answer may be, "Two only, Baptism and the Lord's Supper."

II. The modifications proposed by the Presbyterians were as follows:—1. That all ministers ordained by Presbyters should, when admitted by the Bishop to minister in the Church, "have leave," if they "desired" it, to "give in their profession, that they renounce not their ordination nor take it for a nullity, and that they take this as the magistrate's license and confirmation." 2. That in the form of subscription they should assent to the truth of all the Holy Scriptures, to the articles of Creed, and to the doctrine of the Church of England contained in the Thirty-six Articles; or to the doctrinal part of the Thirty-nine Articles, excepting only the three articles touching ceremonies and prelacy. 3. That an appeal be allowed for a suspended minister from the Bishop to the King's Courts of Justice; and lastly, that certain rules be enacted for the due enforcement of discipline, respecting admission to holy communion, and also respecting meetings for worship. A few additional suggestions were proposed, relating to alterations in the Liturgy, of which these were the most remarkable—"the Lord's Prayer should be used entirely with the Doxologies;" the word "Sabbath" should replace "seventh-day" in the fourth commandment; holydays should be left indifferent, save only that all persons be restrained from open labour, and contempt of them; and "no minister" should "be forced" to "baptize the child of proved atheists and infidels." The addition of the surplice to the other ceremonies to be left indifferent; the expression "sacramentally" to be subjoined to the word "regenerate" in the baptismal service; the catechism to be altered as regards the doctrine of the sacraments; and the Absolution in the Visitation of the Sick to be made conditional.

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After considerable debate, principally upon the subject of reordination, a Bill of Comprehension was drawn up by Sir Matthew Hale. The points comprised were, first, the insertion of the word "legal" before the word "authority" instead of the demanded liberty to declare the validity of the previous Presbyterian ordination; and secondly, the omission of the clause proposed by Baxter and his friends relating to appeals. Two forms of subscription, framed so as to exclude Romanists, were likewise adopted respectively for established ministers and for tolerated persons.

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III. The Episcopalian scheme, endorsed and revised by Barlow, included the indulgence of such orthodox Protestants, as could not be comprehended within the Establishment. These, upon registering their names, were to have liberty to worship in public, and to erect edifices for that purpose. Although disabled from holding public offices, they were to be fined for not fulfilling them, and also obliged, "according to their respective qualities," to pay annually for indulgence, a sum not above forty shillings, nor under ten, for any master of a family; not above eight, nor under two, for any other individual,—the tribute to form a fund for church building. Upon producing a certificate, Nonconformists were to be exempted from legal penalties for non-attendance at parish worship; but they were to pay church rates, and it was suggested by Barlow that they should be forbidden to preach against the Establishment. This arrangement was to be limited to three years, and to be confined to such Protestants as are described in Cromwell's Act of Settlement.

These intentions were frustrated. Wilkins, Bishop of Chester, mentioned the subject to Seth Ward, Bishop of Salisbury, "hoping to have prevailed for his concurrence in it;" but the latter, availing himself of the communication, did his utmost to defeat the scheme. The Bishops generally were against it. The old Clarendon party was against it. ^[540]

Herbert Thorndike wrote his *True Principle of Comprehension* in the year 1667, just at the time when the question had been taken up by Wilkins and Barlow. ^[541] He did not at all mince the matter, but began by saying that Presbyterians could not, any more than Papists, be good subjects; an assertion which, if true, would of course render comprehension, in the common meaning of the term, impossible; but it is not in that meaning that

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he uses the term, and he proceeds to declare most distinctly, that "an Act comprehending Presbyterians, as such, in the Church, would fail of its purpose, and not give satisfaction or peace in matters of religion." The only cure for disputes, he maintained, was to authorize the faith and laws of the Catholic Church, *i.e.*, within the first six general Councils, "enacting the same with competent penalties." This proposal really signified that Nonconformists were to retract their opinions altogether, or continue to be persecuted. What the author called the true principle of comprehension was the false principle of coercion. He would have men think with him, and if possible force them into the Church; if they were incorrigible, he would shut them out and punish them. Nor did he leave any doubt as to what he intended by the enactment of "competent penalties;" for he laid down the doctrine, that the Church is justified in having recourse to *the civil power*, to enforce union.

Parliament met on the 6th of February, and then adjourned to the 10th. When the Commons had assembled, and before the King had arrived, reports were made to the House respecting insolent language said to have been used in Nonconformist Conventicles; and it being known that in the Royal Speech some notice would be taken of a measure of Comprehension, about which there had been so much discussion out of doors, the members did "mightily and generally inveigh against it;" and they voted that the King should strictly put in force the Act of Uniformity. It was also moved, "that if any people had a mind to bring any new laws into the House, about religion, they might come, as a proposer of new laws did in Athens, with ropes about their necks."^[542] His Majesty, however, in his speech from the throne, recommended the Houses to adopt some course for securing "a better union and composure in the minds of my Protestant subjects in matters of religion."^[543] From this it appears that His Majesty felt disposed to favour some measure pointing in the same direction as did that which had been drawn up by Barlow.^[544]

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Colonel Birch told Pepys on the 28th of February, that the House the same morning had been in a state of madness, in consequence of letters received respecting fanatics who had come in great numbers to certain churches, turning people out, "and there preaching themselves, and pulling the

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surplice over the parsons' heads;" this excited "the hectors and bravadoes of the House."^[545] The report was utterly false,^[546] but influenced by it, the Commons, on the 4th of March, resolved to desire His Majesty to issue a Proclamation for enforcing the laws against Conventicles, and to provide against all unlawful assemblies of Papists and Nonconformists.^[547] When, upon the 11th of March, the King's Speech respecting the union of his Protestant subjects came under consideration, all sorts of opinions were expressed upon all sorts of ecclesiastical topics. One declared that he never knew a toleration which did not need an army to keep all quiet; another expressed himself in favour of the reform of Ecclesiastical Courts, which had become very obnoxious. A third concurred in this opinion, and also complained that the Bishops had little power in the Church except authority to ordain. A fourth wished to see the Act of Uniformity revised, in order to temper its severe provisions, especially in reference to the Covenant, and assent and consent to the Common Prayer. A fifth compared the King and clergy to a master having quarrelsome servants, "One will not stay unless the other goes away." A theological debater alluded to predestination and free-will as at the foundation of all the religious disputes in England, and lamented the growth of Arminianism, affirming that so long as the Church was true to herself, she need not be in fear of Nonconformity: placing candles on the communion table greatly displeased him. A Broad Church polemic held that the Articles were drawn up so that both parties might subscribe, and that Convocation was a mixed assembly of "both persuasions;" no canon, he said, enjoined bowing at the altar, and Bishop Morton left people to use their own liberty as to that practice; this gentleman was against Conventicles. A more prudent debater wished to veil the infirmities of his mother rather than proclaim them in Gath and Askelon; he advocated comprehension, and thought an end would be put to Nonconformity by making two or three Presbyterians Bishops. These brief notices of the debate will afford an idea of the diversity of opinion which was expressed on this occasion.^[548]

Instead of the Bill described by Barlow, or any measure of a similar kind for comprehension and toleration, a Bill for reviving the Conventicle Act was submitted to the Commons. The Conventicle Act of 1664 had been limited in its operation to the end of the next session

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of Parliament after the expiration of three years, and therefore it remained no longer in force. Leave was now given to bring in a Bill for the continuance of it.

The High Church party, by a majority of 176 against 70, negatived the proposal that His Majesty be desired to send for such persons as he might think fit, in order to the uniting of his Protestant subjects: the first instance, as Hallam says, "of a triumph obtained by the Church over the Crown in the House of Commons."^[549] Upon the 28th of April, the Bill for revising the Conventicle Act was carried by 144 against 78. The new Conventicle Bill, sent up to the Lords, was by them read a first time on the 29th of April; but it does not appear to have reached a second reading, as the House, on the 9th of May, adjourned until August, then again to November, and then again to the following March, 1669, when Parliament was prorogued. Consequently the Bill fell through; and the law with regard to Conventicles underwent a change, through the expiration of the Act of 1664.

CHAPTER XX.

The King was by no means disinclined to relieve Dissenters from the oppression which they experienced, provided he might extend relief on his own authority, and at his own pleasure. In the autumn of 1688 he granted an audience, at the Earl of Arlington's lodgings, to a few Presbyterian clergymen. Of this interview, Dr. Manton gave an account to his friend Richard Baxter. With characteristic graciousness, which was the charm of his reign, and which, in spite of his vices, won many hearts, Charles was pleased once and again to signify how acceptable was the address presented by the Presbyterians, and how much he was persuaded of their peaceable disposition; adding that he had known them to be so ever since his return; and then he promised that he would do his utmost to get them comprehended within the Establishment, and would strive to remove all those bars which he could wish had never existed. Something, however, he proceeded to say, must be done for public peace, and they could not be ignorant that what he desired was a work of difficulty, and therefore they must wait until the business was ripe. In the meanwhile he wished them to use their liberty with moderation. He observed that the meetings held were too numerous, and that (besides their being contrary to law) they occasioned clamorous people to complain, as if the Presbyterian design was to undermine the Church. He instanced what he called the folly of one who had preached in a play-house, upon which the ministers informed him they disliked such conduct, and that they had rebuked the individual for affronting the Government. The King instanced another case, but with a preface that he greatly respected the person for his worth and learnings—meaning Mr. Baxter, of Acton, who drew in all the country round. Manton replied that Baxter went to church, and then preached himself during the interval between morning and evening service. His first intention was simply to benefit his own family; but it was hard to exclude such as in charity might be supposed to come thirsting for spiritual edification. Manton further alleged the general need of religious instruction, and the fact that Nonconformists were not all alike. If people of unsober principles

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were permitted to preach, he urged the necessity which lay upon others to take the same liberty. His Majesty replied that "the riffle raffle" were apt to run after every new teacher; but people of quality might be intreated not to assemble, or, at least, not in such multitudes, lest the scandal thereby raised should obstruct his generous intentions. Charles seemed pleased when Manton suggested that his brethren's sobriety of doctrine, and remembrance of His Majesty in their prayers, were calculated to preserve an esteem for his person and government in the hearts of his people, and Arlington plucked his master by the coat, desiring him to note what was said. Manton remarked, in conclusion, that Baxter would have accompanied them to the audience, had he not been prevented by illness. ^[550]

Sheldon, writing a letter from Lambeth on the 8th of June, 1669, addressed to the Commissary of the diocese of Canterbury,—after quoting His Majesty's denial of connivance at Conventicles, his displeasure at the want of care in the matter manifested by the Bishops, and his determination that they should have the civil magistrates' assistance,—proceeds to direct that inquiries should be made as to unlawful religious assemblies—what were their numbers, of what sort of people they consisted, and from whom they looked for impunity. Conventicles were to be made known to Justices, and if Justices neglected their duty, their neglect was to be certified. The Primate asked whether the same persons did not meet at several Conventicles, which might make them seem more numerous than they really were; and whether the Commissary did not think they might be easily suppressed, by the assistance of the civil magistrate; the greatest part of them being, as the Archbishop heard, women, children and inconsiderable persons. ^[551]

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Charles complied with the wishes of Sheldon so far as to issue a Proclamation, complaining of the increase, and threatening the punishment of Nonconformists; but he had no sympathy for the intolerance in which such wishes originated. ^[552] He had said—if we may trust Burnet's report—the clergy were chiefly to blame for the popularity of Conventicles; for if they had lived as they ought, and attended to their parish duties, the nation might, by that time, have been reduced to ecclesiastical order. "But they thought of nothing, but to get good benefices, and to keep a good table." ^[553]

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Nonconformists naturally availed themselves of the circumstance that the Conventicle Act had expired; and Baxter now had more hearers at Acton than he could find room to accommodate. "Almost all the town and parish, besides abundance from Brentford and the neighbour parishes, came."^[554]

But though the Conventicle Act had expired, the Five Mile Act, as Charles indicated in his Proclamation of July, 1669, remained in force; and therefore, means existed, not only for silencing, but also for punishing the Presbyterian Divine. Accordingly he was soon involved in trouble. In a roundabout way, a warrant was procured, in which Baxter stood charged with keeping an unlawful Conventicle. The Oxford Oath being tendered he refused to take it, and argued, with his usual keenness, against its imposition. One of the magistrates only laughed, and Baxter was sent to prison.

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To the inquiries issued by Sheldon in June, returns before the end of the year were made, and they supply much valuable information respecting Nonconformity.

A long list is given of Conventicles in the Metropolis. Manton's congregation at his own house, Covent Garden, and Calamy's, next door to the "Seven Stars," Aldermanbury, are estimated at 100; Zachary Crofton's, Tower Hill, and Captain Kiffin's, of Finsbury Court, at 200; Vincent's of Hand Alley, and Caryl's, at Mr. Knight's house, Leadenhall Street, at 500; and Dr. Annesley's, in Spitalfields, at a new house for that purpose with pulpit and seats, at 800; Owen, in White's Alley, Moorfields, is mentioned without any number of hearers being returned.

It is stated in the report that besides those congregations which are specified, there were many others at private houses; sometimes at one house, sometimes at another. The several meetings of the same persuasion, were composed, for the most part, of the same persons. They were much increased by stragglers, who walked on Sunday for recreation, and then went into the Conventicles out of curiosity. The worshippers consisted of women and persons of mean rank. The meetings had increased since the execution of the Oxford Act had been relaxed.

In the City of Canterbury, distinguished in the annals of both Protestantism and Puritanism, Nonconformity took deep root. In the

parishes of St. Paul and St. Peter the Independents amounted to 500 at least. They met in the morning at St. Peter's, in the afternoon at St. Paul's. In St. Dunstan's there were Presbyterians, but they were not so many as the Independents. In St. Mary's, Northgate, the Anabaptists were few and mean in quality. The Quakers were numerous, but not considerable for estate.

In the diocese of Chichester, the little market town of Petworth is mentioned as containing 50 or 60 Nonconformists, some of the middle sort, others inferior; Largesale as numbering about 40, yeomen and labourers; Stedham as having sometimes 200, including some of the gentry.

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In the diocese of Ely, at a place called Stetham, mention is made of about 30 or 40 who assembled by stealth and in the night, mean and of evil fame, who had arms against the King. Of Doddington, in the fen country of Cambridgeshire, it is remarked, that there were no Dissenters in the parish, although there were divers of them in other places. The promise of indulgence, the remissness of the magistrate, the rumour of comprehension, the King's connivance, and the sanction of grandees at Court, encouraged their hopes.

There is manifested throughout these statistics, a disposition on the part of the reporters, to exaggerate the extent to which Nonconformity prevailed. As for example, it is said of the *houses* of Mr. Bond and Mr. John Chapman, of Chard—"The numbers uncertain but always very great, sometimes 200, 300, 400, 500, 600, and oftentimes 700."

From these returns, after making abatements on the score of exaggeration, it appears that Dissent had by no means been crushed by the violence it had endured. Consequently in the spring of 1670, a new Bill against Conventicles was introduced: after being amended and carried by the Commons, it was presented by Sir John Brampston to the Lords, and it slowly passed through Committee; repeated debates occurring with regard to its provisions. Seth Ward, Bishop of Salisbury, supported, but Wilkins, Bishop of Chester, opposed the measure, although the King, without desiring to see it executed, wished to see it passed, and used his influence with the last-named prelate to prevent his taking any part in the business; Wilkins, nevertheless, courageously insisted upon his right as a Peer, and

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declined to withhold either his vote or his voice. The Bill did not pass without a protest being entered on the Journals. ^[555]

This Act—so commonly described as a revival of the Conventicle Act of 1664, that it is necessary to point out the fact of its being a new piece of legislation—differed from the preceding enactment in these important respects. It did not connect the penalty of imprisonment with an attendance on Conventicles, nor was the amount of fines fixed on so high a scale. It specified for the first offence, instead of "a sum not exceeding five pounds," the reduced fine of five shillings; instead of imprisonment, or ten pounds for the second offence, it inflicted a penalty of only ten shillings; and it said nothing whatever of transportation, or of augmented punishment for a third offence.

Still it advanced beyond the earlier legislation on the subject in other respects; because preachers were to forfeit £20 for the first, and £40 for the second breach of the law. Also the Act stimulated informers, by promising them one-third of the fines levied through their diligence and industry; it conferred power on officers to break open houses, except the houses of Peers, where Conventicles were said to be assembled; it imposed a fine of £5 on any constable, who, being aware of such meetings, neglected to give information of them, and a fine of £100 on any Justice of the Peace who should refuse to execute the law. It declared that all claims should be construed most largely and beneficially for the suppression of Conventicles. ^[556]

CONVENTICLES.

Sheldon was delighted at the enactment of this statute, and zealously availed himself of it. ^[557] Ward and Gunning, at the same time distinguished themselves in repressing Dissent, and no colouring of their conduct can hide their intolerance. The former, it is said, made the diocese of Salisbury too hot for Nonconformists, and drove many over to Holland to the great detriment of trade in the City of Salisbury. ^[558] Gunning, whose propensities for public discussion remained as strong as ever, sometimes played the part of a magistrate, and sat upon the bench at quarter sessions, at other times he challenged Dissenters of all sorts to engage with him in theological tournaments. ^[559]

Informers were now let loose upon all kinds of inoffensive citizens, and the severities of the New Conventicle Act were more than doubled by connecting with them the execution of earlier statutes. No less a person than Dr. Manton, after being discovered at a house in the Piazza of Covent Garden, holding a religious service, had the Oxford Oath tendered to him, and for refusing to take it, was committed a prisoner to the Gatehouse.

Of all sufferers the Quakers suffered most, because they were the most persistent and resolute in continuing their meetings; because when officers were on their way to seize them they would not escape; and further, because they would pay no fines, not even gaol fees, nor offer any petition to be set at liberty. Such people occasioned the greatest perplexity to magistrates and the Government, and completely wore out their patience; thus ultimately gaining their own point by an invincible resistance under the form of perfect passivity. The famous trial, in the month of August, 1670, of two friends, William Penn and William Mead, affords an example of the injustice and oppression which this remarkable sect had to endure, and also of the sympathy with them in their wrongs which they inspired in the breasts of their fellow-subjects. These two gentlemen were accused of holding a tumultuous assembly in the public streets, simply because they preached in the open air, and they were fined forty marks each, in consequence of not pulling off their hats in court. The jury returned a verdict to which the court objected, and for persistence in their own course, the jurymen were fined forty marks apiece, and were imprisoned until they should pay the amount. Afterwards they were discharged by writ of Habeas Corpus, their commitments being pronounced, in the Court of Common Pleas, to be totally illegal. [\[560\]](#)

1670.

In terminating this chapter it may safely be asserted that, during the reign of Charles II., after the time when the Act of Uniformity came into force, except for the short space presently to be described, there occurred not any period, when persecution, in some form or other, did not disturb the Nonconformists of this country; yet perhaps it would not be going too far also to assert, that when persecution reached its greatest height, there were some of the proscribed who successfully asserted their liberty, and, either from the ignorance or from the connivance of the predominant party,

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escaped the rigours of the law. Sixteen months after the new statute for the suppression of Conventicles had been passed, and when in many directions it was being severely enforced, the Dissenters at Taunton, not only met together for worship, but boldly celebrated a festival in honour of the deliverance of the place, in the midst of the Civil Wars, under their illustrious townsman Robert Blake.^[561]

CHAPTER XXI.

The fall of Clarendon had been succeeded by a Ministry well known in history under the name of the CABAL.^[562] With the merely political conduct of the statesmen indicated by that word, we have nothing to do; their policy in relation to ecclesiastical affairs alone demands our notice.

A change of feeling in the upper classes towards Nonconformists ensued, now that Clarendon's influence had been withdrawn, the virtues of distinguished sufferers became better known, and rumours about plots were far less frequent. This change prepared for a measure, which, unconstitutional as to its basis, was liberal in its operation. To found indulgence upon Royal authority alone, and not upon an Act of Parliament, was in harmony with a scheme for the exaltation of the Crown; but there is reason to believe that the measure proceeded, in part at least, from the better side of the nature of the Ministers, as well as from the better side of the nature of the Monarch. The previous history of those Ministers had been such as to dispose them to befriend oppressed Nonconformists.

The persons of whose names the initials made up the significant appellation just mentioned, were Clifford, Arlington, Buckingham, Ashley, and Lauderdale. The last three had themselves been more or less connected with Dissenters. Buckingham, notwithstanding his irreligion and profligacy, had sympathized with them in their sufferings; Ashley had been a member of the Little Parliament, and a friend of Oliver Cromwell; and Lauderdale had decidedly professed Presbyterianism.^[563] Memories of the past would dispose these politicians to be favourable to their old friends. Clifford, who was rough, violent, ambitious, unscrupulous, and yet brave and generous, and Arlington, formerly known as Sir Henry Bennet,^[564] a man timid and irresolute, had indeed no such reminiscences as their colleagues, and had begun by this time to veer towards Rome; yet, kindness of disposition, which seems to have belonged to both these statesmen, probably blended itself with some design for promoting the interests of their adopted Church.

THE CABAL.

The Cabal Ministry determined upon a new war with Holland, for the insults and injury inflicted by the invasion in 1666 could not be forgotten, and the prosperity of a republic not far off, especially a naval one, appeared odious to such Englishmen as desired alike absolute monarchy at home, and an undivided sovereignty of the neighbouring seas. To humble a commercial power like Holland, would also, it was thought, improve British commerce; and of course a great victory would strengthen both the Ministry and the Crown. The war with Holland began in March, 1672, the advantage was on the side of England; and in February, 1674, Charles informed his Parliament that he had concluded "a speedy, honourable," and he hoped, "a lasting peace."^[565]

With a prospect of this war, the Cabal felt it expedient to conciliate the Dissenting portion of the country, that there might be peace at home whilst there was war abroad; and that the sympathies of those who had before leaned towards the United Provinces, might be bound to the interests of their own empire.^[566] Prudence of that kind united itself with whatever there might be of generosity in the Ministers who supported the King's new measure; but it should be stated that at this moment, when the Cabinet were looking one way, Archbishop Sheldon was looking another. Whilst the chief Ministers of State were preparing to show favour to the sects, the chief Minister of the Church was thinking only of checking their progress; yet, to his credit it should be noticed, that he appears, just then, as one who wished to promote his object by means of education, for he strongly enforced the use of the catechism;^[567] but, to his discredit it must also be remarked, that he still showed himself wedded to a coercive policy, by urging proceedings against all nonconforming schoolmasters.

Within six weeks of the date of the Archbishop's circular respecting education upon Church principles, Charles issued his famous Declaration of Indulgence. Lord Keeper Bridgeman refused to affix the Great Seal to it, because, in his opinion, it was contrary to the laws of the constitution; but Ashley, to whom the Great Seal was transferred, as Lord High Chancellor, under the title of Earl of Shaftesbury, easily supplied that important deficiency.^[568]

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INDULGENCE.

"Our care and endeavours for the preservation of the Rights and Interests of the Church," so ran the document, "have been sufficiently manifested to the world by the whole course of our Government since our happy Restoration, and by the many and frequent ways of coercion that we have used for reducing all erring or dissenting persons, and for composing the unhappy differences in matters of Religion, which we found among our subjects upon our return. But it being evident by the sad experience of twelve years that there is very little fruit of all those forcible courses, we think ourselves obliged to make use of that supreme power in ecclesiastical matters which is not only inherent in us, but hath been declared and recognized to be so by several Statutes and Acts of Parliament; and therefore we do now accordingly issue this our Declaration, as well for the quieting the minds of our good subjects in these points, for inviting strangers in this conjuncture to come and live under us, and for the better encouragement of all to a cheerful following of their trade and callings, from whence we hope, by the blessing of God to have many good and happy advantages to our Government; as also for preventing for the future the danger that might otherwise arise from private meetings and seditious Conventicles."^[569]

The Declaration, after recognizing the established religion of the country, directed the immediate suspension of all penal laws against Nonconformists, and provided for the allowance of a sufficient number of places of worship, to be used by such as did not conform. None were to meet in any building until it should be certified; and until the teacher of the congregation should be approved by the King. All kinds of Nonconformists, except recusants of the Roman Catholic religion, were to share in the indulgence, but the preaching of sedition, or of anything derogatory to the Church of England was forbidden, under penalties of extreme severity.^[570]

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How was the Declaration regarded? Politicians looked at the subject from their own point of view; and it is curious and instructive to consult a paper, written some time afterwards, in which answers are given to legal objections against the measure. It is objected that the King has not power to suspend the laws of the land, he being, by his coronation oath, obliged to see the laws duly executed, and not infringed. The reply is that the King has both an ordinary and extraordinary power; and that, by the latter, he may

mitigate and suspend the enactments of Parliament, in support of which position reference is made to the practice of the Roman Emperor, who dispensed with the Imperial laws by tolerating Arians, Novatians, and Donatists.

It is further objected, that the law against Conventicles had a penalty annexed, which was to be paid, not to the King, but to the informer, and therefore the King could not dispense with it. To this it is answered, that the King's ecclesiastical supremacy being reserved by the Act, such supremacy sufficed to authorize what he did in this matter. But to give a more particular solution the writer says, "that the Parliament, in spiritual matters, doth not act directly, as in the making of temporal decrees, such affairs are not under their proper cognizance by any law of the land. The Church, being a co-ordinate branch with the temporality under the King, ruled by a distinct power, and courts and laws, from the other. The which thing being granted, it is clear that the Parliament, in ecclesiastical matters, doth act only by way of corroboration of what is indeed enacted by the ecclesiastical supremacy. And when the ecclesiastical supremacy doth take away the subject of the temporal laws, the penalty (to whomsoever due) as an adjunct, doth cease. Thus, the King is not properly said to dispense with the penalty, but it ceases of itself, by virtue of the Royal indulgence, the same power being recognized to be in our King, which the Popes usurped here." This argument is followed up by a reference to Papal supremacy, and the exercise of pontifical authority in the toleration of Jews, Greeks, and Armenians in the Papal territories. The objection, that such dispensing power is new in England, is disposed of by the remark that the form is new, but not the thing itself. Ecclesiastical laws had been frequently changed by proclamation in the time of Henry VIII. and Edward VI. It being alleged lastly, that it was unbecoming the wisdom of the King to annul his own acts performed in giving the Royal assent to laws against Conventicles; the rejoinder is, that the King did not annul, but only suspend his own act; and if there be anything of weakness therein, His Majesty showed it in common with Constantine, Valentinian, Theodosius, Gratian, and Charles V. Such diversity of counsels appeared in all reigns. ^[571]

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Some Episcopalians were perplexed, of which signs appear in questions proposed by Cosin, Bishop

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of Durham, to the clergy of his diocese. They asked whether or no a subject was bound to comply with the pleasure of his Prince in all cases, where he felt himself not bound in conscience to the contrary: whether he might not comply, in many things inexpedient, and even prejudicial, if the King pressed the command, and there seemed no way to avoid it but by disobedience: and whether he might not consent to the abrogating of penal laws in support of the Church, rather than provoke the King's displeasure, upon whose favour, under God, the clergy were dependent?^[572]

Toleration did not meet the wishes of the Presbyterians; some of them had refused it to others, and now they did not care to accept it for themselves. Desiring comprehension—meaning by that "any tolerable state of unity with the public ministry,"—they looked on toleration as opening a way for the advance of Popery; and they believed that wherever indulgence might begin, in Popery it would end. Further, they apprehended that it would contribute to the permanence of Protestant dissensions, whereas comprehension would unite and consolidate Protestant interests: nor had they ceased to value parish order, and to believe that such order would be overthrown, if people were allowed to enjoy separate places of worship wherever they pleased. On this ground the Presbyterians confessed themselves to be in a dilemma—being forced either to become Independents in practice, or to remain as they were, in silence and in suffering.^[573] Some also objected to the unconstitutional character of the King's proceeding, and looked upon it as pregnant with political, no less than with ecclesiastical, mischief; others, wearied with long years of persecution, felt glad to avail themselves of liberty from whatever quarter it arose. It is probable that some troubled themselves not at all with the constitutional question; and it is certain that others, who did apprehend the political bearing of the measure, and who also dreaded the progress of Popery, considered nevertheless, that to avail themselves of a right to which they were entitled on grounds of natural justice, was simply reasonable, and involved no approbation of either the actual manner, or the suspected design of the bestowment.

The Independents, who had long given up hopes of comprehension, who set no value on parish discipline, and who had only asked for freedom to worship God according to their consciences, were, for the most part,

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prepared to accept what appeared to them as a boon, without feeling any scruple in relation to its political aspects. [\[574\]](#)

The Court encouraged an approach to the throne of Nonconformists disposed to return thanks for the indulgence. The Presbyterians came in a body, headed by Dr. Manton, who, in their name, expressed hearty gratitude. [\[575\]](#) Dr. Owen also presented a loyal address, in which he expressed the joy of the Independents in declaring their loyalty; not only as that loyalty rested upon grounds common to all his subjects, but also as it arose from what His Majesty had just done in reference to liberty of conscience. Owen humbly prayed for the continuance of the Royal favour, assuring the King of the intercessions of Independents in his behalf, that God would continue His presence to him, and preserve him in counsels and thoughts of indulgence. [\[576\]](#)

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Applications poured in, and licenses were granted in abundance. Thomas Doolittle, an eminent Presbyterian minister, obtained one; and for years afterwards it might be seen, framed and glazed, hanging in the vestry of the meeting-house where he preached, in Monkwell Street. [\[577\]](#) Availing themselves of the Royal permission, several merchants united in the establishment, at Pinners' Hall, of a Lecture, to be delivered by select preachers, including Richard Baxter. Buildings were constructed amidst the ruins left by the London fire, and some arose on the other side the Thames. In the latter neighbourhood four Presbyterians were licensed—one was in St. Mary Overy's, another in Deadman's Place, St. Saviour's. Independents, Baptists, and others, to the number of six, were registered for Southwark and Lambeth; some only by name, others for specified places. David Clarkson asked leave to preach in "a house belonging to John Beamish in Mortlake," to both Presbyterians and Baptists; and several licenses were granted to other ministers in Surrey. John Bunyan was allowed to teach a congregation in the house of Josias Roughed at Bedford; and numerous individuals and numerous dwellings in the City of Norwich were enrolled on the certified list, as many as four different houses in one parish, besides many more in other parishes, being enumerated. Oliver Heywood, "of the Presbyterian persuasion," received permission to use a room or rooms, in his own house, in the parish of Halifax, in the County of York; and Philip

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Henry, of Malpas, Flintshire, notwithstanding his scruples on the subject, accepted the same kind of permission.^[578] These are only a few instances, showing the variety and extent of the rescripts which threw the Royal shield for a time over harassed Nonconformists. As many as three thousand five hundred licenses are reckoned to have been granted within the space of ten months. If it be supposed that the places of worship then licensed were generally at all like chapels in the present day, a most exaggerated and erroneous idea will be formed of the extent of Dissent; in point of fact many of the places of worship were but small rooms in private houses, within a short distance of each other; nevertheless, there must have been a large number of people professing Nonconformity, to require so many licenses; and it should be remembered that a portion of the nonconforming class did not feel prepared to accept liberty proffered in, what they considered, an unconstitutional way. So formidable did the number of Free Churches begin to appear, that one of the Bishops, writing to Sir Joseph Williamson, exclaimed—"These licensed persons increase strangely. The orthodox poor clergy are out of heart. Shall nothing be done to support them against the Presbyterians who grow and multiply faster than the other?"^[579]

In connection with the indulgence and the thanks returned to the King by the Presbyterians, Burnet relates that an order was given "to pay a yearly pension of fifty pounds to most of them, and of a hundred pounds a year to the chief of the party." He says further, that Baxter "sent back his pension, and would not touch it, but most of them took it." Burnet relates this on the authority of Stillingfleet, from whom he received the story; adding, "in particular he told me that Pool, who wrote the *Synopsis of the Critics*, confessed to him that he had had fifty pounds for two years." The historian remarks, "Thus the Court hired them to be silent, and the greatest part of them were so, and very compliant."^[580] It is remarkable, that though there are several passages in Baxter's life, in which he mentions the fact of sums of money being offered to him, and the way in which he treated the offers, he makes no reference to any overture of pecuniary assistance from the Court. Some reference to it we might have expected, had such an overture been made; but that Baxter in that case would have declined to accept any grant, is quite in accordance with his character, and with his wish to be entirely independent of the King. Burnet's

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statements, given on the authority of conversations held some time before, were intended by him to be accurate, but they are not always reliable: in this case, however, whatever doubt may rest on his statement as to Baxter, there seems no reason for disbelieving what he says respecting Pool. Dr. Calamy, from his intimate acquaintance with the events of the period, would, we should infer, have been able to disprove Burnet's statement, had it been altogether untrue; but Calamy does not contradict the assertion as to the payment of money—rather he confirms it. After quoting from Burnet, that "most of them took it," he adds, "I cannot see why they should not;" he resents, however, Burnet's remarks about the Presbyterians being silent and compliant;^[581] but he states in the next page that he was not forgetful of Dr. Owen's having received one thousand guineas from Charles II. to distribute amongst Dissenters; for the receipt of which he incurred reflections afterwards, as Calamy thought, very undeservedly.^[581]

There seems no reason to doubt that at this time the Crown rendered pecuniary assistance to Nonconformist ministers, and that some of the leading brethren acted as the almoners of the Royal bounty to others. But, however the acceptance of it might be approved by some, it was condemned by others; and it would, by the latter, be naturally enough counted as "hush money;" that it really produced that effect, however, there is not a single tittle of evidence, and in itself it appears very improbable. Men who had resigned their livings, and all the honours of the Established Church, for conscience' sake, were not likely now to be bribed by an occasional remittance of a hundred or of fifty pounds; in some cases the sum must have been much smaller.

To this incident—in connection with the indulgence—may be added an interesting episode, which in one of its particulars, falls into the same connection.

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QUAKERS.

After his romantic adventures at Boscobel in 1651, Charles reached the little town of Brighthelmstone, and there engaged a fisherman to take him over to the coast of France. The captain and the mate alone were in the secret that the boat carried, not Cæsar indeed, but the heir of England's crown, with all his fortunes; and when they reached their destination, the mate conveyed the Prince ashore upon his shoulders. The boat, in after days, when the Restoration had changed the destiny of the Stuarts, lay

moored by the stairs at Whitehall—a memento of its Royal master's deliverance; and the captain, whose name was Nicholas Tattersall, after having enjoyed an annuity of £100 a year, slept with his fathers in the churchyard of the town in which he had lived, and was buried beneath a slab of black marble, still existing, with a scarcely legible inscription. The mate, who set the King on dry land, and whose name was Richard Carver, became a member of the Society of Friends. When nearly twenty years had rolled away, this transformed mariner made his appearance one day in the month of January, 1670, at the doors of the palace, and obtained admission to the King's presence. Time, the rough wear and tear of a seaman's life, and the assumption of a Quaker garb, had altered the visitor since His Majesty saw him last, but with that faculty of recognition, which is a princely instinct, he remembered the man at once, and reminded the sailor of several occurrences in the vessel during his eventful voyage. Charles had been annoyed by people who had shown him kindness in adversity, coming or writing to Whitehall for some substantial acknowledgment of obligation, and he wondered that Carver had not come before to ask for assistance. In reply to some expression of that feeling, the Quaker told the King that "he was satisfied, in that he had peace and satisfaction in himself, that he *did what he did to relieve a man in distress*, and now he desired nothing of him but that he would set Friends at liberty who were great sufferers." Carver then proceeded to inform His Majesty that he had a paper in his hand containing no names of Quakers, who had been in prison above six years, and could be released only on Royal authority. Charles took the paper, and said it was a long list; that people of that kind, if liberated, would get into prison again in a month's time; and that country gentlemen had complained to him of their being so much troubled by Quakers. Touched, however, by the remembrance of long gone years, whilst a gracious smile played on the flexible features of his swarthy face, he said to Carver, he would release him six. Carver, not thinking that the release of six poor Quakers was equivalent to a King's ransom, determined to approach the Royal presence again, and now took with him another Friend, Thomas Moore. "The King was very loving to them. He had a fair and free opportunity to open his mind to the King, and the King promised to do (more) for him, but willed him to wait a month or two longer." What became of this sailor, who nobly looked on the preservation of the King's life simply as *relieving a man in distress*, we do not know; but Moore, whom he introduced to the Monarch,

continued to make earnest appeals to Royalty on behalf of imprisoned Friends. In these attempts he received assistance from George Whitehead—another eminent name in the annals of Quakerism; and when, two years afterwards, there appeared the Royal decree, which we have described, there also occurred the following incident, which forms a notable link in a wonderful chain of Divine providences.

The King, who felt now more than ever a special regard for Quakers, kept his word; and on the 29th of March, 1672, thirteen days after the date of the Declaration of Indulgence, a circular letter was sent to the Sheriffs of England and Wales, requiring from them a calendar of the names, times, and causes of commitment of all the Quakers confined within their gaols.

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The returns from the Sheriffs came in due order before the Privy Council in reply to the circular, when His Majesty declared that he would pardon all those persons called Quakers then in prison for any offence which they had committed against him; and not to the injury of other persons: 471 names were included in the pardon. [\[582\]](#)

Whitehead, who co-operated with Moore, the friend of Richard Carver—to whom he owed his introduction to the King—was a large-hearted man, and when other Dissenters saw what he had done, and solicited his assistance to procure the liberation of another class of religious prisoners, he readily assisted, and recommended that they should petition His Majesty; adding, that their being of different judgments did not abate his charity towards them. The advice was taken.

John Bunyan, with a number of others unknown to fame, encouraged by the Quakers, asked to be set at liberty. The document, containing this prayer, came before the Privy Council on the 8th of May, 1672—and on the 17th, Archbishop Sheldon being present, it was ordered that, as these persons had been committed "for not conforming to the rites and ceremonies of the Church of England, and for being at unlawful meetings," and for no other offence, the Attorney-General be "authorized and required to insert them into the general pardon to be passed for the Quakers."

JOHN BUNYAN.

The pardon is dated the 13th of September; and second on the list of sufferers in Bedford Jail appears the name of "John Bunnion," who in

common with 490 others, received forgiveness for "all, and all manner of crimes, transgressions, offences of premunire, unlawful Conventicles, contempts, and ill behaviour whatsoever."^[583] Our great allegorist owed his deliverance to the intervention of Friends; and we do not wonder to find that afterwards an end came to those unseemly controversies which had been waged between him and the disciples of George Fox.

CHAPTER XXII.

The Tenth Session of Charles' Second Parliament opened on the 4th of February, 1673. His Majesty's Speech glanced at the Indulgence, as having produced a good effect by producing peace at home when there was war abroad; and as not intended to favour the Papists, inasmuch as they had freedom of religion only "in their own houses, without any concourse of others." The oration of Shaftesbury, the Lord Chancellor, in like manner touched upon the same points, and he endeavoured to vindicate the measure from misconstruction, and asserted the success with which it had been attended.^[584] But the well-known character of the Cabal, and the now equally well-known character of the King, whose leaning towards Popery had become apparent, inspired the Commons with sentiments which set them in opposition to the Royal policy. As Tory and Whig, Conservative and Radical are terms now indicating parties in the State divided upon great questions, so the Court party and the Country party were corresponding appellations at the period under review. But as it is now, so it was then—parties, at times, erratically burst into circles not coincident with their professed principles; and thus a door was opened for bandying to and fro violent recriminations, on the score of inconsistency. The Court party, led by the Cabal, through introducing and supporting a Grant of Indulgence, seemed to be favouring the very Nonconformity which, in 1662 and in subsequent years, they had sedulously endeavoured to crush out of existence; and the Country party, through resistance of an usurped prerogative, came to look like enemies of that very religious freedom, whose last hopes had once been thought to lie within their bosoms. But in fact the inconsistency on both sides is more apparent than real—for still the one party aimed at the establishment of despotism, and the other aimed at the advancement of liberty. The ends of the two parties were still the same as they had ever been; they had only changed their means. The Court had carried all before it at the time of the Restoration. It then appeared as the upholder of the Throne, of the Church, of the Prayer Book, of old English institutions and customs. In the fervour of reborn loyalty, amidst a flush of

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feudal enthusiasm, on the return of an exiled chief, and completely borne away with the joy attendant on the revival of ancient and endeared customs, the people had rallied around the King's party, applauding it to the echo. Now a change came. Admiration of Charles II. had begun to subside; his character was seen through; his profligacy was notorious; his irreligion excited the displeasure of the sober-minded; his profusion touched the pockets of the economical; and his dependence upon France quickened the jealousy of all true patriots. The Cabal and the Court were found to be in league with the Crown for purposes inimical to the Commonwealth; therefore the nation expressed its deep uneasiness; and the result being, that as seats in Parliament, now in its twelfth year, fell vacant through the death of members, the candidates elected to fill the vacancies were such as stood pledged to the Country party. That party in the House of Commons thus by degrees became predominant; and the King and Court received unpleasant proofs that they could no longer carry things as they had done, with a high hand in their own way.

Under these circumstances, at an early sitting (the 8th of February), a debate arose upon the subject of the Declaration. Sir Thomas Lee, Mr. Garroway, and Sir Thomas Meres,—the bellwethers of the Country party, as they were called, supported by Colonel Birch, the Commonwealth's-man, and others, [\[585\]](#)—attacked the Royal proceeding, which was vindicated by members on the other side. The Country party (on the 10th) argued that the Declaration was unconstitutional;—that, according to this method, the King might claim the power of changing the religion of the country; that toleration ought to be granted, but only by Act of Parliament; and that the document just issued, in the name of the Monarch, would upset forty Acts of Parliament no way constitutionally repealable, except by the authority which had created them. In the course of the debate a member, addressing a conspicuous Nonconformist in the House, remarked, "Why, Mr. Love, you are a Dissenter yourself; it is very ungrateful that you who receive the benefit should object against the manner." "I am a Dissenter," he replied, "and thereby unhappily obnoxious to the law; and if you catch me in the corn you may put me in the pound. The law against the Dissenters I should be glad to see repealed by the same authority that made it; but while it is a law, the King cannot repeal it by proclamation: and I had much rather see the Dissenters suffer by the rigour of the law, though I suffer with them, than

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see all the laws of England trampled under the foot of the prerogative as in this example."^[586] The Court faction stood on its defence. Secretary Coventry maintained that the King did not intend to violate the laws; that exceptional circumstances required exceptional proceedings; that the master of a ship has power in a storm to throw goods overboard, though no such power belongs to him when the waters are calm. Finch, the Attorney-General, asserted the dangerous doctrine, that, as the King was Head of the Church, and as it was the interest of the nation to have a temporal and not a spiritual Pope, His Majesty might dispense with the laws for the preservation of the realm; this legal functionary dared to say, that the King, by his supremacy, might discharge any cause in the Ecclesiastical Courts, as those Courts were his.^[587]

The subdued tone of expostulation which prevailed on the side of the Country party is very remarkable, and a disinclination to come into collision with the Throne was expressed by several of the members; yet they pursued a decided course, and passed this resolution:—"That penal statutes, in matters ecclesiastical, cannot be suspended, but by Act of Parliament,"^[588]—a resolution which they carried by 168 against 116. The House afterwards considered an address to the King, embodying the resolution.

1673.

The debate, to which the resolution and the address founded upon it gave rise, on the 14th of February, exemplified the same spirit of moderation as had prevailed before. Sir Thomas Meres advocated "ease fit for tender consciences"—in the words of the Breda Declaration—"for union of the Protestant subjects;" and others supported the plan of bringing in a Bill for the purpose. The exact purpose of such a Bill did not distinctly appear, since some members were for a wide comprehension, embracing within the Church all Dissenters, and leaving no liberty for any who would not enter; whilst others, again, contended for a liberal toleration to those who remained outside of the established pale. This diversity of opinion and this indistinctness of view gave considerable advantage to Secretary Coventry, who retorted upon his opponents the differences which they manifested, and the indecision which they betrayed. At length, however, the address was carried without a dissentient voice.^[589] It was couched in terms so contrived as to tide over all difficulty.

In the Grand Committee for preparing a Bill two questions arose.^[590] First, who were the persons to be benefited? or, in the quaint phraseology of the time, "who were to be eased?" Should everybody be included? Should all Protestants? Should all kinds of Dissenters, including Levellers, respecting whose existence, however, within a religious pale, doubts were expressed. Papists were altogether put out of court. "The Papists," exclaimed Mr. Garroway, "are under an anathema, and cannot come in under pain of excommunication." Finally, it was resolved that ease should "be given to His Majesty's Protestant subjects, that will subscribe to the doctrine of the Church of England, and take the Oaths of Allegiance and Supremacy." The second question respected the nature and extent of the relief to be afforded. What was "the ease" to be? Was it to be in the form of comprehension, or of toleration, or of both? As to this point, the House seemed to be in great difficulty. Indistinct ideas of some sort of comprehension were most common. Even Alderman Love, a Dissenter, veered—if we may judge from the imperfect report of his speech—now on the side of liberty outside the Church, and now on the side of a large and liberal inclusion within it. He confessed no kindness for those who desired preferment, with conformity to the laws. Those on whose behalf he spoke did not, he said, desire to be exempted from paying tithes, or from holding parish offices, except the office of churchwarden, and that "not without being willing to pay a fine for the contempt." He pleaded that, after submitting to the test to be agreed upon, Nonconformist ministers ought to be allowed to preach, "but not without the magistrates' leave, the doors open, and in the public churches, when no service is there." "This latter motion," says the report, "he retracted, being generally decried." Then he rejoined that he used the words "in the church," because people could not be thought to plot in such a place. From a second speech by the same person it appears that he moved *for a general indulgence by way of comprehension*, but what he meant by that is not explained.^[591] Comprehension in some way was the object chiefly desired, and the terms of such comprehension were largely and confusedly discussed. Even then a spirit moved over the waters of debate which prepared for the order to be evolved at the Revolution; but toleration, in its nature and principle, as it was enforced by some of the Commonwealths-men, or as it was expounded by John Locke, or as it is now universally understood, seems not to have been stated by any

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1673.

who shared in the debate. This remarkable circumstance indicates that none of the members who now sat on the benches of St. Stephen's were exactly of the same stamp as some who had occupied them before the Restoration. [592] Either such men were not there at all, or they had changed their opinions, or they had become afraid to utter what they believed. As we anticipate the ground which was taken, and the sentiments which were prevalent when the Toleration Act was passed, comparing the state of opinion at the Revolution with the state of opinion in the year 1673, we must find it instructive to notice the wonderful advance during the subsequent interval, and to observe how silently and steadily the principles and the spirit of justice were making their way. One member who favoured toleration was so niggardly, that he desired only to "have it penned for such places as should be appointed by Act of Parliament;" and another thought it not reasonable that Nonconformists should have their "meeting-houses out of town." Nor did the advocates of this restricted freedom plead for more than its temporary concession. The heads of the Bill, as at last concocted, were, first, in reference to comprehension, that subscription should be required to the doctrinal Articles of the Church of England, and that the requirement for declaring "assent and consent" to the Prayer Book, should be repealed; and next, in reference to toleration, that pains and penalties for religious meetings with open doors should be no longer inflicted, and that teachers should subscribe and take the prescribed oaths at the quarter sessions. The Act should continue in force for a year, and from thence to the end of the next session of Parliament.

These resolutions were adopted on the 27th of February, [593] and a Bill founded upon them was read a third time on the 17th of March. [594] On the second of these occasions, Secretary Coventry said he hoped the measure, which did not fix sufficient limitations, would not destroy the Church. To attempt such toleration as had never been tried before, he maintained to be a frivolous expedient, the consequences of which it would be beyond their power to remedy. One speaker uttered the oft-repeated charge: "Dissenters grow numerous. If you pass this Act, you give away the peace of the nation. A Puritan was ever a rebel; begin with Calvin. These Dissenters made up the whole army against the King. The destruction of the Church was then aimed at. Pray God it be not so now!" [595] The Republicanism of

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Nonconformists appears to have been a stock argument against granting them any liberty.

The Bill did pass the Commons, and this fact proves that, however inadequate might be the enunciation of the principles of civil and religious liberty, the House departed from the doctrines upheld by it ten years before. The distinction between articles of discipline and of doctrine was laid down, burdensome impositions were proposed to be removed, and a considerable amount of freedom was provided for those outside the Establishment, in connection with a wider opening of the door to those disposed to enter in.

1673.

Yet, after all, these debates and votes ended in nothing. The Bill underwent several amendments when it reached the Lords. These amendments were objected to by the Commons. Time was wasted between the two Houses, notwithstanding the King's warning against delay; such delay showing that neither portion of the legislature could have been thoroughly in earnest about the proposal. Its fate was determined by the adjournment of Parliament before the Bill had passed the Lords, and by a prorogation after adjournment. [\[596\]](#)

About the same time another Bill came before the Commons' House, enjoining the practice of frequent catechising in parochial churches; a measure resembling that which the Presbyterians, in their day of power, had so earnestly desired. Its progress, also, was stopped by the Lords.

Coincident with the proceedings upon the Belief Bill were two very important circumstances, namely, the passing of the Test Act and the cancelling of the Declaration of Indulgence.

TEST ACT.
1673.

The former originated so early as the 28th of February, 1673, when a motion was made for removing all Popish recusants out of military office or command. This motion was exceedingly offensive to the King and to the Court—being aimed at the King's brother, the Duke of York, who was already generally suspected of having embraced the Romish faith. There followed the same day a resolution, covering a still wider ground of prohibition—*i.e.*, "that all persons who should refuse to take the Oaths of Allegiance and Supremacy, and to receive the sacrament according to the

rites of the Church of England," should be "incapable of *all* public employments, military or *civil*."^[597] This attack on the Catholics was seconded by an address, agreed upon, the 3rd of March, by the Commons against the growth of Popery. Also, a Bill appeared in the Lower House, to prevent that growth, by the method expressed in the above resolution. Strange to say, the idea of the test so expressed emanated on this occasion from no other person than Lord Arlington, the reputed Romanist, and a member of the Cabal—partly, it is said, to gratify personal resentment, and partly to accomplish objects of personal ambition.^[598] In the course of the debate in the Commons, a member tendered a proviso "for renouncing the doctrine of Transubstantiation, for a further test to persons bearing office;"^[599] and again, strange to say, this additional sting in a measure sufficiently irritating to His Majesty, the Duke, and the whole Court, was introduced by another member of the Cabal, whose name began with the second vowel in the notorious word—Ashley, now Earl of Shaftesbury.^[600] In this case, too, no less than in the former, resentment and ambition, it is to be feared, mingled with those motives which determined this step; for he aimed, by what he was doing, to drive from power the Romanizing members of the Cabinet, and to make himself master of the situation—a project, however, in which he did not succeed. This additional barrier of Protestant defence, constructed by Shaftesbury's hands, occasioned a polemical debate in the House of Commons—the members talking much, and very confusedly of Transubstantiation and of Consubstantiation, and of the Sacramental doctrine held by the Church of England. The Bill, including the new provision, passed the Commons on the 12th of March; and to add one more strange circumstance to this history uniquely strange, the measure found its most eloquent supporter in the House of Lords in the person of the Roman Catholic Earl of Bristol, who defended it on the ground that it would quiet a popular panic, by the simple removal of a few Catholics from office, without enacting any new penalties against Catholic worship. This looked like sacrificing personal interests to patriotism; but the Earl surrendered all pretension to the character of a confessor or a hero, by procuring the insertion of a clause which secured to himself and to his wife a Royal pension, with an exemption from the necessity of taking the test. The King—who at first seemed as much incensed as his Courtiers—at last reluctantly gave way; assent to the Bill being the price demanded by the Commons for the replenishment of His Majesty's bankrupt exchequer. It is said that three

members of the Cabal—Clifford, Buckingham, and Lauderdale, who supported the arbitrary power of the Crown, professed to despise such vulgar temptations as had overcome their colleagues—and that they encouraged the Monarch to imitate his father, by seizing the obnoxious members of the opposition, by bringing the Army up to town, and by making himself absolute master of the realm;^[601] but Charles was too indolent and too shrewd to venture on an attempt so bold and so insane. The Test Act, therefore, passed; and whilst it originated with one Catholic nobleman, and was advocated by another, it found no opponent in the House of Commons on the part of the Nonconformists or their friends. It is very true that the Bill pointed only at Catholics, that it really proposed an anti-Popish test; yet the construction of it, although it did not exclude from office such Dissenters as could occasionally conform, did effectually exclude all who scrupled to do so. Aimed at the Romanists, it struck the Presbyterians. It is clear that had the Nonconformists and the Catholics joined their forces with those of the Court, in opposing the measure, they might have defeated it; but the first of these classes for the present submitted to the inconvenience, from the horror which they entertained of Popery, hoping, at the same time, that some relief would be afforded for this personal sacrifice in the cause of a common Protestantism. Thus the passing of an Act, which, until a late period, inflicted a social wrong upon two large sections of the community, is to be attributed to the course pursued by the very parties whose successors became the sufferers.

By the passing of the Test Act, Clifford, now an avowed Catholic, was excluded from the House of Lords; and, in consequence of this exclusion, he resigned the White Staff, and retired to the County of Devon, where he died before the end of the year 1673. "He went off the stage in great discontent."^[602]

TEST ACT.
1673.

The next important circumstance at this period requiring our notice is the withdrawal of the Declaration of Indulgence. When the address of the Commons on that subject had been presented to the King he replied, that he was troubled to find the Declaration had produced so much disquiet, and had given occasion to the questioning of his authority in ecclesiastical affairs. He was sure, he said, that he had never thought of using power except for the peace and establishment of the Church; he did not wish to

suspend laws touching the property, the rights, or the liberties of his subjects; nor to alter the doctrine or discipline of the Church; he only wished to take off penalties, which he believed the Commons did not desire to see inflicted according to the letter of the law. He had no thought of neglecting the advice of Parliament; and if any Bill should be offered him more proper to attain the end in view, he would be ready to concur in it. With this answer the Commons did not feel satisfied; but the King repeated in the month of March that, if any scruple remained as to his suspension of penal laws, he faithfully promised them what had been done should not be drawn into a precedent for the future.^[603]

At the same time the Lord Chancellor stated that His Majesty had caused the original declaration, under the Great Seal, to be cancelled in his presence

STATE OF
NONCONFORMISTS.

the previous evening.^[604] By the operation of the Test Act, by the cancelling of the Declaration, and by the dropping of the Bill of Indulgence, Nonconformists were left in a worse plight than that in which they had been before, so far as the law was concerned. The state of the law, however, is not to be taken as an accurate index of their condition. The pressure of a bad law depends very much upon the hands employed in its administration. Happily the Declaration, which ultra-Royalists were disposed to honour, on the very ground that it was unconstitutional, had wrought a change in their feeling towards Dissenters; and when the seal attached to it had been broken, still it left, as it were, a spell upon their minds. The Churchmen's treatment in many instances of those who were not Churchmen continued for a while after the year 1672, to be less severe than it had previously been.^[605] The Church, gathered by Dr. Owen, enjoyed much freedom in the year 1673, and afterwards. His Conventicle, which it would appear was situated in White's Alley,^[606] Moorfields, presented a list of members including several persons of rank. We are enabled to enter within the doors of the meeting-house, fitted up, no doubt, with Puritan decency and comfort, whilst destitute of all beauty, and to identify, amidst the hearers of the ex-Dean of Christ Church, certain distinguished persons.

There was Lord Charles Fleetwood, Cromwell's son-in-law, described in an earlier portion of this work, whom Milton has eulogized as inferior to none in humanity, in gentleness, and in benignity of disposition, and whom

1673.

Noble admits to have been a man of religion, and a venerator of liberty. There was Colonel John Desborough, a staunch Republican, a man of rough manners, whose name, together with that of Fleetwood, Milton has honoured. There was Major-General Berry, once a friend of Baxter's, and applauded by him as a man of sincere piety, till he forfeited that excellent person's favour by becoming an Independent. There was young Sir John Hartopp, of singular intelligence and piety. Ladies of distinction also were there: the Lady Tompson, wife of Sir John Tompson,^[607] Lady Vere Wilkinson; Mrs. Abney; and deserving of notice, more, however, for her eccentricities than her excellencies—Mrs. Bendish, granddaughter of Oliver Cromwell.^[608]

Yet about the time that Owen and his congregation remained unmolested, or just afterwards—and the circumstance should be mentioned as an illustration of the parti-coloured character of Church history in those days—Nathaniel Heywood speaks of the persecution he endured. Before the 9th of April, 1674, he had for four months experienced more trouble and opposition in his ministerial employment than he had ever done before in all his life. The archers grieved him, and shot at him thirty-four *arrows* (by which he meant *warrants*); "but our bow," he goes on to say, "abides in strength by the hands of the mighty God of Jacob. Officers have come eighteen Lord's days together, but have not as yet scattered us."^[609] A year afterwards (May 1st, 1675) he writes,^[610] "all these troubles are nothing to that I am now mourning under—the loss of public liberty, a closed mouth, dumb and silent Sabbaths—to be cast out of the vineyard as a dry and withered branch—and to be laid aside as a broken vessel in whom there is no pleasure, is a sore burden I know not how to bear—my heart bleeds under it as a sting and edge added to my other troubles and afflictions. This exercise of my ministry next to Christ is dearer to me than anything in the world. It was my heaven till I came home, even to spend this life in gathering souls to Christ; but I must lay even that down at Christ's feet, and be dumb and silent before the Lord, because He has done it, who can do no wrong, and whose judgments are past finding out. I am sure I have reason to conclude with the prophet, "I will bear the indignation of the Lord, because I have sinned against Him."

NONCONFORMISTS.
1674.

In some parts of the country, Nonconformists would not believe that the King intended to depart from his liberal policy. There was a busy meddling informer at Yarmouth named Bowen,^[611] who frequently corresponded with Sir Joseph Williamson respecting the conduct of the Independents in that town. From his letters, preserved in the Record Office, some curious illustrations belonging to this period may be drawn. His testimony in matters relative to the character and conduct of Nonconformists is worth nothing, owing to his prejudices; but there is enough of what is credible in his correspondence to throw light upon some of their proceedings.

"The Nonconformists here give out that they are to have a hearing next Friday before His Majesty's Council, and doubt not but they shall sufficiently be authorized to meet in public as before. They were so rude, as I am credibly informed, meeting at one Mr. Brewster's, near Wrentham, in Suffolk, about twelve miles from hence, that two informers coming to the House, and inquiring at the door what company they had within, they within hearing these inquiries came running out, crying thieves, and fell upon them, knocking of them down, then drew them through the foul hogstye, and from thence through a pond of water—one of the two is since dead by their rude handling."

Wild rumours floated down to Yarmouth respecting an interview, which Dr. Owen was said to have had with the King, in which the Independent Divine spoke of the disturbance given to His Majesty's subjects, and in which His Majesty promised that he would speedily redress their wrongs. Encouraged by these rumours the Yarmouth Nonconformists paid no attention to orders in Council, but assembled as before at their usual place of worship, stating as a reason of the liberty they took, that the King's mind had altered on the subject.^[612] The "lukewarm," says Bowen, "are here the most numerous; their religion must give way to interest, and this is so involved within one and the other that the man is not to be found who dare act. Many wish the work were done, but none durst do it for fear he should suffer in his trade or calling, they all having a dependence, little or much, upon one another."

NONCONFORMISTS.

CHAPTER XXIII.

The Cabal crumbled to pieces in 1673. It had never been guided by any common principles; it had never felt any community of interest; it had never been united by personal sympathies. Our notions of cabinet councillors bound together by some characteristic policy, do not apply to the reign of Charles II., when a Ministry included persons of divers opinions, drawn together simply by the choice of the Sovereign, who selected them mainly for the discharge of executive duties. The want of cohesion apparent in all the cabinets of that period was singularly conspicuous in this instance. Clifford was compelled to resign office by the operation of the Test Act; Shaftesbury, dismissed from the office of Chancellor, went over, accompanied by Buckingham, to the Opposition; and Arlington, threatened with impeachment, relinquished his Secretaryship of State for a quiet post in the Royal household. Lauderdale alone retained his seals, thenceforth, however, to be chiefly employed in the administration of Scotch affairs.

Sir Thomas Osborne, created Earl of Danby, having taken up the White Staff which Clifford had laid down, now became principal minister; and from his business talents and his love for the power and emoluments of office, he acquired an influence over the Royal councils, like that of Clarendon in his palmy days. He resembled his great predecessor in his opposition to Popery, not less than in his abilities and in his ambition; but he was much more of an Englishman, and thoroughly detested the idea of truckling to France. In that respect his policy differed from the policy of the Cabal; but he inherited from that Ministry the practice of bribing Parliament—carrying corruption even further than ever the Cabal had done—for, whereas they only bought speeches, he bought votes as well. His policy was decidedly Protestant in foreign affairs, as the means of attaining his objects; and also, from his own predilections, he especially sought to gratify the old Cavaliers and the High Church party. Clarendon had been accused of neglecting the friends of the martyred King, and of being indifferent to his memory: Danby now gave the former encouragement; and he also did honour to the latter, by

EARL OF DANBY.

recovering the bronze statue of Charles I., and by setting it up at Charing Cross. He earnestly promoted the rebuilding of St. Paul's Cathedral, and, at the same time, turned his attention to the Dissenters; but it was to restrain their liberty and to check their progress, both of which had received an impetus during the latter part of the administration of the Cabal. Danby, and Sir Heneage Finch, now Lord Keeper, called to their councils, relative to Church affairs, two prelates whom the Nonconformists exceedingly disliked, and not without reason,—Morley, Bishop of Winchester, and Ward, Bishop of Salisbury. These prelates, it was inferred, recommended the King to call in the licenses for worship, which, notwithstanding the cancelling of the Declaration, had not yet been individually withdrawn. [\[613\]](#)

The reign of intolerance returned, and the weight of its iron mace fell upon multitudes. The men who before, rather than countenance an exercise of illegal power, or share their liberty with the Papist, had rejected the Indulgence, or supported the Test Act, now felt how cruelly they were rewarded by Parliament for their zeal against Absolutism and Popery; whilst others, who had taken no part in their proceedings, found themselves treated just like their neighbours. The Court, incensed at being thwarted in their plans respecting Popery, despatched informers to ferret out Protestant Nonconformists. The drum ecclesiastic was loudly beaten, and a High Churchman, in his sermon before the House of Commons, told the honourable members that the Nonconformists could be cured only by vengeance; and that the best way was to set "fire to the faggot;" and to teach these obstinate people "by scourges or scorpions;" and to "open their eyes with gall." [\[614\]](#)

One of the most vexatious impositions enacted immediately after the Restoration was the oath presented by the Corporation Act, declaring that it was unlawful *under any pretence* to bear arms against the King. This oath was introduced into the Act of Uniformity, with the addition that the Covenant entailed no obligation "to endeavour any change or alteration of Government in Church or State,"—this formulary repudiating the Covenant being intended only for temporary use, to expire at the end of twenty years. But now another test was proposed in the House of Lords, if not by the suggestion, yet with the sanction of Danby,—a test which went so far as to

1673–5.

NEW TEST.

require the following declaration: "I do swear that I will not endeavour an alteration of the Protestant religion now established by law in the Church of England; nor will I endeavour any alteration in the Government of this kingdom in Church or State, as it is by law established."^[615] Such a declaration is so utterly opposed to all the sentiments and traditions of Englishmen, that it fills us with wonder that it could even have been thought of,—yet it was contrived as a thing to be imposed upon every member of Parliament, and upon all persons holding office under the Crown. The King, at that period under an hallucinating desire for Absolutism, threw himself with so much energy into the conflict, that he attended constantly on the debate, standing at the fire-side in the Upper House, day after day for seventeen days, listening to the oratory of the Peers. Not only the Lord Treasurer Danby, but the Lord Keeper Finch encouraged this assault upon the liberties of their country; and it must not be concealed that the two prelates, who had already signalized themselves by their intolerance, Morley and Ward, now united with the two temporal Lords in this matricidal attempt. Their most determined, most able, and eloquent opponent was the Earl of Shaftesbury. On this occasion certainly he did good service to the cause of freedom. He prolonged the sittings till he wearied his enemies, and most unmercifully did he lash the Bishops for the part which they took in the debate. He asked, what were the boundaries of the Protestant religion, which the new oath required men to swear they would never alter? He pointed out defects in the Church of England, and dwelt upon the conflicting interpretations which her standards had received from her own Divines; and he inquired, whether it would be a crime to make an alteration, by bringing back the Liturgy to what it had been in the days of Elizabeth? One occupant of the Episcopal Bench, who since his elevation had rarely entered a pulpit, whispered to a friend, loud enough in the ill-constructed house to be heard by his neighbours, "I wonder when he will have done preaching!" "When?" continued Shaftesbury, "when I am made a Bishop, my Lord."

We cannot follow the discussions upon the Bill: our brief notice of which is introduced for the purpose of indicating its tendency with regard to the Church,—by investing it with a fictitious infallibility, by fostering towards it an admiration as fatal as it was foolish, since it tended to prevent the increase of its benefits, through the reform of its abuses. It is enough to add,

that, after dragging the country to the verge of a convulsion, the Government felt compelled to abandon the Bill.^[616]

Comprehension came anew under consideration.

Overtures respecting this point were made in the early part of the year 1673 to Richard Baxter by the Earl of Orrery. He professed that many influential persons desired such a result, and mentioned the names of the new Lord Treasurer, and Morley, Bishop of Winchester, "who vehemently professed his desires of it."^[617]

Messages and meetings, on the same subject, followed in the spring of 1675—after Morley had, during two or three sessions of Parliament, "on all occasions, in the company of lords, gentlemen, and divines, cried out of the danger of Popery, and talkt much for abatements and taking in the Nonconformists, or else" all were "like to fall into the Papists' hands." Bates brought to Baxter a message from Tillotson, to the effect that Tillotson and Stillingfleet wished for a meeting with himself, Manton, and others. The anxiety of the Presbyterians for some *accommodation*, as they called it, became notorious; and Baxter repeatedly showed now, as he had done before, the sincerity and earnestness of his solicitude in reference to the matter.^[618] Prolonged debate and voluminous correspondence; the discussion of principles, and the arrangement of details; questions, answers, strictures, rejoinders could not quench the ardour of the man who combined in one, the qualities of a theological disputant and an apostle of union—qualities which in his case served to neutralize each other. He had faith in some of his Episcopalian brethren, as disposed to meet him half way. Witchcot, Stillingfleet, Gifford, Tillotson, Cradock, Outram, he speaks of with honour; declaring he made no doubt, if the matter could be left in such hands, that differences would be "healed in a few weeks' time."^[619] But in the Bishop of Winchester he had no faith.^[620] The inconsistencies of Morley may perhaps be understood by examining into what were probably the motives of his conduct. His main policy was to protect the Establishment, on the basis of the Act of Uniformity, against Papists on the one hand, and against Dissenters on the other. He shared in the alarm which conversions to Rome and the encroachments of that Church inspired throughout England at the time; and, partly from that cause, he was induced

COMPREHENSION.
1675.

to support the Bill just described, thinking by the new oath which stereotyped the Church, to prevent an invasion by the enemy. But now the Bishop might conceive that it would be desirable to consolidate English Protestantism. Strength was being wasted by internecine warfare, at a moment when Episcopalians and Presbyterians stood before a common foe. It was the story of the Crusaders repeated. Why not gather the forces of the Church and of the sects, and concentrate them upon the great enemy of the country's liberty and peace? Such impressions, under the circumstances, were not unnatural in the mind of a man like Morley. Thus influenced, he would talk and act, as Baxter, with strong suspicions of his sincerity, reports him to have done. Yet at the time Morley might be perfectly sincere, although a reaction of prejudice, after a time, proved too much for his new-born zeal in behalf of union. The schemes of 1673 and 1675 met with the same fate as the schemes of 1667 and 1668.^[621]

Parliament prorogued in June, reassembled the 13th of October, when the Lord Keeper, in his opening speech, called renewed attention to ecclesiastical affairs. He said that His Majesty had so often recommended the consideration of religion, and so very often expressed a desire for the assistance of the Houses in his care and protection of it, that "the Defender of the Faith," had become "the advocate of it too," and had left those without excuse, who remained under any kind of doubts or fears—"Would you," asked he, "raise the due estimation and reverence of the Church of England to its just height?" "All your petitions of this kind will be grateful to the King."^[622]

The persecution of Nonconformists continued to depend very much upon the temper of neighbours and the character of magistrates. In some cases their meetings were broken up, and they were taken prisoners; but, in other cases, they were allowed to assemble in their places of worship without molestation, much to the annoyance of impotent enemies. A Government correspondent in the town of Lynn reported a private meeting of about forty of "the Presbyterian gang," discovered by the Curate and officers of the parish of St. Margaret. These Nonconformists made their escape, but "enough were taken notice of to make satisfaction of the rest," and they "were to be presented according to law."

PERSECUTION.

The Nonconformists at Yarmouth continued their meetings publicly, and in as great numbers as ever.

1675.

This sufferance, it was complained, filled with impudence people who, when the laws were put in execution, were as tame as lambs.^[623] The same informant who states this, reports that the "Bishop of Norwich had sent to know how many persons received the communion at Church, and what was the number of recusants and Nonconformists; and that the ministers and churchwardens feared if they should make the Dissenting party so great as they are, it might put some fear in His Majesty, and discourage him in attempting to reform them, they judging their number has been the only cause they have been so favourably dealt with hitherto." "Of the same opinion," he observes, "they are in other parts as well as here, so that there is likely to be an imperfect account." Not above 500, it is affirmed, would be found to be in communion with the Church of England. As to Dissenters, says this writer, "how many of them were in Church fellowship, as they term it, or break bread together, I am certain here is not one hundred men besides the women." He adds, "The greater number of people there, as elsewhere, were the profane and unstable, who were on the increase, tending to an unsettlement either in Church or State."

^[624]

It is curious to notice the changing fortunes of Dissenters—how, after a lull of peace, they were overtaken again by a storm of trouble. The copious correspondence of the Yarmouth informer traces the history in that town time after time. The bailiff was stimulated to interfere, and he issued his warrant to the constables to assist in dispersing the illegal worshippers; but it seems to have been difficult to get these officers to act in the business, since there were three of their number who "daily frequented" the reprobated place of worship. It being reported that the Anabaptists were meeting to the number of 80 or 90, the constables were sent to disperse them, and they took five of the chief into custody. The correspondent exultingly adds, "Several of the Nonconformist grandees came yesterday to our Church, and of the common sort, so many as filled our Church fuller than ever I saw it since the year 1665."^[625]

In the autumn of the same year Dissenting affairs at Yarmouth took another favourable turn. Their approved friends having recovered the helm of municipal affairs, Nonconformists were regarded as more dangerous than

ever, for their meetings were held at break of day within closed doors. For two Sundays the angry correspondent was awakened out of his sleep, the schismatics kept up such a trampling as they passed the streets under his window, that he rose out of his bed to see what could be the matter.^[626]

It is sometimes forgotten, but it is worth remark, that other meetings, besides Conventicles, were at this period proscribed. Coffee-houses were then such institutions as clubs are now; and Dryden might be seen at "Wills," in Covent Garden, surrounded by the wits, seated in "his armed chair, which in the winter had a settled and prescriptive place by the fire." Some houses of a lower character are described as exchanges "where haberdashers of political small-wares meet, and mutually abuse each other and the public with bottomless stories." Conversation ranged over all kinds of topics—scandalous, literary, political, and ecclesiastical; and questions touching Papists and Nonconformists were earnestly discussed within those quaint old parlours, over cups of coffee and chocolate, sherbet, and tea. These discussions were reported to the men in power as being often of a treasonable nature, even as Nonconformist sermons—only with much less reason—were so represented. Consequently a proclamation appeared in the month of December, 1675, recalling licenses for the sale of coffee, and ordering all coffee-houses to be shut up; "because in such houses, and by the meeting of disaffected persons in them, divers false, malicious, and scandalous reports were devised and spread abroad, to the defamation of His Majesty's Government and the disturbance of the quiet and peace of the realm." But public opinion was stronger in reference to coffee-houses than it was in reference to Conventicles—and whilst the latter remained beneath a legal ban, the former were speedily re-opened, "under a severe admonition to the keepers, that they should stop the reading of all scandalous books and papers, and hinder every scandalous report against the Government."^[627]

COFFEE-HOUSES.

Comprehension and toleration continued to be discussed from the press. We have noticed publications in the year 1667 bearing upon such subjects. Between that date and the period to which we are now brought, a controversy had been going on respecting the fundamental principles of religious liberty; notorious on the one side for the baseness of the attack, memorable on the other for the chivalry of the defence. Samuel Parker had

1668–1676.
SAMUEL PARKER.

been brought up amongst the Puritans, had distinguished himself at Oxford during the Commonwealth as one of the *gruellers* (an ascetic little company of students, whose refection, when they met together, was oatmeal and water), and was esteemed "one of the precioussest young men in the University."^[628] This man proved recreant to his principles after Charles' return, and, swinging round with immense momentum, became as violent in his Episcopalian as he could ever have been in his Presbyterian zeal. Having come up to London, and made himself known as "a great droller on the Puritans," he, in the year 1667, obtained a chaplaincy at Lambeth, and thus found himself on the high road to preferment. In 1669 he published a book, the title of which—like so many in those days—fully describes its contents, and expresses its spirit. He calls it "A discourse of ecclesiastical polity, wherein the authority of the civil magistrate over the consciences of subjects in matters of external religion is asserted, the mischief and inconveniences of toleration are represented, and all pretences pleaded on behalf of liberty of conscience are fully answered." The spirit of this book may be seen from the preface, in which the author justifies the violence of his attacks upon Nonconformists. "Let any man that is acquainted with the wisdom and sobriety of true religion," he exclaims indignantly, "tell me how 'tis possible not to be provoked to scorn and indignation against such proud, ignorant, and supercilious hypocrites. To lash these morose and churlish zealots with smart and twinging satires is so far from being a criminal passion, that 'tis a seal of meekness and charity." Thus he strikes the key-note of what he continues from page to page, disgusting every sensible reader; yet it is curious to find him maintaining unequivocally that the affairs of religion, as they must be subject to the supreme civil power, so they ought to be to none other, and "that the ecclesiastical jurisdiction of princes [is] not derived from any grant of our Saviour, but from the natural and antecedent rights of all sovereign power." His principles are thoroughly Erastian, although the writer objects to Hobbes' philosophy; and whilst his positions are often monstrous, his reasonings are contemptible. Dr. Owen wrote in reply to this assault, his *Truth and Innocence vindicated*; in which, after repelling the accusations brought forward by Parker, he exposes and confutes that author's principles.^[629] Parker, in his rejoinder, poured upon Owen the coarsest abuse, calling him "the great bellwether of disturbance and sedition, and the viper swelled with venom, which must spit or burst." He also cast upon his old associates more and more of bitter invective,

calling them "the most villanous unsufferable sort of sanctified fools, knaves, and unquiet rebels, that ever were in the world;"^[630] and having in his first book attacked Dissenters in general, in the second he assailed Independents in particular, quoting against Owen divers extracts taken from his sermons. That Divine made no reply; but another formidable combatant appeared on his side against the scurrilous accuser. As the High Church party could boast of Samuel Parker who knew how to lampoon the Puritans, so the Liberals of that day gloried in Andrew Marvell, who could quite as cleverly satirize High Churchmen. In his *Rehearsal Transposed*, he carried the day, and tormented beyond endurance the champions of despotism. Everybody who could read, from the King to the artizan, perused with glee the pages of the book, so that the discomfiture of the Archbishop's Chaplain excited derision through a much wider circle than was ever reached by his foolish writings. Parker, however, was not a man easily to be silenced, nor was the cause he undertook easily to be crushed; and therefore he and his friends returned to the onslaught, and soon the printers were busy with a number of pamphlets, presenting a catalogue of most ridiculous titles. Marvell rejoined; and it is confessed by Parker that, at the end of the literary encounter, the odds and victory were against him, and lay on Marvell's side: the style of warfare adopted by the latter can scarcely be approved, but it was in the fashion of the times, and had been provoked by an unprincipled assailant, who, it may be hoped—as it is intimated by one sometimes resembling Parker in virulence—was all the better for the castigation he received.^[631]

This remarkable controversy lasted from 1669 to 1673; and was in its first stage when the new Conventicle Act appeared; and reached its height whilst the debates on the Indulgence, the Relief Bill, and the Test Act agitated Parliament and the country. High Churchmen read with sympathy the pages of the assailant of Nonconformists, and they, on the other hand, suffering from local persecution, or rejoicing in Royal indulgence, pondered Owen's arguments, or laughed at Marvell's wit.

1668–76.
BISHOP CROFT.

In the year 1675, Croft, Bishop of Hereford, despatched anonymously *The Naked Truth*, in which he maintained the sufficiency of the Apostles' Creed as a standard of faith, and protested against the refinements of Alexandrian and scholastic philosophy. At the same time he declined

submission to the authority of the Fathers, or of Councils, although paying respect to them as teachers and guides; and deprecated the importance attached to ceremonies, pleading for such liberty as St. Paul, "that great grandfather of the Church, allowed his children." He would dispense with using the surplice, bowing to the altar, and kneeling at the Lord's Supper, and also with the cross in baptism, and the ring in marriage. He advocated a revision of the Prayer Book, contended that all ministers are of one order, and believed that confirmation might be administered by priests as well as by prelates. The tract concludes with a charitable admonition to all Nonconformists, in which the author, after pleading his own desire for certain changes, yet confessing he saw no hope of being successful, most inconsistently proceeds to exhort his Dissenting readers, on grounds of Christian humility, and the mischiefs of separation, immediately to submit to the authority of the Church.^[632]

It has often been the fate of moderate men to suffer from condemnation by zealots in their own Church. Even Popes of Rome, when taking the side of charity and candour, have been dishonoured by advocates of the Papacy; and Anastasius II., for his mild behaviour towards the Eastern Church, has been represented by Cardinal Baronius as the victim of a Divine judgment. Dante, too, has assigned him to one of the circles of the damned. In a similar spirit contemporaries assailed the author of *Naked Truth*. "Not only the Churches, but the coffee-houses rung against it; they itinerated, like excise spies, from one house to another, and some of the morning and evening chaplains burnt their lips with perpetual discoursing it out of reputation, and loading the author, whoever he were, with all contempt, malice, and obloquy. Nor could this suffice them, but a lasting pillar of infamy must be erected to eternize his crime and his punishment. There must be an answer to him in print, and that not according to the ordinary rules of civility, or in the sober way of arguing controversy, but with the utmost extremity of jeer, disdain, and indignation."^[633] Gunning, Bishop of Ely, attacked it in a sermon which he preached before the King; and to him has been ascribed a pamphlet entitled *The Author of Naked Truth Stript Naked*. It also met with animadversions from Dr. Turner, Head of St. John's, Cambridge. Still there were those of another spirit who appreciated the calm reasoning and the amiable temper of the Bishop; and Pearse, who is

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described by Wood as "a certain lukewarm Conformist," because he could not join in reviling his Nonconformist brethren, spoke of the book at a later date, in his *Third Plea for the Nonconformists*, as a Divine manifestation of a primitive Christian spirit of love. And he proceeds, "certainly, as that pious endeavour hath increased his (the author's) comforts, so he hath not lost all his labour; for since that, we have had more overtures of peace than we heard of in many years before of discord and troubles, from the learned in the Church of England." Marvell, in his answer to the animadversions, styled the writer of *Naked Truth* "judicious, learned, conscientious, a sincere Protestant, and a true son, if not a father of the Church of England." Baxter also alludes to it as an excellent book, "written for the Nonconformists," in favour of "abatements, and forbearance, and concord."

[\[634\]](#)

CHAPTER XXIV.

The state of the Royal family, as it respects religion, at the period which we have now reached, constituted the principal foundation in England, of Roman Catholic hope, and the chief source of Protestant fear. The Queen, who reached this country in 1662, retained the faith of her childhood, and, very naturally, would have been glad to see it restored in the land of her adoption. The King, too careless and profligate to be affected by any really pious considerations, probably preferred the Romish to any other kind of worship, and of such a preference people suspected him at the moment he was declaring the utmost zeal for Protestantism.^[635] Their suspicions were too well founded. Certainly, as early as the year 1669, he entertained the idea of uniting himself to the Church of Rome; and in the following year he signed a secret treaty with the King of France, in which he pledged himself to avow his conversion, whenever it should appear to him to be most convenient.^[636] The existence and provisions of that compact, in spite of the utmost endeavours to conceal it, oozed out at the time;^[637] but now that history has revealed it entirely, with many of its attendant private circumstances, we discover the extreme shamefulness of the whole affair. For, by the terms of the treaty, the King of England became a pensioner of France, and promised to make war upon Holland, with which State, France had entered into friendship and alliance; the negotiator of this scandalous arrangement being no other than Charles' sister, Henrietta, Duchess of Orleans, whose reputation is deeply stained, through her being involved in the licentious intrigues of Louis XIV's court. After having visited her brother to accomplish this dishonourable mission, she left behind, as an agent for preserving French influence over his volatile mind, one of the ladies of her train, named Querouaille, who became mistress to the licentious monarch, and is so notorious in the disgraceful history of his reign as the Duchess of Portsmouth.^[638]

ROMAN
CATHOLICISM.

The King's brother having, by means of Anglo-Catholic instructors, been imbued with the ideas of

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ROMAN

Church authority, of apostolical traditions, and of the Real Presence, had, after this effective preparation, taken a further and very natural step, and had been reconciled to Rome; notwithstanding the fact that up to Easter, 1671, he continued outwardly to commune with the Established Church in this country.^[639] His first Duchess, Ann Hyde, daughter of Lord Clarendon, had practised secret confession to Dr. Morley from her youth, and, after her marriage, in order to retain or to recover the fickle attachment of her husband, she had entered into close communication with Popish priests, and had expressed a disposition to renounce Protestantism.^[640] She, it is said, preferred an unmarried clergy, and excused the Roman Catholic superstitions; and it would appear that, for some months before her death, she ceased to partake of the Lord's Supper as administered by the Anglican clergy. Members of her family sought to re-establish her Protestant belief, but in vain, and in her last illness she received the Eucharist from the hands of a Franciscan friar.^[641] James' second Duchess, Mary of Modena, was by descent and education a decided Papist; and his marriage with that lady being extremely unpopular, provoked the opposition of the English Parliament. Thus, at the time of which we speak, the three principal members of the Royal house, next to the King, were Romanists, and he himself was known to sympathize with them in their religious sentiments. Added to these circumstances was the fact that several other persons in high estate were sincerely attached to the same faith; a love to it also lingered amongst the lower ranks in some parts of England; and, as a consequence, the Roman Catholics were "bold and busy" in their endeavours to make converts. What they did they had to do by stealth; persecution met them everywhere, yet, with a heroism which we cannot but respect, they steadily persevered. One advocate and missionary in particular, Abraham Woodhead, who early commenced his work in England, is mentioned with honour even by the Oxford historian, for he remarks, with regard to a later period, that the "calm, temperate, and rational discussion of some of the most weighty and momentous controversies under debate between the Protestants and Romanists rendered him an author much famed, and very considerable in the esteem of both."^[642] Hugh Paulin Cressey, one of the Queen's chaplains, was also active in the same cause, and is praised for the candour, plainness, and decency, with which he managed controversy;^[643] and John Gother, another zealous

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polemic on the side of Rome, published, in support of the doctrines of his Church, seventeen controversial, and twelve spiritual tracts.^[644] That Church has ever acted most systematically, carrying out a ramified method of operation; and, at the time of which I am now speaking, the priests in England, whether secular or regular, were all under effectual guidance and control. The former received their direction from one whom they called "the head of the clergy," who possessed a kind of Episcopal power, both he and they being subordinated to the Papal nuncio in France, and the internuncio in Flanders, to whom were entrusted the oversight of the missions to England and Ireland. Regular priests, of the order of St. Benedict, of St. Augustine, of St. Dominic, of St. Francis, and of the Society of Jesus, were subject to their superiors respectively, and, in whatever they did, proceeded obsequiously in obedience to command; not, however, without mutual jealousy and strife,—after the manner of the Middle Ages, when seculars and regulars, the two main divisions of the army, kept up a constant rivalry in the spiritual camp.^[645] Even in a lukewarm Protestant country, the activity and increase of Romanism could not be regarded without apprehension. But the Protestants of England were not then lukewarm. The antipathy cherished by an earlier generation had descended to the present. Nonconformists, after the Restoration, continued to cherish the old Puritan horror of the Mother of Harlots; they read *Foxe's Book of Martyrs*; they kept alive the traditions of their ancestors under Queen Mary; and Gunpowder Treason had not yet ceased to awaken in their minds the most terrible recollections. Those persons in the Establishment who cherished Puritan sympathies—and they were not few—thought of Rome in the same way as the Dissenters did; and other persons, on different grounds, felt the greatest alarm at the portents of the times. Even strong Anglican preferences in some cases were connected with an intense dislike of Romanism; in bosoms where no better feeling existed, there arose a fear of its return, as of an enemy which would rob the clergy of their possessions. The prevailing alarm can be easily explained, for the revival of Popery ever appeared to Protestants in those days as fraught with disasters; and in the present instance, to aggravate apprehension, political considerations were suggested respecting the designs of France, then the ally of Rome in the worst phases of its despotism.

The feeling against Popery manifested itself in divers ways. Books were published exposing the evils of the system, including translations of *Blaise Pascal's Provincial Letters*, and, I am sorry to say, that amongst works original, solid, judicious, and convincing, written to defend the principles of the Reformation, were some of a very unscrupulous character, full of the most wretched scurrility and invective.^[646] As early as 1667 suggestions were made to His Majesty's Privy Council to issue processes in the Exchequer against Popish recusants, to suppress all masses throughout the country, except those at the chapels of the Queen, and of the foreign ambassadors, to banish all native priests, and to prevent the education of English children in Catholic countries. All this was proposed to be done by means of a Royal declaration, which should "leave some little door of hope to Dissenting Protestants, of a further degree of ease from Parliament, which the King would be glad should be found out."^[647]

1662–1673.
PROTESTANT
OPPOSITION.

In the autumn of 1667, there ran a report that the Presbyterian, Mr. Prynne, in his zeal against Popery, had written to Bath respecting the Papists resident there; but one of Evelyn's correspondents, who sympathized with these sufferers, stated that the suspected were only few—"not above a dozen simple women, and three or four inconsiderable men"—and then strove to turn the tables upon the accuser, by speaking of "dangerous fanatics," who "overwhelm the country," defy the Government, and reproach the King, winding up his communication in the following strain:—"That all the late firebrands should be set on horseback, especially those that horsed themselves to join with the Dutch and French; and that all the late sufferers should complete their martyrdom. Some men were born in a tempest, can see mountains through millstones, take alarm at the creeping of a snail, and throw open the gates to let in the Tartars, and so their end must be like their beginning. But Mr. P[rynne] cannot hear on that ear, and has such accurate skill in the laws, that he can find high treason in a bull-rush, and innocence in a scorpion."^[648]

1662–1673.

Royal proclamations touching Jesuits and Romanists, extorted from the King by the representations of his Ministers, of the Bishops, and of Parliament, reflect correctly the opinions of the nation and of the Church,^[649] but the utter insincerity of them, as proceeding from Charles, is

sufficiently manifest. It was felt at the time by Romanists themselves that he who sat upon the throne remained, after all, their fast friend; and, to arguments for the abolition of State penalties against recusants, it was cleverly replied that they formed "a bow strung and bended, and an arrow put into it, but none could shoot but His Majesty."^[650]

The storm of public indignation manifestly increased with the advance of time, and when the Duke of Buckingham traversed Yorkshire, raising recruits for his regiments, so jealous of Popery were the people there, that scarcely a man would enlist until he had gone with the recruiting officer and publicly taken the Holy Sacrament, as an evidence of his Protestantism. In the autumn, as the period returned for commemorating the frustration of Gunpowder Plot, the Pope with great solemnity was burnt in several places within the City of London, a barbarism which the Roman Catholic who reports the circumstance thought no nation but the Hollanders could have been guilty of, yet members of Parliament assisted on the occasion, but whether it proceeded from wine or from zeal the informant could not say. Bonfires blazed on the fifth of November all the way from Charing Cross to Whitechapel with a fury unknown for thirty years.^[651]

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OPPOSITION.

As the next year opened, Charles consulted with the Bishops touching the subject of this immense excitement, assuring them of his readiness to do all in his power for the suppression of Popery, for which purpose he thought it fit to have the assistance and advice of the Right Reverend Fathers, and he wished them first to debate upon the subject amongst themselves, and then to inform him what best could be done for maintaining the interests of the Church of England, as by law established.^[652]

Towards the close of the year 1675, the Protestant agitation received a new impulse from a debate in Parliament relative to an assault by a priest, named St. Germain, upon one Monsieur Luzancy, who, after being a French Jesuit, had become a minister of the Church of England. This zealous convert, preaching at the Savoy, had bitterly attacked the errors which he had repudiated, and, having printed his controversial sermon, he stated that he was visited by St. Germain, who, with three ruffians, forced him to sign a recantation of his faith. This story was told to Sir John Reresby, who

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immediately related it to the House of Commons.^[653] Luzancy, examined by a Committee, added further particulars, inflaming the House to the last degree, by the statement that two French Protestant merchants, residing in the Metropolis, had received from their Popish neighbours a threat, that soon the streets of the City would flow with torrents of Protestant blood. Some immediate results of the excitement appeared in the House of Lords, where a Bill was introduced for encouraging monks and friars, in foreign parts, to forsake their convents; and in an order from the Commons to the Lord Chief Justice to issue his warrant for the apprehension of all Catholic priests.^[654]

In the following summer, Popish books were seized at Stationers' Hall, by order of the Privy Council; and in the autumn, authority was given to watch the doors of the chapels allowed for the use of the Queen, and of the foreign ambassadors, and to observe such of His Majesty's subjects, not being in the service of those illustrious personages, as attended the service which was there performed. Those who watched were not to stop or question any as they went in, but they were to apprehend them instantly as they came out, and if that could not be accomplished, the names of such delinquents were to be ascertained and returned.^[655] It may here be mentioned that, at the time when these measures were employed, Protestants formed the wildest estimates of the numbers of Papists. Some one reported that as many as 20,000 or 30,000 of them were living in the parish of St. Martin's-in-the-Fields, yet in a survey, made by order of the Archbishop of Canterbury, in the year 1676, it is affirmed that, in this much-suspected parish, only 600 Papists could be found, and that not more than 11,870 were discovered in the whole province.^[656]

PROTESTANT
OPPOSITION.

Parliament, which in 1676 had been sitting fifteen years, at that time laboured under a very bad character. It was commonly said, that one-third of the Commons were dependent upon Government and the Court; that large bribes were paid for votes and speeches; and that the Lord Treasurer declared members came about him like so many jackdaws for cheese at the end of every session. Complaints were rife of the depression of trade, and of the embarrassment of the country, in consequence of the prolonged existence of the same House of Commons, whilst especial stress was laid

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upon the singular unreasonableness of a number of men being allowed for such a length of time to engross the representation of the people, and upon the advantages which would accrue, both to the Crown and the nation, from the calling of another Parliament. Some of these arguments were eloquently exhibited by the Earl of Shaftesbury, who had ends of his own to serve by a dissolution, since he trusted by means of it to be carried back to power; and in addition to political reasonings this clever politician held out to all sorts of religionists, hopes the most inconsistent—and, taken altogether, perfectly absurd—as bribes to secure their support of his policy in the approaching struggle. Careful to throw out a bait to the Church of England, by assuring her that a new Parliament would preserve her honours, her dignities, and her revenues, would make her a great protectrix, and asylum of Protestants throughout Europe, and would increase the maintenance of the Ministry in Corporations and large towns;—Shaftesbury also, strange to say, encouraged the Roman Catholics to expect deliverance from the pressure of penal laws under which they groaned, if they would also be contented, for the sake of their religion, to forego access to Court, promotion to office, and employment in arms.^[657] Certainly the existing Parliament had shown an unconquerable hatred to Popery, and perhaps Romanists had more to fear than to hope from its continuance; and for this reason, amongst others, the Duke of York advocated a dissolution, and appeared, to that extent, amongst the supporters of the Earl. The Earl at the same time threw out his nets so very wide as to aim at catching Dissenters, telling them that whereas they had suffered so much of late from persecuting laws, a new House of Commons would procure them "ease, liberty, and protection." He had, ever since he parted with the Great Seal in 1673, professed the utmost love for Protestantism, and had been proclaimed by its zealots as the saviour of the faith; it being profanely said that wherever the Gospel should be preached that which he had done should be told as a memorial of him.^[658] And now, influenced by the incredibly high religious reputation of this Protean statesman, also, in all probability moved by his flatterers, certainly bound to him by party ties, the virtuous Lord Wharton took his place amongst the helpers of "the chief engineer," as the Duke of York styled the Ex-Chancellor. Upon a debate respecting an address to His Majesty to dissolve Parliament, His Royal Highness and Lord Wharton joined with the Duke of Buckingham and the Earl of Shaftesbury in supporting it, the non-contents carrying their point only by a majority of two.^[659]

The Parliament was prorogued on the 22nd of November, for fifteen months; and as soon as it met again, on the 15th of February, 1677, the party in opposition returned to the charge; but now, deserted by the Duke of York, the party was led by the Duke of Buckingham, who delivered a famous speech to prove that Parliament had been virtually dissolved by so long a prorogation. What the Duke said was construed into an insult, for which one of the peers moved that he should be called to the bar, when the motion was resented by the Earl of Salisbury, the Earl of Shaftesbury, and Lord Wharton, all three supporting the Duke of Buckingham. The Lords, who thus led the opposition, were told that what they had done was ill-advised; and they were ordered to beg pardon of the House, and of His Majesty. Upon which, refusing to comply, they were committed to the Tower. Buckingham slipped out of the House, but surrendered himself the next day. [\[660\]](#)

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The committal produced a great excitement—in which religious people, especially Nonconformists, largely shared, for they looked up to some of these noblemen as particular friends; and a fugitive sheet written at the time, without date or names, has preserved certain memoranda concerning the prisoners, from which it appears that several Quakers were at that time in communication with the Duke of Buckingham. [\[661\]](#)

In the month of June, Buckingham, Wharton, and Salisbury—wearied out with their confinement, and disappointed of their discharge at the end of the Session, by the adjournment of the Houses, recanted what they had spoken,—professed repentance of their error, and sought pardon of His Majesty. They were liberated accordingly; but the Earl of Shaftesbury, because he refused to make any submission, and applied to the King's Bench for a writ of *habeas corpus*, was doomed to a longer captivity; yet at last he obtained his liberty in the month of February, 1678, only, however, by kneeling down at the bar of the House, and humbly asking their Lordships' pardon.

The power of the party, whose leaders had thus for a while been banished from the House, was by no means crushed. Indeed it was but little diminished, and, therefore, Danby, the Lord Treasurer, at the head of the Ministry, wishing to outbid his rival Shaftesbury in a contest for popularity; and also

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following his own chosen policy, which had throughout been anti-Papal, now introduced—and that with the concurrence of the Bishops—two measures as additional bulwarks against Papal aggression. The first contemplated the possibility of a Catholic prince occupying the throne: it provided, in case of his refusal of a searching test in the form of a denial of the doctrine of transubstantiation, that the Bishops, upon a vacancy occurring in their number, should name three persons, one of whom the Sovereign was at liberty to select for the empty see; but if he did not make the selection within thirty days, the person first named should take possession—that the two Archbishops should present to all livings in the Royal gift—and that the children of the Monarch, from the age of seven to the age of fourteen, should be under the guardianship of the two Archbishops, with the Bishops of London, Durham, and Winchester. The second measure—under title of an Act for the more effectual conviction and prosecution of Popish recusants,—provided that such Popish recusants as might register themselves should pay a yearly fine of the twentieth part of their incomes to a fund for supporting poor converts to Protestantism, and should, on that condition, be exempt from all other penalties, except ineligibility to hold office, civil or military, or to perform the office of guardians or executors. Lay perverters of Protestants should have the option of abjuring the realm; clergymen who had taken Romish orders might, at His Majesty's pleasure, be imprisoned for life, instead of being made to suffer the higher penalty for treason—and the children of deceased Catholics should be brought up in the Reformed Church.^[662] But these measures adopted by the Lords, when submitted to the Lower House, so far from satisfying the members, aroused their most determined opposition. With regard to the first measure they affirmed it to be a Bill for Popery, not a Bill *against* it. They said its face was covered with spots, and, therefore, it wore a vizard. "It is an ill thing," remarked Andrew Marvell, "and let us be rid of it as soon as we can." He compared it to a private Bill brought into the House, for the ballast-shore at Yarrow Sleake, regarding which some one said, "the shore will narrow the river;" another, "it will widen it;" a third observing, people should not play tricks with navigation. Nor ought they to do so with religion, he added. For, as it was clear, the Bill for the ballast-shore would benefit the Dean and Chapter of Durham, so whether this Bill would or would not prevent Popery, he was sure it would increase the power of the Bishops.^[663] The second measure was pronounced to be

virtually a toleration of Popery, forasmuch as Papists were to have liberty granted them if they would only pay for it. The object was monstrous. The scheme could not be mended. It would remain "an unsavoury thing, stuck with a primrose." They might as well try to "make a good fan out of a pig's tail." "Is there a man in this house," it was asked, "that dares to open his mouth in support of such a measure?" So signal was the defeat of the attempt that we find in the Journals these words, "Upon the reading of the said Bill, and opening the substance thereof to the House, it appeared to be much different from the title, and thereupon the House, *nemine contradicente*, rejected the same."^[664]

The Commons the same day read a third time a Bill framed to prevent the growth of Popery, enacting that a refusal to repudiate transubstantiation should be deemed a sufficient proof of recusancy, and should entail all its consequences. This contrivance, said its advocates, is "firm, strong, and good," whilst that of the Lords is "slight, and good for nothing,"—it is like David coming out against Goliath;^[665] but the Lords would have nothing to do with the David of the Commons. The Lower House urged attention to the Bill, but in vain; the Upper House did not take the slightest notice of what had been sent to them, and the Bill for suppressing the growth of Popery fell to the ground. It is worth observing that, at the same period, a Bill which passed the House of Lords, described on one day as a Bill for "obliging persons to baptize their children"—on another as "an Act concerning baptism and catechizing"^[666]—met with a like fate, and fell into the vast limbo of abortive Parliamentary schemes.

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But the two Houses during this Session united in three important Acts, which were passed just before the Easter adjournment.

The first was for the better observance of the Lord's Day; and the reader, who perhaps associates all rigid legislation of that kind with Puritan zealots, will be surprised to find that the Parliament of the Restoration, embodying in many respects the reactionary spirit of the times did, in this particular, actually follow the precedents set by Commonwealth statesmen. The new Statute confirmed existing Acts for requiring attendance at Church, and ordained "that all, and every person and persons whatsoever, should, on

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every Lord's Day, apply themselves to the observation of the same, by exercising themselves thereon in the duties of piety and true religion, publicly and privately." For exercising their worldly callings everybody above the age of fourteen was to forfeit five shillings; goods cried in the streets or publicly exposed for sale were to be forfeited. No one could travel without special warrant, under a penalty of twenty shillings. The employment of a boat or wherry incurred a fine of five shillings, and those who were not able to pay these fines had to sit in the stocks. No Hundred need answer for a robbery committed on a person who dared to travel on the Lord's Day without license; no writs were then to be served except for treason; but both the dressing of meat in private houses, and the sale of it at inns and cook-shops, were specially excepted from the operation of the law.

It is true the fines were less in amount than they had been under the Commonwealth, and the exceptions with regard to inns and cook-shops, and the dressing of food on the Lord's Day, showed some little relaxation;—but the prohibition of travelling, as well as of trading, proves that zeal for the strict observance of Sunday had been inherited from the Long Parliament by its successor under Charles II.

Acts for uniting parishes, for rebuilding churches, and for the better maintenance of Metropolitan Incumbents, had been passed in 1670; and now a general Act received the Royal assent for the improvement of small livings. Whereas Bishops, Deans, and Chapters, and other ecclesiastical authorities had granted, in obedience to His Majesty, soon after the Restoration, or might yet grant out of their revenues, aid towards the augmentation of poor clerical incomes, this Act confirmed any such grants, and bestowed on Vicars and Curates the means of securing the augmentations thereby accruing to them. ^[667]

The last of the three enactments alluded to consisted in the repeal of the law *de Hæretico Comburendo*, which had kindled so many fires in the Marian age. That form of punishment was regarded by Protestants with a natural and salutary horror; the statutory sanction of it was now swept away, not only with a burst of indignation against it, as a hateful relic of Popish intolerance, but with a prudent fear lest, if the law remained unaltered, it might some day, under a Popish Sovereign—a contingency which was ever looming before the eyes of the nation—be revived for a rekindling of the

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Smithfield fires. But the repeal did not proceed so far as is generally supposed; for the Lords made some amendments in the Bill, and added a proviso, perpetuating the jurisdiction of the Ecclesiastical Courts, in cases of atheism, blasphemy, heresy, or schism; and sanctioning excommunication and other ecclesiastical penalties, *extending even to death*, in such sort as they might have done before the making of this new Act. In this form it was agreed to by the Commons, and received the Royal assent.

The Houses were adjourned in the month of May, and again in the month of July; nor did they meet any more for business until the middle of the month of January, 1678. These adjournments produced in the Lower House, as might be expected, long and exciting debates. The state of the nation, the removal of evil counsellors, and an address of advice to His Majesty that he would declare war with France, also occupied considerable attention; but if, under these circumstances, there occurred some little ebb in the tide of opposition to Popery, the flow of the waters soon followed with redoubled force. For, in the month of April, we find the Commons engaged in the consideration of a report,—which it must have taken much time and labour to prepare—a report containing the names of Popish priests, of those by whom they were kept, of the chapels and other places where mass was said, in the County of Monmouth:—also of the names of Justices of the Peace in Wales and Northumberland who were Papists, or suspected to be so,—and, lastly, of proceedings which had been carried on in the Court of Exchequer against Popish recusants. The document whilst, no doubt, reflecting the fears of Protestants respecting Papists, also records facts which show that, in spite of persecuting laws, the Roman Catholic religion retained a strong hold upon many people in certain parts of the country. For one of the witnesses, whose evidence is reported, swore—that she had heard a priest say mass forty times, had received the sacrament from him, had seen him administer it to a hundred people; and that, at a service which she had attended, "the crowd was so great, that the loft was forced to be propped, lest it should fall down under the weight."^[668] Immediately afterwards the Commons expressed to the Lords, in confidence, a strong conviction that the growth of Popery arose from a laxity in the administration of laws against it.

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After a prorogation, on the 13th of May, the opening of the sixteenth session of Parliament followed, on the 23rd of the same month, when Lord

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Chancellor Finch sought to calm public apprehension by observing, that it was a scandal upon the Protestant religion, when men so far distrusted the truth and power of it as to be alarmed about its safety, after so many laws had been enacted for its protection, and after all the miraculous deliverances which it had experienced. [\[669\]](#)

The next month saw the Commons again plunged into the old controversy, whilst they discussed a Bill for the exclusion of Papists from both Houses, unless they would take the Oaths of Allegiance and of Supremacy, and accept the test against transubstantiation—in other words except they would turn Protestants. [\[670\]](#) The usual round of arguments reappeared, and once more revolved through their orbits; but this Bill, like some of its predecessors, fell through, in consequence of further prorogation, after a grant of supplies, upon the 8th of July.

CHAPTER XXV.

Dr. Gilbert Sheldon, Archbishop of Canterbury, died on the 9th of November, 1677. Illustrations have been afforded of his influence and activity at the time of the Restoration, of his conduct during the plague year, of the course which he adopted in relation to the great ecclesiastical questions of his day, and of the general spirit of his clerical policy;—but some further notice is requisite of the character of a man, who took so conspicuous a part in the re-establishment of the Episcopal Church of England.

Sheldon, according to Burnet, was esteemed a learned man before the Wars, but he was now engaged so deep in politics, that scarce any prints of what he had been remained. He was a very dexterous man in business, had a great quickness of apprehension, and a very true judgment. He was a generous and charitable man. He had a great pleasantness of conversation, perhaps too great. He had an art, which was peculiar to him, of treating all who came to him in a most obliging manner, but few depended much on his professions of friendship. He seemed not to have a deep sense of religion, if any at all; and spoke of it most commonly, as of an engine of Government and a matter of policy. By this means, the King came to look on him as a wise and honest clergyman.^[671] An admission to the same effect is made unconsciously by Samuel Parker, the Archbishop's chaplain and friend. For, after affirming that Sheldon was a man of undoubted piety, he observes, "that though he was very assiduous at prayers, yet he did not set so high a value upon them as others did, nor regarded so much worship, as the use of worship, placing the chief point of religion in the practice of a good life." The ideas of a man's character conveyed by language of this sort must be interpreted by our knowledge of the writer; and, knowing what we do of Parker, we are justified in regarding what he says as a confirmation of Burnet's opinion. To use an expression which occurs in a letter from Henry VII. on the transition of Wareham from London to Canterbury—Sheldon showed himself to be largely endued with "cunning and worldly wisdom."^[672] Genial and social in his habits he maintained a splendid hospitality,^[673]

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and in all his intercourse it was apparent that he had seen much of mankind, thoroughly understood human nature, and knew exactly how to make himself agreeable to those whom he wished to please. Addicted to a free-and-easy manner of living, inconsistent with the character of a clergyman, he is reported as having on particular occasions sanctioned some very vulgar buffoonery at the expense of the Puritans.^[674] Keen, clever, polite, and politic, knowing well how to compass his ends, he manifested at the same time his utter destitution of those moral impulses, noble motives, and spiritual aims, which, above all, ought to guide men who profess to be the ministers of Jesus Christ. Sheldon seems to have been fitted to grace a drawing-room, to sustain the position of a country gentleman, and to take a part in State affairs, but he was plainly unfit to preside over the Church of England. His half-recumbent figure, as represented on his monument in the parish church of Croydon—before the fire—his round face resting on his left hand, his countenance not of severe expression, but rather genial, easy, and good-humoured, and his gracefully-flowing robes, are all in harmony with the idea of a man of luxurious habits, and of pleasant manners: but the mitre on his head is out of place, and he has no business with the crozier at his side.^[675] His course of life as a steady, persistent, heartless persecutor of Nonconformists eclipses his courtesies and charities. He was not a persecutor of the same school with Laud of Canterbury, or Cyril of Alexandria. No strong convictions of doctrine, no zeal for discipline, influenced him in his proceedings against Dissenters, and he must be reckoned as having belonged to that most odious class of persecutors "who persecute without the excuse of religious bigotry."^[676] He hated Nonconformists mainly on three grounds. As *a man of the world*, he was averse to their profession of spiritual religion, being totally unable to understand it, looking at it, as he did, through the medium of prejudices which caricatured its noblest qualities; and he was also exasperated at what he deemed a pharisaical assumption on the part of Christians who advocate what are called "evangelical" views, and who insist upon what they style purity of communion. As *a Royalist*, Sheldon identified his opponents with the cause of Republicanism, and believed, or professed to believe, that they were all bent upon doing to Charles II. what some of them, or their predecessors, had done to Charles I. And, lastly, as *an Episcopalian*, who had himself suffered from Presbyterians and Independents, he determined to pay back in full what he owed—both capital and interest.

It is essential to our forming a correct estimate of the state of the Church after the Restoration, that we should examine what we can find respecting the character of others who occupied the Episcopal Bench, inasmuch as they must have been largely responsible for the administration of ecclesiastical affairs, and it is convenient for us here to pause for that purpose. To whatever party an author may belong, he finds it easy to idealize these dignitaries, and to give general impressions of them, favourable or unfavourable, according as his prejudices, working upon slight materials, may influence his imagination. But I decidedly prefer in what I shall say of the Caroline prelates, to confine myself to such reliable information as I can discover, rather than to indulge in generalities; and I lament, that after the best endeavours to acquaint myself with the subject, the knowledge I possess with regard to some of these persons is so scanty, that my accounts of them will afford the historical student but little satisfaction.

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The selection of a principle of arrangement in this portion of our history is not without difficulties. Perhaps, on the whole, instead of adopting an alphabetical list of names, or a chronological series of characters, or a geographical distribution of sees, it will be better to take the occupants of the Bench according to their importance, and to select first the most prominent.^[677]

Dr. Seth Ward had been President of Trinity College, Oxford, and at the Restoration had succeeded Reynolds at St. Laurence Jewry, upon the promotion of the latter Divine to a Bishopric. He was nominated to the see of Exeter in 1662, as, Pope, his biographer says, upon the recommendation of his friend Monk, Duke of Albemarle; but a different story is told by Aubrey. After Gauden, the Bishop of Exeter, had been translated to Worcester in 1661, Ward, who was then Dean, "was very well known to the gentry, and his learning, prudence, and comity, had won them all to be his friends. The news of the death of the Bishop being brought to them, who were all very merry and rejoicing with good entertainment, with great alacrity, the gentlemen cried all, '*We will have Mr. Dean to be our Bishop.*' This was at that critical time when the House of Commons were the King's darlings. The Dean told them that, for his part, he had no interest or acquaintance at Court, but intimated to them how much the King esteemed

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the members of Parliament (and a great many Parliament men were then there), and that His Majesty would deny them nothing. *'If 'tis so, gentlemen,'* said the Dean, *'that you will needs have me to be your Bishop, if some of you make your address to His Majesty, 'twill be done.'* With that they drank the other glass, a health to the King, and another to their wished-for Bishop; had their horses presently made ready, put foot in stirrup, and away they rode merrily to London; went to the King, and he immediately granted them their request. This," adds Aubrey, "is the first time that ever a Bishop was made by the House of Commons."^[678]

Ward speedily became renowned for his diligent discharge of Episcopal duties. "He kept his constant triennial visitations," says Pope, "in the first whereof he confirmed many thousands of all ages and different sexes; he also settled the Ecclesiastical Courts, and, without any noise or clamour, reduced that *active, subtle, and then factious people*, to great conformity, not without the approbation even of the adversaries themselves." During his residence at Exeter, he gained the love of all the gentry, and had particularly the help and countenance of the Duke of Albemarle, who, in all things, showed himself most ready to assist him in the exercise of his jurisdiction.^[679] He zealously advocated the Conventicle Act, and was very severe in his treatment of Nonconformists, not, it is curiously pleaded, out of enmity to the Dissenters' persons, as they unjustly suggested, but of love to the repose and welfare of the Government. We are further informed by this admiring friend, "that Ward was very much in favour with the King, and the Duke of York, before the latter declared himself of the Romish persuasion, whom he treated magnificently at Salisbury; and also with the Archbishop of Canterbury, who used to entertain him with the greatest kindness and familiarity imaginable; in his common discourse to him, he used to call him Old Sarum: and I have heard the Archbishop speak of him more than once as the person whom he wished might succeed him." The temper of the prelate in relation to the Church of England, and the kind of policy which he adopted for the promotion of its interests, may be inferred from the good opinion of him entertained by Sheldon, just quoted by Pope, with much satisfaction.^[680]

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There is a want of material out of which to draw flesh and blood portraits of some of the Bishops:

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many are names and nothing more—others are but stiff and formal images without life—we can judge neither of their appearance, nor of their character, but the gossiping memoir of Ward by Pope affords us a pictorial idea of his mode of living, of his physical activity, of his fondness for horse exercise, and of his self-exposure to weather,—going out in wind, rain, and snow, until forced to seek shelter on the lee side of the nearest hayrick. He was something of a "muscular Christian,"—a bachelor also, but genial in his ways, exceedingly hospitable, and scrupulously punctilious in the discharge of his devotional duties.

This remarkable man distinguished himself as an astronomer, and was reputed to be the ablest orator of his time; after these proofs of his intellectual power, in addition to the evidences of his administrative ability, how affecting it is to turn to the record of his imbecility in his last days. "He did not," we are told, "know his house, or his servants; in a word, he knew nothing."[\[681\]](#)

Dr. George Morley may be noticed next. Burnet says that he "was, in many respects, a very eminent man, very zealous against Popery," and also very zealous against Dissent; considerably learned, with great vivacity of thought; soon provoked, and with little mastery over his own temper.[\[682\]](#) His zeal against the doctrines of Popery is apparent in his writings, and not less so, his zeal against Dissent; in connection with his opposition to both, he avows the doctrine of passive obedience, declaring in terms the most unequivocal, "the best and safest way for Prince, State, and people, is to profess, protect, cherish, and allow of that religion, and that only, which allows of no rising up against, or resisting sovereign power—no, not in its own defence, nor upon any other account whatsoever."[\[683\]](#) Indeed, he maintains, again and again, the principle of intolerance in the government of the Church, and the principle of despotism in the government of the State; holding the King to be sole sovereign, whilst the Parliament is only a concurring power in making laws, and the Bishops the only legitimate ecclesiastical rulers. The maintenance of these doctrines by a man of "hot spirit" and "ready tongue"—infirmities which Baxter charges upon him, not without sufficient reason, and not without Burnet's corroboration—augured little for the comfort or the peace of the Nonconformists in the diocese of Winchester, over which he presided from 1662 to 1684. He had, it is true,

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provoked Baxter,^[684] and signs of the provocation occasionally appear in the pages of the *Reliquiæ*; in fact, the Bishop's treatment of the Presbyter was most violent; but the latter,—after quoting the report that Morley, Ward, and Dolben, through fear of Popery, had expressed a desire to abate the severity of the laws against Dissenters, and after stating, that though there was long talk there was nothing done,—expresses a hope that they were not so bad as their censurers supposed. Yet, he adds, it was a strange thing, that persons who had power to make such breaches had no power to heal them.^[685] It is a pleasure to be able to state that Morley, in his old age, gave signs of better feeling; for it is related that he stopped proceedings against Mr. Sprint, an ejected minister, and invited him to dinner, endeavouring to soften down the terms of Conformity; but, better still, it is said, that in Morley's last days, he drank to an intermeddling Country Mayor, in a cup of Canary, advising him to let Dissenters live in quiet, "in many of whom, he was satisfied, there was the fear of God,"—and he thought they were "not likely to be gained by rigour or severity."

Dr. John Cosin had in his younger days been fond of Ritualism, and had suffered for it under the Long Parliament. Though there existed ground enough for charging him with the adoption of childish ceremonies, it is plain, from a complete and fair examination of his case, and of all which he urged in his own defence, that the charges against him were considerably exaggerated.^[686] As I shall show hereafter, a considerable change took place in his sentiments during the latter part of his life. He became more opposed to Romanism than he had been before. He said once, in the hearing of Dr. Thomas Fuller, when some one was praising the Pope for certain concessions—"We thank him not at all for that which God hath always allowed us in His Word." The Pope "would allow it us, so long as it stood with his policy, and take it away, so soon as it stood with his power."^[687]

Cosin, like Ward and other prelates, acquired renown for hospitality. Whether at home or not, he took care that the gates of his Castle should be always open for the entertainment of the Royal Commissioners, and other Officers of State, as they travelled to and fro between London and Edinburgh; nor did he forget to give shelter and cheer to guests of humbler rank. He is described, also, as zealous in restoring to its former state Divine

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worship at Durham Cathedral, in reforming irregularities which had prevailed under the Usurpation, in filling up the number of the Minor Canons, and of the members of the Choir, and in restoring discipline throughout his diocese. Further, it is recorded of him, that he was a man of great reading, and a lover of books for their own sakes, expending large sums upon his library with the enthusiasm of a true Bibliophilest. After the ejection of 1662, he was willing to concede something to scrupulous consciences—and offered to confer Episcopal orders in his chapel at Auckland upon Presbyterian ministers disposed to conform, according to a formulary much recommended at the time—"If thou hast not been ordained, I ordain thee." Yet, in some cases, he could be very intolerant; for he wrote, in the year 1663, to the Mayor of Newcastle, telling him to look sharply after certain Nonconforming ministers of high character, whom he stigmatized as *Caterpillars*.^[688] But, with a fluctuation of feeling common in impulsive natures, he would sometimes administer rebuke to those who laughed at Puritans,—and he wrote in his will, "I take it to be my duty, and that of all the Bishops, and ministers of the Church, to do our utmost endeavour, that at last an end may be put to the differences of religion, or, at least, that they may be lessened."^[689] He suffered much from the disease of the stone, yet he persisted in performing his Episcopal visitations, even when obliged to be carried over paved roads in a sedan chair. His chaplain, Isaac Basire, records, that, being so near death, as to be unable to kneel, he often devoutly repeated the words of King Manasses, "Lord I bow the knee of my heart;" and having often prayed, "'Lord Jesus, come quickly,' his last act was the elevation of his hand, with this, his last ejaculation, 'Lord,'—wherewith he expired without pain, according to his frequent prayer, that he might not die of a sudden, or painful death."^[690] He filled the see of Durham from 1660 to 1671.

Dr. John Hacket left behind him two well-known monuments of his Churchmanship. The one is his *Scrinia Reserata*, or memorial of Archbishop

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Williams: as strange a piece of biography as was ever written—full of allusions and disquisitions of all kinds, so that readers are puzzled to find out links of connection, and lose sight altogether of the hero amidst the mazes into which they are led by the biographer. "What it contains of Williams," as Lord Campbell has said, "is like two grains of wheat in two

bushels (not of chaff, but) of various other grain;" yet the knowledge and the pedantry, the sagacity and the prejudice, the zeal for the Church and the animosity towards Dissenters, which mark the book throughout, accurately reflect the character of its author during his busy episcopate of nine years. The other monument of this famous Bishop of Lichfield is to be found in the cathedral of his diocese, to the restoration of which he zealously devoted himself. He reconsecrated it on Christmas Eve, in the year 1669, and ordered a peal of six bells to be hung in the tower, one of which was finished during his last illness. "Then he went out of his bed-chamber into the next room to hear it, seemed well pleased with the sound, and blessed God, who had favoured him with life to hear it, but at the same time observed that it would be his own passing bell; and, retiring into his chamber, he never left it until he was carried to his grave," an event which occurred in 1670.^[691]

Of the two chief monuments of Hacket's fame, the cathedral is the more honourable,^[692] showing as it does his commendable desire for the beauty of God's house, and the comeliness of its worship; and with it we may associate the remembrance of his Episcopal activity in reducing the clergy of his see to order, and what he esteemed efficiency. The *Scrinia Reserata* suggests the idea of what he must have been in his intercourse with the ministers and people who dwelt in his diocese: learned but verbose, clever but wearisome, equally fond of argument and gossip, one-sided in opinion, and abounding both in favouritism and in personal dislikes—not without genial temper and strong affections of friendship for some who were within the Church, but violent and bitter to all those who were without. His sermons suggest what he was as a preacher—fond of ingenious but trifling disquisitions; and, although a Calvinist, delighting in the Fathers and Schoolmen, and sometimes talking about the Holy Virgin, after the manner of a believer in the immaculate conception. From all this it may be inferred how he would treat Nonconformists, but his biographer leaves no doubt upon that point, for he distinctly states—"The Bishop was an enemy to all separation from the Church of England; but their hypocrisy he thought superlative, that allowed the doctrine and yet would separate for mislike of the discipline, and therefore he wished that, as of old, all kings and other Christians subscribed to the conciliary decrees, so now a law might pass that all Justices of Peace

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should do so in England, and then they would be more careful to punish the depravers of Church orders."^[693]

Dr. John Wilkins was a very different man from Hacket. His close alliance by marriage with the Cromwell family, and his connection with the Protector Richard, stood for a time in the way of his preferment after the Restoration, but at length he obtained, through the influence of his friend Seth Ward, the living of St. Lawrence Jewry. Not only was he disliked at Whitehall, but there was a strong prejudice against him at Lambeth, and, to add to his misfortunes, he lost his library, his furniture, and his parsonage-house, in the fire of London. But the Duke of Buckingham befriended the sufferer; and, in spite of Sheldon's opposition, secured for him the Bishopric of Chester. When this person of varied fortune had reached the Episcopal bench, the Archbishop became reconciled to his elevation, and formed a favourable estimate of his character—a circumstance which, like that of Wilkins' first preferment after the Restoration, was owing to the esteem in which he was held by Dr. Seth Ward, his old Oxford friend, whose regard for him, notwithstanding their different opinions upon ecclesiastical subjects, continued to the end of life.^[694] Whilst Ward was a High Churchman, and harshly treated the Nonconformists, Wilkins was a very Low Churchman, and showed them great favour. For this the latter was eulogized by one party,^[695] and abused by another. From the reproaches he incurred he was vindicated by Dr. William Lloyd, at the time Dean of Bangor, who, in his funeral sermon for the Bishop, ascribed his liberality to the goodness of his nature, and to the education which he had received under his grandfather, Mr. Dod, a truly learned and pious man, although a Dissenter in some things.^[696] Influenced by kindness of heart and catholicity of principle, Wilkins pursued a course of moderation and charity; and it proved—as such a course ever must—politic in the end, for Calamy acknowledges that many ministers were brought within the pale of the Establishment by Wilkins' soft interpretation of the terms of conformity. The ability and the attainments of this prelate were only equalled by his moral excellence. Burnet praises his greatness of mind, and sagacity of judgment, and says he was the wisest clergyman he ever knew.^[697] Sir Peter Pett celebrated him as an ornament both of the University and the nation; and the Royal Society eulogized his insight into all parts of learning, as well

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as his charity, ingeniousness, and moderation.^[698] As these persons were his friends and associates, their opinion of him might be charged with partiality; but there is a general concurrence in praise of his virtues, on the part of persons who were decidedly opposed to him in their ecclesiastical opinions. He enjoyed his dignity only four years, and died in 1672.

He was succeeded by that illustrious theological scholar Dr. John Pearson—author of the *Exposition of the Creed*—who, from his studious habits, became easy and remiss in his Episcopal functions, for some years before the end of his episcopate, in 1686, when he died, having some time before sunk into a state of second childhood. His theological opinions will come under our review in the next volume.

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The circumstances under which Dr. Edward Reynolds accepted a mitre have been described already. He did so professedly upon condition that the Worcester House Declaration should become law, which it never did; and that the Church of England should be modified, so as to meet Presbyterian scruples, which it never was. However, it does not appear that his Presbyterianism had at any time been so extreme as to prevent his adopting a modified form of Episcopacy; and Baxter does not charge him with inconsistency in going so far as he actually went. Indeed, Baxter persuaded him to accept a Bishopric, implying that he did not discover in his friend that repugnance to the position which he felt himself. Reynolds' inconsistency appears, not in his first qualified acceptance, but in his subsequent retention of the office, after the conditions on which avowedly he had entered upon it were completely disregarded. But the truth is, he was a man of little firmness, and the blame of his continued conformity has been ungallantly, but in accordance with a very ancient precedent, cast on his wife. "It was verily thought, by his contemporaries, that he would have never been given to change, had it not been to please a covetous and politic consort, who put him upon those things he did."^[699] Throughout his episcopate in the diocese of Norwich, which lasted until 1676, he remained a Puritan, eschewing Court politics, leading a quiet life in the discharge of the duties of his calling, and in the retirement of his palace; to which, it may be observed, he added a new chapel on the ruins of the old one, which had been destroyed by the rabble after the fall of the Bishops in the year 1643. Affability and meekness are virtues generally ascribed to Reynolds; his

abilities as a Divine, and his gifts as a preacher—with the drawback of a harsh and unpleasant voice—were acknowledged by his contemporaries to have been considerable.

An unpublished letter sheds light on the state of the diocese of Norwich, and the character of the Bishop:—

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"Having often complaints made unto me in general of the offensive lives of some of the clergy, I held it my duty to signify so much unto you, not thereby myself accusing any of my brethren, but conceiving it very needful, by occasion of such reports, earnestly to entreat them that they will be very tender of the credit of religion, of the dignity of their function, and of the success of their ministry; and endeavour, by their sober, pious, and prudent conversations, to stop the mouths of any that watch for their halting, to bear witness to the truth of that doctrine which they preach, to be guides and examples of holiness of life to the people over whom they are set, and to lay up for themselves a comfortable account against the time that we shall appear before the Great Shepherd and Bishop of Souls. So commending you to the guidance of God's Holy Spirit, and his gracious protection, &c."

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Dr. Herbert Croft—descended from an old English family, distinguished in the reigns of Edward IV. and Elizabeth—had in his youth been

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decoyed into the Church of Rome, whilst a student at St. Omer; but, on his return from the Continent, he had been reconciled to the Church of England by Morton, Bishop of Durham. He had held a Canonry in St. George's Chapel, Windsor, and had been made Dean of Hereford in the year 1644. His appointment to such a dignity at such a time suggests the fact that then he was a very Low Churchman, with Presbyterian tendencies; of course he was afterwards obliged to relinquish both the office and its revenues. When the King returned, to whose cause Croft had been attached, he recovered his Deanery, and on the death of Dr. Monk, in 1661, he succeeded to the Bishopric. His family had long been settled in Herefordshire, and he cherished a strong attachment to his native county; in consequence of which he preferred to remain in this inferior see, with its small revenues, rather than accept richer preferment at a distance. Weary of Court life he, in the year 1667, retired from the office of Dean to the Chapel Royal, to live

entirely amongst his own clergy, like a primitive Bishop. Becoming a strict disciplinarian, he admitted none to stalls in his cathedral who did not dwell within the diocese, in the centre of which his own country residence was situated; and there he regularly relieved at his gates sixty poor people a week, besides assisting the indigent in other ways. The moderate ecclesiastical views which he expressed in his *Naked Truth*, he retained to the last, but he did himself no honour by submitting to the order of James II. in 1688.^[701]

Respecting the character of Dr. Matthew Wren, there appears to have existed little difference of opinion amongst his contemporaries; for not only did Burton the Puritan say that in all Queen Mary's reign "there was not so great a havoc made in so short a time of the faithful ministers of God," as by him, but Archbishop Williams spoke of him as a "wren mounted on the wings of an eagle," and Lord Clarendon called him a "man of a severe, sour nature."^[702] He filled the see of Ely a second time, from the fall of the Commonwealth until the year 1667, when he departed this life; and it is recorded of him, that as an act of thanksgiving for the King's return and his own restoration, he built at Pembroke Hall—the College in which he had been educated at Cambridge—a new chapel, where his remains were interred with unusual pomp.^[703]

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Wren was succeeded by Dr. Benjamin Laney, previously Bishop of Peterborough, who was translated from that place to Lincoln in 1663, and who died in 1675. Laney seems to have been kind-hearted as well as able, for in his primary visitation, before Bartholomew's day, he said very significantly to the assembled clergy, "Not I, but the law;" and although he had suffered considerably from the Presbyterians at Cambridge, in the year 1644, he could, to use his own phrase, when presiding over the see of Lincoln, "look through his fingers;" and he suffered a worthy Nonconformist to preach publicly very near him, for some years together.^[704]

Laney was followed at Ely by Dr. Peter Gunning. The fondness of the latter for controversy is attested by the epitaph in his cathedral, where he was buried in 1684, and receives illustration from the accounts recorded of theological

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discussions in which he publicly engaged with Nonconformists. Blamelessness of private life, and the Episcopal virtues of generosity to friends,^[705] of benefactions to charitable and religious objects, and of almsgiving to the poor, are ascribed to him by Wood; Dr. Gower, in his funeral sermon for him, extols his piety; but Burnet has painted his character in different colours. "He was a man of great reading, and noted for a special subtlety of arguing; all the arts of sophistry were made use of by him on all occasions, in as confident a manner as if they had been sound reasoning." "He was much set on the reconciling us with Popery in some points; and because the charge of idolatry seemed a bar to all thoughts of reconciliation with them, he set himself with very great zeal to clear the Church of Rome of idolatry. This made many suspect him as inclining to go over to them; but he was far from it, and was a very honest, sincere man, but of no sound judgment, and of no prudence in affairs. He was for our conforming in all things to the rules of the primitive Church, particularly in praying for the dead, in the use of oil, with many other rituals."^[706]

Dr. William Paul, being possessed of large property, and being also a man of business, had, 1662–1677. through the influence of Sheldon, been appointed to the see of Oxford, with the hope that he would rebuild the dilapidated episcopal palace at Cuddesden. He applied himself to that undertaking, and, that he might be assisted in it, received permission to hold the valuable Rectory of Chinnor *in commendam*; but, after he had purchased materials for his intended work, especially a large quantity of timber, he died in 1665, having held the see for only two years.

Dr. John Warner is noted chiefly for being well read in scholastic divinity and patristic literature. It is recorded of him that, when Prebendary of Canterbury, he built a new font in the cathedral, which, "whether more curious or more costly," it was difficult to judge. Made Bishop of Rochester, he, in the earlier sittings of the Long Parliament, zealously asserted Episcopalian principles, "speaking for them as long as he had any voice left him," and valiantly defending the antiquity and justice of an order of spiritual peers.^[707] He suffered, not only like the rest of his brethren, by losing the temporalities of his see, and by being driven away from the performance of its duties, but he had to compound for his own estates, which were of considerable value. During the Protectorate he resided at

Bromley, in Kent, and on the return of Charles II. regained the see of Rochester, which he held to the time of his death, in 1666. Being a rich man, his benefactions were large, he contributed liberally to the cathedral of his diocese, and to the Colleges of Magdalen, and Baliol, at Oxford, the place of his education; and he also founded a College at Bromley for clergymen's widows.

Dr. John Earle, after being in exile with the King, first obtained at the Restoration the Deanery of Westminster, then succeeded Gauden in the Bishopric of Worcester, 1662, and finally rose to the see of Salisbury in 1663, upon Henchman becoming Bishop of London. Earle is described as having been "a very genteel man, a contemner of the world, religious, and most worthy of the office of a Bishop;" also, he is spoken of as having the sweetest and most obliging nature, and as being one than whom, since Hooker's death, God had not blessed any with more innocent wisdom, more sanctified learning, or a more pious, peaceable, primitive temper.^[708] He was, says another authority, favourable to Nonconformists, a man that could do good against evil, forgive much, and of a charitable heart, and died, to the no great sorrow of them who reckoned his death was just, for labouring all his might against the Oxford Five Mile Act.^[709] Within two years after his death, in 1665, his successor in the Bishopric, Dr. Alexander Hyde, followed him to the grave, the latter having owed his promotion to the influence of his kinsman, Lord Clarendon.

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Dr. Robert Skinner, who had been Bishop of Bristol, and had been translated thence to Oxford before the Civil Wars, regained that diocese in 1660. Thence he proceeded to the far more desirable see of Worcester, in 1663. He is reported to have been the sole Bishop who conferred orders during the Commonwealth; and, after the Restoration, he ordained no less than 103 persons at one time in Westminster Abbey; so many others had been made by him deacons and priests, that at his death, in 1670, it was computed that he had sent more labourers into the vineyard of the Church than all his survivors had done, he being the last of the prelates who had received consecration before the time of the Commonwealth.

In pursuing the task of noticing the Bishops after the Restoration, we now reach several names of less interest, but the few scanty hints respecting them

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which I have been able to gather may suggest in some cases an idea of such Episcopal qualifications as they possessed.

Dr. William Nicholson, Bishop of Gloucester, defended and maintained the Church of England against its adversaries in the days of its adversity. His works, it is said, proved him to be a person of learning, piety, and prudence, particularly his *Apology for the Discipline of the Ancient Church*, his *Exposition of the Apostles' Creed*, and his *Exposition of the Church Catechism*, subjects which indicate his Anglican orthodoxy, and his Episcopalian zeal. He is spoken of as a great friend of Dr. George Bull, and as much admired by that distinguished theologian for his knowledge of the Fathers and the Schoolmen, and for his large stores of critical learning. He died in 1672.^[710]

Dr. Humphrey Henchman, it may be remembered, had taken part in the Savoy Conference, and is described by Baxter as "of the most grave, comely, reverend aspect," and of "a good insight in the Fathers and Councils."^[711] Consecrated Bishop of Salisbury in 1660, he was translated from Salisbury to London, upon the translation of Sheldon to Canterbury, and manifested great alarm when the excitement against Popery prevailed, earnestly enjoining upon his clergy the duty of combating its errors and superstitions, although he knew perfectly well that such a course would be offensive to the King. He edited a book once of some celebrity, entitled *The Gentleman's Calling*, supposed to be a production of the author who wrote *The Whole Duty of Man*. Henchman died October, 1675.

Dr. Edward Rainbow had been a minister in the Establishment throughout the Commonwealth. Although deprived of the Mastership of Magdalen College, Cambridge, for refusing to sign a protestation against King Charles I. he, in the year 1652, obtained the living of Chesterfield, in Essex, and, in 1659, the Rectory of Benefield, in Northamptonshire. Restored to his Mastership at Cambridge, and made Dean of Peterborough soon after the Restoration, he rose to the Bishopric of Carlisle, upon the translation of Dr. Sterne to the Archbishopric of York. Rainbow died in 1684; he appears to have possessed an extraordinary talent for extemporaneous speaking; of which he gave a singular example, when, in the absence of the appointed orator, he delivered an unpremeditated discourse before the University, to the great admiration of all who listened to him. His style is described as

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florid and pedantic, but he is represented as a man of learning, of politeness, of devotion, and of charity. We do not know much respecting Nicholson, Henchman, and Rainbow, but some things are said respecting them, pointing to intellectual and moral qualities suitable to their position. That which can be gathered respecting the following names, contains little or nothing which is satisfactory.

Dr. Joseph Henshaw, consecrated Bishop of Peterborough in 1663, had been chaplain to the first Duke of Buckingham, through whose influence he had obtained a Prebend in the Cathedral of Peterborough. After suffering for his loyalty during the Civil Wars, and the Commonwealth, he lived for some time at Chiswick, in the house of Lady Paulet, being described "as a brand snatched out of the fire."^[712] He died in 1678.

Dr. Gilbert Ironside, who had been Rector of Winterbourn, in Dorsetshire, was promoted to the see of Bristol immediately after the Restoration.

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Wood's chief remark respecting him, and one by no means satisfactory, is, that although he had not before "enjoyed any dignity in the Church," or been chaplain to any one of distinction,^[713] he received this promotion to a poor Bishopric because he happened to be a man of property. His death occurred in the year 1671. Dr. Walter Blandford, under the Commonwealth, escaped ejection from Wadham College, Oxford, by submitting to the Government, and was admitted Warden before the Restoration. After that event he became Vice-Chancellor; in the year 1665 he became Bishop of Oxford, and, in 1671, Bishop of Worcester. The following notice of his death occurs in a letter written at the time:—"It may be you have heard before this, how upon Friday last, between 9 and 10 in the morning, it pleased God to put a period to the pains and patience of the good Bishop, who spent the day before in bemoaning himself unto his God, and sending up pious ejaculations unto Him; and then, without any reluctance, quietly resigned up his soul and departed in peace; and, I doubt not, that it was welcomed with an *Euge bone serve!* The next day after I came hither, he called me to his bedside, and asked after the welfare of his friends at Court, and made frequent mention of his gracious master and King, prayed most heartily for him, and said nothing laid him so low as the consideration that he had not been more serviceable to him."^[714] But it is only just,—when noticing the particular reference which is made to the loyalty of this prelate

on his death-bed,—to remember that such reference occurs in a correspondence in which the writer was anxious to commend himself to his Royal master, with the hope of securing promotion.

The three Archbishops of York before the Revolution were not men who exerted much influence. Dr. Accepted Frewen was enthroned on the 11th of October, 1660, and afterwards enjoyed, for twelve months, the revenues of the see of Lichfield, during which period it remained without an occupant. Before his Archiepiscopal career, which proved equally brief and uneventful—for he died on the 28th of March, 1664—he acquired the reputation of being a good scholar, and a great orator; but none of his works were ever published, except a Latin oration, and a few verses on the death of Prince Henry.^[715] He was succeeded by Dr. Sterne, who, though in other respects not a remarkable person, furnishes, from the accounts given of him, material for a more extended notice than his predecessor has received. Being educated at Cambridge, and made Master of Jesus College, he, for his loyalty, and for conveying the College plate to Charles I. at York, with other Royalists, was imprisoned, and otherwise treated with great cruelty. In a letter, which he wrote at the time, he gives an account of his sufferings, and, as it indicates his temper, as well as expresses the bitter recollections of Puritanism, which he carried with him into his Episcopate, it will be well to give an extract from it:—"This is now the fourteenth month of my imprisonment," he says,—"nineteen weeks in the Tower, thirty weeks in the Lord Peter's House, ten days in the ships, and seven weeks here in Ely House. The very dry fees and rents of these several prisons have amounted to above £100, besides diet and all other charges, which have been various and excessive, as in prisons is usual. For the better enabling me to maintain myself in prison, and my family at home, they have seized upon all my means which they can lay their hands on. At my living near Cambridge, they have not only taken the whole crop, that is in a manner the whole benefit of the living (for the rest is very little), but plundered and sold whatever goods of mine they found there, even to the poultry in the yard, allowing me not so much as to pay for his dinner that served the Cure. They have robbed also the child that is yet unborn, of the clothes it should be wrapped in. But, upon my wife's address to the Committee at Cambridge, they had so much humanity as to make the sequestrators (though with much ado) restore them to her again. They have also forbidden our College

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tenants (all within their verge) to pay us any rents (for the better upholding of learning and the nurseries thereof). If I have anything else that escapes their fingers, it is in such fingers out of which I cannot get it; and that also I owe to the same goodness of the times. So that if my friends' love had not made my credit better than it deserves to be, and supplied my occasions, I should have kept but an hungry and cold house both here and at home. And all this while I have never been so much as spoken withal, or called either to give or receive an account why I am here. Nor is anything laid to my charge (not so much as the general crime of being a malignant), no, not in the warrant for my commitment. What hath been wanting in human justice, hath been (I praise God) supplied by Divine mercy. Health of body, and patience and cheerfulness of mind, I have not wanted, no, not on shipboard, where we lay (the first night) without anything under, or over us, but the bare decks and the clothes on our backs; and, after we had some of us got beds, were not able (when it rained) to lie dry in them; and, when it was fair weather, were sweltered with heat, and stifled with our own breaths: there being of us in that one small Ipswich coal-ship (so low built, too, that we could not walk, nor stand upright in it) within one or two of threescore; whereof six Knights, and eight Doctors in Divinity, and divers gentlemen of very good worth, that would have been sorry to have seen their servants (nay, their dogs) no better accommodated. Yet, among all that company, I do not remember that I saw one sad or dejected countenance all the while, so strong is God, when we are weakest."^[716] Having been domestic chaplain to Archbishop Laud, Sterne attended him to the scaffold, and afterwards lived in obscurity until the Restoration, after which the King made him Bishop of Carlisle, in the year 1660, and in 1664 transferred him to York, where he died in 1683.^[717]

Burnet represents Sterne as "a sour, ill-tempered man," minding chiefly the enriching of his family; as being suspected of Popery, "because he was more than ordinarily compliant in all things to the Court;" and as very zealous for the Duke of York.^[718] Another authority affirms that Sterne was greatly respected, and generally lamented; that all his clergy commemorated his sweet condescensions, his free communications, faithful counsels, exemplary temperance, cheerful hospitality, and bountiful charity.^[719] It may seem difficult to reconcile these opposite statements; yet, when it is

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considered, that the first of these authorities would describe Sterne as he appeared to people whom he disliked, and the second as he appeared to people whom he loved, it only follows that the Archbishop showed himself an exceedingly disagreeable man to such as belonged to the opposite party, and quite as pleasant a man to those who belonged to his own. I may notice, that he wrote a Book on Logic, assisted in Walton's Polyglot Bible, and is one amongst other persons to whom, without satisfactory evidence, has been ascribed the authorship of the *Whole Duty of Man*.^[720]

Sterne was succeeded in the Northern primacy, by Dr. John Dolben, Bishop of Rochester, who died at Bishopthorpe in 1686, and whose consecration sermon was preached by South—scanty pieces of information to put together; but really there is as little interest in his life, as there is of importance in his administration. His biography, by Le Neve, consists in a notice of his being an Ensign in the Royalist Army at Marston Moor, in an enumeration of his preferments, and of the Episcopal consecrations in which he took part,—and in the mention of one or two sermons, which he preached on public occasions.^[721] Burnet describes him as "a man of more spirit than discretion, and an excellent preacher; but of a free conversation, which laid him open to much censure in a vicious Court."^[722]

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None of the Welsh Bishops require notice, except that of St. Asaph. This see, after being held by George Griffith, who died in 1668, was bestowed upon Henry Glemham, who died in 1670, when Dr. Isaac Barrow, a High Anglican Churchman, was translated to it from the Isle of Man. Of that singular and inhospitable place he had been consecrated prelate in 1663, and many works of charity and piety are ascribed to him during his seven years' episcopate. The people had no chimnies, and fixed bushes in the entrance to their huts, which they called making a door; and, amidst all this misery, Barrow strove to introduce temporal comforts together with spiritual blessings. At St. Asaph he pursued the same, benevolent career as in the Isle of Man, improving his cathedral and his palace, and also building almshouses.

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Barrow was uncle to the celebrated Divine of the same name, but he does not appear to have possessed any of the ability, or much of the learning

of his nephew; and it is a singular instance of contrast between the two, that, whereas the Master of Trinity has obtained an undying renown for Protestantism by his treatise on the Pope's supremacy, the prelate has been brought into an equivocal position by the inscription on his monument in St. Asaph Cathedral, where he was buried in 1680: "*Orate pro conservo vestro, ut inveniat misericordiam in die Domini.*" He was succeeded by William Lloyd, a distinguished man, who can be more advantageously described when we reach the story of the Seven Bishops in 1688. ^[723]

The most unworthy Bishop in this reign was Thomas Wood, who, on the death of Hacket, in 1671, received the see of Lichfield and Coventry.

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His elevation is attributed to the interest of the infamous Duchess of Cleveland, whose favour he secured by contriving a match between his niece and ward, a rich heiress, and the Duke of Southampton, the Duchess' son. There appears to have been some hesitation respecting this exercise of patronage even in the mind of Charles himself; ^[724] and the result of it confirmed the worst apprehensions of Wood's unfitness for the Episcopal office, for he entirely neglected his duties, and constantly lived out of his diocese. The money which he received from the heirs of his predecessor to help him in building a palace, he appropriated to his own purposes; and, under the pretence of preparing for the erection, cut down a quantity of timber, which he sold, putting the proceeds of the sale into his own pocket. His scandalous conduct incurred suspension—a rare circumstance indeed in the history of the Episcopal bench: and the form of his suspension is preserved in *Sancroft's Register*, amongst the Lambeth Archives. From this suspension the delinquent was relieved in 1686, although no improvement took place in his conduct. ^[725]

The prelates whom I have noticed were consecrated a few of them before the Civil Wars, some of them shortly after the Restoration, all of

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them a considerable time before Sheldon's death in 1677. The study of their characters, therefore, throws light upon the administration of Church affairs up to the year just mentioned. There are, moreover, two other Bishops, consecrated within three years before Sheldon's death, who claim a passing notice. The Episcopal influence of the first was brief, that of the second lengthened and somewhat peculiar. The first is Dr. Ralph Brideoake, who

had been chaplain in the Earl of Derby's family, and had witnessed the heroism of the Countess during the siege of Latham House; but made of different material from her Ladyship, he submitted to the times, held the Vicarage of Witney in Oxfordshire, and of St. Bartholomew by the Royal Exchange, under the Commonwealth. Notwithstanding his having so far complied with the existing powers as to accept the office of a Commissioner for trial and approbation of ministers, he obtained at the Restoration, by another form of subserviency, first, the Living of Standish in Lancashire; next, the Deanery of Salisbury; and at last, in 1674, the Bishopric of Chichester, holding with it *in commendam* a Canonry at Windsor. There, in 1678, he died and was buried.^[726] The second of these two Bishops was Dr. William Lloyd, who matriculated at Cambridge, and was successively Vicar of Battersea in Surrey, Chaplain to the English Merchants' Factory at Portugal, and Prebendary of St. Paul's. He attained to the Episcopal Bench in 1675, first presiding over the see of Llandaff; then being translated in 1679 to the see of Peterborough, and in 1685 being translated to Norwich. All which I can say of his character is that he is praised by Salmon, the admiring biographer of the Bishops after the Restoration.^[727]

Such is the substance of what I have been able to gather respecting the lives and characters of the Caroline prelates. They were far from being all alike.

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Charges are brought against them as a class, which individuals amongst them do not deserve. They were not all of the same disposition, although they all identified themselves with the same system. The reader will have noticed that facts prove Sheldon, Ward, Morley, and Cosin to have been more or less what Anglicans would esteem strict disciplinarians—what Nonconformists, and others beside them, will more justly pronounce religious persecutors; and what we know of Hacket, Wren, and Gunning, will show that they held principles adapted to make them like those of their brethren who have just been named. It should be remembered, however, that prelates had no longer the power they once possessed. They could not do what their predecessors had done before the Restoration; for the High Commission Court was abolished, the *ex officio* oath could no longer be administered, and certain penalties once inflicted could be repeated no more. All the Bishops now mentioned suffered in the Civil Wars: yet Hacket

retained the living of Cheam throughout the troubles; Ward took his degree at Oxford, and became president of Trinity College before the Restoration; and Gunning's ministry as an Episcopalian was winked at by Oliver Cromwell. Wilkins, Reynolds, Pearson, Croft, Laney, and Earl were more or less indulgent to Puritan clergymen within the Church, and not so unfriendly to those outside, as some others were;—and it may be mentioned, that the first three held academic or ecclesiastical preferment under the Commonwealth; and the last three were compelled to sacrifice emolument and endure hardship. Passing over the worst or the least known of the Bench, what shall be said of the best and most renowned? They were men of ability, of learning, of unimpeachable morals, hospitable and kind, orthodox and devout; but is there one amongst them to whom posterity can point as possessing, in an eminent degree, the true Episcopal faculty,—the gift of spiritual overseership, of a deep insight into Christ's truth, into God's providence, and into men's souls? Is there one who excelled in folding the sheep which were lost?—one who struck the world's conscience, making it feel how awful goodness is? Richard Baxter was far from perfect, nor did he possess qualifications adapted to the administration of a diocese; but had he accepted the mitre which he refused, would he have found sitting by his side an equal in spiritual power?

We have now reached a point where it is wise to inquire into the state of the clergy after the Restoration. It is seen what sort of men the diocesans

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were; we ought to inquire what sort of men ministered in their dioceses. Publications of the day bear witness to the fact, often overlooked, that there were clergy in the Establishment whose sympathies leaned towards Puritanism.^[728] The Bishop of Bristol had much trouble with a person of this description, a Prebendary of the cathedral, who describes the conduct of his diocesan in the following manner:—"He citeth me afresh on pains of suspension; and tells me, at my appearance, that I was a saucy, proud fellow; of a Presbyterian hypocritical heart; upbraiding my preaching, praying, speech, face, and whole ministry, very opprobriously, before all the people."^[729] Complaints occur of conforming Nonconformists, as wearing neither girdle nor cassock, being *à la mode* and *in querpo divinus*—as setting up miserable readers to make the Liturgy contemptible, and as engaging for an hour in extempore prayer. They preached over, it is alleged,

"the old one's notes," full of cant about "indwelling, soul-saving, and heart-supporting;" they "affected a mortified countenance," and "set the Sabbath above holidays," and "a pure heart above the surplice," and were men "overflowing with the milk and honey of doctrine, instead of the inculcation of honesty and obedience and good works."^[730]

From these and other circumstances it appears that the Act of Uniformity did by no means accomplish all its purposes. Some were Conformists only in name. The fact is, that whilst the Act drove out all the best and most eminent of the Puritan class, there still were many, of a pliable nature, who having opposed Episcopacy, and sworn to the Covenant, and adopted the Directory, were content to nestle under the wings of the Anglican Church, as soon as she arose, like a Phœnix out of its ashes.

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The miserable condition of some of the clergy holding country benefices or cures became the subject of satirical remark. In a style of badinage, which aimed at being clever, one author speaks of a clergyman as trying to "weather out his melancholy by retiring into the little hole over the oven, called his study (contrived there, I suppose, to save firing); a pretty little vatican, the whole furniture whereof is a German system, a Geneva Bible, and concordance of the same; a budget of old stitched sermons, some broken girths, with two or three yards of whipcord behind the door, and a saw and hammer to prevent dilapidations."^[731] Of course no reliance can be placed on such a trenchant description; but it shows the way in which clergymen were talked of. With gravity, and apparent truthfulness, it is stated elsewhere that clergymen sprung from the humbler ranks; and it is mentioned, as a novelty, and a subject for congratulation, that a few of aristocratic birth had entered holy orders. At the same time, it is affirmed, that an attorney, a shopkeeper, and a common artizan would hardly change their worldly condition with ordinary pastors.^[732]

Many men, episcopally ordained, acted as chaplains. They conducted family worship, morning and evening; in some cases read and expounded, and prayed before dinner.^[733] The satirist, already quoted, asks, "Shall we trust them in some good gentlemen's houses, there to perform holy things? With all my heart, so that they may not be called down from their studies to say

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grace to every health; that they may have a little better wages than the cook or butler; as also, that there be a groom in the house, besides the chaplain: (for sometimes into the ten pounds a year they crowd the looking after a couple of geldings); and that he may not be sent from table picking his teeth, and sighing, with his hat under his arm, whilst the knight and my lady eat up the tarts and chickens. It might be also convenient if he were suffered to speak now and then in the parlour, besides at grace and prayer-time; and that my cousin Abigail and he sit not too near one another at meals."^[734] The spirit of the writer is apparent; it is not such as to inspire our sympathy, or secure our confidence; but if some of the clergy at the time had not been very ignominiously treated, surely no one would have hazarded the caricature.

The ignorance of the clergy was a topic for abundant abuse. Those, it is said, who could spout a few Greek and Latin words for the benefit of the squire, pitched their discourses so as to accommodate themselves to the fine clothes, and abundance of ribbons, in the highest seats of the Church, instead of seeking to instruct those who had to mind the plough and mend the hedge. Cities and Corporations furnished "ten or twelve-pound-men," whose parts and education were no more than sufficient for reading the Lessons, after twice conning them over. "An unlearned rout of contemptible people" rushed into holy orders, just to read the prayers, although they understood "very little more than a hollow pipe made of tin or wainscot."^[735] Bad taste in the composition of sermons is also attributed to the clergy, for which they are unmercifully ridiculed. Many of the examples, however, are taken from the preaching of the most fanatical amongst the Puritans.

Men cannot buy books without money; and of the scantiness of clerical libraries at that time there can be no question. Much more trustworthy, and deserving of attention than some of the particulars just supplied, is the anecdote of Tenison,—that he had, in his parish of St. Martin's-in-the-Fields, "thirty or forty young men in orders, either governors to young gentlemen, or chaplains to noblemen," who, being reprov'd by him "for frequenting taverns or coffee-houses, told him they would study or employ their time better if they had books." Hence originated the foundation of the Tenison Library.^[736]

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Between the poor rural clergy, with equally indigent chaplains and curates on the one hand, and the richly-beneficed and dignified members of the order on the other, a broad distinction must be drawn in point of attainments and eloquence, if not in point of original ability. In London, in the Universities, and in the high places of the Church, there were men, especially towards the close of the period under our review, who for scholastic learning, and ministerial capacity, were illustrious ornaments of their sacred profession. Many pages of this history bear witness to that fact. Still, the contempt in which the clergy were too generally held is admitted by those who, at the time, sought to make the best of the subject. Writers who vilified the Church were answered by writers who vindicated it. Paper wars, fierce and prolonged, were waged in a spirit which leaves little to choose between the combatants. Those who appeared as defenders of the accused, denied the unqualified application of the charges which they could not deny altogether. They triumphantly cited the admissions extorted from adversaries, that the clergy of the land had considerably improved, and that it was a "sign of nothing but perfect madness, ignorance, and stupidity, not to acknowledge that the present Church of England affords as considerable scholars, and as solid and eloquent preachers, as are anywhere to be found in the whole Christian world."^[737] They contended that the illiteracy and bad taste complained of were by no means so common as their assailants alleged; and that, as to the latter accusation, it fell chiefly upon the Puritan remnant. They complained, as bitterly as those on the other side, of the poverty of clergymen, and their inability to purchase books; and then they urged, as reasons for the contempt in which they were held, not only straitened circumstances and a humble condition, but the calumnies of their enemies; the origin of these calumnies being distributed amongst Libertines, Jesuits, and Nonconformists,^[738] and the want of discipline in the Church being also loudly lamented.^[739]

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In connection with these illustrations I may observe that Articles of Visitation in those days throw light on clerical costume, if a word or two may be added on so trifling a matter. Amongst other things the 78th Canon is recognized as obligatory, and churchwardens are solemnly asked, "Doth your parson, vicar, or curate usually wear such apparel as is prescribed by the canon, that is to say, a gown with a standing collar, and wide sleeves

strait at the hands, and a square cap; or doth he go at any time abroad in his doublet and hose without coat or cassock, or doth he use to wear any light coloured stockings? doth he wear any coife, and wrought night-caps, or only plain night-caps of silk, satin, or velvet? and in his journeying, doth he usually wear a cloak with sleeves, commonly called the priest's cloak without guards, welts, long buttons or cuts?"^[740]

That which has been said relates to the circumstances, the education, the preaching, and the habits of clergymen. What estimate is to be formed of their religious and moral character? It is a common vice to pass sweeping censures on a whole party. Most people fall into it when speaking of opponents, and protest against it when speaking of friends. Wishing to avoid that fault I would first say, undoubtedly many clergymen might be found at that time who were most exemplary in their lives, and two distinguished instances of the High Anglican type may be cited in proof. Ken was successively Incumbent of Little Easton, Brightstone, and East Woodhay. The purity of his life, the devoutness of his temper, the eloquence of his preaching, and his assiduous discharge of ministerial duties, are amongst the cherished memories of the English Church. With him his neighbour, Isaac Milles, the simple-hearted Rector of Highclere, is worthy of being associated. For nine-and-thirty years, on an income of £100 per annum, this worthy minister of Christ laboured for the welfare of his rural flock. Filled with the charity which thinketh no evil, "he would often rise up and leave the company rather than hear even a bad man reproached behind his back." So hospitable was he, "that he used to be much displeased, if any poor person was sent from his house without tasting a cup of his ale;" and "he turned a perfect beggar in order to get from others something to supply their wants." He walked "every day in the week to read the service in the parish church," and was "a constant visitant by the bedside of the sick and dying."^[741]

But there is another side to the picture—
pamphleteers accused the clergy not only of
ignorance, and of fanaticism, but also of immorality.

CLERGY.

This charge is but faintly touched in the particular controversy just reported; but a writer, at an earlier period, who fiercely assails the ministers of the Establishment, declares how the Church resents the scandalous profaneness of many of her sons; and reproaches the reverend in function, who were

shameful in life, those who were disorderly in holy orders, and who, bound to walk circumspectly, reel notwithstanding, having their conversation in the ale-house as well as in heaven. He proceeds in the name of the Church to complain of unconscionable simony, and of encroaching pluralities; saying, "Lately you were thought incapable of one living, now three, four, or five cannot suffice you;" and the whole is wound up by charges of non-residence, whereupon the writer inveighs, in most violent terms, against the employment of curates.^[742]

Such testimony must be taken only for what it is worth. But it seems incredible that, without a substratum of facts, any one would make these bold assertions. Other writers of the period speak of the clergy in terms which give a mean opinion of their religious character. Philip Henry states of many who conformed, that, since they did so, from unblamable, orderly, pious men, they became exceedingly dissolute and profane.^[743] Burnet alludes to the luxury and sloth of dignitaries "who generally took more care of themselves than of the Church."^[744] Pepys records, that there "was much discourse about the bad state of the Church," and how the clergy were "come to be men of no worth in the world."^[745] The King himself laid at their door the blame of the spread of Nonconformity; for "they thought of nothing but to get good benefices, and to keep a good table."^[746] It was deemed necessary in Articles of Visitation to inquire whether the clergy resorted to taverns, or gave themselves to drinking, or riot, or played at unlawful games.^[747] The rush of parish ministers out of London during the plague testifies to a want of devotedness and self-sacrifice; and the awful dissoluteness of public manners, looked at in connection with all circumstances, indicates not merely the failure of a faithful ministry in some cases, but the consequence of a careless and inefficient one in many more. Poverty and dependence, or even want of learning, will not account for all the clerical humiliation in the time of Charles II. A half-starved curé with love for his parishioners, and a ragged friar of true sanctity, had a far different social standing on the Continent, from many Protestant curates and chaplains at that time in England.

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FOOTNOTES:

[1] For the state of Puritanism during the Civil Wars and the Commonwealth I must refer the reader to my former Volumes. I take up the thread of the History where I dropped it, at the death of Oliver Cromwell.

[2] *Cromwellian Diary*, iii., *Int.* v. viii.

[3] Letter to Hyde, *Cosin's Works*, iv. 465.

[4] *Proclamation for the better Encouraging of Godly Ministers*, Nov. 25. In the notes of the speech of the Protector to the Officers of the Army (*Thurloe*, vii. 447), "Liberty of Conscience, as we are Christians," is one of the heads.

[5] *Thurloe*, vii. 4:4.

[6] *Ludlow*, ii. 618.

[7] *Cromwellian Diary*, iii. 1.

[8] *Ibid.*, 10.

[9] *Cromwellian Diary*, iii. 13, Jan. 28.

[10] *Ibid.*, 83, 138, Feb. 5.

[11] *Cromwellian Diary*, iii. 403, Feb. 21.

[12] *Guizot's Richard Cromwell, &c.* i. 103.

[13] *Cromwellian Diary*, iv. 328, April 2.

[14] *Ibid.*, iii. 177, Feb. 9.

[15] *Ibid.*, 448, Feb. 22; 494, Feb. 26.

[16] *Cromwellian Diary*, iii. 87, *et seq.*, Feb. 7th and 9th.

[17] *Guizot's Richard Cromwell and the Restoration*, i. 91, March 16. No other historian has so patiently traced the steps by which the Stuarts were restored as this eminent Frenchman.

[18] *Clarendon's State Papers*, iii. 440, March 18.

[19] This petition to Richard followed the humble representation presented on the 6th of April.

[20] Prynne got in for a few hours, and had an angry altercation with Haselrig and Vane.

[21] *Parl. Hist.*, iii. 1553.

[22] Of the popularity of Fleetwood amongst "Anabaptists and other sectaries," and of the importance attributed to him by lookers on, there are illustrations in the correspondence of the French ambassador,—*Guizot*, i. 246.

[23] *Howe's Life*, by *Rogers*, 94.

[24] *Rogers*, 91. *Noble's Protectorate House*, i. 172, 180, 176.

[25] Noticed in an article on Keble in *Macmillan's Magazine* for March, 1869. Baxter speaks favourably of Richard Cromwell. His wife, who died in 1676, whilst he was abroad, is spoken of as a prudent, godly, practical Christian. It appears from one of her letters, that, after the Protectorate, she "wanted some scholar or godly man to reside at Hursley, to minister spiritual consolation under her present sorrows."—*Noble*, i. 343.

[26] Neal (iv. 209) relates this, and thinks the story probable; but Orme, in his *Life of Owen*, p. 213, disputes it. Respecting what Baxter says about Owen (*Life and Times*, i. 101) see an *Historical Account of my own Life*, by *Calamy*, i. 378.

[27] As I am not aware of these important entries having been published by any one else I introduce them here:—

June 7th—"This day," so runs the record, "the Church received a letter from the Church at Wallingford House, desiring advice from the Church what they apprehended was needful for the Commonwealth; the Church considering it, ordered the elders to write to them, thanking them for their love and care of them; and also desiring to give the right-hand of fellowship with them; but concerning civil business the Church, as a Church, desire not to meddle with."

July 10th—"Ordered by the Church upon the receipt of a letter from the Church at Wallingford House, that Wednesday, the 13th of July, should be set apart to humble our souls before the Lord, both in regard of the sins of the nation, and also for our own sins, as also to seek the Lord for direction and assistance for the carrying on the Lord's work in the nation."

[28] This confession will be noticed in the next volume in the account given of the development of Congregationalism.

[29] *MS. Yarmouth Independent Church Records*, Dec. 28, 1659. As to the opinions of Independents on these questions during the Commonwealth see the former volumes of this Ecclesiastical History.

[30] *Owen's Works*, xix. 385–393.

[31] *Hist. of the Rebellion* (Oxford Edit., 1843), 855–6. The documents are without date. They are placed by Clarendon under the year 1658.

[32] *Ibid.*, 857.

[33] *Neal* (iv. 195) alludes to this affair, and regards it as an artifice to get money "out of the poor King's purse." *Crosby* (ii. 91) speaks of the Baptists as making "overtures to the King for his restoration," but does not relate any particulars. The modern historian of the Baptists, Dr. Evans, as far as I can find, says nothing upon the subject.

[34] *Lingard*, xi. 156.

[35] *Newcome's Autobiography*, i. 117.

[36] Dated November 1st, 1659. *Thurloe*, vii. 771.

[37] December 14th, 1659. *Ibid.*, 795.

[38] December 16th, 1659. *Ibid.*, 797.

[39] *Thorndike's Works*, vol. ii. part i., preface.

[40] May 4. *Barwick's Life*, 401; *Thorndike*, vi. 219.

[41] *Barwick's Life*, 449.

[42] *Barwick*, 201, 218, 412. Various difficulties felt at the time by the Bishops are mentioned in the letters printed in the appendix to *Barwick's Life*.

[43] *Barwick*, 413, 424.

[44] *Ibid.*, 517, 519, 525.

[45] 1659, Nov. 9 & 18, Dec. 9. 1660, Feb. 3.

[46] *Ludlow*, ii. 674.

[47] See pamphlets: *The Leveller*; *The Rota*; or, *Model of a Free State*; and *Gallicantus seu præcursor Gallicinii Secundus*.

[48] *State Papers, Dom. Interreg.*, No. 659.

[49] See prices in *Adam Smith's Wealth of Nations*, B. I. c. II.

[50] *Guizot*, ii. 62.

[51] Price says Christmas-day. *Hist. of the King's Restoration*, 72.

[52] Numerous illustrations of the state of feeling at the time might be culled from these and other pamphlets of the period. Some of them are printed in the *Harleian Miscellany*. Some are noticed and described in *Kennet's Register*. A large collection of them may be found in the British Museum.

[53] *Price's Mystery and Method of His Majesty's Happy Restoration*, 79, 80.

[54] *Neal* (iv. 238–242) says that when Monk had joined the Presbyterians, and the Independents saw that they were betrayed, they offered to support their friends in Parliament, and to raise four new regiments for the purpose of resisting the General's designs. He further states that Owen and Nye consulted with Whitelocke and St. John, and engaged to procure £100,000 to support the Army, if the Army would again undertake the defence of religious liberty; but he gives no authority for what he relates.

[55] *Coverdale's Version*.

[56] *Price*, 86, 87.

[57] Quoted in *Guizot*, ii. 122.

[58] *Pepys' Diary*, i. 22, Saturday, Feb. 11.

[59] *Memoirs of Col. Hutchinson*, 362.

[60] *Milton's Ready and Easy Way, &c. Works*, i. 589.

[61] *Parl. Hist.*, iii. 1580.

[62] *Baxter's Life and Times*, i. 105; ii. 214.

[63] 1660, April 8. *Thurloe*, vii. 892. The rest of the letter is interesting, and shows how much personal feeling was mixed up in court intrigues.

[64] *Life and Times*, ii. 207, 215. It is curious that as the Presbyterians suspected the King, so the King suspected the Presbyterians. See letter by Kingstoun, April 8, just referred to.

[65] See *Valley of Baca*, a pamphlet published about that time.

[66] See a "Declaration," which is worth reading, printed in *Kennet's Register*, 121 (April 24), with a long list of noble signatures.

[67] All this Baxter describes with great simplicity in his *Life and Times*, ii. 216.

[68] See correspondence between Sharp and Douglas, in the months of March and April, *Kennet's Register*, 78–124.

[69] *Thurloe*, vii. 872, 873.

[70] April 8, *Thurloe*, vii. 889.

[71] April 6, *Ibid.*, 887.

[72] *Price's Mystery and Method of His Majesty's Happy Restoration*, 136.

[73] See *Lives* of him by *Gumble* and by *Price*. Sir Anthony Ashley Cooper was a confidant of Monk, and Mrs. Lucy Hutchinson tells us that he assured her husband, even after Monk's designs became apparent, that there was no intention besides a Commonwealth, and that if the violence of the people should bring the King in, he would perish body and soul rather than see a hair of any man's head touched, or a penny of any man's estate forfeited through the quarrel. Hutchinson held Cooper "for a more execrable traitor than Monke himselfe."—*Memoirs*, 360.

Aubrey, putting down his recollections of what he heard at the time from Royalist agents in London, says, "I remember, in the main, that they were satisfied he no more intended or designed the King's restoration, when he came into England, or first came to London, than his horse did." *Letters* iii. 454. I have no doubt that, in February, Monk thought of restoring the King; but before that date I am inclined to believe he was waiting to see which way the wind blew. Whatever hypothesis may be adopted as to his intentions, it must be admitted that he acted the part of a thoroughly untruthful man. Guizot, in his life of Monk, represents him as a Royalist at heart throughout the whole of the business. Of course Monk, after he openly took the King's side, would wish to be so regarded.

[74] *Ludlow's Memoirs*, ii. 865.

[75] *Guizot*, ii. 411.

[76] See in Appendix notice of a letter in the State Paper Office referring to projected insurrections.

[77] See *Journals* of both Houses, 1st of May. When examining, some years ago, the papers in the House of Lords, belonging to that period, I saw the original letter from Charles, but not the Declaration.

[78] *Clarendon's Hist.*, 904.

[79] *Burnet's Hist. of his Own Time*, i. 88.

[80] *Kennet's Register*, 129. Sharp afterwards became Archbishop Sharp.

[81] *Worcester MS.*

[82] *Public Intelligencer*, No. 20. *Newcome's Diary*, published by the Cheetham Society, and *Life of Philip Henry*, 59.

[83] Hale's reflections on the crisis may be seen in his *Memoirs by Williams*, 63–65.

[84] *Pepys' Diary* (May 15) i. 62.

[85] *Kennet's Register*, 146.

[86] In *The Secret History of the Reign of Charles II. and James II.*, 1690—a book not very trustworthy—we have the original of the story, often repeated, respecting Mr. Case, "who, with the rest of the brethren coming where the King lay, and desiring to be admitted into the King's presence, were carried into the chamber next or very near to the King's closet, but told withal that the King was busy at his devotions, and that till he had done they must be contented to stay. Being thus left alone, by contrivance no doubt, and hearing a sound of groaning piety, such was the curiosity of Mr. Case, that he would needs go and lay his ear to the closet door. By heavens, how was the good old man ravished to hear the pious ejaculations that fell from the King's lips: 'Lord, since Thou art pleased to restore me to the throne of my ancestors, grant me a heart constant in the exercise and protection of thy true Protestant religion. Never may I seek the oppression of those who out of tenderness to their consciences, are not free to conform to outward and indifferent ceremonies.'"

[87] *Kennet's Register* under date May 20th.

[88] *Barwick's Life*, 270, 520.

[89] *Buckingham's Works*, ii. 55. See *Harris's Lives*, v. 52, *et seq.*, for evidence as to his being a Papist.

[90] See what Harris has collected on this subject, v. 13 *et seq.*

[91] *Character of Charles II.*, 56.

[92] "23rd. General Monk marched from London, with a gallant train of attendants to meet the King. It is said that several fanatics intermingled themselves with the troops, but were discovered, whereof three killed, and some hurt, and three taken, who do confess the design was to pistol the King. 24th. One to be put to the rack for discovery. It is said the King escaped a plot of some Frenchmen at the Hague to pistol the King in his coach, but discovered by one who was in presence once hearing them, and they suspecting him, shot him as dead, but recovering to speak, discovered their intentions. From all such or any other, God ever preserve and protect his pious Majesty!"—*Worcester MS.*

[93] *Kennet*, 160–164.

[94] *Butler's Hist. Memorials of the Catholics*, iii. 23.

[95] From Godly ministers in Exeter and Devonshire.—*State Papers, Dom. Charles II.*, 1660, vol. i. 28.

[96]

(Signed) Philip Nye
Joseph Caryl
Samuel Slater
Richard Kentish
George Griffiths
Matt. Mede

John Hodges
William Hook
Thomas Brookes
George Cokayn
Jo. Loder
Thomas Malony
Tho. Walley
William Greenehill
Matthew Barker
Edward Pearce
John Rowe
Robert Bragg
Jo. Baker
Seth Wood

—*State Papers, Dom. Charles II.*, vol i. No. 36.

[97] (Signed) John Angier, Nathaniel Heywood, Henry Newcome, Nathaniel Baxter, and many others. Peter Aspinwall signs himself "minister of Formby, where now more people go openly to Mass than to our Church." *State Papers* xxiv., 29.

[98] A new Act, touching the Royal Supremacy, was passed in the Scotch Parliament, January, 1661 (See *Murray's Collection of the Acts*), but that does not come within the limits of our history.

[99] Stat. 26 Henry VIII. c. i., repealed 1 and 2 Philip and Mary, c. viii., ss. 12–20. That Act was repealed by 1 Elizabeth c. i., ss. 1, 2. Except in certain particulars, provision is made for the ecclesiastical Supremacy of the Crown by 1 Elizabeth c. i., ss. 16–23.—*Digest of Statutes* ii., 1387. The doctrine of the Royal Supremacy arose as a counter-action of the doctrine of Papal Supremacy; and nothing in its way can be more dignified and noble than the preface to the Statute 24 Henry VIII., c. 12. The conflict between Papal Supremacy and national English Independence began long before the Reformation.

[100] *Charles I. in 1646*, 30.

[101] *Clarendon's State Papers*, ii. 237.

[102] *Hist. of his own Times*, i. 95.

[103] *Ibid.* Compared with Clarendon (1220), who gives a long character of Southampton.

[104] *Clarendon*, 1005.

[105] *Burnet*, i. 97.

[106] *Ibid.*, 96. Burnet, who knew Ashley, afterwards Lord Shaftesbury, states the last particular upon the authority of conversations with him.

[107] July 9, 16. *Parl. Hist.* iv. 79, 84.

[108] 12 Charles II. c. 17.—Upon the 26th of May Mr. Prynne made a report touching the quiet possession of ministers, schoolmasters, and other ecclesiastical persons, in sequestered livings, until they, on order, should be legally convicted; and two days afterwards allusion was made in a further report

from the same member to several riots which had "been committed, and forcible entries made upon the possessions of divers persons, ecclesiastical and temporal;" when an order to prevent such disturbances in future was recommitted, to be put into the form of a proclamation "to be offered to the King's Majesty."—*Commons' Journals*, May 26th & 28th, 1660; This was for the benefit of the Presbyterians, but the current of feeling in the House was setting in the other direction.

[109] There is an account in *Calamy* of Abraham Wright, Incumbent of Cheavey, Cambridgeshire, being turned out of his living, because it did not appear to the Justices that he was in orders, and of his commencing an action for the recovery of his tithes: and against Mr. Deken, who had been substituted in his place, "for the making good his title to the living."—*Cont. of the Account*, 158, *et seq.*

[110] *Hunter's Life of Heywood*, 125.

[111] *Kennet*, 204.—I am indebted for the following note to the Dean of Westminster, to whom it was communicated by the Rector of Acton: "Mr. Philip Nye appears to have been made Rector of Acton soon after the Battle of Brentford, in the room of Dr. Daniel Featley (or Fairclough), who held Lambeth Rectory as well. There is a curious entry in the Register, which I append;—'April, 165—, Richard Meredith, esquire, eldest son of Sr. William Meredith...Baronet, was married unto Mrs. Susanne Skippon, youngest daughter of right honourable Major General Philip Skippon [*Traytor*] by Sr. John Thoroughgood [*Knave*] in the publick congregation within the Parish Church at Acton...Mr. Philip Nye at the same time praying and teaching upon that occasion.' The interpolations, 'Traytor' and 'Knave,' are, of course, by a different hand, and are always attributed by me to Dr. Bruno Ryves (one of Charles the Second's Chaplains?) who was appointed Rector of Acton at the Restoration. To the same Dr. Ryves is attributed the erasure of all 'Lord' Francis Rous' titles on a tablet in Acton Church, the said Lordship being of Cromwell's creation.

E. P."

[112] *Journals of the Lords*, Sept. 1.

[113] *Ibid.*, June 4.—The Earl of Manchester was restored to the Chancellorship, and he immediately issued warrants for the restoration of ejected Heads and Fellows.

[114] Between the 25th of June, 1660, and the 2nd of March, 1661, no less than 121 Doctors of Divinity were created by the King's mandate, and 39 degrees were conferred on other faculties.—*Kennet's Reg. Cooper's Cambridge*, iii. 481.

[115] *Kennet's Register*, 293.

[116] *D'Oyley's Life of Sancroft*, i. 123.—A curious story about Stephen Scanderet, of Trinity College, Cambridge, is related by *Calamy, Account*, 655.

[117] *Journals* under date.

[118] Read a second time 6th July. *Journals*. It came to nothing.

[119] *Kennet's Register*, 200.

[120] "Resolved, That it be referred to the Grand Committee, to whom the Bill for Sales is committed, to receive proposals from any of the purchasers of the estates of Bishops, and other ecclesiastical persons, and from any the ecclesiastical persons themselves, or from any others; touching satisfaction to be given to the purchasers of any public lands; and, on consideration thereof, to report their opinion to the House."—*Commons' Journals*, August 6th, 1660.

[121] *Kennet*, 312.

[122] *Harris*, iv. 345.—"Almost all the leases of the Church estates over England were fallen in, there having been no renewal for twenty years. The leases for years were determined. And the wars had carried off so many men, that most of the leases for lives were fallen into the incumbents' hands. So that the Church estates were in them: And the fines raised by the renewing the leases rose to about a million and a half. It was an unreasonable thing to let those who were now promoted carry off so great a treasure. If the half had been applied to the buying of tithes or glebes for small Vicarages, here a foundation had been laid down for a great and effectual reformation."—*Burnet*, i. 186. Burnet's statements on this subject are very general. So are those made by Clarendon from his point of view. (1047.) No doubt the ecclesiastical bodies on the one side, and the tenants on the other, tried to make the best bargain they could. In the Library of Canterbury Cathedral is a curious collection of letters respecting leases, which throw light on this point. Persons plead their sufferings under the Commonwealth, and pray for the renewal of their leases on the most favourable terms. See in our next vol. (under the year 1677) notice of an Act for augmenting small incomes.

[123] Amongst the *State Papers, Dom. Charles II.*, vol. lxxv. 69, there is an account by John Cosin, Bishop of Durham, of the true state of the present revenues of his see. They diminished £1,000 a year, through resumption of lands by Queen Elizabeth, who afterwards regranted them on a rental of £880; he lost £2,000 by taking away the Court of Ward and Liveries, the revenues of which in the County Palatine belonged to the Bishops; he prays that as the King receives £1,500 a year excise money, as given in lieu of the Court of Wards in Durham, the rental of £880, paid by the Bishops, should be remitted.

[124] *Calendar Dom.*, 1660–1661, 218–236.

[125] *Kennet*, 162. The other names given by Baxter (*Life and Times*, ii. 229) are Wallis, Bates, Manton, Case, Ash, all of whom accepted; and Newcomen, who declined the office. *Neal* (iv. 263) gives the name of Woodbridge.

[126] *Life and Times*, ii. 229. Amongst the Baxter MSS. in Dr. Williams' library, I have seen a note, apparently relating to the period now before us. Baxter said:—The late Archbishop Ussher and he had in an hour's time agreed on the most easy terms. These words were printed. Episcopal Divines called on him to know what the terms were, *i.e.*, Dr. Gauden, Dr. Gouldson, Dr. Helen, Dr. Bernard, &c. They expressed great delight, and were willing to make abatements necessary thereto. Some men of greater power stepped in and frustrated all. Mr. Calamy thought the best way was to interest and engage the King on the matter. It was mentioned to him accordingly. Calamy consulted the London ministers, and it was agreed that Ussher's reduction should be offered as a ground of union. This was laid before the King with other proposals, but the Lord Chancellor would not allow the matter to be taken into consideration.

[127] *Life and Times*, ii. 230.

[128] *Life and Times*, ii. 232.

[129] *Baxter's Life and Times*, ii. 232, et seq. Also in *Cardwell's Conferences*, 277, corrected from MS. copy amongst the *Tanner MSS.*, *Bodleian*.

[130] *Life and Times*, ii. 278.

[131] *Life and Times*, ii. 241. The date of this interview is not given by Baxter.

[132] This paper is printed in *Baxter's Life and Times*, ii. 242–247, and in *Documents relating to the Settlement of the Church of England by the Act of Uniformity of 1662*, p. 27, but not in *Cardwell's Conferences*.

[133] *Life and Times*, ii. 258, 259.

[134] *Ibid.*, 265, et seq.

[135] This no doubt had to do with the importance they attached to the ring and the sign of the cross. If any one would see the modern expression of this feeling in an intensified form, let him read *Keble's Tract for the Times*, No. 89, and Preface to *Hooker*, lxxxix.

[136] *Romans* xiv.

[137] In the foregoing statement I have endeavoured to put myself in the place of each party successively. My own views of the question in dispute are very decided; but they do not exactly accord with those of either party.

[138] Durham and Exeter were vacant sees at the Restoration. Cosin and Gauden had been nominated to them respectively.

[139] *Baxter* ii. 277. Clarendon (p. 1034) states that in the draft of the Declaration a passage occurred professing the King's use of the Prayer Book, and that "he would take it well from those who used it in their Churches that the common people might be again acquainted with the piety, gravity, and devotion of it, and which he thought would facilitate their living in good neighbourhood together." This clause Clarendon says was left out at the ministers' request, on the ground that they were resolved to do what the King wished, and to reconcile the people to the use of that form by degrees, which would have a better effect if such a passage were omitted. Then he charges Calamy with writing a letter which was intercepted and found to contain the expression of a resolve to persist in the use of the Directory, and not to admit the Common Prayer Book into their Churches. Upon turning to *Baxter* (ii. 263–275), and upon reading the Declaration, one finds, that all which the ministers promised to do, and all that the Declaration required of them, was not *totally to lay aside* the book, but to read *those parts against which there could be no exception*. It is incredible, looking at the ground taken throughout by the Puritan ministers, that they ever could have talked in the way Clarendon represents. As to the contents of an intercepted letter, no one who knows anything of the tricks then played will attach importance to what is said by the same historian on that subject.

[140] *Baxter*, ii. 259–264; also printed in *Wilkins' Concilia*, *Cardwell's Conferences*, and *Documents relating to the Act of Uniformity*.

[141] It is curious to find Baxter when he refused a Bishopric, proposing to Clarendon a number of names from which to choose some one, instead of himself. Baxter at this time had the reputation of being "intimate with the Lord Chancellor Hyde," and accordingly his influence was solicited on behalf of ministers in trouble. Adam Martindale tells us that when his own name was sent up to the Privy Council, Baxter, at the solicitation of a friend, spoke on his behalf to Clarendon, who "did so rattle one of the Deputy Lieutenants and so expostulate with the Earl of Derby, that Martindale was released." The account is very amusing, and shows Martindale's exultation at his enemies being outwitted in their application to the Privy Council. The story indicates, what may be gathered from several circumstances, *i.e.*, that Clarendon at that time wished to show favour to the Presbyterians.—*The Life of Adam Martindale*, printed for the Cheetham Society, p. 153.

[142] *Baxter*, ii. 281–283.

[143] Mr. Grosart has shown this in his interesting memoir prefixed to Gilpin's *Dæmonologia Sacra*, p. xxxii. It is a curious fact that the same Bishopric should, within a century or so, have been offered to two Gilpins, and refused by both.

[144] *Kennet*, 308. There were no less than 121 Doctors of Divinity made by mandate between 25th of June, 1660, and 2nd of March, 1661.

[145] Those of them, with whom Baxter acted, were not sufficiently satisfied with the Declaration to offer formal thanks for it. Clarendon (1035) brings this as a charge against them.

[146] *Baxter's Life and Times*, ii. 284.

[147] Nov. 9. *Kennet*, 307.

[148] *Parl. Hist.*, iv. 142.

[149] *Parl. Hist.*, iv. 152–154, and *Commons' Journals*, Wednesday, 28th of November.

[150] "That is the best and most Christian memory," says he, "that, as Cæsar's, forgets nothing but injuries. Let us all seriously and sadly look back, consider and bemoan one another, for what we have mutually done and suffered from each other."—*Harris's Lives*, iv. 385.

[151] Henchman's Sermon, entitled *A Peace Offering in the Temple*.

[152] *Clarendon*, 1034.

[153] *Calendar of State Papers. Dom. Charles II.* Nov. 1, 1660.

[154] *Clarendon*, 1035.

[155] *Lister's Life of Clarendon*, ii. 218.

[156] *State Papers. Dom. Charles II.* December 7, 1660. In a letter on the previous day he alludes to the Bill as "quashed by the violence" of its supporters.

[157] This had been Clarendon's policy from the beginning. He wrote from Breda on the 22nd April, to Dr. Barwick, in these terms: "It would be no ill expedient" "to assure them of present good preferments in the Church." "In my own opinion you should rather endeavour to win over those who being

recovered will have both reputation and desire to merit from the Church, than be over solicitous to comply with the pride and passion of those who propose extravagant things." *Barwick's Life*, 525.

[158] *Cardwell (Conferences*, 256) says "the King rejoiced when he found his stratagem had succeeded." The stratagem was more the Chancellor's than the King's.

[159] *Parl. Hist.*, iv. 67, *et seq.* It may here be mentioned that others besides those named in Parliament were exposed to danger. Lord Wharton, for example. The circumstance is rather curious—his eldest daughter, Elizabeth, then the wife of Lord Willoughby d'Eresby, as she was crossing the Thames, by the ferry at Lambeth, overheard the boatman mention her father's name as one of the excepted. Her husband immediately used his influence with the King on his father-in-law's behalf, and thus prevented the name from being retained in the list of exceptions. I am indebted for this anecdote to notices of Lord Wharton's Life, in *Lipscombe's Hist. and Antiq. of the County of Buckingham*. Lord Wharton lived at Wooburn, near Wycombe; and in the next volume I shall have to refer to this circumstance.

[160] See the *Commons' Journals*, May 14, June 5, 6, 7, 8, 30. The *Lords' Journals*, July 20, 27. *Commons' Journals*, Aug. 13, 17, 23, 24. Hallam gives a synopsis of these proceedings, and I have ventured to adopt one or two of his expressions.—*Constitutional History*, ii. 3. In the Conference on the 23rd of August, Clarendon told the Commons that His Majesty, who was duly sensible of the great wound he received on that fatal day (the day of his father's execution) when the news of it came to the Hague, bore but one part of the tragedy, for the whole world was sensible of it; and particularly instanced that a woman at the Hague, hearing of it "fell down dead with astonishment."

[161] *Trial of the Regicides*, 17.

[162] *The Trials of Charles I., and of some of the Regicides*, 330.

[163] See *Brooks's Lives of the Puritans*, iii., 350 & 363.

[164] See *Ecclesiastical Hist.*, ii. (*Church of the Commonwealth.*)

[165] *Forster's Statesmen of the Commonwealth*, iii. 356.

[166] *Lords' Journals*, February 7th, 1661/2.

[167] For the story of the Regicides see *The Trial*, published at the time, and of modern publications, *Noble's Regicides*; *Caulfield's High Court of Justice*; and *The Trials of Charles I. and of some of the Regicides*.

[168] *Commons' Journals*, December 4th and 8th, 1660.

[169] *Kennet* observes, "Some of the hottest Divines, though great sufferers and of great names, were passed by in the designations to Bishoprics. An instance in Dr. Peter Heylyn, who in 1660, upon His Majesty's return to his kingdoms, was restored to his spiritualities, but never rose higher than Sub-dean of Westminster, which was a wonder to many and a great discontent to him and his; but the reason being manifest to those that well knew the temper of the person, I shall forbear to make mention of that matter any further. Such was the case of Dr. Sibthorpe, who had suffered very great calamities in His Majesty's

cause, yet upon the return of King Charles II. he was only restored to the small preferments from which he had been violently ejected."—*Register*, 236.

[170] *Wood's Athen. Oxon. (Bliss)*, iii. 613. Further notice of these Bishops will be supplied hereafter.

[171] *D'Oyley's Life of Sancroft*, ii. 346.

[172] *Mant's History of the Church of Ireland*, i. 611. Taylor preached a sermon on Episcopacy. *Works*, vi. 301.

[173] *Keble's Life of Bishop Wilson*, i. 132.

[174] *Canons*, 9–12, 72, 73.

[175] See also 3 *Jac.*, 4; 21 *Jac.*, 4.

[176] The letter is written by R. Ellsworth, "Bristol this 24th of November, 1660," and is addressed to Sir E. Nicholas. STATE PAPERS, DOM. CHARLES II.

[177] *Rees' Nonconformity in Wales*, 111. Powell speaks of himself as if charged with "preaching sedition and rebellion." The specific charges against these Welshmen do not appear. It seems to me very probable that they were accused of political disaffection.

[178] *Lives of Philip, Howe, and Bunyan*.

[179] It may seem strange to some that Charles II. should excite so much enthusiasm. But it must be remembered that by letters from abroad and other means, extraordinary ideas of his excellence had been diffused throughout the country. Some amusing illustrations of this are supplied in the *Worcester MS.*:—

"June 6th.—Mr. Prinn coming to kiss His Majesty's hands, prayed God to bless him—'and so also you, Mr. Prinn,' and smiling clapt him on the shoulder."

"6th.—It is said that Mr. Calamy, a Presbyterian, and one of the King's chaplains, desired His Majesty that he might not officiate in these canonical habits, especially in a surplice, for it was against his conscience, who answered he would not press it on him, and as he refused to do in the one, so he would spare him in the other. It is also said when His Majesty was at primal prayers in his presence-chamber, and seeing all on their knees but the Earl of Manchester, his chamberlain, who stood by him (a Presbyterian), His Majesty suddenly took a cushion, and said, 'My Lord, there is a cushion, you may now kneel;' which for shame he was glad patiently to do. O meek, O zealous, O pious prince!"

"July.—The King going to swim one night in the Thames, there were divers ladies and gentlemen looking out of the windows of Whitehall, which he beholding, sent a message that either they should shut their windows and pray for his safety, or begone out of court. O chaste and good prince!"

"Oct. 23rd.—A settling of the King's household according as the book was 6th Charles I.—wherein His Majesty declares that his officers should collect out of the same all such wholesome orders, decrees, and directions as may tend most to the planting, establishing, and countenancing of virtue and piety in his family, and to the discountenancing of all manner of disorder, debauchery, and vice in any person of what degree or quality soever."

[180] *State Papers, Dom.* 1661, January 11th.

[181] The entry in the Council Book, and the subsequent Proclamation, are printed in *Kennet's Register*, under dates January 2nd & 10th.

[182] *Neal*, iv. 311.

[183] *Crosby*, ii. 108.

[184] Sir John Maynard informed Lord Mordaunt that so many refused to swear that he did not know what to do: some because they would not swear at all; others because they would not enter into promissory obligations; others because, as the King had taken no oath to obey the laws, they would take no oath to obey the King.—*State Papers, Dom.* 1661, January 19th.

[185] *Baxter's Life and Times*, ii. 301. No date is given—it is only said that the circumstance occurred at the time of Venner's insurrection.

[186] *Loyal Subject's Lamentation for London's perverseness in the malignant choice of some rotten Members on Tuesday, 19th March, 1661.*

[187] The Government monopoly of letter carrying was sometimes invaded; and I notice in the Minute Book of Privy Council, 1661–2, a curious order for taking into custody two persons, who obtained large quantities of letters under the pretence of conveying them to their proper destination, but who in fact threw them into the Thames, and still worse places.

[188] Sir Thomas Browne, in a letter to his son, says—"Two Royalists gained it here (Norwich) against all opposition that could possibly be made; the voices in this number—Jaye, 1,070; Corie, 1,001; Barnham, 562; Church, 436. My Lord Richardson and Sir Ralph Hare carried it in the county without opposition."—*Works*, i. 8.

[189] As instances of such purging, we may mention that on the 25th of February, just before the election, orders of that kind were sent to Hull and Norwich.—*State Papers, Dom.*, under date. Oldfield's *History of the Original Constitution of Parliament*, gives a very large number of instances in which members for boroughs in the seventeenth century were returned by the Corporation. For example:—Andover, votes 24; Banbury, votes 18; Bath, votes 18; Beaumaris, votes 24.

[190] County of Devon.

[191] Their former history is remembered in *Hudibras*:—

"Was not the King, by proclamation,
Declared a rebel o'er all the nation?
Did not the learned Glynne and Maynard,
To make good subjects traitors, sham hard?"

[192] *Parl. Hist.*, iv. 383.

[193] *Ibid.*, iv. 862.

[194] May 10th.—"Parliament assembled on the 8th [of May], the King went on horseback, with a magnificent equipage. After a sermon in Westminster Abbey, they went in the same order to the House of Peers, &c."—*State Papers, Dom.* under date.

[195] *Lords' Journals*, 1661, May 8th and 10th.

[196] A Diarist states that Dr. Gunning, who officiated, refused the bread to Mr. Prynne, because he did not kneel; and that Boscawen took it standing.—*Lathbury's Convocation*, 297.

[197] *The Presbyterian Divines* were Edward Reynolds, Bishop of Norwich; Dr. Tuckney, Master of St. John's College, Cambridge; Dr. Conant, Reg. Prof. Div. Oxford; Dr. Spurstow; Dr. Wallis, Sav. Prof. Geom. Oxford; Dr. Manton; Mr. Calamy; Mr. Baxter; Mr. Jackson; Mr. Case; Mr. Clarke; Mr. Newcomen.

Coadjutors:—Dr. Horton; Dr. Jacomb; Dr. Bates; Dr. Cooper; Dr. Lightfoot; Dr. Collins; Mr. Woodbridge; Mr. Rawlinson; Mr. Drake.

The *Episcopal Divines* were:—Accepted Frewen, Archbishop of York; Gilbert Sheldon, Bishop of London, Master of the Savoy; John Cosin, Bishop of Durham; John Warner, Bishop of Rochester; Henry King, Bishop of Chichester; Humphrey Henchman, Bishop of Sarum; George Morley, Bishop of Worcester; Robert Sanderson, Bishop of Lincoln; Benjamin Laney, Bishop of Peterborough; Bryan Walton, Bishop of Chester; Richard Sterne, Bishop of Carlisle; John Gauden, Bishop of Exeter.

With the following *Coadjutors*:—Dr. Earle, Dean of Westminster; Dr. Heylyn; Dr. Hacket; Dr. Barwick; Dr. Gunning; Dr. Pearson; Dr. Pierce; Dr. Sparrow; Mr. Thorndike.

No distinction is made between the two parties in the terms of the Commission.

[198] *Life and Times*, ii. 302–304.

[199] *Life and Times*, ii. 305; *Kennet*, 398; *Cardwell Documents*.

[200] Two applicants are mentioned as anxious for the office—Dr. Warmestry and Richard Braham—the latter writes to John Nicholas asking his "influence with his father to get him recommended as an additional Commissioner of the Excise, having relinquished the idea of the Mastership of the Savoy in favour of Dr. Sheldon."—*State Papers, Cal. 1660–1*, 16, 113.

[201] The Declaration adopted at the Savoy will be noticed in the next volume. The Independents have no authoritative standards, but a Declaration of their Faith and Order was issued by the Congregational Union of England and Wales some years ago.

[202] *Kennet*, 389.

[203] *Clarendon*, 1047.

[204] *Kennet*, 412, *et seq.*

[205] The other two, built by Henry VII., were King's College, Cambridge, and the Chapel, which bears his name at Westminster.

[206] *Strype's Stow*, ii. 103.

[207] See on Cosin and the other Bishops, vol. ii. of *Eccles. Hist. (Church of the Commonwealth)*, chap. xii.

[208] *Baxter*, ii. 364.

[209] *Hallam's Literature of Europe*, iv. 179.

[210] For fuller notices of the Presbyterian Divines, who figured at the Savoy, see *Eccles. Hist. (Church of the Commonwealth)*, chap. viii.

[211] *Clarendon's Continuation*, 1048. April 23rd. "This day," says the *Worcester MS.*, "was the solemn and most glorious Coronation of Charles II., at Westminster, when did preach George Morley, Bishop of Worcester.

"This day all the trained band, horse and foot, were up in arms in several parts, to prevent insurrections and tumults of seditious fanatics and schismatics, haters of Monarchy and Episcopacy.

"This morn also, at Worcester, about break of day, was posted up in several places of the city a base, scurrilous, seditious, and facetious libel, as followeth:
—

"A seasonable memento, April 23rd, 1661.

"This day it is sayd the king shall sweare once more,
Just contrary to what he sware before.
Great God, and can thy potent eies behold
This height of sin, and can thy vengeance hold?
Nipp thou the bud, before the bloome begins,
And save our Sovereyn from presumptuous sinns.
Lett him remember, Lord, in mercy grant,
That, solemnly, he swore the Covenant."

"May 2nd. The King's Coronation is now over, and was attended with so many glories that the most curious beholders from foreign parts deem it inferior in magnificence to none in Europe. The people received all with loud acclamations and profuse expressions of joy. Twelve Knights of the Garter, and six of the Bath, six Earls, and six Barons, were created on the occasion."—*State Papers, Cal. Dom.* May 2, 1661.

[212] *Baxter*, ii. 342.

[213] *Ibid.*, ii. 333. The Proctors of Convocation for the diocese of London, are elected two for each Archdeaconry, the Bishop choosing two out of the whole number—at that time ten. Baxter, speaking generally of the Convocation, states that ministers who had not received Episcopal ordination, "were in many counties denied any voice in the election of Clerks for the Convocation. By which means, and by the scruples of abundance of ministers, who thought it unlawful to have anything to do in the choosing of such a kind of assembly, the diocesan party wholly carried it in the choice." Burnet, of course dependent on reports, says: "Such care was taken in the choice and returns of the members of the Convocation, that everything went among them as was directed by Sheldon and Morley."—*History of his own Times*, i. 184. The author of the *Conformists' Plea*, p. 35, perhaps following Baxter, observes, that men were got in and kept out by undue proceedings; and "that protestations were made against all Incumbents not ordained by Bishops."

[214] *Life and Times*, ii. 307. Baxter is our main authority for the history of the Conference. It is to be regretted that we have no other full account.

[215] What took place at the Savoy Conference is of great importance in relation to the vestment controversy. An intelligent clergyman, the Rev. R. W. Kennison, writing in the *Times*, of July 6th, 1867, observes:—"In the last days of the Conference, when he (Baxter) summed up all in a few leading points, he went over again his objections to the surplice, but said not a word about the other vestments. And I have looked into every book I have been able to lay my hands on relating to that period, without being able to find one word more on the subject. There is much discussion about surplices; but copes, albs, and tunicles, are never mentioned."

[216] This resemblance is adverted to in the *Conformists' Plea for Nonconformity*, 22. See *Eccles. Hist. (Civil Wars)*, 124.

[217] *Baxter's Life and Times*, ii. 321; *Cardwell's Conf.*, 303; *Documents relating to the Act of Uniformity*.

[218] *Baxter's Life and Times*, ii. 334.

[219] *State Papers, Cal. Dom.*, 1661, October 26.

[220] *Kennet*, 434.

[221] *Stanley's Memorials of Westminster*, 464.

[222] The following passage is found in one of Sancroft's MSS.:—"May 22nd. *Precibus peractis*, ordered, that each keep his place, that but one speak at once, and that without interruption; none to use long speeches; to have a constant verger."—*D'Oyley's Life of Sancroft*, i. 113.

[223] *Kennet*, 450.

[224] *Lathbury's Convocation*, 306; *Cardwell's Synodalia*, April 26th; *Robinson's Review of Liturgies*; *Kennet's Register*, 368–70. *King Charles' Martyrdom* was introduced into the Calendar 30th January:—and it appears, there are six churches in England, named in his honour, They are in Falmouth, Tonbridge Wells, Peak Forest, Wem, and Plymouth; in the last town there are two.—*Interleaved Prayer Book, by Campion and Beamont*.

[225] *D'Oyley* in his *Life of Sancroft* (i. 114) says, in 1628; *Procter* (262) says, in 1625 (in an *Order of Fasting*); and again, in 1628, Palmer remarks—that "the appellation of 'most religious and gracious King,' corresponds with those high titles of respect and veneration which the primitive Church gave to the Christian emperors and kings"; thus, in the Liturgy of Basil, it is said, "Μνήσθητι κύριε τῶν εὐσεβεστάτων καὶ πιστοτάτων ἡμῶν βασιλέων."—*Origines Lit.*, i. 336.

[226] *Cardwell's Synodalia*, 687.

[227] *Ibid.*, 645.

[228] *Ibid.*, 649–51.

[229] The paper is not given by Baxter; it is printed in *Cardwell's Conferences*, 335–363.

[230] The concessions which were offered in reference to the Prayer Book will be noticed in the Appendix.

[231] The Liturgy is in *Baxter's Works*, vol. xv.

[232] *Life by Boswell*, vol. ix. 141.

[233] *Life and Times*, ii. 306.

[234] *Life and Times*, ii. 334.

[235] The document is not in *Cardwell* or *Baxter*, but it is printed in the *Documentary Annals relating to the Act of Uniformity*, 176.

[236] The rejoinder is neither in *Baxter* nor *Cardwell*, but it is printed at length in the *Documents relating to the Act of Uniformity*, 201.

[237] *Baxter*, ii. 336, 341.

[238] Given in *Life and Times*, ii. 341, but not in *Cardwell's Conferences*. It is included in the *Documents relating to the Act of Uniformity*, 346.

[239] *Life and Times*, ii. 346.

[240] These discussions are reported by *Baxter*, ii. 346. That which relates to the sinfulness of the Liturgy, is alone included in *Cardwell's Conferences*, 364. Both may be found in the *Documents relating to the Act of Uniformity*.

[241] *Life and Times*, ii. 359.

[242] *Letter to a Friend in Vindication of Himself, &c.* (1683), p. 8. See also *Calamy's Abridgment*, 169.

[243] See *Procter on the Prayer Book*, 136. Compare *Sanderson's Sermons*, p. 12, with *Orme's Life of Baxter*, p. 589, for a lively statement of arguments on each side.

[244] *Baxter*, ii. 357. He mixes up the two days together.

[245] *Froude's History of England*, vii. 75.

[246] *Life and Times*, ii. 363, 364. See p. 163 of this vol.

[247] *Life and Times*, ii. 338.

[248] *Protestant Peace Maker*, by Bishop Rust, 1682.

[249] *Burnet*, i. 180.

[250] *Life and Times*, ii. 364. "Aug. 13.—A facetious Divine being commended to Lord Chancellor, Sir Edward Hyde, who loved witty men, desired to converse with him: being come to him, the Chancellor asked him his name; he said Bull; he replied he never saw a bull without horns. It is true (was the answer), for the horns go with the hide."—*Worcester MS.*

[251] *Life and Times*, ii. 365.

[252] After the Act of Uniformity, Baxter shrewdly observes, "This is worthy the noting by the way, that all that I can speak with of the conforming party, do now justify only the *using* and *obeying*, and not the *imposing* of these things with the penalty by which they are imposed. From whence it is evident that most of their own party do now justify our cause which we maintained at the Savoy, which was against this imposition (whilst it might have been prevented), and for which such an intemperate fury hath pursued me to this very day."—*Ibid.*, 394.

[253] Baxter observes: men on both extremes were "offended with me, and I found what enmity, charity, and peace are like to meet with in the world."—*Life*

and Times, 380. His experience in this respect is not an uncommon one.

[254] *Clarendon* (1076), says the Independents, at the Restoration, had as free access to the King as the Presbyterians—"both that he might hinder any conjunction between the other factions, and because they seemed wholly to depend upon His Majesty's will and pleasure, without resorting to the Parliament, in which they had no confidence, and had rather that Episcopacy should flourish again, than that the Presbyterians should govern." Clarendon is no authority for the policy of the Congregationalists, and goes too far in the last remark. Nor does their access to Court, which I apprehend he greatly exaggerates, prove that they had anything like the political influence of the Presbyterians.

[255] He was let off by Parliament with a simple disqualification for exercising any office, ecclesiastical, military, or civil. In a petition he humbly tendered in January, 1662, we find him representing himself as a minister of forty years' standing, now become infirm, with a wife and three children unprovided for, his present maintenance depending on voluntary contributions, which if taken away would leave him penniless and ruined.—*Kennet*, 269, 602.

[256] *Commons' Journals*, May 17.

[257] *Mercurius Publicus*, May 30.

[258] *Public Intelligencer*, June 6-13.

[259] *Commons' Journals*, June 17, 29, July 12, 16, 19. Read first time in the Lords, July 23; after which no notice of it occurs. The Lords were less intolerant than the Commons.

[260] *Clarendon's Continuation*, 1070.

[261] *Parl. Hist.*, iv. 219. We may here mention, as an illustration of the spirit for dishonouring the dead—and that too on the anti-Episcopal as well as the anti-Puritan side—that there are repeated references in the *Journals* of the Lords during this Session, to accusations brought against Matthew Hardy, for taking up the body of Archbishop Parker, for selling the lead wherein he was wrapped, for defacing his monument, for turning his tombstone into a table, and for burying "the bones of that worthy person under a dunghill." The delinquent was ordered to put the bones again in their old place, and to restore the monument, but he neglected "the doing of these things." At last Matthew Hardy "acknowledged his hearty sorrow," obeyed the order of the House, and was discharged on payment of fees. (*Lords' Journals*, 1661, July 24, Dec. 9, 13, Jan. 14, 28.

[262] See *Journals*. The Bill was read the first time in the House of Lords the 17th of July.

[263] See *Journals and Statutes*, 13 Car. ii., St. 1. cxii.

[264] Quoted in *Kennet*, 374.

[265] *Journals*, June 25.—The same Committee as I have just mentioned.

[266] *Lord Campbell's Lives of the Chief Justices*.

[267] Cardwell says, "It is probable, as the book is not uncommon now, that a copy of it was produced, and was not found to be sufficiently in accordance with the higher tone of ordinances, which, since the days of Elizabeth had more

generally prevailed."—*Cardwell's Conferences*, 376. But it is more likely the reason might be that the *original* or MS. of the book could not be found. I have sought in vain for some information to throw light on this circumstance.

[268] See *Journals* under dates.

[269] *Mercurius Publicus*.

[270] *Williams' Life of Philip Henry*, 91, 92.

[271] *The Cedar's sad and solemn fall*.

[272] I may mention the *Presbyterian Lash or Noctroft's Maid whipt*—a piece of coarse and filthy satire—and an *Antidote against Melancholy, made up in Pills*; compounded of *witty ballads, and jovial and merry catches*, in which there is the song of the *Hot-headed Zealot*, and *The Schismatic Rotundos*.

[273] In none of the Nonconformist publications of that day, have I ever seen anything like the scurrility poured upon them by their opponents.

[274] *Lords' Journals*.

[275] *Ibid*.

[276] "At Court things are in a very ill condition, there being so much emulation, poverty, and the vices of drinking, swearing, and loose amours, that I know not what will be the end of it but confusion. And the clergy so high, that all people that I meet with do protest against their practice."—*Pepys' Diary*, 1661, August 31.

[277] The letter is dated December 25th, 1660. Endorsed by Secretary Nicholas as received October 9th, 1661.—*State Papers, Dom. Charles II*.

The exposure of the fraud is in *Remarkable Passages in the Life of W. Kiffin*, 29.

In that age of sham plots the fabrication of letters was common, of which Captain Yarrington published an exposure in 1681. See *Calamy's Abridgment*, 178. In the Record Office, under date, 1661, November 16th, in a letter from Sir John Packington to Sec. Nicholas, Yarrington and Sparry are mentioned as disowning certain intercepted letters.

[278] *Commons' Journals*, January 10.

[279] Though the Lower House at York sent proxies to the Canterbury Synod, we find the members had some discussion of their own. Dr. Samwayes, Proctor for the clergy of Chester and Richmond, proposed some queries, beginning with the question, "Whether, in case any alterations in the Liturgy should be decided on, a public declaration should not be made, stating that the grounds of such change are different from those pretended by schismatics?" The last inquiries he suggested were, "Whether those who persist in holding possession unjustly gotten in the late rebellion be meet communicants? and whether some addition ought not to be made to the Oaths of Supremacy and Allegiance excluding all evasions?" The spirit of the proposals and the temper of some in the Northern Convocation may be easily inferred from these specimens.—*Joyce's Sacred Synods*, 712.

[280] Royal letters were issued to the province of York relative to reviewing the Prayer Book.

[281] *State Papers, Dom. Charles II.*, vol. xliii. *Entry Book*, vi. p. 7.

[282] Palmer says, *Origines, Lit.* i. p. vi. preface, "The great majority of our formularies are actually translated from Latin and Greek rituals, which have been used for at least fourteen or fifteen hundred years in the Christian Church; and there is scarcely a portion of our Prayer Book which cannot in some way be traced to ancient offices."

[283] He had succeeded Calvin as pastor at Strasburg, and was obliged afterwards to seek refuge in England with some of his flock. They settled at Glastonbury and turned a part of the Abbey into a worsted manufactory, by grant from the Duke of Somerset. In 1552, Pullain published an order of service in Latin, and dedicated it to Edward VI.

[284] It has been ascribed to Hilary of Poitiers, to Nicetius of Trèves, and to Hilary of Arles.

[285] In the Sarum Breviary it is appointed to be sung at Prime, after the psalms and before the prayers.

[286] The title of this book is very extended. It was first published in German. The Latin copy, a very fine one, used by Cranmer, printed 1555, is in the library of Chichester Cathedral. An English translation, printed 1547, runs thus: "A simple and religious consultation of us, Hermann, by the grace of God, Archbishop of Cologne, and Prince Elector, etc." Hermann was assisted in his book by Melancthon and Bucer, who largely used in their contributions, Luther's service for Brandenburg and Nuremberg; and in Hermann's book may be found the ground work of the forty-two Articles contained in Edward's second Prayer Book. They present a close resemblance to the Augsburg Confession. The influence of Luther on the English Prayer Book is traceable here.—*Hook's Archbishops*, second series, ii. 289.

[287] See *King Edward's Liturgies* (Parker Society), 89 and 280; also compare p. 283, and *Elizabeth's Liturgies* (Parker Society), p. 198.

I have adopted *Procter's History* as an authority throughout.

[288] The old Gallic form ran thus: "*Domine Deus Omnipotens, famulos tuos, quos jussisti renasci ex aqua et Spiritu Sancto, conserva in eis baptismum sanctum quod acceperunt,*" etc.—*Palmer*, ii. 195.

[289] See *Joyce's Sacred Synods*, 714.

[290] *Cardwell's Synodalia*, 653.

[291] *Conferences*, 371.

[292] "In its original shape it is supposed to have been longer, and to have brought into one prayer the petitions for the King, Royal Family, Clergy, etc., which are scattered through several collects. The Convocation, however, retained the collects, and therefore threw out the corresponding clauses in this general prayer without altering the word *finally*, which seems to be needlessly introduced in so short a form."—*Procter*, 262.

[293] The services for January 30, and May 29, were not in the Book sent to Parliament.

[294] See remarks of editor in *Cosin's Works*, v. p. xxi.

[295] Sess. xl. *Kennet*, 576. Calamy states that when Dr. Allen urged Sheldon to meet the scruples of the Dissenters, he told him there was no need to trouble himself about that, they had resolved upon their measures.

[296] Pell was a singular character, with a continental reputation, and had been sent by Cromwell as envoy to the Protestant Swiss Cantons. After his return to England, at the Restoration, he took Holy Orders and became Chaplain to the Archbishop of Canterbury. A deanery was thought of for the illustrious scholar, "but being not a person of activity, as others who mind not learning are, could never rise higher than a Rector. The truth is, he was a shiftless man as to worldly affairs, and his tenants and relations dealt so unkindly by him, that they cozened him of the profits of his parsonage and kept him so indigent, that he wanted necessities, even paper and ink to his dying day." Pell was "once or twice cast into prison for debt," and was at last buried by charity.—*Kennet's Register*, 575. These are curious biographical associations gathering round the Calendar in the Prayer Book.

[297] *The Rehearsal Transposed*, 500.

[298] *Thorndike's Works*, vi. 233–235.

[299] The Bishops' form was: "*Unanimi assensu et consensu in hanc formam redeimus, recepimus et approbavimus, eidemque subscripsimus.*"—*Kennet*, 584.

[300] A statement of the object and nature of the alterations as given by the revisors themselves, may be found in the preface to the Prayer Book of 1662.

[301] *Stanley*.

[302] *Strype's Annals of the Reformation*, vol. ii. part 1, 105.

[303] These facts are brought together in the *Edinburgh Review*, vol. cxv., and are presented in Dean Stanley's letter to the Bishop of London, 1863.

[304] *Cardwell's Conferences*, 372. Cardwell has fallen into an error in speaking of Walton as Bishop of Chester, in March, 1662. He died November 29th, 1661. Ferne was consecrated Bishop of Chester in February, 1662.

[305] *Synodalia*, 668.

[306] The book was republished in 1850, by Cardwell. It reflects the doctrinal opinions of the period, and is most decidedly Calvinistic—p. 21. It subjects heretics, including persons not believing in predestination, to the punishment of the civil magistrate—"ad extremum ad civiles magistratus ablegetur puniendus," p. 25.

[307] Published in 1690, under the title of *Bishop Overall's Convocation Book*. It was printed from a copy belonging to Overall.

[308] Thorndike considered that a Church which could not excommunicate was no Church, and he pleaded for the revival of the discipline of penance.

[309] Leighton told Burnet, "he was much struck with the feasting and jollity of that day. It had not such an appearance of seriousness or piety as became the new modelling of a Church."—*Own Times*, i. 140.

[310] *Evelyn's Diary*.

[311] A letter by Henchman, Bishop of Salisbury, *State Papers, Dom. Charles II.*, 1661, October 17th, gives a long account of the trouble and vexation he met with in striving to bring his diocese into order. He says, addressing Secretary Nicholas: "At Wallingford, one Pinckney, at Malmesbury, one Gowan (?) are busy turbulent men, I cannot with any skill or power that I have, form these places into good order. In some private villages irregular and schismatical men do mischief; I take particular account of them, and know who in my whole diocese conform not, which I shall report when I attend on your Honour."

[312] *State Papers. Entry Book.* February 24th. See also *Journals* under dates.

[313] *Journals*, March 3, 1662.

[314] *Lords' Journals*, February 27, March 5, 6, and 7.

[315] There is a letter from Gauden, Bishop of Exeter, to the Earl of Bristol concerning charity to Quakers, and indulgence to all sober Dissenters, dated May Day, 1662, amongst the *Gibson MSS.*, vol. ii. 177. Lambeth Library.

[316] *State Papers*, March 31, 1662.

[317] The amendments are gathered from papers in the House of Lords, copies of which I have been permitted to obtain, and from a comparison of the Journals with the Act as published.

[318] *Clarendon's Continuation*, 1077–1079.

[319] April 6th.

[320] I give a literal copy of a draft of amendment found among the Papers of the House of Lords, connected with the Act, showing the fruitless attempts made to modify the abjuration of the Covenant—

"I, A. B., doe declare That I hold that there lyes no obligation upon mee or any other person from the oath commonly called the Solemn League and Covenant

Rejecter {	otherwise than in such things only whereunto I or any other person other than what I or they were otherwise legally oblig'd unto before
	were legally and expressly obliged before the taking of y ^e s ^d Covenant,
	the taking of the Covenant,
	and that the same was in itselfe an unlawfull oath," &c.

[321] A comparison of Clarendon's history with the Journals of the two Houses, shows that in almost every paragraph of his narration there are inaccuracies. It would require too much space to point them out. I have abridged his report of the speeches delivered, but with much misgiving as to its correctness; probably, however, the general tenor of the debate was as the

Chancellor represents; and in the arguments for the Bill perhaps he gives his own orations.

[322] Clarendon intimates that the former part of the declaration respecting war against the King was most obnoxious to the Presbyterian Lords, yet that they durst not oppose it, because the principle of non-resistance had already been recognized in the Corporation Act. He adds, that they who were most solicitous that the House should concur in this addition, "had field-room enough to expatiate upon the gross iniquity of the Covenant."

[323] On the 7th of April "the Lord Bishop of Worcester" (appointed to Winchester upon the death of Duppa on March 26th) "offered to the consideration of this House an explanation in a paper, of the vote of this House on Saturday last, concerning the words in the Act of Uniformity which declared against the Solemn League and Covenant, which he first opened, and afterwards, by permission of the House read." The question was raised, Whether a debate on the paper was against the orders of the House? and resolved in the negative, whereupon it was ordered, that the paper should be taken into consideration the next morning. A memorandum is entered in connection with this minute, "That, before the putting of the aforesaid question, these Lords, whose names are subscribed, desired leave to enter their dissents if the question was carried in the negative." No names, however, are subscribed. The day following, the House examined the paper which had been brought in for an explanation of the clause in the Act of Uniformity concerning the Covenant; and, after a long debate, the paper was laid aside.—*Journals*.

[324] The Lords appointed were the Duke of Buckingham, the Earl of Bristol, the Earl of Anglesey, the Bishop of Worcester, the Bishop of Exeter, the Bishop of Hereford, and the Lords Wharton, Mohun, Lucas, and Holles. The Earl of Anglesey reported the next day, "that the Committee have considered of a proviso, that such persons as are put out of their livings by virtue of the Act of Uniformity, may have such allowances out of their livings for their subsistence as His Majesty shall think fit." After some debate a few alterations were made, and it was resolved that the "proviso, with the alterations, shall stand in the Bill." The Lords having read the Bill a third time, April 9, resolved "to send for a Conference with the House of Commons to-morrow morning, and communicate this Bill with the alterations and amendments to them." The next day they gave direction "to deliver the Book wherein the alterations are made, out of which the other Book was fairly written."

[325] *Commons*, April 10, 14, and 16.

[326] By 96 to 90.—*Journals*, April 16.

[327] *Ibid*.

[328] Dr. Southey in his *History of the Church*, ii. 467, observes, The ejected "were careful not to remember that the same day, and for the same reason (because the tithes were commonly due at Michaelmas), had been appointed for the former ejection, when four times as many of the loyal clergy were deprived for fidelity to their sovereign." To say nothing of the latter part, a subject I have fully discussed in a former volume, I would notice Mr. Hallam's question—"Where has Dr. Southey found his precedent?" Not any one Parliamentary ordinance in Husband's collection mentions St. Bartholomew's Day. Dr. Southey

has, no doubt, followed Walker in his *Sufferings of the Clergy*, who makes the statement without any authority. Yet see quotation from *Farewell Sermons* in this volume, p. 278.

[329] Noticed in conferences with the Lords, May 7.

[330] *Commons' Journal*, April 21.

[331] *Ibid.*, April 22.

[332] *Ibid.*, April 26. The numbers were 94 to 87. It is curious to notice Hallam's correction of Neal. Referring to the division on the 26th of April, he says, "This may perhaps have given rise to a mistake we find in Neal, that the Act of Uniformity only passed by 186 to 180. There was no division at all upon the Bill, except that I have mentioned."—*Constitutional History*, ii. 37. Neal is undoubtedly incorrect, for there was no division on the Bill as a whole; but, Mr. Hallam is also mistaken, for as to parts of the Bill there were at least four divisions, according to the Journals. The neglect of the Journals, more or less, by all historians, has been one main cause of the inaccurate and confused accounts found in the best of them.

[333] *Lords' Journals*, May 7.

[334] *Lords' Journals*, May 8. *Cardwell's Synodalia*, 672.

[335] There is an anecdote touching the same rubric related by Kennet (643). "Archbishop Tenison told me, by his bedside, on Monday, February 12, 1710, that the Convocation Book, intended to be the copy confirmed by the Act of Uniformity, had a rash blunder in the rubric after baptism which should have run 'It is certain, by God's word, that children which are baptized dying before they commit actual sin, are undoubtedly saved.' But the words 'which are baptized' were left out till, Sir Cyril Wyche coming to see the Lord Chancellor Hyde, found the Book brought home by His Lordship, and lying in his parlour window, even after it had passed the two Houses, and happening to cast his eye upon that place, told the Lord Chancellor of that gross omission, who supplied it with his own hand." No sign of this particular error occurs in the authorized text attached to the Act. Probably Tenison had heard a story of the alteration which I have noticed, and related it inaccurately.

[336] The entry in the *Lords' Journals* runs thus—"Whereas it was signified by the House of Commons, at the Conference yesterday, 'that they found one mistake in the rubric of baptism, which they conceived was a mistake of the writer [persons] being put instead of [children,] the Lord Bishop of Durham acquainted the House that himself, and the Lord Bishop of St. Asaph, and the Lord Bishop of Carlisle, had authority from the Convocation to mend the said word, averring it was only a mistake of the scribe; and accordingly they came to the Clerks' table, and amended the same!' This was on the 8th of May, but on the previous 21st of April the rectification of the error is recorded in the proceedings of Convocation.—*Synodalia*, 670. That the Commons detected the clerical error in the copy of the Book which they had received and examined, as noticed in their Journals, the 16th of April; and that they called the attention of the Lords to it, appears from a loose paper in the House of Lords, in which it is said—"That the Lords be made acquainted that this House hath observed a mistake in the rubric after public baptism of infants [persons] being inserted instead of

[children,] which they take to be but *vitium scriptoris*, and desire the Lords will consider of a way how the same may be amended."

[337] An account of these books will be found in the Appendix to the next volume.

[338] *Lords' Journals*, May 19.

[339] It is evident from the 13th of Elizabeth, cap. xii., "An Act for the Ministers of the Church to be of Sound Religion," that a particular form of ordination was not then requisite for ministration in the Establishment. The words of the Act are, "That every person under the degree of a Bishop, which doth or shall pretend *to be a priest or minister of God's holy word and sacraments* by reason of any *other form* of institution, consecration, or ordering, than the form set forth by Parliament, in the time of the late King of most worthy memory King Edward VI., or now used in the reign of our most gracious Sovereign Lady before the Feast of the Nativity of Christ next following, shall, in the presence of the Bishop or guardian of the spiritualities of some one diocese where he hath or shall have ecclesiastical living, declare his assent and subscribe to all the Articles of Religion," &c. This was the law till 1662.

[340] It is not meant that these men actually performed the work of revision, but they were the guiding spirits of the Church; therefore the character of the Book issued at the different periods may be considered as reflecting their opinions.

[341] I have already noticed that the Puritans, in their exceptions against the Prayer Book, at the Savoy Conference, urged on their opponents the comprehensive policy of the Reformers.—*Baxter*, ii. 317; *Cardwell's Conferences*, 305.

[342] *Clarendon's Continuation*, 1078.

[343] This illustration was suggested to me by a distinguished Divine of the Church of England.

[344] He speaks (1079) of the Upper House expunging some parts of that subscription which had been annexed to the Bill. I find no trace of this.

[345] It is curious that in one particular, uniformity exists beyond the direction of the Prayer Book.

Lathbury says: "Both by *rubrical* and *canonical* authority, the table may be placed in the body of the Church or in the chancel."—*Hist. of Con.*, 303. Yet the practice is to place it near the wall at the east end.

[346] *Essays. On Unity and Of Church Controversies*.

[347] *Forster*, iii., 209–240; *Own Time*, i. 164.

[348] *Noble's Regicides*, ii. 31.

[349] *Orme's Life of Baxter*, 454.

[350] *Isaiah* xvi. 4.

[351] *Holmes' Annals of America*, and *Orme's Life of Baxter*, 454.

Sir Walter Scott has adopted the romantic story of the Indian War in his *Peveril of the Peak*, but he has confounded Whalley with Gough. Cooper has

also used the story in one of his novels.

[352] The Book was so hastily printed, that the proofs were not carefully compared with the written copy attached to the Act. At Chichester there are two of these uncorrected copies. The *third* or sealed copy is the one which passed through the hands of the Commissioners, and is altered by their pens. The alterations are found to be chiefly corrections of errors arising from a hasty copying of the MS. Book for the press.

There does not appear to have been much care taken with the reprints, even after the "Sealed Books" were distributed. An edition dated 1669, perpetuates most of the errors of the printed copy of 1662. For this information I am indebted to the kindness of the Rev. Dr. Swainson. See further on this subject in Appendix.

[353] *Own Times*, i. 185.

[354] *Life of Philip Henry*, 100. See also *Calamy's Defence of Moderate Nonconformists*, vol. ii. 357.

[355] Sir Edward Coke, in his *Institutes*, part ii., says that the "word *Ordinary* signifieth a Bishop, or he, or they, that have ordinary jurisdiction, and is derived *ab ordine*."

[356] Dated the 17th of August, 1662. *Kennets Historical Register*, 743.

[357] In this form—"Ego A. B. prætensas meas ordinationis literas, a quibusdam Presbyteris olim obtentas iam penitus renuncio, et demitto pro vanis," &c.—*Life of P. Henry*, 97.

[358] *Life*, 98, *et seq.*

[359] *Ibid.*, 11.

[360] *Stanford's Life of Alleine*, 199; *Calamy's Account*, 558.

[361] *Rogers' Life of Howe*, 105, 118.

[362] "Some of the hungry expectants were bold enough to anticipate the period of ejection, relying on the Incumbents' ultimately failing to qualify: and that even the chicanery of the law was used to prevent their recovery of profits which had actually accrued during their incumbency. Mr. Meadows (Incumbent of Ousden), had as his patron one of kindred opinions, who sympathized with his own feelings; and, accordingly, it appears by his accounts, that he was allowed to receive the year's revenue up to Michaelmas, 1662."—*Suffolk Bartholomeans*, by Taylor, 49.

[363] *Calamy's Account*, 557; *Continuation*, 336.

[364] *Calamy's Continuation*, 143.

[365] *State Papers*, May 14th.

[366] *State Papers*, 1661–2.

[367] *Truth and Loyalty Vindicated*, 1662.

[368] *Harl. Misc.*, vii. If the author of this tract was not a Romanist he had strong Romanist sympathies.

[369] *A Compleat Collection of Farewell Sermons*, 142; *Pepys' Diary*, i. 313.

[370] *Farewell Sermons*, 115.

[371] *Patrick MSS.* xliv. 11.

[372] *Stanford's Joseph Alleine*, 200.

[373] Calamy speaks of his holding this living in conjunction with Kingston.—*Account*, 279.

[374] *Farewell Sermons*, 447.

[375] *State Papers*, August 22, 1662.

[376] *Fox's Journal*, ii. 7.

[377] "The eight years, from the death of Angélique Arnauld, in 1661, to the peace of the Church in 1669, were the agony of Port Royal."—*Beard's Port Royal*, i. 344.

[378] *Farewell Sermons, etc.*, 174, 187.

[379] *Palmer's Nonconformist Memorial*, i. 366.

[380] "A liberal attention to the convenience of the late Incumbent must have been shown by Mr. Meadows's successor, as we find so late as July 8, 1665, 'a note of things yet left at the parsonage.'" Mr. Meadows was Incumbent of Ousden, Suffolk. *Suffolk Bartholomeans*, by Taylor, 50.

[381] October, 1662, *Wilkins' Concilia*, iv. 577.

[382] Baxter informs us that he had resolved not to meddle in such business any more, but says in the margin, "If I should at length recite the story of this business, and what peremptory promises they had, and how all was turned to their rebuke and scorn, it would more increase the reader's astonishment."—*Life and Times*, ii. 429.

[383] Newcome notices the petition in his Diary, as if an unsuccessful attempt had been made to present it before the 28th. "August 28.—I was sent for to the ministers to Mr. Greene's. We perused Mr. Heyricke's letter, whereby we understand that last Lord's Day was a very sad and doleful day in London, in that ministers preached not; none but Mr. Blackmore, Mr. Crofton, and Dr. Manton between the Tower and Westminster, the Bishops having provided readers or preachers for every place. And the ministers in the dark waited with their petition on Monday, and could not get it delivered, and came away more dissatisfied than they went; and what the issue of all this will be the Lord only knows. I rose afore seven; we despatched duty. And the ministers came in again, and we discoursed of matters, and got things done about the petitions. Mr. Alsley dined with me and Mr. Haworth, we having a venison pasty. After dinner, Mr. James Lightbourne was with me an hour or more. I wrote letters to London, and then went to bowls; but, as if it was not a time for me to take recreation in, I had no freedom of spirit by a little accident about Mr. Constantine."—*Newcome's Diary*, 115.

The following entry indicates the interference of the King with the operation of the Act:—"Nov., 1662.—The King to the Dean and Chapter of Christ Church, Oxford. They are to forbear execution of any sentence against Thomas Severne, for not having subscribed to the Act of Uniformity before his Bishop, though

presented doing so before the University, until the will of Parliament in such cases is more distinctly known."—*Ent. Book x. 7. Cal. Dom.*, 1661–1662, 578.

[384] *Clarendon's Continuation*, 1081–1082.

[385] It is difficult to harmonize satisfactorily the accounts of conferences and councils given by Burnet, Clarendon, and Bishop Parker. The former two speak of the conferences occurring before St. Bartholomew's Day. The last of these authorities gives a petition from the ministers presented on the 27th, and a debate upon it in Council on the 28th, agreeing, to a considerable extent, with Clarendon's statements. Clarendon says nothing of a petition and a Council after St. Bartholomew's Day, but leaves us to conclude all thought of indulgence was dropped beforehand. In this respect we know he is wrong, probably the matter of indulgence was frequently debated in Council. Compare *Clarendon*, 1081; *Burnet*, i. 191; with *Parker in Kennet's Register*, 753.

[386] These illustrations are gathered from the newspapers of the day.

[387] *State Papers*. This letter is dated March 2, 1663. It is anonymous; the reason for ascribing it to Hook will appear further on.

[388] *Joseph Alleine's Life*, by *Stanford*, 204. There is a glowing account in the *Mercurius Publicus*, of an Episcopal service at St. Mary's, on the 25th, when the church was so full that people fainted with heat, and "the Mayor and Aldermen were all in their formalities, and not a man in all the church had his hat on, either at service or sermon."

[389] *Ashmole's Order of the Garter*, 176.

[390] *Tour in Derbyshire*, 1662. *Browne's Works*, i. 30. "At Buxton," he says, "we had the luck to meet with a sermon, which we could not have done in half-a-year before, by relation. I think there is a true Chapel of Ease indeed here, for they hardly ever go to Church," p. 34. *Calamy* gives the name of Mr. John Jackson as ejected from Buxton, but supplies no account of him.—*Account*, 204.

[391] They occur at the end of the list for each county.

[392] See Ryle's account of Gurnal, prefixed to the new edition of his works.

[393] *State Papers. Dom.*, 1663, March 2. Letter from William Hook.

[394] For instances, see *Palmer*, i. 223, ii. 71.

[395] Appendix to Second Report of the Royal Commission on Ritual, p. 616. The articles of the Bishops there printed are from the collection in the Bodleian Library.

[396] Appendix to second report of the Royal Commission on Ritual, pp. 601, 602.

[397] *Ibid.*, 607, 611.

[398] *Ibid.*, 619.

[399] They are published in the same Appendix, 624, *et seq.*

[400] The authorities for these statements are *Calamy's Account* and *Continuation*, *Kennet's Register*, *Hunter's Life of Heywood*, and *Aspland's History of Nonconformity in Duckinfield*. I could add more instances. No doubt there were several which cannot now be ascertained.

[401] *Irenicum*, republished in 1662.

[402] *Lord King's Life of Locke*, 7, 8, 9.

[403] *State Papers, Cal. Dom.* Sept. 14 and Sept. 29, 1662.

[404] *Ibid.*, Oct. 31, 1662.

[405] This reported number should be borne in mind in connection with others already stated.

[406] *State Papers, Cal., Dom.*, 1661–1662, 531, 567, 594.

[407] *Cal. Dom.*, 1662, Jan. 31.

[408] *Ibid.*, 1662, Oct. 10, Nov. 24.

[409] The following illustrations of the extent of persecution in the autumn of 1662 are extracted from *State Papers* under date:—

"Committed by Sir J. Robinson, Knt. and Bart., Lord Mayor, being taken at an unlawful assembly, and denying to take the Oath of Allegiance, dated 2nd November, 1662." [Names given. All males.]

"Committed by Sir R. Browne, Knt. and Bart., for being unlawfully assembled together contrary to the laws, etc., the same day." [Other names.]

"Anabaptists and Quakers, taken at unlawful meetings, and committed by the Court, for refusing to take the Oath of Allegiance, and some of them fined."

[Eleven names, all males.]

"Committed by His Grace, the Duke of Albemarle, General of His Majesty's forces, for assembling unlawfully together, contrary to a late Act of Parliament, 28th October, 1662."

[Sixty-three names, all males, six under the heading "Quakers."]

"Committed 3rd November, 1662, for refusing to take the Oath of Allegiance."

[Three males.]

"Committed for being at a private meeting in Wheeler's Street, dated 9th November, 1662."

[Three names.]

"Committed for being at an unlawful assembly in Spitalfields; dated 16th November, 1662."

[Three names.]

"Committed by John Smith, Esq., being taken in the house of the said Mary Winch, upon pretence of a religious worship, and own no King but King Jesus and own themselves to be Fifth Monarchy men. Dated 23rd November, 1662."

These extracts have appeared in the *Baptist Magazine*. In others the names of females occur.

[410] *Kennet*, 849.

[411] *Baxter's Life and Times*, ii. 430.

[412] *History of his Own Time*, i. 193.

[413] See on this subject, *Burnet's History of his Own Time*, i. 194; *Lingard*, xi. 220; and *Butler's Memoirs*, iii. 44.

[414] See the *Lords' Journals*, February 23, 25, 27, 28. "After St. Bartholomew's Day, the Dissenters, seeing both Court and Parliament was so much set against them, had much consultation together what to do. Many were for going over to Holland, and settling there with their ministers; others proposed New England, and the other plantations."—*Burnet*, i. 193.

[415] Clarendon cannot be relieved from a charge of duplicity in this business.

[416] See *Lister's Life of Clarendon*, iii. 232, compared with *Clarendon's Continuation*, 1129. The story is there wrongly dated. So it is in *Parl. Hist.*, iv. 311.

[417] *Continuation*, 1131.

[418] Under date April 21, 1663, there is a petition from Samuel Wilson, who was seized in the Downs for ignorantly receiving a seditious letter from Hook, a minister, which came wrapped up in a bundle of books. This person, Mrs. Green, in the *Calendar of State Papers*, 1663, suggests, is the writer of the remarkable letter here referred to. No doubt of it. The letter is dated March 2, 1663, addressed to Mr. Davenport, who was colleague with Hook at New Haven, in New England. On Hook's return from America to England he became a minister at Exmouth, and afterwards Master of the Savoy and Chaplain to Cromwell.—*Palmer's Nonconformist Memorial*.

[419] This writer attributes depression in trade to the Act of Uniformity, and blames the Presbyterians for being ready to meet the Prelates half way, and swallow the Liturgy.

[420] *Baxter's Life and Times*, ii. 433.

[421] See *Commons' Journals*, 1663, February 27, March 16.

[422] *Parl. Hist.*, iv. 263–5.

[423] The Bill against Papists was committed March 17th; that against Dissenters May 23rd. Several debates, amendments, and divisions took place. At the beginning of July the Bills were carried up to the Lords. The Bill against Sectaries was committed by the Upper House, July 22nd, and there the matter ended. Parliament was prorogued on the 27th.

[424] *Lords' Journals*, July 25, 27.

[425] *Lords' Journals*, July 27, 1663. A curious incident occurred during their sittings. The Bill for the better observance of the Sabbath was lost off the table, and could not be found. The like had never occurred before, and "every Lord was called by name, and those present did make their purgation, and the assistants likewise did particularly clear themselves." It was the last day of the session. The Bills to receive the Royal assent had been taken out of a bag, and opened on the table; but this Bill disappeared, and consequently did not receive *le Roy le veult*.

[426] *Walton's Lives*, 424–427. He had left a list of ministers under his eye designed for discipline, but when he saw death approaching, he burnt the paper, and said he would die in peace.—*Conformists' Plea for Nonconformity*, 35.

[427] *Works*, vi. 443.

[428] 31st August, 1663. *Evelyn's Diary*, i. 399.

[429] *State Papers, Dom., Charles II.*, June 20, Sept. 22, Oct. 12. I may add that a very affecting illustration of the sufferings of an ejected minister through trial and imprisonment for preaching in some retired place after the Act of Uniformity, is to be found in *Stanford's Joseph Alleine*, chapters x. and xi.

[430] *State Papers*, Nov. 9, Dec. 31.

[431] *Memoirs of Colonel Hutchinson*, 391.

[432] *Anderson's Hist. of the Colonial Church*, ii. 286.

[433] *Ibid.*, 316–318.

[434] *Anderson's Hist. of the Colonial Church*, ii. 342.

[435] The letters in the State Paper Office, from which all these particulars are taken, are abridged in the *Calendar* for 1663. Any one wishing to investigate the subject should study these letters in connection with *Drake's Eboracum* and *Whitaker's Loidis and Elmete*.

[436] Amongst the papers which belonged to the Secretary of State, and which are now preserved in the Record Office, is an informer's notebook belonging to this period. As it is a curiosity, and as it contains allusions to well-known characters, I will give a few extracts in the Appendix.

[437] These are all local traditions.

[438] *Aspland's History of the Old Nonconformists in Duckinfield*. Like stories are told of Bradley Wood near Newton Abbot, and of Collier's Wood in Gloucestershire. Places of worship erected or publicly used during times of indulgence or connivance, will be noticed in the next Volume.

[439] *Life of Owen* by Orme.

[440] *Nelson's Life of Bull*, 253. Other examples of the ejected having married rich wives may be found in *Kennet*, 910. John Tombes writing to Williamson, mentions a book on the anvil entitled, *Theocratia, or a Treatise of the Kingdom of God*, to show that no claim of coercive jurisdiction, either inferior or co-ordinate to the King, is warranted by any ecclesiastical rulers, or by any office or power in the kingdom of Christ in its militant state.... The Bishop of Winchester, he goes on to say, has put him in hopes of a brotherhood at the Savoy. Also has had hope from the Lord Keeper of a place at Rochester in Bishop Warner's Hospital.—*State Papers*, 1668, May 8. Tombes was a Baptist and therefore could not hold a living, but in other respects he seems to have been a Conformist.

[441] *Kennet*, 905, 906, 908.

[442] *Life* by Rogers, 130, 140.

[443] *Palmer's Nonconformist Memorial*, i. 352.

[444] *Life and Times*, iii. 142.

[445] *Palmer*, ii. 503.

[446] *Wilkins' Concilia*, iv. 580.

[447] See *Commons' Journals*, April 27, 28; May 12, 14, 16.

[448] 16 *Car. II.*, cap. iv.

[449] *Hist.*, 1115.

[450] *State Papers, Dom. Charles II.*, 1664, June 20.

[451] *Ibid.*, June 24.

[452] *State Papers*, 1664, Sept. 30, Nov. 18, Sept. 5, June 2.

[453] *Broadmead Records (Hanserd Knollys Society)*, 76.

[454] *State Papers*, 1665, July 3 and 15.

[455] *Clarendon*, 1130.

[456] *Eccles. Hist.*, ii. 89.

[457] *Cardwell's Synodalia*, ii. 680, *et seq.*

[458] *Collier*, ii. 893.

[459] *Parry's Parliaments and Councils*, 551.

[460] Dated July 7, 1665; *Wilkins' Concilia*, iv. 582. Note in *Cardwell's Documentary Annals*, ii. 321.

[461] In *Notes and Queries* may be found a curious and interesting collection of predictions of the Plague and Fire of London. See *Choice Notes—History*, 236. "In delving among what may be termed the popular religious literature of the latter end of the Commonwealth, and early part of the reign of Charles, we become aware of the existence of a kind of nightmare, which the public of that age were evidently labouring under—a strong and vivid impression that some terrible calamity was impending over the metropolis."

[462] *State Papers, Dom. Charles II.* London, August 14, 1665. See also November 11.

[463] *Thucydides*, ii. 54.

[464] *Dom. Charles II.*, 1665, July 6. It is interesting to observe that, as in late visitations of cholera, sanitary regulations were adopted. Amongst other things it may be noticed that the Bishop of London would not consecrate any ground unless a perpetuity of the same might be first obtained—graves were dug deep, and churchyards were covered with lime.—*Calendar*, 1665–6, Pref. xiii.

[465] *Dom. Charles II.*, 1665, August 15.

[466] *Ibid.*, July 22.

[467] *Dom. Charles II.*, August 19.

[468] "It is said, my Lord of London hath sent to those pastors that have quitted their flocks, by reason of these times, that if they return not speedily, others will be put into their places."—*Ellis' Letters*, vol. iv.

[469] *Neal*, iv. 403. The returns dated 1665 from Exeter, St. David's, and Bristol, are among the Tenison MSS. (Lambeth); also the Bishop of Exeter's (Seth Ward's) certificate of the hospitals, and almshouses, pluralists, lecturers, schoolmasters, physicians, and Nonconformists in his diocese.

[470] *Wilkins' Concilia*, iv. 583.

[471] *Autobiography of Patrick, Bishop of Ely*, 52.

[472] His book, entitled *God's Terrible Voice in the City*, presents some most graphic accounts of the effects of the pestilence.

[473] Feb. 4, 1666. Many affecting particulars relative to the Plague may be found in the notes of this prince of diarists.

[474] *Blomefield's Hist. of Norwich*, i. 410.

[475] *Life of Owen Stockton*, 1681, p. 39.

[476] The story of Mompesson is fully told in *Histories of Derbyshire*. Most of what is known has been collected in a little work on the *History of Eyam*, by Mr. Wood, a resident in the village.

[477] For an account of Stanley and of Shaw, see *Calamy*.

[478] *Burnet's Hist.*, i. 224.

[479] *Collier*, ii. 893.

[480] Clarendon, in his speech, at the opening of the Parliament in Oxford, spoke of the horrid murderers of his late Royal master being received into the secret counsels of Holland; and of other infamous persons, admitted to a share in the conduct of their affairs. Some persons, he said, had wantonly put themselves on board the enemy's fleet, "purely out of appetite and delight to rebel against their King."—*Parl. Hist.* iv. 326.

Burnet says that Algernon Sidney and others proposed to the United Provinces that they should invade England.—*Hist.* i. 226.

Sir G. Downing, writing to Clarendon (*Lister's Life*, iii. 144), remarks: "It is not to be believed what numbers of dissatisfied persons come daily out of England into this country. They have settled at Rotterdam, an Independent, an Anabaptist, and Quaker Church, and do hire the best house, and have great bills of exchange come over from England."

[481] July 7, 1665. *Wilkins*, iv. 582. See page 331 of this vol.

[482] 17 *Car.* ii. cap. 2.

[483] An anonymous correspondent writes on November 24, 1665 (*State Papers*), to Lord Arlington, that "all are amazed at the late Act against Nonconformity, judging it against the law of nature, and therefore void, but that the Presbyterians will defeat its design, for some of the chief incline to take the oath."

[484] *Eccles. Hist.*, i. 500.

[485] He was present on each occasion of the Bill being read, Oct. 26, 27, and 30. See *Lords' Journals*.

[486] *Eccles. Hist.*, ii. 112.

[487] *Burnet*, i. 224.

[488] *Baxter's Life and Times*, iii. 3.

[489] *Parl. Hist.*, iv. 328.

[490] *Ralph's Hist. of England*. "The providence by which it was thrown out was very remarkable, for Mr. Peregrine Bertie, being newly chosen, was that morning introduced into the house by his brother, the now Earl of Lindsey, and Sir Thomas Osborne, now Lord Treasurer, who all three gave their votes against the Bill, and the numbers were so even upon that division that their three voices carried the question against it."—*Locke's Letter from a Person of Quality*.

[491] He was not made Lord Keeper until 1667.

[492] *Neal*, iv. 401, says it was moved that the word *unlawfully* might be inserted in the oath, before the word *endeavour*, but all was rejected. He refers for authority to *Baxter*, iii. 15, (it should be 13) but I find nothing there to that effect. If it was as *Neal* states, it is difficult to understand how *Bates* could have argued as he did.

[493] This account is given by *Bates* himself.—*Baxter's Life*, iii. 14.

[494] For those who took the oath see *Baxter*, iii. 13. See also *Calamy's Abridgment*, note 312.

[495] *Baxter's Life and Times*, iii. 13. His inquiries respecting the oath went far beyond the meaning of the word *endeavour*.

[496] *Hunter's Life of Heywood*, 173.

[497] *Life of Philip Henry*, 108.

[498] For his character by *Burnet* see *Hist. of his Own Time*, i. 100.

[499] The following story is given in a letter written just after the Duke's duel with the Earl of Shrewsbury. If the story be true, it is one of evanescent religious impression, or of unparalleled hypocrisy:—"The Duke of Buckingham is become a most eminent convert from all the vanities he hath been reported to have been addicted to; hath had a solemn day of prayer for the completing and confirming the great work upon him. Dr. Owen, and others of the like persuasion (Independents), were the carriers on of the work. He is said to keep correspondence with the chief of those parties. He grows more and more in favour and power."—*Hunter's Life of Heywood*, 198.

[500] February 28, *Cal. Dom.*, 1665–66, pref. xxx.

[501] In the Record Office—besides many other papers under the year 1665 respecting plots in Yorkshire—there is a long one extending to eighteen pages, full of minute particulars on the subject, dated December 24th, entitled *Information given to Mr. Sheriff*.

[502] *James' Life of Louis XIV.*, ii. 143.

[503] *State Papers, Cal.* 1665–66, pref. xix.-xxv. Historians have given inaccurate or incomplete accounts of these naval battles. Ample materials for a full description are afforded in these documents.

[504] *Essay on Dramatic Poesie*.

[505] *State Papers, Dom. Cal.*, 1666-67, *pref.* xxvii.

[506] The booksellers near St. Paul's conveyed their property to the crypt for safety, but it was destroyed. The loss in books was estimated at £150,000.—*Harl. Misc.* vii. 330.

[507] *Autobiography of William Taswell, D.D. Camden Miscellany*, vol. ii. A bridge at Westminster, extending across the river, was not erected until the year 1738—opened 1750. By Westminster Bridge is here meant either a landing pier or a bridge over a creek.

[508] Compiled from *Strype's Stow, Pepys, Evelyn, Baxter, Harl. Misc.*, vii., *State Papers*, 1666-7 (see *Calendar*), and *Notes and Queries*.

[509] *State Papers, Dom. Charles II., Cal.* 1666-67, *pref.* xii., xix.

[510] *Commons' Journal*, October 26, 1666.

[511] *State Papers, Cal.* 1666-67, *pref.* xiii.

[512] *Life*, ii. 396; iii. 165.

[513] *Hist. of his Own Times*, i. 270.

[514] *Life and Times*, iii. 162.

[515] *Ibid.*, iii. 19.

[516] *Burnet*, i. 270.

[517] *State Papers, Cal.* 1666-7, *Pref.* xix.-xxiii., and references.

[518] *Dom. Charles II.* 1666, Dec. 3. Richard Browne to Williamson. Same date, John Allen to Williamson.

[519] Dr. Basire to Williamson, 1666, Dec. 17.

[520] *State Papers, Dom. Charles II.*, 1666, Dec. 14. A further allusion is made to these strange people in a letter by Sanderson to Williamson, Feb. 5, 1667, in which, also, reference is made to Mr. Cocks, steward to Lady Vane, at Raby Castle, as a very dangerous person. There is likewise a previous letter on the same subject (1666, Nov. 6.) In another paper, attached to that of Feb. 5, allusions occur to persons of quality as engaged in plots. "They will try to get up Richard Cromwell as the only one who has a right to rule."

[521] *State Papers*. Letter by John Rushworth, 1667, June 15.

[522] "Chester, a stronghold of Nonconformity, was much perplexed. Some said we were asleep, or should have fortified ourselves, knowing the enemy near. All concluded there was treachery in the business, and hoped the contrivers would receive the reward due to those who betray King and country." Sir Geoffry Shakerley to Williamson, Chester, June 19, 1667.—*State Papers*.

"At Yarmouth the Presbyterian party raised the cry of treachery because there had been an attempt to leave the place in charge of Major Markham, who was disliked as being a Papist; and because the trained bands had been sent for to Newmarket, and none others sent in their room, and, therefore the town left defenceless."—June 21, 1667.

[523] *State Papers*. Same date.

[524] The peace with Holland, which was proclaimed August 24th, 1667, was very popular. At Weymouth "it, as it were, raised the dead to life, and made them rich in thought, though their purses are empty. At Lynn the bells have hardly lain still since the news of peace."—*State Papers, Cal.*, 1667–8, *pref.* lv.

[525] Of the disgrace of Lord Chancellor Clarendon, the notes in the *State Papers*, as Mrs. Green says, are "provokingly few and unimportant."

[526] *Hallam's Constit. Hist.*, ii. 69.

[527] *Baxter*, iii. 26. Holles the Presbyterian protested against the banishment of Clarendon—*Hallam*, ii. 69. The fall of Clarendon comes but incidentally within the range of this history. For a legal and constitutional view of his impeachment, I must refer the reader to Mr. Hallam, and Lord Campbell. In the *Life of James II.* edited by *Clarke*, vol. i. 431, it is stated that the Presbyterian party made overtures to Clarendon, to stand by him, if he would stand by himself, and join with the Duke in opposing his enemies; hoping thereby to separate the Duke from his brother, and to "bring low the regal authority." This is a very improbable story.

[528] *Clarendon's State Papers*, iii. *Sup.* xxxviii. *Lister's Life of Clarendon*, ii. 483.

[529] *Historical Inquiries respecting the character of Edward Hyde, Earl of Clarendon*, by the Hon. George Agar Ellis, has just come in my way. He paints the Chancellor in very dark colours indeed: but adds nothing to the facts of his history as given by popular historians. I cannot adopt all Mr. Ellis' condemnatory conclusions.

[530] One great blot on Cecil's character was the perjury involved in his signing the Device of Edward VI. To say he signed as a witness is a subterfuge.

The following passage on Nonconformity from Clarendon's pen is equally deficient in charity and wisdom:—"Their faction is their religion: nor are those combinations ever entered into upon real and substantial motives of conscience, how erroneous soever, but consist of many glutinous materials, of will, and humour, and folly, and knavery, and ambition, and malice, which make men inseparably cling together, till they have satisfaction in all their pretences, *or till they are absolutely broken and subdued, which may always be more easily done than the other.*"—*Life of Clarendon by Lister*, ii. 121.

[531] *State Papers, Dom.*, under dates.

[532] *Discourse on the Religion of England*, 1667.

[533] *Wood's Athen. Ox.*, iii. 1264.

[534] "It is said that an Act is preparing by some of the House for the dispensing with the Act of Uniformity, which is clearly against the Bishops' government,—another for the punishment of such as have been the occasions of misfortunes befallen this land—as also against those that counselled the dividing the fleet: so that all that find themselves guilty do make interest in the Parliament House. Some have recourse to the Presbyterian party, which they would not do if they were not brought to the utmost extremity."—*State Papers, News Letter*, Sept. 2/12, 1667.

[535] It is printed in *Thorndike's Works*, v. 302.

[536] *Pepys*, Jan. 20 and 31, 1668.

[537] *Ibid.*, 5th Feb.

[538] The part taken by Hale is described in his *Life*, by Burnet.

[539] Made Bishop in 1675. Barlow's conduct as Bishop did not accord with the liberality which he showed at this period. See in the next volume a notice of his conduct in 1684.

[540] It is stated by Burnet, *Hist.* i. 259, that Tillotson and Stillingfleet took part in the scheme, but Baxter does not say so, though he alludes to them as friendly to the scheme of 1675. Perhaps Burnet confounded the two attempts.

[541] He did not publish what he wrote, but it is inserted in the Oxford Edition of his works, v. 309–344.

[542] *Pepys' Diary*, Feb. 10, 1668.

[543] *Parl. Hist.*, iv. 404.

[544] Birch, as we have seen, informed Pepys that the King was for toleration, but the Bishops were against it. The great difficulty was about tolerating Papists.

[545] *Pepys' Diary*, Feb. 28, 1668.

[546] *Life of Philip Henry*, 112.

[547] *Parl. Hist.*, iv. 413.

[548] *Ibid.*, 414–422. These speakers were Colonel Sandys, Sir John Earnly, Sir W. Hickman, Mr. Ratcliffe, Sir Walter Yonge, Sir J. Littleton, Sir John Birkenhead, and Mr. Seymour.

[549] *Constitutional History*, ii. 70.

[550] *Baxter's Life and Times*, iii. 37.

[551] *Concilia*, iv. 588. The returns are found among the Tenison MSS., Lambeth, No. 639. They include accounts of Conventicles in the dioceses of Canterbury, Chichester, Ely, Exeter, Llandaff, Lichfield and Coventry, Lincoln, London, Norwich, Winchester, Worcester, York, Chester, Carlisle, and St. Asaph. There were returns from some dioceses in 1665.

[552] Sheldon complained that he could not obtain the returns that he wanted. Lambeth MSS., August 16, 1669.

[553] *Own Times*, i. 258. "He told me he had a chaplain, that was a very honest man, but a very great blockhead, to whom he had given a living in Suffolk, that was full of that sort of people. He had gone about among them from house to house, though he could not imagine what he could say to them, for he said he was a very silly fellow; but that he believed his nonsense suited their nonsense, for he had brought them all to church; and in reward of his diligence, he had given him a bishopric in Ireland." Burnet gives the other report on the authority of a letter written by Sir Robert Murray. I may observe here, that party writers on both sides treat Burnet according to their prejudices; the one party believing implicitly everything he says to the disadvantage of the Church; the other party rejecting his evidence on this subject as utterly worthless. It appears to me that,—remembering Burnet's gossiping habits, and that he was a strong

party man, and also noticing that he often tells his stories in a loose way, and, like Clarendon, writes down his recollections long after the time when the incidents he records had occurred—we ought to read him with great care, and not place implicit reliance upon his unsupported testimony. Yet, on the whole, Burnet appears to me to have been an honest man. His character will come under review in a future volume of this history, should I be permitted to complete it.

[554] *Life and Times*, iii. 46.

[555] *Lords' Journals*, March 26. Referring to a Royal journey at this period, Dalrymple says:—"It was intended that the King and the Duke should have gone to Dover together; but by an accident, Charles went alone. For all the Conventicles were to be shut up in London upon the ensuing Sunday, and the Duke was left behind to guard the City against riots, which were dreaded upon that occasion."—*Dalrymple's Memoirs*, vol. i. 31.

[556] 22 *Car. II.* cap. i. It appears from a letter written by Colbert to Louis XIV. that Charles had a political end in view in connection with the Act. "The King designs to make the last Act of Parliament against the meetings of the sectaries be observed; and he hopes that their disobedience will give him the easier means of increasing the force of his troops and coming speedily to the end he proposes." 6th June, 1670.—*Dalrymple's Memoirs*, vol. iii., App. 60.

[557] See *Wilkins Concilia*, iv. 589.

[558] See *Popes Life of Ward*, 67, 69.

[559] *Calamy*, ii. 333.

[560] The trial is given in *State Trials*; and in *Sewel's History of Quakers*, ii. 195 *et seq.* There is a draft letter in the State Paper Office. Entry Book, June 29th, 1670, addressed to Reynolds, Bishop of Norwich, and another in the Lambeth Library, dated July 6th (No. DCLXXIV. No. 24), which when brought together and compared show how the Act of Uniformity was evaded, and how combined efforts were made after the second Conventicle Act had passed to bring the Church of England into correspondence with the laws. The letters relate to a case of irregularity at Bury St. Edmunds, when fanatics were said to make use of the Church.

[561] *State Papers*. Letter from James Douch, June 10, 1671.

[562] North calls it "a double-visaged Ministry, half Papist and half Fanatic." *Lives*, i. 178.

[563] Lauderdale had once made a great profession of religion. On the 14th of December, 1658, he wrote to Baxter saying, "I wish I knew any were fit to translate your books. I am sure they would take hugely abroad, and I think it were not amiss to begin with the *Call to the Unconverted*."—*Baxter MS.*, Dr. Williams' Library.

[564] Clarendon says of Arlington that he knew no more of English affairs than of those of China, and believed France the best pattern in the world.—*Life*, 1095. I cannot enter into the political history of the Cabal. I would only repeat what Earl Russell says: there were two methods adopted of dealing with France—a sham treaty, and a secret negotiation. The part taken by the Cabal in this was not equal. Clifford and Arlington, the two Catholics, conducted the latter;

Buckingham managed the former, to which Lauderdale gave a ready, Ashley a reluctant, consent. Clifford and Arlington were alone in the King's confidence.—*Life of Lord William Russell*, 50.

To Clifford, not to Shaftesbury, as is commonly supposed, belongs the disgrace of shutting the Exchequer. Evelyn settles the question.—*Diary*, March 12, 1672.

[565] *Lords' Journal*, Feb. 11, 1674.

[566] The measure was, in Council, moved and seconded by Clifford and Ashley.—*Lingard*, xii. 10.

[567] The catechism, says Cardwell (*Documentary Annals*, ii. 337) was probably Dean Nowel's small catechism, which was printed originally in 1570, and was generally used in schools down to the time of Strype.—See his *Life of Parker*, ii. 18.

[568] *Burnet*, i. 307.

[569] It is dated March 15, and is printed in *Bunyan's Works*, iii., *Introduction*, 21.

[570] *Parl. Hist.*, iv. 515.

[571] "An answer unto certain objections formed against the proceedings of His Majesty to suspend the laws against Conventicles by His declaration, March 15, 1672."—*State Papers, Dom. 1673, bundle 190, fol. 164*.

[572] These were the Bishop of Durham's queries.—*Cosin's Works*, iv. 384.

[573] *Baxter's Life and Times*, iii. 99. *Life of Philip Henry*, 128.

[574] A short treatise on the lawfulness of the Oath of Supremacy and the power of the King in ecclesiastical affairs, by Philip Nye, was published in 1683. Nye died in 1672, and when this treatise was written does not appear on the title page. He ascribes to the magistrate, power "to send out preachers, to urge and constrain men to hear.... A coercive power of this nature is placed in no other hand but his." It is strange indeed to find an Independent writing thus. After exalting the civil power, and enforcing the duty of submitting to Royal Supremacy, the author, in a postscript, speaks of His Majesty's most gracious Declaration; and seemingly, without any idea that it could be inconsistent to accept the indulgence, maintains that there is nothing in the opinions of Independents that "should render us, in any sort, incapable of receiving the fruit and benefit of the King's majesty's favour and indulgence, promised to tender consciences." Probably Nye wrote this piece just about the time when the indulgence was issued—seven months before his death. Nye's tract (with many others, which I have found very instructive) is preserved in Dr. Williams' Library.

[575] *Burnet*, i. 308.

[576] *Orme's Life of Owen*, 272.

[577] *Wilson's Hist. of Dissenting Churches*, iii. 187.

[578] Bunyan's license is given in Offor's preface to *Bunyan's Works*. Numbers of entries from the Register, and copies of applications and licenses

have been printed in local histories of Dissent. The original documents are preserved in the Record Office.

[579] *State Papers*, 1672.

[580] *Hist. of his Own Time*, i. 308.

[581] *Life of Calamy*, ii. 469, 470. I do not observe that Mr. Orme, in his *Life of Owen*, notices this statement.

In the volume published by the Camden Society entitled *Moneys received and paid for secret services of Charles II. and James II.*, it appears that a physician who was in the confidence of the Presbyterian party, and who often represented them, was in the pay of the Court. For this reference, and other valuable suggestions on the subject, I am indebted to the Rev. R. B. Aspland.

[582] It is stated that the usual fees to certain officers in connection with this business were in some cases remitted.

[583] The particulars respecting Carver and Moore are taken from letters by Ellis Hookes written to the wife of George Fox, dated January, 1670, and preserved in the Records of the Quakers' Meeting House, Devonshire Square. The letters, or the substance of them, with entries in the Council Books, are given by Mr. Offor, in his introduction to the *Pilgrim's Progress*.

I have rested on the authority of so accurate a copyist without inspecting the originals. The statement, often repeated, that Bunyan owed his liberty to Bishop Barlow is quite a mistake.

[584] *Parl. Hist.* iv. 503, 506. The following letter in the State Paper Office, *Dom. Charles II.*, is curious:—

"Yesterday morning we had a very fair choice for a burgess, and Sir Edward Spragg hath carried the day by 40 votes; but if my father and the rest of the Jurates and Common Councilmen had not thought to have made about 50 freemen the day before the election, the fanatic party had been too much for us; but we hope we have done them down to all intents and purposes; but still they threaten to have the Jurates up to London, for making those freemen the day before the election.

"LAWSON CARLILE.

DOVER, *February 2*, 1673."

[585] The Country party consisted chiefly of Lords Russell and Cavendish, Sir W. Coventry, Colonel Birch, Mr. Powle, and Mr. Littleton. Lee and Garroway were suspected characters. Marvel says:

"Till Lee and Garroway shall bribes reject."

[586] *Wilson's Life of Defoe*, i. 58.

[587] *Parl. Hist.*, iv. 517–526.

[588] *Journals*, February 10, 1672/3.

[589] *Parl. Hist.*, iv. 527–533. Colbert, writing to Louis XIV., 9th of March, 1673, says, "The Chancellor, the Treasurer, and the Dukes of Buckingham and Lauderdale are of opinion to maintain this Declaration of the King, their master,

in favour of the Nonconformists; and that if the Parliament persist in their remonstrances, as it is not doubted they will, to dissolve it, and call another. They do not even want good reasons to support their opinion. My Lord Arlington, who at present is single in his sentiments, says, that the King his master, ought not to do it."—*Dalrymple's Memoirs*, iii. 89.

[590] On the 18th of February the House resolved to go into Committee on the following day.

[591] *Parl. Hist.*, iv. 535–542. Kennet, Rapin, Burnet, and Neal give very unsatisfactory accounts of the debate. Burnet's account is inaccurate.

[592] The Commonwealth's-man, Colonel Birch, spoke on the subject, but it does not appear that he advocated any broad measure of religious liberty.

[593] *Parl. Hist.*, iv. 552–553. The *Journals* under date contain the Resolutions.

[594] There are remarks on this Bill written by Mr. John Humphrey in *Baxter's Life*, iii. 144.

[595] *Parl. Hist.*, iv. 571–574.

[596] Parliament was adjourned on the 29th of March, to the 20th of October; then prorogued to the 27th, and again on the 4th of November to the 7th of January, 1674.

[597] *Parl. Hist.* iv. 553–6.

[598] *Lingard* (xii. 27) states the fact on the authority of the French Ambassador (*Dalrymple*, ii. App. 90), and the motives on the authority of *Marvell*, i. 494.

[599] *Parl. Hist.* iv. 561, March 12.

[600] *Lord Campbell's Lives of the Lord Chancellors*, iv. 181.

[601] *Burnet*, i. 348.

[602] *Life of Calamy*, i. 102.

[603] *Journals*, Feb. 24, March 8. After the Declaration had been withdrawn the old licenses gave much trouble. "The present favour which I beg of you is, your sense about Conventicles and meetings, for I am in the Commission of Peace for the University and Town of Cambridge, and am threatened by some busy informers with the penalty of £100, which you know the Act enjoins, if I grant not warrants upon complaint against them. Now I beseech you to write by the first post, or let Mr. Ball, or some of your people write to me what you know to be His Majesty's sense in this particular, whether we should grant warrants to suppress them, they having license to preach and meet."—*State Papers*, April 5, 1673. Mr. Carr to Sir J. Williamson.

The mayor of Weymouth wrote to Sir J. Williamson (Nov. 21, 1674), informing him that certain persons accused of keeping a Conventicle had pleaded His Majesty's "License and Warrant." He asks for direction how "to manage this affair."

[604] *Dalrymple* (*Memoirs*, iii. 92) remarks: "Charles' Declaration of Indulgence has been commonly imputed to the intrigues of France with Charles

for the purpose of serving the interest of Popery. But Colbert's despatches show that France had not the least hand in it, that it was a scheme of Buckingham and Shaftesbury to gain the Dissenters, and that France was the cause of Charles' recalling it." The letters printed in *Dalrymple* indicate that Buckingham and Shaftesbury had strongly supported the Declaration, and show further that Charles wished Louis XIV. to believe that to please him he withdrew it. "He assured me," says Colbert, "that your Majesty's sentiments had always more power over him than all the reasonings of his most faithful Ministers." March 20, 1673.

[605] "All Sectaries," says Reresby (*Memoirs*, 174), "now publicly repaired to their meetings and Conventicles, nor could all the laws afterwards, and the most rigorous execution of them, ever suppress these Separatists, or bring them to due conformity."

[606] Where Owen's Church met has been regarded as uncertain, but the returns made in 1667 to Sheldon's inquiries specify the place of meeting at that time as White's Alley.

[607] Afterwards Lord Haversham.

[608] See Anecdotes of Mrs. Bendish in *Noble's Memoirs of the Protectoral House of Cromwell*, ii. 329.

[609] *Life*, by Sir H. Ashurst, 27.

[610] *Ibid.*, 100.

[611] He wished to be made a Justice of the Peace; but his appointment was opposed by Sir John Petties, a moderate Churchman, who remarks in a letter dated January 4, 1674–5—there are a "sort of men in this kingdom so hot and fiery, so active and inexperienced, who labour much in those things which tend to the disquiet of the kingdom (of whom we have a great share in our county), and are almost as dangerous as the other two sorts of Dissenters (Romanists and Nonconformists), for by their indiscreet and hot endeavours, instead of suppressing those Dissenters, I dare say that they (though unwittingly and unwillingly) give them the greatest animation and increase."

[612] There are numerous letters belonging to this period in the State Paper Office, written by Bowen. Letters dated 1675, Jan. 15; Feb. 17, 19, 24, furnish what I have said, and a great deal more. It appears from the following extract, as well as from a former one, that Nonconformists did not always meekly submit to their oppressors. In reading the letter, however, it must be remembered that an enemy writes it. "John Faucet had disturbed the Presbyterians at worship in the Granary—and, in consequence, was violently assaulted, beaten, and trodden upon by several rude persons, and in great danger of his life."

(Norwich, Dec. 11, 1674, Thomas Corie.)

A similar complaint is made by Bowen of the treatment of a constable who disturbed a meeting at Yarmouth.

[613] Sheldon sent letters to the Bishops of his province making fresh inquiries about Dissenters.—*Neal*, iv. 467.

[614] *Neal*, iv. 464.

[615] Baxter spent an immense amount of subtle casuistry upon the subject of the declaration, and actually put such a forced meaning upon it, that he said there was nothing in it to be refused!—*Life and Times*, iii. 168.

[616] *Parl. Hist.*, iv. 714. See Locke's Letter, *Ibid.*, Appendix, xlvii.; *Calamy's Life*, i. 79.

[617] *Life and Times*, iii. 109.

[618] *Life and Times*, 156.

[619] *Ibid.*, 110, 131.

[620] *Ibid.*, 156. For notices of Morley's character, see p. 477 of this volume.

[621] The well-known letter of Tillotson to Baxter is an interesting record of the result of their well-meant endeavours:—"I took the first opportunity," he says, "after you were with us, to speak to the Bishop of Salisbury, who promised to keep the matter private, and only to acquaint the Bishop of Chester with it in order to a meeting; but, upon some general discourse, I plainly perceived several things could not be obtained. However, he promised to appoint a time of meeting, but I have not heard from him since. I am unwilling my name should be used in this matter; not but that I do most heartily desire an accommodation, and shall always endeavour it, but I am sure it will be a prejudice to me, and signify nothing to the effecting of the thing, which as circumstances are, cannot pass in either House without the concurrence of a considerable part of the Bishops, and the countenance of His Majesty, which at present I see little reason to expect." Dated April 11, 1675. *Baxter's Life and Times*, iii. 157.

[622] *Parl. Hist.*, iv. 741.

[623] *State Papers*, November 8.

[624] *State Papers*, 1676. Bowen to Williamson. February 21.

[625] *State Papers*, 1676, July 7, 10. The following is a specimen of the kind of stories which this man sent up to London:—"Last night the three informers that have put by our meetings here were amongst several of the passengers in a passage-boat going for Norwich, where they were no sooner placed but some of our Independents called out to the passengers and told them they had informing rogues amongst them, and surely they would not take such rascals with them; upon which the passengers began to leave the boat. So the boatmen, to keep their passengers, turned the informers out upon the key [quay]—where, when they were landed, they began to throw stones at them, but making their escape, they came to my house, upon which I went down to the key [quay], and there learned who some of them were, and gave the informers their names, who are since bound over to the sessions." *State Papers*, 1676, July 12.

[626] *State Papers*, October 9.

[627] *Harl. Misc.*, viii. 7. *Lives of the Norths*, i. 316, *et seq.*, see Notes. *Knight's Popular Hist.*, iv. 326.

[628] *Wood*, iv. 226.

[629] Owen writes very guardedly in reply to Parker's doctrine of the magistrates' power.—*Works*, xxi. 209, *et seq.*

[630] *Life and Times*, iii. 42.

[631] *Anthony Wood*. There is plenty of satire in the two books by Marvell; the second is more cutting than the first, but it is sometimes coarser, and on the whole wearisome to modern readers.

[632] This tract is printed in *Somers' Collection*, iii. 329, 388. My own judgment of it agrees with Mr. Hallam's:—"It is not written with extraordinary ability; but it is very candid and well designed, though conceding so much as to scandalize his brethren."—*Const. Hist.* ii. 93.

Marvell, in his *Mr. Smirke on the Divine in Mode*, speaks of the work as having been originally printed only for members of Parliament, and not published, but that a printer got hold of it, and "surreptitiously" multiplied copies without the author's knowledge. Yet the published edition, though commencing with the words, "An humble petition to the Right Honourable the Lords and Commons in Parliament assembled," contains an address "to the reader" at the beginning, and another to the Nonconformists at the end.

[633] *Mr. Smirke, or the Divine in Mode*. By Andrew Marvell.

[634] *Marvell's Mr. Smirke*, which was an answer to Turner's animadversions.—*Baxter's Life and Times*, iii. 175. Three other books, bearing the title of *Naked Truth*, headed respectively the second, third, and fourth parts, were published afterwards, but not by Bishop Croft.

[635] Numerous letters in the Record Office show the prevalence in 1667 of rumours respecting the King's design to bring in Popery. For example:—

"Fanatics in the North, being disappointed of assistance from abroad by the peace set up, then rest on their friends' behalf, that the King is a Papist, and intends to set up the Popish religion, and have so far possessed not only fanatics, but several of the ignorant common people with this opinion, that it is publicly discoursed among them, that they will rise in arms for defence of religion, and oppose the King and the Popish party. They persuade their disciples that their friends in the South are ready to appear in arms for defence of religion, and oppose the King and the Popish party."—Sir P. Musgrave to Williamson, Aug. 22, 1667. *Cal.* 409.

[636] *Life of James II.*, i. 441. *Dalrymple's Memoirs*, i. 70; iii. 1–68. The treaty is printed in *Lingard*, xi. 364. Rarely has anything in diplomacy been so unprincipled and shameful as Article II. of this document. Charles' pretexts were religious, his object political.

[637] See letters in *Phenix*, i. 566. *Calamy's Life*, i. 119.

[638] *G. P. R. James' Life of Louis XIV.*, ii. 171.

[639] *Evelyn*, ii. 88.

[640] *Harris' Charles II.*, ii. 81.

[641] *Lingard*, xi. 356. April 10, 1671. Wednesday. "This evening her royal highness' body was privately conveyed from St. James' Palace, where she died, to Westminster, where, till things could be put in order, [she] was deposited in state in the painted chamber; and about nine in the evening she was most solemnly attended to the Abbey by her own, the King's, the Queen's, and the Duke's servants. A vast train of the nobility, gentry, and many members of Parliament, in their blacks, guarded by two companies of foot, and finally

interred in the royal vault of Henry VII.'s chapel. The ceremony [was] performed by the Bishop of Rochester, the Dean of Westminster Cathedral, to the extreme grief and disconsolation of all present. The Court, on this occasion, are entered into solemn mourning, in which 'tis thought they may continue for some months."—*State Papers*.

[642] *Wood, Ath. Ox.*, ii. 614. The article on Woodhead is copious and interesting.

[643] *Chalmer's Biographical Dictionary*.

[644] *Butler's English Catholics*, iv. 425.

[645] This account of the working of Roman Catholicism in England is taken from the MSS. *Travels of Cosmo, the third Grand Duke of Tuscany*, (1669), printed in Appendix to *Butler's English Cath.*, iii. 513.

[646] Five editions of *Pascal* were published between 1658 and 1688. The *Protestant Almanack* for 1668 is a disgraceful publication.

[647] *State Papers, Dom.* 1667, Sept. 6. (*Cal.*)

[648] *State Papers, Dom.*, 1667. October 28 (*Cal.*).

[649] The following letter is addressed to Sir Joseph Williamson, Whitehall.—"Worthy Sir,—This day came the proclamation against Papists to Nottingham, being the last assize day. It was received with so much joy that bells and bonfires rung and flamed at that rate as they never did since His Majesty's restoration. The fanatics contended with the conformists who should show most zeal in expressing their joy for His Majesty's great grace. You may believe without swearing that neither this news, nor what the King did in the house last Saturday, was unwelcome to, Sir,

"Your most humble Servant,

"P. WHALLEY.

"*Martij 15, 1672.*

"If one of your clerks would take notice on't in the next *Gazette*, it would gratify the whole corporation."—*State Papers, Dom. Chas. II.*

[650] *State Papers, Dom. Chas. II.* Letter from W. Aston, 1676, April 3.

[651] *State Papers*, June 6, Nov. 10–13.

[652] *State Papers*, 1674, Jan. 20. Connected with this communication are papers containing drafts of advice for suppressing Popery. The Bishops of Canterbury, Durham, Winchester, Salisbury, Peterborough, Rochester, Chichester, and Chester, reply "that they observe with sorrow the growth of profaneness, Romanism, and Dissent;" "that they do not think any new laws are necessary for the purpose, but only the removal of such obstructions as have hitherto hindered the execution of them." What those obstructions were, the authors of this conclusion do not specify. There is another paper in the same bundle, recommending the Attorney-General to bestir himself in the matter, and that letters should be written to the Justices of the Peace; that there be a new general proclamation; that constables and churchwardens should be enjoined to search for suspected persons; and that the orders against priests, Popish

seminaries, and resort of Papists to Court, should be fixed at the Court Gate, St. James's, and Somerset House.

[653] This is Reresby's own account. Ralph follows him, but in the imperfect reports of the debates in the *Parl. Hist.* (iv. 780), the statement in the House is said to have been made by Mr. Russel.

[654] *Lingard*, xii. 72.

[655] *State Papers, Dom. Charles II.*, 1676, Oct. 27.

[656] *Glanvill's Zealous and Impartial Protestant*, p. 46. This and other instances of exaggeration are given in *The Happy Future State of England*, p. 140. It should be stated that the author of this last work endeavours to make out the Roman Catholics to have been as few as possible. The population of England, and the relative proportion of different classes of religionists, will be noticed in a subsequent chapter.

[657] "The debate or arguments for dissolving this present Parliament," 1675. Written by the Earl of Shaftesbury. *Parl. Hist.*, IV. lxxviii.

[658] *Campbell's Lives*, iv. 185.

[659] *Parl. Hist.*, iv. 801.

[660] *Life of James II.*, i. 505. *Parl. Hist.*, iv. 814, 824.

[661] *State Papers*, April, 1677.

[662] *Lingard*, xii. 96, 97. The Resolutions on which these Bills were founded are contained in the *Lords' Journals*, 1677, February 21 & 22.

[663] March 20, *Parl. Hist.*, iv. 853–7. The same History (iv. 858) takes notice on the 29th of March of Marvell's boxing Sir Philip Harcourt's ear for stumbling on his foot.

[664] *Parl. Hist.* iv. 862. *Journals*, 1677, April 4.

[665] *Ibid.*, 863. *Lords' Journals*, April 13; May 26.

[666] *Lords' Journals*, April 12, 13, 14.

[667] The Act now noticed should be considered in connection with what is said in a preceding part of this History, p. 96.

[668] *Commons' Journals*, April 29.

[669] *Parl. Hist.*, iv. 980.

[670] June 12. *Parl. Hist.*, iv. 990.

[671] *Hist. of his Own Time*, i. 177.

[672] *Hook's Archbishops*. Second series, i. 173.

[673] Hammond, in 1654, speaks of Sheldon's being "very good company." *Letter in Harl. MSS.*, 21, printed in *Ecclesiastic*, April, 1853.

[674] See Pepys' account of a dinner party at Lambeth, *Diary*, May 14th, 1669. He tells disgraceful stories about Sheldon which were current at the time; and, it should be remembered, that although Sheldon at length rebuked Charles

for his intimacy with Lady Castlemaine, it does not appear that he had before broken silence as to the shameful libertinism of the Court.

[675] Wood says (*Ath. Ox.*, iv. 855) that Sheldon was not installed at Canterbury, and never visited it during the time that he was Archbishop; nor did he visit Oxford all the time he was Chancellor.

[676] The expression is Milman's, in reference to another character.

[677] In these sketches, I include all the notable members of the Episcopal body down to the Revolution—but, though I anticipate the period embraced in our subsequent narrative, the seven Bishops are omitted, as they will require particular notice hereafter.

[678] *Aubrey's Letters*, iii. 574.

[679] *Pope's Life of Ward*, 57. This book abounds in amusing anecdotes.

[680] There is in the Lambeth Library, in addition to the returns made to Sheldon, an account of the number and proportions of Popish recusants, obstinate Separatists, and Conformists, inhabitants of Wiltshire, and Berkshire, under the immediate jurisdiction of the Bishop of Sarum, by Seth Ward, 1676. See as to Ward, *Baxter's Life and Times*, iii. 86.

[681] Seth Ward told Aubrey a queer story respecting a theological opponent. "One Mr. Hagger, a gentleman, and good mathematician, was well acquainted with Mr. Th. Hariot, and was wont to say, that he did not like (or valued it not) the old story of the creation of the world. He could not believe the old position, he would say, *ex nihilo nihil fit*. But, said Mr. Hagger, a *nahitú* killed him at last; for in the top of his nose came a little red speck (exceeding small), which grew bigger and bigger, and at last killed him. I suppose it was that which the chirurgeons call a *noli me tangere*." *Letters*, iii. 368.

[682] *Burnet*, i. 590.

[683] *Morley's Treatises*. Sermon before the King, p. 38.

[684] He had unfairly preached against Baxter, and blazed abroad his marriage with all the odium he could cast upon it. *Life and Times*, ii. 375, 384. I have noticed Baxter's opinion of Morley, and the conduct of the latter, on p. 439 of this volume.

[685] *Life and Times*, iii. 84. The spirit of Morley is manifested in the following passage, speaking of Kidderminster—"The truth is, that Mr. Baxter was never either parson, vicar, or curate there, or anywhere else in my diocese—for he never came in by the door—that is, by any legal right, or lawful admission into that sheep-fold, but climbed up some other way, namely, by violence and intrusion, and therefore, by Christ's own inference, he was a thief and a robber."—*The Bishop of Winchester's Vindication*, p. 2. At the time of writing the letter, Morley was Bishop of Worcester, which diocese included Kidderminster.

Salmon, in his *Lives of the English Bishops*, p. 346, says of Morley, "His strength is attributed to keeping up his College custom of rising at five in the morning, sitting without a fire, and going to his bed cold. He did indeed exceed in severity to himself, eating but once a day, and not going to bed till eleven."

[686] Fuller, in his *Worthies*, i. 483, retracts some things which he had advanced against Cosin in his *Church History*, and observes, "It must be confessed, that a sort of fond people surmised, as if he had once been declining to the Popish persuasion. Thus the dim-sighted complain of the darkness of the room, when, alas, the fault is in their own eyes; and the lame of the unevenness of the floor, when, indeed, it lieth in their unsound legs."

[687] *Ibid.*, 484.

[688] Life of Richard Gilpin, prefixed to his *Demonologia Sacra*, xxxv. Also, I find in the Record Office, a letter from "John Bishop of Durham" to Williamson, sending "the complaint received from Newcastle about the seditious meetings of the Congregation of Saints." The letter is dated November 23rd, 1668. The complaint refers to a public meeting on the 1st of November, in Barber Surgeon's Hall, of 500 of the Congregation of Saints, headed and led by Gilpin, notoriously known to be disaffected to the Government. It is stated, that he caused the 149th Psalm to be sung—and a treasonable construction is put upon the words. Three persons are named in connection with Gilpin—Durant, Leaver, and Pringle.—November 23.

[689] *Conformist's Plea*, 35. There is a letter in the Record Office (Sanderson to Williamson, 1667, Sept. 19), complaining of the laxity of the Bishop of Durham, in not convicting John Cock, a notorious Nonconformist—agent for Lady Vane, at Raby Castle, who was brought before him.

[690] *Basire*, 89.

[691] *Life*, by Plume.

[692] Salmon says "the expense was £20,000, of which the Chapter contributed £1,000. The rest was his own, or procured by him of other pious persons."—*Lives*, 296.

[693] *Life*, by Plume. See Coleridge on Hacket's Sermons—*Remains*, iii. 175.

[694] See notice of Wilkins, in Pope's *Life of Seth Ward*.

[695] Newcome, in his *Diary*, says—"November 22, 1672. I received the sad news of the death of the learned, worthy, pious, and peaceable Bishop of Chester, Dr. John Wilkins; he was my worthy friend." John Angier, the Nonconformist minister at Denton, speaks of his removal as a great loss.—*Heywood's Life of Angier*, 86. Martindale (*Autobiography*, 196) also refers to the Bishop's moderation, and adds—"But the Archbishop of York, by his visitation, took all power out of his hands for a year, soon after which this honest Bishop Wilkins died." I may be permitted to add that the good Bishop was a wit. In reference to his idea of the possibility of a passage to the moon, the Duchess of Newcastle said to him, "Doctor, where am I to find a place for waiting in the way up to that planet?" "Madam," replied he, "of all other people in the world, I never expected that question from you, who have built so many castles in the air, that you may be every night at one of your own."—*Stanley's Memorials of Westminster*, 234.

[696] Preached at the Guildhall Chapel, London, 1672, p. 46.

[697] *Own Time*, i. 187.

[698] *Wood, Athen. Ox.* iii. 969.

[699] *Wood's Athen. Ox.*, iii. 1085.

[700] Norwich, April 13, 1670. Lambeth Library, Tenison MSS. 674.

[701] *Athen. Oxon.* iv. 309–317. There is a letter from Croft amongst the *State Papers* (Dec. 30, 1678), relative to his Library, &c.

[702] *Hist.* 42.

[703] He lay in state in a room under the Regent House. Over the hearse was spread the coat of the King or Herald-at-arms, of crimson satin, richly embroidered with gold. At the head of the hearse was standing the Bishop's mitre, which was silver-gilt, the cap, or in part whereof, was crimson satin or silk; the mitre was plain, saving some little flower wrought in the middle on each side thereof, and on the top of each a little cross of about an inch in length and breadth. On one side of the top of the hearse lay along the Bishop's crosier of silver, somewhat in likeness to a shepherd's crook of about an ell long, and in thickness round above two inches and a half.—*Ald. Newton's Diary*, quoted in *Annals of Cambridge*, by Cooper, iii. 522.

[704] *Conformist's Plea*, 85.

[705] He allowed a considerable annuity to Dr. Tuckney, whom in the Professorship of Divinity at Cambridge, and the Mastership of St. John's College, he succeeded after the Restoration.

[706] *Hist. of his Own Time*, i. 181. Temple, in his *Memoirs*, says, "My election in the University proceeded with the most general concurrence that could be there, and without any difficulties I could observe from that side (the Duke of Monmouth's) those which were raised coming from the Bishop of Ely, who owned the opposing me, from the chapter of religion, in my *Observations on the Netherlands*, which gave him an opinion that mine was for such a toleration of religion as is there described to be in Holland."—*Temple's Works*, i. 433.

[707] *Fuller's Worthies*, ii. 421.

[708] *Athenæ Oxonienses*, iii. 717.

[709] *Conformists' Plea*, 35.

[710] *Nelson's Life of Bishop Bull*, 206.

[711] *Life and Times*, ii. 363.

[712] *Athen. Oxon.*, iii. 1195.

[713] *Ibid.*, 940. Bliss says he was Canon of York.

[714] The letter is written by Dr. Lampleugh, January 12, 1675. *State Papers, Dom. Charles II.*

[715] *Le Neve*, part ii. 238.

[716] The letter is dated, Ely House, October 9, 1643. *Le Neve's Lives of the Bishops*, pt. ii. 247.

[717] See anecdote of Sterne in *Baxter*, ii. 338, quoted in the account of the Savoy Conference in this History.

[718] *Hist. of his Own Time*, i. 590.

[719] This corresponds with the eulogium on his tombstone.

[720] *Grainger's Biography*, iii. 232.

[721] *Le Neve's Bishops*, pt. ii. 258.

[722] *Hist. of his Own Time*, i. 590. Dolben was Dean of Westminster at the time of Albemarle's funeral. Ward preached. "The Dean and prebendaries wore copes. Offerings were made at the altar."—*Stanley's Westminster*, 228.

The following notice occurs in *Thoresby's Diary*, i. 172:—"I rode with most of the gentry in the neighbourhood, to meet Archbishop Dolben, who was much honoured as a preaching bishop. May 1, 1684: he gave us an excellent sermon at the parish church; see his remarkable preliminary discourse concerning holydays, their institution, and abuse in the Romish Church, which makes many good people (his own expression) averse to them, even as celebrated in the Church of England, though without superstition. In the whole he showed great temper and moderation."

[723] In addition to the particular books which I have noticed, I may state that my chief authorities for these notices of the Bishops are *Wood*, *Le Neve*, and *Salmon*.

[724] I find amongst the State Papers the following, in a volume on Ecclesiastical affairs, containing *Congé d'élires*, &c.:—

"Dean and Chapter of Lichfield

"Whereas upon the vacancy of that see by the death of Dr. Hackett the late Bishop we did by our *Congé d'élire* and our Great Seal of England grant you our license to proceed to an election of a fit person to succeed in the same, and at the same time did by our letter written recommend to you our trusty &c. Dr. Wood Dean of that our cathedral church to be by you chosen Bishop of the said see according to the laws of this our realm. We have now thought fit hereby to signify our pleasure to you that we do hereby will and require you to forbear to proceed to the election of the said Dr. Wood until our pleasure shall be further signified unto you—whereof you may not fail.

"June 11, 1671."

[725] *D'Oyley's Sancroft*, i. 194.

[726] Yet it is said in his epitaph, in St. George's Chapel, Windsor,—"*Exule Carolo II., bonis multatus, reverso, a sacris, hujus Capellæ Canonicus, Decanus Sarisburiensis, postea Cicestrensis Episcopus, φιλόξενος φιλάγαθος,*" &c., &c.

There is a curious account in *Kennet's Hist.* of Brideoake's visit to Lenthall, the Speaker, when on his death-bed. He owed much to Lenthall's influence during the Commonwealth. A letter in the State Paper Office, 1678, Oct. 7, conveys intelligence of his death, and asks, in consequence, for Church promotion.

[727] This Lloyd is to be distinguished from him of the same name who was one of the Seven Bishops.

[728] In *Ichabod*; or, *Five Groans of the Church*, mention is made of 1,342 factious clergymen.

[729] *Dom. Chas. II.*, 1677, Sept. 12.

[730] *Mystery and Iniquity of Nonconformity*, 1664. A curious tract entitled *The Ceremony-Monger, his Character, in Six Chapters*, describes "bowing to the altar, implicit faith, reading dons of the pulpit, reading the Psalms, &c., alternately, bowing at the name of Jesus, unlighted candles on the altar, organs, church music, and other popishlike and foppish ceremonials," all of which are unmercifully ridiculed. The author is E. Hicckeringhill, Rector of the Rectory of All Saints, in Colchester. There is no date to the publication, but from abundant internal evidence, it must have been written after the Act of Uniformity. Hicckeringhill is justly described by Chalmers as "a half crazy kind of writer." He was a pensioner of St. John's, Camb., in 1650; junior Bachelor of Gonville and Caius; Lieut. in the English army in Scotland, and Captain in Fleetwood's Regiment. He took orders in 1661 or 1662, being ordained by Bishop Sanderson; became Vicar of Boxted, Essex, in October, 1662, and about the same time, Rector of All Saints, Colchester. In reference to the Act of Uniformity, he says it is an unnatural, impossible, irrational, wicked, and vain attempt. "Go teach God," he says, "to make a new heaven, with uniformity of stars and skies,—teach Him to make men uniform," &c. Hicckeringhill wrote *The Second Part of Naked Truth*, and *A Vindication* of it. The copy of it which I have seen is in the Library of Trinity College, Cambridge. The Bishop of London brought an action against him, in March, 1682, for slander. A report of the trial may be found in the same Library, *Political Tracts*, Y 24. Hicckeringhill held his Rectory until his death in 1708.

[731] Quotation in *Vindication of the Clergy*, 82.

[732] *Chamberlayne*, part 1. 205, 207. The following entries indicate the poverty of clergymen:—

"1669. Given to a poor minister who preached here, at the church, April 25, 3s. Bestowed on him in ale, 4d.

"Feb. 13, 1669. Collected then, by the churchwardens, in the church, upon a testimonial, and at the request of the Lord Bishop of York, for one Mr. Wilmot, a poor minister, 8s. 4d.

"1670, April 10. Given then by the neighbours, to a poor mendicant minister, one Mr. John Rhodes, who then preached here, and after the sermon *stood in the middle aisle to receive the charity of the people*, the sum 12s. 3d.

"1670, July 3. Given then by the neighbours to a poor lame itinerary, one Mr. Walker, who preached here, and after the sermon stood in the middle aisle to receive the people's charity, which was 9s. 3d."—See *History of Morley Old Chapel*, by the Rev. J. Wonnacott.

[733] *Hunter's Life of Heywood*, 336.

[734] *Grounds and Occasions*, 19. It is from this paragraph, and other similar authorities, that Macaulay draws materials for his humorous one-sided satire on the clergy—*Hist. of Eng.* i. 340.

[735] *Grounds and Occasions*, 107. North complains of his father's chaplain being very illiterate.—*Lives*, iii. 312.

[736] *Evelyn's Diary*, 1684, February 23.

[737] *Vindication of the Clergy* (1672), 122. The author of the *Grounds and Occasions* followed up his work by "Some observations upon the answer."

[738] *Vindication*, 100, *et seq.* See *Answer to the Grounds and Occasions* (1671), 14. Another book was published—*Hieragonisticon*, being an answer to the two books on the *Grounds and Occasions* (1672). Five additional letters were published by the author of the *Grounds and Occasions*, &c. Through the kindness of my friend, Mr. John Rotton, the whole of this curious collection has been placed at my service.

[739] *Vindication*, 108.

[740] *Appendix to Second Report of Commission on Ritual*, 628.

[741] "An account of the life and conversation of the reverend and worthy Mr. Isaac Milles," quoted in *Ken's Life by a Layman*, 48–50.

[742] *Ichabod; or Five Groans of the Church* (1663). Williams, Bishop of Lincoln, says he "met with three debauched clergymen in Hertfordshire, whom he shall deprive: the gentry are most kind wherever he goes. Thinks the principles he goes upon will be successful."—*State Papers*, July 18, 1668.

[743] *Life of Philip Henry*, 101. He made this remark at the close of the year 1662. In *Hunter's Life of Oliver Heywood*, p. 149, a wretched account is given of the six ministers who succeeded him.

[744] *History of his Own Time*, i. 186.

[745] *Diary*, 1668, February 16.

[746] *Burnet*, i. 258.

[747] *Appendix to Second Report of Commission on Ritual*, 628.

Transcriber's Note:

1. Printer's errors have been silently corrected.
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